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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker pro tempore (Mr. CLINE).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
November 14, 2023.

I hereby appoint the Honorable BEN CLINE to act as Speaker pro tempore on this day.

MIKE JOHNSON,
Speaker of the House of Representatives.

PRAYER

The Chaplain, the Reverend Margaret Grun Kibben, offered the following prayer:

Unto You, O Lord, we offer our prayers. Unto You who is able to do immeasurably more than all we could ask or imagine, we lift up our hopes, our fears, our anxieties, and our expectations to You and pray that Your power would be at work within us as we serve You in this place.

For we are Your servants and public servants graced with both the ability and opportunity to exercise our responsibility to the governance of this country, the support and defense of its Constitution, and the preservation of the welfare of our fellow Americans.

Grant, then, that with these profound duties before us that we remain faithful to what is true, what is honorable, and what is right, that neither adamance nor ignorance would blind us to righteousness. May we safeguard what is pure and lovely, that neither ill will nor self-interest would poison our discourse.

But with boldness and confidence, with our faith in You, may we gain access to Your wisdom and direction in accordance with Your will.

In the power of Your name we dare to pray.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House the approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. BURGESS. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER pro tempore. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. BURGESS. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER pro tempore. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from North Carolina (Mr. DAVIS) come forward and lead the House in the Pledge of Allegiance.

Mr. DAVIS of North Carolina led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to five requests for 1-minute speeches on each side of the aisle.

RECOGNIZING ED SKALA

(Mr. MCHENRY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCHENRY. Mr. Speaker, I rise today to recognize Mr. Ed Skala, who this month celebrates 25 years of service to this august institution, the United States House of Representatives.

For those of us who have had the privilege to work with Ed, one word stands out above the rest, and that is dedication. His tireless commitment to his craft and to our Financial Services Committee is immediately noticed by all those who have been graced with his company.

His dedication is topped perhaps only by his wit and ability to remember the smallest of details from 20 years ago.

I have always said about this institution that it would not run and lawmakers would not be able to do their job without the dedication and professionalism of the staff here. The staff make this place work, and Ed stands out as a shining example of that.

Mr. Speaker, on behalf of all of us, I thank Ed for all he has done and continues to do for the Financial Services Committee, for the institution as a whole, and for the United States Government.

I congratulate Ed, and I hope he and Hera have a nice time.

CONDEMNING HATE ON COLLEGE CAMPUSES

(Ms. PRESSLEY asked and was given permission to address the House for 1 minute.)

Ms. PRESSLEY. Mr. Speaker, I rise to unequivocally condemn anti-Semitism, Islamophobia, and all forms of hate on college campuses throughout our country.

The Massachusetts Seventh is known for its institutions of higher learning,

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and my office has heard from students, faculty, and administrators sounding the alarm on hateful rhetoric since the outbreak of war in Israel and Gaza.

Let me be clear: There is no justification for anti-Semitism or Islamophobia or any other form of hatred. Mr. Speaker, whether you wear a yarmulke or a hijab, you have a right to show up as your authentic self.

Doxing on the internet, violence at protests, and endangering people's lives must stop. We cannot become that which we condemn.

The only way forward is to center our shared humanity. I came to Congress to strengthen our communities, not to play politics with harmful resolutions of erasure or to defund civil rights by banning diversity and inclusion.

To the students of the Massachusetts Seventh of all faith traditions, I say this: Know that I see you. The world is better because of you. Your talents, skills, and passions will transform our society. Together, we can build a future rooted in radical love, not hate.

RECOGNIZING MARTENE FIRESTINE

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to recognize Martene Firestine and her outstanding work with the Pennsylvania Livestock Association.

For more than 18 years, Martene has worked tirelessly to raise money to support youth education scholarships. Her efforts have led to the awarding of 106 scholarships totaling more than $111,000.

These scholarships are given to young individuals who have outstanding leadership skills and a keen interest in the livestock industry and who are involved in the Keystone International Livestock Expo, known as the KILE farm show, among other traits.

Students who receive the scholarships use the funds to further their education in any degree or field.

Mr. Speaker, Martene's efforts to support the next generation of leaders are impressive. She remains dedicated to helping others, and it is an honor to recognize her important work.

Mr. Speaker, I congratulate Martene on this much-deserved recognition. The Pennsylvania Livestock Association is blessed to have such a dedicated member.

SUMMARIZING INSIGHTS FROM THE AGRICULTURE LABOR WORKING GROUP

(Mr. DAVIS of North Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DAVIS of North Carolina. Mr. Speaker, the Agriculture Labor Working Group has conducted numerous sessions where we engaged with producers, workers, and stakeholders, all to understand the challenges they face within the H–2A program.

As a co-chair of the working group, we released an interim report this past week summarizing the various insights from these sessions. The witnesses we met with provided recommendations on how they believe the program can work better to ensure our growers can continue to feed and clothe the American people and beyond.

I look forward to continuing to work with Co-Chair CRAWFORD and the other dedicated members of the working group to craft a final report that offers bipartisan solutions to address the issues faced by our agriculture community and ensure a stronger and more resilient future for all.

MAUI MINUTE: RECOGNIZING OUR FIRST RESPONDERS

(Ms. TOKUDA asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. TOKUDA. Mr. Speaker, today, for my Maui minute, I rise to recognize and extend a heartfelt mahalo to the brave first responders and disaster workers who rushed in to evacuate and support our people and communities since the devastating wildfires on Maui.

From police and firefighters to paramedics and 911 operators, these heroes play an essential role every day across our country, providing physical and emotional support to those who have been hit hard by disasters.

While they never cease in their important work in times of crisis, first responders often face their own barriers with seeking help and accessing the mental health services they need as they deal with their own trauma as a result of what they see and experience.

On Maui, many first responders and disaster workers were also victims and survivors themselves, losing loved ones and homes. Despite this, as the fires raged, they continued to serve and protect.

That is why, this week, I have introduced the Crisis Assistance and Resources in Emergencies for First Responders Act, or CARE for First Responders Act, to increase access to mental health care services specific to the unique needs and experiences of those on the front lines of disaster.

These brave men and women have answered the call each time we have needed them most. Now, it is our turn to do the same.

RECOGNIZING CITY OF DEARBORN VETERAN OF THE YEAR DAVID KLINE

(Ms. TLAIB asked and was given permission to address the House for 1 minute.)

Ms. TLAIB. Mr. Speaker, the 12th Congressional District recognizes David Kline. He is being recognized for his outstanding contributions by being named the City of Dearborn Veteran of the Year.

Born and raised in Detroit, Mr. Kline enlisted in the United States Army in 1966 after graduating from Detroit's Cody High School. During his 10 years and 11 months of service, Mr. Kline earned many commendations, awards, recognitions, and certifications, including the Army Commendation Medal as well as the Presidential Unit Citation, the Vietnam Gallantry Cross, the Good Conduct Medal, and the National Defense Service Medal.

As an engaged member of our community, Mr. Kline remains very active in numerous veteran organizations in southeast Michigan, including Vietnam Veterans of America Chapter 267 and American Legion Post 364.

He is a passionate and dedicated resident of our community. We are honored to recognize him as Dearborn, Michigan's 2023 Veteran of the Year.

HONORING THE LIFE OF DELBERT McDOUGAL

(Mr. ARRINGTON asked and was given permission to address the House for 1 minute.)

Mr. ARRINGTON. Mr. Speaker, I rise today to celebrate and honor the life of my dear friend and a giant of a west Texan, Delbert McDougal, who passed away last week after 86 years of unwavering devotion to God, his family, and the Lubbock community.

Delbert was born and raised in Hockley County, USA, where he learned at a young age the importance of hard work by chopping weeds in a cotton patch for 45 cents an hour.

He met his wife, Carolyn, in 1954. Together, they started their family and began working to transform our community with countless real estate endeavors, including the largest privately financed urban renewal project in America.

The citizens of Lubbock enjoy a better quality of life and have a brighter future because of Delbert McDougal's big vision, his bold leadership, and his boundless love for all things west Texas.

God blessed west Texas with that great man, Delbert McDougal, and I pray that He will comfort the McDougal family in the days to come.

Go west Texas.

SUPPORTING OUR DEMOCRATIC ALLIES ISRAEL AND UKRAINE

(Mr. COHEN asked and was given permission to address the House for 1 minute.)

Mr. COHEN. Mr. Speaker, I just watched the 47-minute film provided by the Israeli Government for our Members to watch the horrors of Hamas and what they did on October 7. Everyone who saw that should never forget it and should give notice to the world of the barbarity and the horrific attack on the Israeli people.

The House has much to do. We need to keep this government open. We need to support Israel in defending their citizens and in their efforts to protect their democracy and their nation. We need to protect Ukraine, as well.

Ukraine and Israel are two democratic friends of ours. They have been savagely attacked. They need our help, and we need to help them with arms and weapons.

Act now.

Never forget.

PROVIDING FOR CONSIDERATION OF H.R. 5894, DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2024

Mr. BURGESS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 864 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 864

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 5894) making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees. After general debate the bill shall be considered for amendment under the five-minute rule. An amendment in the nature of a substitute consisting of the text of Rules Committee Print 118–13, modified by the amendment printed in part A of the report of the Committee on Rules accompanying this resolution, shall be considered as adopted in the House and in the Committee of the Whole. The bill, as amended, shall be considered as the original bill for the purpose of further amendment under the five-minute rule and shall be considered as read. All points of order against provisions in the bill, as amended, are waived.

SEC. 2. (a) No further amendment to H.R. 5894, as amended, shall be in order except those printed in part B of the report of the Committee on Rules accompanying this resolution, amendments en bloc described in section 3 of this resolution, and pro forma amendments described in section 4 of this resolution.

(b) Each further amendment printed in part B of the report of the Committee on Rules shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment except as provided by section 4 of this resolution, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

(c) All points of order against further amendments printed in part B of the report of the Committee on Rules or against amendments en bloc described in section 3 of this resolution are waived.

SEC. 3. It shall be in order at any time for the chair of the Committee on Appropriations or her designee to offer amendments en bloc consisting of further amendments printed in part B of the report of the Committee on Rules accompanying this resolution not earlier disposed of. Amendments en bloc offered pursuant to this section shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment except as provided by section 4 of this resolution, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

SEC. 4. During consideration of H.R. 5894 for amendment, the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate.

SEC. 5. At the conclusion of consideration of H.R. 5894 for amendment the Committee shall rise and report the bill, as amended, to the House with such further amendments as may have been adopted. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto to final passage without intervening motion except one motion to recommit.

The SPEAKER pro tempore. The gentleman from Texas is recognized for 1 hour.

□ 0915

Mr. BURGESS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the Congresswoman from Pennsylvania (Ms. SCANLON), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. BURGESS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BURGESS. Mr. Speaker, last night the Rules Committee met and reported a rule, House Resolution 864, providing for consideration of H.R. 5894. The rule provides for consideration of H.R. 5894 under a structured rule with 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their designee.

The rule further makes in order 146 amendments. The rule also provides that the chair and the ranking member of the Appropriations Committee, or their respective designees, may offer up to 10 pro forma amendments each at any point for the purpose of debate. Finally, the rule additionally provides for one motion to recommit.

Mr. Speaker, I rise in support of the rule and the underlying bill, H.R. 5894, the Labor, Health and Human Services, Education, and Related Agencies Appropriations Act for fiscal year 2024.

Mr. Speaker, the Republican majority is committed to fulfilling their promises to the American people by ensuring that we pass H.R. 5894 to fund our government and its crucial public health, education, and labor programs.

This bill is a significant accomplishment and the most recent step House Republicans are taking to restore fiscal responsibility to the Federal budget after years of overspending. It is a fact that our Federal spending is out of control, and H.R. 5894 is a step in the right direction, encouraging responsibility and restoring accountability.

H.R. 5894 provides $147 billion for vital programs at the Departments of Labor, Health and Human Services, and Education while still reducing total Federal spending by over $60 billion.

The bill eliminates 61 programs, 50 of which are currently not authorized. It reduces funding for an additional 54 other programs and prohibits funds from unnecessary regulations and partisan executive orders.

This Congress should aim to prioritize funding programs that can have positive outcomes and deliver results for the American people. Inflated spending for duplicative programs is a sure way to fuel the economic situation in which we now find ourselves.

H.R. 5894 funds key priorities, including maintaining funding for essential education, public health, substance abuse and mental health, and veterans job training programs.

Republicans have fought to ensure that funding is prioritized to help all school districts safely educate children, including children with special needs. H.R. 5894 also contains provisions to support funding for charter schools, Pell grants, and local career and technical training programs for those students who are not seeking a college degree to ensure that our next generation is given opportunity and access to essential education programs.

Especially important to many districts around the country, including mine, this bill maintains vital funding for the Impact Aid Program, which supports school districts affected by a Federal presence such as a military base.

H.R. 5894 promotes American values of freedom, faith, and family by prohibiting the executive order requiring biological boys to be allowed to compete in girls' and women's sports, protecting religious freedom for students on college campuses, and strengthening parental rights for children in school.

Republicans understand that our country is facing a mental health crisis, along with record-breaking rates of substance abuse in the United States; therefore, this bill has designated funding for programs that combat opioid abuse in urban and rural communities. These crucial programs allow Americans to access the proper care that they need, including vital telehealth and response resources.

Democrats seem to disregard the value of the taxpayer dollar. They have continuously proven that they prioritize additional spending, progressive initiatives, and push through woke policies that will have negative consequences on the health and well-being of the American people.

When they were in the majority, congressional Democrats took drastic steps to push through legislation, such as the Inflation Reduction Act, saying that it would lower healthcare costs for America's seniors. In fact, we have already seen that this legislation has resulted in a halt to innovation and disincentivized investment into high-stakes research, such as rare diseases.

This bill, H.R. 5894, contains provisions that fund and support biomedical research programs that work to examine the cures for cancer, Alzheimer's disease, chronic conditions, and rare diseases. Under Republican leadership, the United States will continue to remain a leader in healthcare innovation, while peeling back the partisan politics that would limit access to lifesaving medicines.

The bill also maintains longstanding provisions of the Hyde amendment, bipartisan protections which have been in place since 1976. These pro-life policy protections prohibit Federal funds from being used for abortion while also including essential protections for healthcare providers who refuse to provide abortions.

Under the leadership of Democrats, the right for America's medical professionals to operate under their own autonomy and authority was under constant attack. Future medical professionals are being forced to practice medicine outside their own standards or to not practice at all. Protections placed in this bill ensure that any medical professional who does not wish to perform procedures that are against their religious or moral standards simply do not have to. The Republican Party continues to fight to maintain the balance between the professional practice of medicine and individual values.

Additionally, H.R. 5894 prohibits funding from being used to promote gain-of-function research or from any funding going to EcoHealth Alliance, the Wuhan Institute of Virology, or any other lab located in the People's Republic of China, Cuba, Iran, or Russia.

Americans deserve transparency for the years lost due to the COVID–19 pandemic. The ability to perform biomedical research is a privilege and should not be abused. It is our responsibility to ensure that American dollars do not go toward dangerous research in adversarial countries.

Mr. Speaker, the United States is facing a significant healthcare workforce shortage. The government continues to have a role in deciding what is best for American doctors and their patients. This is, in fact, unacceptable. The combination of low reimbursement rates in the physician fee schedule, the burdensome compliance requirements through the No Surprises Act, and the enforcement of unnecessary vaccine mandates on healthcare workers has only fueled this ongoing shortage.

This bill prohibits the enforcement of regulations by the Centers for Medicare and Medicaid Services to force a vaccine mandate on healthcare workers. Healthcare providers should not be forced to comply with these mandates that infringe upon their individual freedom of choice.

We must come together and pass this bill and continue our commitment to the health and well-being of our people. The United States is facing record-breaking inflation, government spending is at an all-time high, and our communities continue to face barriers to education, healthcare, and recent partisan policies that stifle healthcare innovation.

Mr. Speaker, I reserve the balance of my time.

Ms. SCANLON. Mr. Speaker, I thank the gentleman from Texas for yielding the customary 30 minutes, and I yield myself such time as I may consume.

For the past 6 months, the Republican majority, embroiled in chaos and dysfunction, has wasted valuable time. Because they are unable to perform the most basic job of Congress, working with Representatives from both parties and across the country to fund the government, they have brought us to the brink of a shutdown twice in the last 2 months.

Before that, they threatened to tank the global economy, and if their proposals pass this week, we will likely face new shutdown threats again in the new year.

This isn't serious governance. It is not serious or governance at all. They are playing politics with Americans' lives and our country's future.

It is outrageous that my constituents are yet again subjected to the uncertainty and fear that their paychecks won't come next week and that services they rely upon, like LIHEAP and WIC, will be interrupted. House Republicans still refuse to come to the table where the majority of the American people are and work with us in a bipartisan way to pass the spending bills that Americans expect and deserve.

The Senate is doing it. Why can't the House?

Instead, House Republicans continue to try to force the entire country to go along with their farcical and extremist approach to government funding. Unsurprisingly, they continue to fail, over and over again, on the House floor. Their proposals are so extreme that Members of their own party won't even vote for them. The MAGA majority may have new leadership, but it is the same old story.

They plan to kick the government funding can down the road, once again, so they can try to pass all 12 spending bills, which are now 2 months overdue, that cater to the most extreme and noisy fringe of the MAGA party.

These are bills that reject any bipartisan input, bills that contain harmful spending cuts that violate the Fiscal Responsibility Act's spending levels that were approved on a bipartisan basis and signed into law last spring, and these bills include poison pill policy riders to enshrine MAGA culture wars into law and force these extremist views upon every American.

There is no clearer example of that than the unacceptable spending bill they have brought to the House floor today.

The Labor, Health and Human Services, and Education appropriations bill is supposed to help Americans access education, jobs, and healthcare. These are the foundations of our constituents' lives and livelihoods.

Mr. Speaker, I don't know about you, but they are three of the issues that I hear about the most when I have the opportunity to be back home rather than debating meaningless bills and amendments here on the House floor. Yet the majority has proposed legislation that slashes funding for existing programs supporting these parts of Americans' lives by a shocking 28 percent across the board, back to 2008 spending levels with even deeper cuts in certain critical areas.

Let me outline what these cuts will mean for Americans.

□ 0930

Mr. Speaker, our public schools are responsible for educating the next generation of Americans: our civic leaders, our innovators, and our taxpayers. They are the key to our country's present and its future. However, this bill seeks to further efforts of MAGA extremists to undermine our public school systems by ripping critical funding away from the K–12 schools that need it the most.

This bill slashes billions—that is billions with a b; 80 percent—from title I, the foundational Federal program that for over five decades has helped schools ensure that low-income students have access to a high-quality, well-rounded education to equip them for what lies ahead.

These cuts will be devastating for the children who live in my district, which houses one of the largest public school districts in the country. Hundreds of millions of dollars in funding will be slashed from Philadelphia public schools.

Thousands of teachers will lose their jobs, but it is not just my district that will suffer. It is everyone's. Mr. Speaker, Virginia's Sixth District will lose $23 million in title I funding. Mr. BURGESS' district, Texas 26, will lose $22 million. That is over 300 teachers that will lose their jobs in each of those districts.

I challenge any of my colleagues to explain to the teachers and families in their districts how they can support a bill that cuts millions of dollars and hundreds of teachers from their local public schools, particularly at a time when our children need extra help.

Members of Congress who vote for this proposal will be telling kids and families clearly and cruelly that where they live or how much money their parents make is the measure of whether they are worthy of a good education and future success. That is un-American.

In addition to title I cuts, this bill also eliminates—not cuts, eliminates—funding for programs that support English language learning, academic achievement, professional development for educators, and the emotional and mental health of our students.

In this bill, MAGA Republicans are going after preschool by slashing hundreds of millions of dollars from Head Start, which has been proven to provide young children with a critical early learning foundation that sets them up for lifelong success and saves taxpayers dollars down the road.

I want so much better than what is in this bill for our children, and I find it deeply disturbing that my Republican colleagues don't feel the same.

Early childhood and K–12 education aren't the only things on the House Republicans' chopping block. With this bill, they are also abandoning college students and hardworking people trying to improve their lives and their futures through higher education and job training.

This bill would eliminate the Federal Work-Study Program for hundreds of thousands of hardworking students who use it to pay for a higher education.

It would block regulations to implement income-based student loan repayment programs, and this bill would rip need-based financial aid away from over a million students. Consequently, it will be harder for people from working families to get a degree, and it will stifle their potential earnings and opportunities in the job market.

This bill also leaves behind Americans who want to work, who want to access job training, or want to find a higher paying job to better support themselves and their families. When employers across this country are scrambling to find qualified job candidates, House Republicans are defunding the programs that prepare Americans for the 21st century workforce.

The bill they have proposed eliminates job training for over half a million Americans, the WIOA programs, youth job training, adult job training, and employment programs for seniors.

The bill also cuts over a billion dollars from critical worker protection agencies at the Department of Labor, including programs that ensure worker safety and promote equality and economic security for working women.

Every day, I see how my district's dozens of higher education institutions, including community colleges, bring innovation and prosperous futures to our region, but House Republicans' shortsighted vision for our country undermines these accomplishments and jeopardizes the strength of our workforce for generations to come.

Finally, the majority is using this bill to come after programs that support Americans' health, safety, and well-being. My district and the whole Philadelphia region is a hub for biomedical innovation, but the bill before us would undercut this lifesaving work by slashing funding for cancer and neurological research. Programs that help us fight public health crises, like opioid misuse and HIV/AIDS, will be eliminated.

As grieving Americans everywhere call out for action to bring an end to senseless gun violence, MAGA Republicans in the House, rather than answer these calls, want to eliminate funding for research on how to keep communities safe from firearms, now the leading cause of death for American children.

This bill also puts women's and children's health at risk. At a time when the U.S. lags far behind all other developed countries in addressing maternal mortality—not for lack of will and resources—and outcomes for mothers, but particularly women of color, are getting worse, this bill cuts hundreds of millions of dollars in funding for programs that support safe pregnancies, healthy babies, and affordable access to contraception and a full range of reproductive healthcare.

Of course, this bill also includes a toxic stew of unpopular, extremist policy riders, yet another example of rightwing lawmakers pushing their extreme agenda to ban abortion care nationwide.

This is a terrible bill, and the House majority knows it. It has been dictated by its most extreme Members. It couldn't even survive a committee markup. Therefore, the party that preaches regular order has sent it straight to the floor. On the way, with no committee input, this bill acquired additional policy riders, and no one in the Rules Committee could explain last night how they got in there since they didn't happen in committee.

This bill is so extreme it may have to be pulled from the floor, like the two bills that preceded it last week, because it cannot win enough votes even from the House Republican Conference. If it does pass the House, it will not pass the Senate or be able to overcome a White House veto.

The appropriations legislation that House Republicans have put in front of us today does nothing to invest in Americans or America's future. Instead, it slashes programs and support for children, families, workers, and women. It is a cruel vision for our country as House Republicans continue to worship at the shrine of trickle-down economics, despite its failure for half a century. Instead of making wealthy corporations and billionaires pay their fair share, they would rather balance the budget on the backs of kids and hardworking families, and undermine the U.S.' global reputation, credit rating, and national security.

Americans, my constituents, are fed up. The people who send all of us to Washington do so with a belief that we will work and fight to make their and their families' lives better, but it seems too many of the MAGA Republicans in the House aren't interested in keeping up their end of that bargain. This bill doesn't live up to the promises I have made to my constituents, and I absolutely can't support it.

Mr. Speaker, I reserve the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself 1 minute. Mr. Speaker, I am sorry, last year when the Democrats were in charge of the United States House of Representatives, I do not recall the Labor-HHS bill being on the floor as an individual bill. In fact, it was not. Everything was grouped together in a large omnibus bill literally a year ago, last December.

Here is the problem: We all recognize, both Republicans and Democrats, additional spending was necessary during the pandemic to protect Americans and get us through this unprecedented crisis. However, last year, when everyone acknowledged that the effects of the coronavirus were on the wane, discretionary spending increased by 15 percent.

Mr. Speaker, my constituents do not understand that. They do not understand why that was necessary. The people struggling to buy gas and groceries for sure don't understand why that was done to light the fires of inflation.

I encourage Members on my side of the aisle to remember, if you do not want a December omnibus, then vote for this bill today.

Mr. Speaker, I reserve the balance of my time.

Ms. SCANLON. Mr. Speaker, I yield myself such time as I may consume.

The fact remains that under Democratic leadership, the House did pass budget bills. It passed the actual bills. What we are seeing here is a string of MAGA bills being brought to the floor and not passing and not leading to an eventual budget, so we keep ending up in this Mobius loop of potential shutdowns. The bills that we have seen so far will not result in a budget.

Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule to make in order amendment No. 81, offered by Ranking Member DELAURO from the Appropriations Committee, which strikes section 239 of the bill, which prohibits funding to Planned Parenthood and other similar women's health organizations.

Mr. Speaker, when will Republicans in the House learn? The American people want them to stop trying to tell women what they can do with their bodies. At the ballot box, in Congress, in State legislatures, women want them to stop. Republican politicians have no place dictating decisions about women's reproductive health. These decisions should be made between a woman and her doctor.

This MAGA messaging bill callously prohibits funding to an organization

that provides many different health resources to women across the country. I, myself, used Planned Parenthood when planning my family. Planned Parenthood also offers vulnerable communities services they wouldn't otherwise have access to, including critical preventive services like breast and cervical cancer screenings, contraception, and sex education. Simply put, blocking this grant funding endangers women's health across the country. There is no reason we should restrict access to Federal grant money simply to score political points for the MAGA base while limiting reproductive healthcare options.

Mr. Speaker, I ask unanimous consent to insert the text of my amendment into the RECORD, along with any extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Pennsylvania?

There was no objection.

Ms. SCANLON. Mr. Speaker, I reserve the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself 1 minute. If anyone is just tuning in, the bill we have before us today is a bill to fund the Federal agencies of Department of Health and Human Services, Department of Labor, and Department of Education. It is not to provide public funding to Planned Parenthood. That funding should come from someplace else, but not the pockets of the American taxpayers.

Mr. Speaker, I reserve the balance of my time.

Ms. SCANLON. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as I said before, this is a terrible bill. I remind all my colleagues that this is kids' futures that we are talking about. It is the jobs that support American families. It is the health and safety of our loved ones.

If the House's MAGA Republicans had their way, our workers, students, children, women, and families would all suffer if the cuts in this bill were implemented. Our public schools, the centerpieces of our communities and our democracy, would be decimated. Hardworking people would be underwater, unable to find good-paying jobs to keep themselves and their families afloat. Devastating diseases would go uncured and unchecked, and women would be denied the right to make their own free choices about their own healthcare.

America and the people who live here are worth investing in so much more than this, and I won't accept the bleak and nihilistic picture that House Republicans are trying to paint. Our country's future can and should be brighter. It is what our constituents and our children deserve.

Mr. Speaker, I urge my colleagues to oppose the previous question and the rule, and I yield back the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself the balance of my time to close.

Again, I remind colleagues on my side of the aisle that if they do not want a December omnibus, a giant Christmas tree with all sorts of things hung upon it like they saw last year, then they should understand that we need to pass individual appropriations bills.

Colleagues on my side of the aisle should carefully look at this bill and vote in favor of passing the rule and the underlying bill.

There are over 60 programs that are currently being funded that are not authorized. Well, that is on us as authorizers in the authorizing committees, to be sure. However, at the same time, we cannot continue to write checks, to send money to programs that no one has bothered to authorize. If these are important programs that need to continue, then we on the authorizing committees should do the work, dig into the details of the program, bring in the witnesses, take the testimony, and do the appropriate authorization. The fact that that has not happened in so many programs for so long indicates how broken the process is.

□ 0945

We need to reverse that, reverse that curse, reverse that inexorable spending that results if you just simply fund the government at a 15 percent greater level than you did last year before going back to basics and seeing if the program was even necessary.

Mr. Speaker, this legislation has many conservative policies that deliver results to the American people. H.R. 5894, the underlying appropriations bill, works to reverse the harmful effects of controversial executive orders and the woke politics that have really damaged our country.

Republicans seek to protect life, promote American values in the classroom, prioritize safe medical research, and combat the opioid epidemic, all while reining in unnecessary spending and promoting oversight and accountability. That is why I support the rule.

Mr. Speaker, I urge my colleagues to support the rule. I support the underlying bill and urge my colleagues to support the underlying bill.

The material previously referred to by Ms. SCANLON is as follows:

AN AMENDMENT TO H. RES. 864 OFFERED BY MS. SCANLON OF PENNSYLVANIA

At the end of the resolution, add the following:

SEC. 6. Notwithstanding any other provision of this resolution, the amendment specified in section 7 shall be in order as though printed as the last amendment in part B of the report of the Committee on Rules accompanying this resolution if offered by Representatives DELAURO of Connecticut or a designee. That amendment shall be debatable for 10 minutes equally divided and controlled by the proponent and an opponent.

SEC. 7. The amendment referred to in section 6 is as follows:

''Strike section 239.''.

Mr. BURGESS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SCANLON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 9 o'clock and 46 minutes a.m.), the House stood in recess.

□ 1030

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mrs. BICE) at 10 o'clock and 30 minutes a.m. after recess.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Proceedings will resume on questions previously postponed. Votes will be taken in the following order:

Ordering the previous question on House Resolution 864; and

Adoption of House Resolution 864, if ordered.

The first electronic vote will be conducted as a 15-minute vote.

Pursuant to clause 9 of rule XX, remaining electronic votes will be conducted as 5-minute votes.

PROVIDING FOR CONSIDERATION OF H.R. 5894, DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2024

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on ordering the previous question on the resolution (H. Res. 864) providing for consideration of the bill (H.R. 5894), making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question on the resolution.

The vote was taken by electronic device, and there were—yeas 217, nays 208, not voting 8, as follows:

[Roll No. 646]

YEAS—217

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Turner
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—208

Adams
Aguilar
Allred
Amo
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—8

Ezell
Houlahan
Jackson Lee
Kaptur
Mooney
Mullin
Pelosi
Salazar

□ 1059

Messrs. COURTNEY, PHILLIPS, and LANDSMAN changed their vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Ms. SCANLON. Madam Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 217, noes 209, not voting 8, as follows:

[Roll No. 647]

AYES—217

Aderholt
Alford
Allen
Amodei
Armstrong
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Turner
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOES—209

Adams
Aguilar
Allred
Amo
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)

Lee (NV)	Pascrell	Soto
Lee (PA)	Payne	Spanberger
Leger Fernandez	Peltola	Stansbury
Levin	Perez	Stanton
Lieu	Peters	Stevens
Lofgren	Pettersen	Strickland
Lynch	Phillips	Swalwell
Magaziner	Pingree	Sykes
Manning	Pocan	Takano
Matsui	Porter	Thanedar
McBath	Pressley	Thompson (CA)
McClellan	Quigley	Thompson (MS)
McCollum	Ramirez	Titus
McGarvey	Raskin	Tlaib
McGovern	Ross	Tokuda
Meeks	Ruiz	Tonko
Menendez	Ruppersberger	Torres (CA)
Meng	Ryan	Torres (NY)
Mfume	Salinas	Trahan
Moore (WI)	Sánchez	Trone
Morelle	Sarbanes	Underwood
Moskowitz	Scanlon	Vargas
Moulton	Schakowsky	Vasquez
Mrvan	Schiff	Veasey
Nadler	Schneider	Velázquez
Napolitano	Scholten	Wasserman Schultz
Neal	Schrier	Waters
Neguse	Scott (VA)	Watson Coleman
Nickel	Scott, David	Wexton
Norcross	Sewell	Wild
Ocasio-Cortez	Sherman	Williams (GA)
Omar	Sherrill	Wilson (FL)
Pallone	Slotkin	
Panetta	Smith (WA)	
Pappas	Sorensen	

NOT VOTING—8

Arrington	Ezell	Mullin
Cherfilus-McCormick	Jackson Lee	Pelosi
	Mooney	Salazar

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1112

Mr. PHILLIPS changed his vote from ''aye'' to ''no.''

Mr. OGLES changed his vote from ''no'' to ''aye.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2024

GENERAL LEAVE

Mr. ADERHOLT. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous material on H.R. 5894, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Alabama?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 864 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 5894.

The Chair appoints the gentleman from Tennessee (Mr. DESJARLAIS) to preside over the Committee of the Whole.

□ 1121

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 5894) making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024, and for other purposes, with Mr. DESJARLAIS in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees.

The gentleman from Alabama (Mr. ADERHOLT) and the gentlewoman from Connecticut (Ms. DELAURO) each will control 30 minutes.

The Chair recognizes the gentleman from Alabama (Mr. ADERHOLT).

Mr. ADERHOLT. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I rise in support this morning of H.R. 5894, the FY 2024 Labor, Health and Human Services, and Education and related agencies bill.

This is my first year as chair of this very important subcommittee, and I am proud to be able to support programs that touch the lives of literally every American in one form or fashion.

Our Nation remains mired in high inflation, which was only worsened by the massive infusion of government spending, both during and immediately after the COVID pandemic. I have said on numerous occasions that inflation is a tax on every single American. Moreover, it is a tax borne disproportionately by low-income Americans.

We cannot continue to make our constituents pay for our reckless D.C. beltway spending. At some point, we must stop the out-of-control spending spree that we have seen over the past 2 years. This bill that is before the House this morning represents a clear first step toward returning to fiscal responsibility while at the same time ensuring that funding for critical and high-priority functions are maintained.

Yes, the bill before us today reflects the challenges in achieving deficit reduction solely through reductions in discretionary spending. To be honest, a $60 billion cut to social spending programs in this bill requires scrutiny and priority setting.

Over 50 programs are proposed for reduction and another 60 programs are eliminated. Most of those that are eliminated are unauthorized or they have expired authorizations. Title I grants to States are cut by almost 80 percent, or more than $14 billion.

While title I grants do support school districts everywhere, including rural districts and the districts back in Alabama that I represent, these funds disproportionately support big city public schools, those same public schools that failed to educate the most vulnerable children that were entrusted to them by closing their doors for almost 2 years during the pandemic.

It is estimated that over $20 billion in unspent funding still remains available from those funds that were provided during the pandemic to these schools. Until this funding—over $21 billion—is drawn down and used responsibly, the Federal Government should not continue to make further investments in these failing schools.

At the same time, the priorities of this bill are biodefense, programs that support rural America, targeted education programs, including those for children with special needs and congressional oversight responsibilities.

The bill also maintains support for Pell grants and language to ensure borrowers can quickly resume payments of their student loans following the recent Supreme Court decision.

Other programs for certain vulnerable populations, such as Americans with disabilities, older Americans, and foster children, are maintained at current levels.

Childcare block grants, which provide vouchers for families to choose childcare settings of their choice, are maintained at $8 billion.

In response to this administration's executive branch overreach, this bill prohibits funding for programs focused solely on diversity, equity, and inclusion. It eliminates funding for Planned Parenthood and other controversial grantees. It also protects religious freedom and values by stopping the administration's regulations that would require schools to allow biological boys to compete against girls in women's sports programs and prohibiting any Federal funding from going toward enforcing gender identity politics or social, hormonal, or surgical interventions to look like the opposite sex.

The bill prohibits funding for controversial ideologies like critical race theory. These radical views do not belong in public schools. Schools should be teaching our children how to think, not what to think.

The bill maintains the longstanding Hyde amendment to ensure that taxpayer funds are not used for abortion on demand and that no one is forced to participate in an abortion or refer for one under any Federal program.

The bill also makes sure that taxpayer funds are not used to circumvent State laws restricting abortion and also ensures that Federal research funds are not used on human fetal tissue obtained from an elective abortion.

Furthermore, the bill before us also includes provisions preventing this administration from moving forward with job-killing regulations that relate to independent contractors, joint employer status, and federally forced wage rates for agricultural workers. The administration's regulatory agenda is stifling small businesses, which should be an incubator for innovation.

To protect against man-made pandemics, the bill prohibits any funding from going to EcoHealth Alliance, the Wuhan Institute of Virology, or any lab located in Russia or China. The bill also prohibits funding from being used for any gain-of-function research, which was being used on bat coronavirus prior to the COVID pandemic, and it prohibits enforcement of the CMS COVID vaccine mandate on healthcare workers.

In closing, Mr. Chairman, in addition to thanking everybody that has had a part in this, I want to say a special thanks to the chair of our committee, Chairwoman GRANGER, and also my fellow subcommittee members and their staff. I certainly also thank the Labor, Health and Human Services, and Education Subcommittee staff on both the Democrat and the Republican side, as we have had to work through this bill over the last several months. I just appreciate everyone's hard work and input as we have moved forward on this.

Mr. Chairman, I look forward to the debate today, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield myself such time as I may consume. I congratulate Chairman ADERHOLT on his first bill as chairman of the subcommittee. I thank the minority staff—particularly Stephen Steigleder, Philip Tizzani, Laurie Mignone, and Jackie Kilroy—for all of their hard work, as well as the majority staff, Susan Ross, Kathryn Salmon, James Redstone, Emily Goff, and Laura Stagno. As I have often said, they keep our names on the door, so many thanks to all.

Mr. Chair, I have never seen an appropriations bill quite like this one. I have never seen a bill that was this inhumane and which defies all the values and ideals of a society which promises to address the needs and the challenges of its people.

□ 1130

In Charles Dickens' ''Great Expectations,'' Pip observes the Pocket family children as ''not growing up or being brought up, but were tumbling up.'' This bill leaves America's children tumbling up.

This bill is the largest domestic appropriations bill, and for good reason. The programs funded in Labor-HHS-Education ensure that our workforce is strong, our families are healthy and safe, and our children's future is secure.

Indeed, last Congress, we passed a Labor-HHS bill that supported middle-class working families, lifted up vulnerable Americans, and prepared our Nation for future crises, which makes it even more disappointing to see where we have ended up in this year's process.

The majority's 2024 Labor-HHS-Education bill and its 28 percent cut of $64 billion bring us back to a level unseen since 2008. It heralds their intent to end public education in the United States. This bill eliminates present and future job opportunities for young adults, seniors, and working families. It jeopardizes maternal, pediatric, and public health.

This bill is shameful, which is presumably the reason why it was never marked up or voted on by the full Appropriations Committee.

As disappointed as I am to see the authority of the Appropriations Committee surrendered, sadly, based on where the majority has taken this entire process, it is not surprising.

Mr. Chair, 154 days ago, the House Appropriations Committee held its first full committee markup of the 2024 bill. Nine more followed. This bill was not one of them.

Nonetheless, the House majority circumvented the committee process. They air-dropped five new poison pill riders into the Labor-HHS bill without any bipartisan consultation or vote by the committee.

We are left to assume that the majority knew this bill had no path forward in committee, and they know it has no path forward, period.

Horace Mann called education ''the great equalizer.'' Perhaps, then, it is the majority's aversion to equality that explains why they cut 28 percent from the Department of Education.

They will take at least 224,000 teachers out of low-income classrooms and eviscerate the programs that help at-risk youth build a bright future. This cut would entail a loss of 3,700 teachers in Alabama, 800 teachers in Idaho, 4,400 teachers in Maryland, 4,300 teachers in Tennessee, 6,500 teachers in Michigan, 5,000 teachers in Louisiana, 8,300 teachers in Georgia, 1,500 teachers in Kansas, 22,300 teachers in Texas, and 4,400 teachers in Arizona. Explain that to your constituents.

I am deeply concerned about the impact such a colossal retraction from public education funding would have on children across our country.

This bill tells the story of where the majority seeks to take this country. Republicans have made it clear they are opposed to public education, and they seek to destroy it.

Quality education will no longer be accessible to working families, but it will be accessible, again, to the purview of the rich.

I must underscore that point. This is no messaging bill. This is their Commitment to America. I am taking Republicans at their word, as should all American people. This is what they want to do.

When 161 House Republicans voted earlier this year to eliminate all K–12 funding at the Department of Education in the Massie amendment to H.R. 5, I was horrified, but that was only the beginning.

House Republicans are in lockstep behind the most extreme ideologues in their party. Just this summer, former Secretary Betsy DeVos penned an op-ed calling to eliminate the Department of Education.

The Heritage Foundation's budget blueprint includes a proposal to eliminate the Department of Education.

Former OMB Director Russ Vought wants massive funding reductions to ''thwart'' a public education system he sees as ''an existential threat to the American Republic.''

We are witnessing a widespread attack on public education that should shock every American family. If left to their own devices, Republicans will gleefully take public education to the graveyard.

How will this bill move us closer toward those ends?

English language acquisition funding to help 5 million English learners nationwide is eliminated, disadvantaging and discriminating against students who primarily speak another language and restraining their future ability to compete and succeed in the economy.

Supporting Effective Instruction State Grants, which provide professional development opportunities for educators, are completely gone.

Federal work-study is no more for the 660,000 students who need it to help finance their postsecondary education. It limits their potential earnings and future success in the job market.

Nearly $1 billion is cut from the supplemental educational opportunity grants, which eliminate need-based financial aid for 1.7 million students nationwide.

Promise Neighborhoods, social and emotional learning grants, and magnet schools are all completely erased, as well.

The programs that are not completely abolished in this bill are so poorly funded as to be completely nonfunctional.

A $14.7 billion cut from title I, the very foundation of public education in America, is patently unthinkable and would remove hundreds of thousands of teachers from classrooms, directly harming children in every single one of our districts.

Students nationwide are struggling with rising college costs, and this bill provides no relief by freezing the maximum Pell grant for the first time in 12 years.

I believe we all agree that we have a crisis in our Nation's classrooms, but rather than address the teacher shortage and fully fund our children's future, our Nation's future, the majority's solution is to abolish the public classroom altogether. If you cannot afford a private education for your children, well, too bad.

This is the every child left behind act. Regardless of your age or stage in life, this bill means you can't count on your country for assistance in getting back on your feet.

Youth job training, adult job training, Job Corps, and senior community service employment programs are all eliminated. If you want to work and just need help finding the right job or finding a better job, this bill has nothing to offer you.

They are putting workers who do find jobs at risk by cutting $313 million for worker protection agencies like the Occupational Safety and Health Administration. The 30 percent cut to the Wage and Hour Division, the agency that is tasked with enforcing wage law and ensuring that our children are not working illegally, will send the rights of workers in this country back to a time before World War II.

This bill hangs working families out to dry. Healthy Start, diaper distribution, teen pregnancy prevention, title X family planning—all abolished.

With riders that block access to abortions and reproductive healthcare services and force providers to withhold critical information about healthcare options, it is clear in this area that the majority does not trust women to make their own decisions, and where they are taking us is moving down a road to a nationwide abortion ban.

These provisions amount to the majority simultaneously ensuring anyone who may get pregnant will get pregnant, teenagers included, and there are no resources or lifelines available to help those children and their families.

People can only hope that they do not get cancer. You will not find support from House Republicans. From the National Institutes of Health, over $2 billion is cut from the National Cancer Institute, the National Institute for Neurological Disorders and Stroke, the National Institute of Mental Health, and the National Institute of Allergy and Infectious Diseases.

Cuts to the Centers for Disease Control and Prevention are as outrageous as they are dangerous. Firearm injury prevention, tobacco prevention, and ending the HIV epidemic, which, by the way, was an initiative of President Donald Trump, Republicans have decided that addressing these problems is not worth a single dollar to the American people.

What should we be doing if not combating the leading causes of death in this country? What should we fund if not the health and future of America's families? Supporting our children and working families is the bare minimum of what the greatest country in the world should do for its people, but this bill goes well below the bare minimum.

This bill steals from our children's future, from our families' health, and from Americans' livelihood. It abandons young adults. It stifles biomedical innovation. It surrenders to current and future public health crises. It hurts women with poison pill riders on abortion.

Mr. Chair, for these reasons, I vehemently oppose this bill, and I urge my colleagues to do the same.

Mr. Chair, I reserve the balance of my time.

Mr. ADERHOLT. Mr. Chair, I yield such time as he may consume to the gentleman from Alabama (Mr. CARL).

Mr. CARL. Mr. Chair, I thank Mr. ADERHOLT for his remarkable work on this bill, particularly under the trying circumstances in which we find ourselves.

One area of concern I would like to touch on is the Medicare wage index. The wage index is unfair to rural southern States like Alabama.

Alabama has one of the lowest reimbursement rates in the Nation. Even worse, Mobile and Baldwin Counties, which I represent, face a huge struggle with the labor market since they are so close to Florida and competing with Florida's higher reimbursement rate.

A small adjustment to this classification for Mobile and Baldwin Counties would level the playing field at a time when hiring and retaining healthcare workers is at such a critical stage. It would also address the massive population growth that we are having in these counties and the increasingly older population on the Alabama Gulf Coast.

The reclassification is carefully designed to address this unique situation. These carve-outs have been accomplished for decades in higher reimbursement States while lowering the reimbursement for States that need it the most and that have been ignored. To achieve more fair funding in healthcare, especially in a unique situation like Mobile and Baldwin Counties, a reclassification is the right thing to do.

Mr. Chair, I support this bill, and I hope that by working together, we can address these critical issues and ensure a brighter future for our communities.

Mr. ADERHOLT. Mr. Chair, I yield myself such time as I may consume. I rise in support of these remarks from my friend and colleague from Alabama (Mr. CARL).

Hospitals in Alabama and, really, across the Nation are facing financial pressure because of healthcare disparities created by a specific Medicare regulation called the Medicare area wage index, as Mr. CARL just mentioned.

The wage index system is broken. It is punishing cost-effective hospitals in so many rural areas. Despite increases in labor costs, the wage index in these States consistently decreases over the years, and the decline is projected to continue.

I thank the gentleman from Alabama for raising this issue here today. Although this is primarily under the jurisdiction of the authorizing committees, I am proud that this bill includes provisions drawing attention to this very important issue.

I hope that, moving forward, Congress can work to address this long-broken system, which is continuing to create serious challenges for our rural hospitals and their communities.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ), the distinguished ranking member of the Subcommittee on Military Construction, Veterans Affairs, and Related Agencies.

Ms. WASSERMAN SCHULTZ. Mr. Chairman, I thank the gentlewoman for yielding, and I rise in strong opposition to this spending bill.

In it, House Republicans have reduced funding to the NIH and the National Cancer Institute and virtually eliminated funding for medical and behavioral research into deadly diseases.

House Republicans eliminated the CDC's tobacco prevention and control programs. I repeat: House Republicans have defunded our most important antismoking programs with this bill.

Deaths will be the reality if these cuts come to fruition. How can Republicans still be this beholden to Big Tobacco?

House Republicans also eliminated the Ending the HIV Epidemic initiative despite States like Florida, where we are seeing a 33 percent spike in new HIV diagnoses.

With this bill, House Republicans are eliminating Healthy Start, whose sole mission is to improve the well-being of expectant mothers or those who just gave birth, all to reduce infant mortality.

On top of that, this extreme MAGA bill eliminates funding for title X family planning because their far-right ideology forbids access to reproductive health and related preventive health services.

Of course, House Republicans have eliminated the Teen Pregnancy Prevention program in tandem with riders that block access to abortion services or reproductive healthcare services.

At least this bill nakedly reflects the true values of the MAGA House Republicans because it will encourage discrimination, promote bigotry, trample on women's rights, decimate public education, and push minorities further away from equality.

□ 1145

Of course, it ''protects'' Americans from critical race theory, LGBTQI+ communities, and programs that promote diversity and equity.

This bill should adhere to the agreement that was made in the Fiscal Responsibility Act we passed on a bipartisan basis in the spring. Slash-and-burn budgeting hurts real people while you take care of your corporate co-conspirators.

I urge my colleagues to vote ''no'' on this terrible spending bill if it ever even comes to a vote.

Mr. ADERHOLT. Mr. Chair, I yield 2 minutes to the gentleman from Florida (Mr. STEUBE).

Mr. STEUBE. Mr. Chair, our Nation's foster care system is overburdened and limited in its ability to adequately address the adversities, challenges, and traumas that children and families often confront in some of the most vulnerable times of their lives. This is the unfortunate reality—a status quo where good enough is not good enough. It is a status quo where children are forgotten and neglected, a status quo that leaves children to gather in the

trauma that introduced them to the foster care system.

The Administration for Children and Families has emboldened the status quo for far too long. Studies show that children placed in foster care are significantly more likely to face lifelong struggles that include homelessness, sex trafficking, incarceration, and post-traumatic stress disorder.

To move past these challenges, we must introduce innovative solutions that address the complex needs of children and families involved in the foster care system.

Our foster care system lacks innovation, but that is something that we can change. We must educate, support, and empower children in the foster care system to reach their full potential.

To accomplish these goals, our foster care system needs interventional, trauma-informed programming molded to the unique circumstances of each child in the foster care system.

I encourage my colleagues to recognize these unique challenges and help set foster care youth on a path to success.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentlewoman from Florida (Ms. LOIS FRANKEL), a member of the Appropriations Committee.

Ms. LOIS FRANKEL of Florida. My, my, my. In the spending bill that most affects our social fabric, MAGA Republicans take an ax to women's reproductive freedom, public education, and Medicare.

At a time when costs are too high for working people, Republicans underfund childcare and eldercare. Instead of lifting up American families, this bill brings us down with culture war garbage.

It is a ''no'' for me. We can and we must do better.

Mr. ADERHOLT. Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentlewoman from Nevada (Ms. LEE), a member of the Appropriations Committee.

Ms. LEE of Nevada. Mr. Chair, I am literally losing my voice, but somehow I will find the strength to make my voice heard on this dangerous bill.

I rise today to speak against this bill's completely dated, out-of-date insistence on stripping women of their fundamental freedoms, not to mention the 80 percent cut to title I across this country. This is funding for our most at-risk students everywhere, in every community in this country. It will eliminate over 200,000 teachers and jeopardize the education of 26 million students.

First, I will take you back to a week ago when Americans all across this country from Ohio to Kentucky to Virginia came out in droves to reject extremist efforts to strip a woman's right to make decisions about her own body.

Now, Republicans here in Washington are doubling down on that same out-of-touch agenda, this time by sneaking partisan policy wins into what is supposed to be a bipartisan process for funding our government.

Conservatives have spent 50 years saying abortion should be left up to the States. They finally got their way when the Supreme Court overturned Roe v. Wade. Now, even after local communities everywhere are demonstrating clearly that they believe in a woman's fundamental freedoms, radical House Republicans are doing everything they can to make abortion illegal at a national level.

It is time to wake up, listen to women across this country from the coasts to the hills to the deserts who have spoken and will continue to say: Hands off our bodies. It is our choice. Let's leave it that way.

I urge my colleagues to vote ''no.'' This nonsense needs to end.

Ms. DELAURO. Mr. Chair, I thank the gentlewoman for her strong voice, and I reserve the balance of my time.

Mr. ADERHOLT. Mr. Chair, I yield such time as he may consume to the gentleman from Arizona (Mr. CISCOMANI), a member of our Appropriations Committee that has been very helpful on this bill that is before us today.

Mr. CISCOMANI. Mr. Chair, I rise today in support of Head Start programs across the country.

As a father of six, I recognize the importance of early learning and development for our next generation. As a dad, I want to ensure all children have the same opportunities to build a strong foundation for their lives.

That is why I joined my colleague and friend Representative LAWLER on his amendment, which we will consider later, to increase the amount of Head Start funding provided in the FY 2024 Labor, Health and Human Services, Education and Related Agencies appropriations bill.

Further, I introduced my own amendment, which is included in the en bloc to underscore the importance of the Head Start program.

The importance of these programs, both in my district and across the country, cannot be understated. When our students and families have access to these resources, they are better equipped to put their best foot forward each day, both in and out of the classrooms.

With 22 Head Start programs at almost 500 locations in Arizona, these programs are vital to the well-being of families and children everywhere. In my district alone, 10 percent of the families with children under the age of 5 lives below the poverty level. The tools our students need to succeed go far beyond pencils and notebooks in the classroom. When we invest in our kids, we are investing in a stronger community.

Mr. ADERHOLT. Mr. Chair, I thank Mr. CISCOMANI for his comments. As we move forward with this bill, I look forward to working with him, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield 1 minute to the gentlewoman from Virginia (Ms. MCCLELLAN).

Ms. MCCLELLAN. Mr. Chair, I thank Congresswoman DELAURO for her leadership.

When we invest in our children, we invest in our communities. I agree, and that is why I am so perplexed and frankly outraged by the draconian cuts in this bill, specifically targeting teachers, students, and title I schools that serve vulnerable communities.

These draconian cuts would force 220,000 teachers from the classrooms. In my district, that is nearly 700 title I teachers who would lose their jobs.

I am one of the few mothers of young children in this Congress. I have an eighth grader and a third grader. I see every day that at a time when our schools are still struggling to address learning disruption and a growing achievement gap resulting, in part, from the COVID pandemic and the growing mental health crisis, that this bill compounds that problem by cutting resources to our schools and cutting mental health services that will help to address the crisis that our children and the adults that care for them are facing every day.

For that reason, I urge my colleagues to vote against this extreme Labor-HHS appropriation bill.

Mr. ADERHOLT. Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentleman from Rhode Island (Mr. MAGAZINER).

Mr. MAGAZINER. Mr. Chair, every child deserves access to a high-quality education, but House Republicans are proposing harmful cuts that would close the doors of opportunity for millions of children.

At a time when we are facing a nationwide teacher shortage, House Republicans want to cut title I funding by 80 percent, kicking 220,000 teachers out of the classroom, including 1,000 teachers in Rhode Island.

House Republicans also propose to cut Head Start funding by $750 million, putting 50,000 children, including hundreds in Rhode Island, out of early childhood education programs and making it harder for their parents to go back to work.

All told, this bill would cut $22.5 billion from the Department of Education, and many of my Republican colleagues who are advocating for these cuts, who are saying we just can't find the money to pay teachers and help kids, had no problem voting for a tax cut program of $1.9 trillion that went disproportionately to billionaires and big corporations. They voted for $750 billion of tax cuts to corporations, $150 billion of cuts for multimillion-dollar inheritances, and now when it comes to finding even a fraction of that same amount to fund teachers and fund children, they are saying they can't find the money.

Please.

If you can find trillions of dollars to give to billionaires and big corporations, you can sure as heck find money for teachers and students.

Instead of handouts for those at the top, let's focus on policies that will help working people.

I urge my colleagues to oppose this bill, fight back against extremism, and stand up for our kids.

Mr. ADERHOLT. Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield myself such time as I may consume.

It is incredulous the scope of this bill and its damage to the American people, their healthcare, their education, and their opportunity for a job and their future.

Just quickly, in the Department of Labor: Adult Job Training; Youth Job Training; Job Corps; Senior Community Service Employment; the Bureau of International Labor Affairs; the Women's Bureau, the Women's Bureau that helps women find jobs in nontraditional areas, these are all eliminated. They are eliminated.

Let's go now to the Department of Health and Human Services: Title X Family Planning; Healthy Start; Ryan White Ending the HIV Epidemic, something that George Bush and Donald Trump wanted to provide funding for, eliminated.

Nursing Workforce Diversity. We have a shortage of nurses today. We need to be recruiting and training nurses to be able to take care of patients, to be able to administer healthcare.

I always classify nurses as angels of mercy. They were with me every single day when I was in the hospital a number of years ago for a period of time. The doctors could look at me, they did great surgery, but it was the nurses who looked at me, and they could tell whether it was a good day or a bad day, and they were there for comfort and care. But, no, we don't want to train and recruit nurses.

The CDC, Tobacco Prevention and Control—my God, we have gone to such an extent to really cut back on addiction and not to make kids addicted in our country.

□ 1200

Firearm Injury and Mortality Prevention. This is research and the same kind of research we did with regard to understanding how good seatbelts were and how they could save people. This is not taking anyone's gun away. This is about public health, but, no, that is eliminated.

Global HIV/AIDS, the CDC's contribution to PEPFAR—launched by George Bush—all eliminated. Substance Abuse and Mental Health Services, Minority AIDS. My God, we are suffering a mental health crisis in this country, but, no, the Republicans would eliminate that.

Preschool Development Grants, Adult Protective Services Formula Grants, all eliminated.

Now, the Department of Education. Effective Instruction State Grants, eliminated. Social and Emotional Learning, eliminated. Civics—we find today that young people, older people, don't know anything about the American government. They don't know who does what at local, State, or federal. They don't engage in a dialogue with one another so that you can get to some sort of a rapprochement, understand what is being done in government. No, Republicans don't want a literate society, so let's eliminate civics.

Magnet Schools Assistance, Promise Neighborhoods, the Federal Supplemental Educational Opportunity Grants. My God, the kids who need financial assistance.

Federal Work-Study, let me mention that one, because today, working families, middle-class families, vulnerable families, are having a tough time. They are going paycheck to paycheck. Yeah, you know what? They want their kids to go to school to get an education. You know what? Their kids are willing to work. They will go to the library. They will do those jobs with the Federal Work-Study Program.

When I talk about Republicans wanting to eliminate public education, this is a very good example, because you cut off the opportunity for that child to be able to work and to help his parents support him in getting an education.

Who are we and what are we about with this bill?

I could go on, but what would be the point? That is what this bill is about. As I said, it is not a messaging bill. This is where the majority wants to take us. They want to eliminate public education in this Nation.

I come from an immigrant family whose parents could dare dream their daughter serves in the United States House of Representatives. I can hear, day in and day out, my folks who have now passed who said: Get an education. Get an education. They sacrificed for that education, and we have a majority of this body who wants to take it away.

Mr. Chair, I yield back the balance of my time.

Mr. ADERHOLT. Mr. Chair, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Chair, I rise today in strong opposition to H.R. 5894—Labor, Health, and Human Services, Education, and Related Agencies Appropriations Act, 2024.

House Republicans had an opportunity to engage in a productive, bipartisan appropriations process, but instead are wasting time with partisan bills that cut domestic spending to levels well below the Fiscal Responsibility Act agreement and endanger critical services for the American people.

As with all the additional appropriation bills that have been up for consideration on the House Floor, I strongly oppose the passage of this bill for a myriad of reasons.

The 2024 Labor, Health, and Human Services, Education, and Related Agencies Appropriations Act provides $163 billion, which is a 28 percent cut of $64 billion, and brings us back to a level unseen since 2008.

This dangerous and irresponsible legislation would do the following:

Decimate support for children in K–12 elementary schools and early childhood education.

Abandon college students and low-income workers trying to improve their lives through higher education or job training.

Stifle lifesaving biomedical innovation by cutting funding for cancer research, mental health research, and neurological research, and by slashing funding for advanced research projects intended to develop new cures and therapies.

Surrender to ongoing public health crises in mental health, opioid use, HIV/AIDS, and health disparities.

Harm women's health by cutting programs that support maternal and child health, eliminating programs that provide access to health services and contraception, and adding numerous partisan and poison pill riders related to abortion and reproductive health.

This bill is out of regular order. It was never marked up and considered in the House Appropriations committee.

There is no example of this happening in the last 20 years.

House Republicans are stripping $63.8 billion away from Texas, making it harder for Texans to access education, health care, employment, and more.

I think we can all agree children are our future and that we should invest to make our future better and brighter.

As Chair of the Congressional Children's Caucus, I am extremely passionate about the wellbeing and education of children.

Which is why I offered the Jackson Lee Amendment No. 51 as incorporated in the En Bloc.

Despite the horrible provisions throughout the entirety of this appropriations bill, the Jackson Lee Amendment No. 51 as incorporated into En Bloc Amendment is an important amendment that would increase by $2 million the Head Start Act, including Head Start partnerships.

One of the objectives of the Congressional Children's Caucus is to ensure that all the children in this country have an opportunity to receive an education, including early childhood development.

Head Start helps all children succeed, especially vulnerable children.

If we continue to underfund education in the United States, our children will suffer, we will dismantle public education, and we will be weaker as a nation.

This legislation would kick teachers out of classrooms.

The United States is already in a teacher shortage and this bill would cut another 22,300 teachers from Texas schools due to cuts from Title 1.

This bill would severely impact teachers and students all over the state of Texas, where the Texas Education Agency has already decided to unnecessarily takeover Houston ISD.

Houston ISD is the largest school district in the state, with a student population of more than 200,000, according to a breakdown by the Texas Tribune.

A TEA takeover would have a negative impact on each Independent School District (ISD) because a board of managers are not elected, and they don't have to answer to the constituents in those districts.

State takeovers in other districts have led to school closures, layoffs, and no improvements in test scores.

The vast majority of school districts that have been taken over by state agencies (TEA included) have not improved but declined.

TEA has no experience managing a district of 200k-plus scholars and we should not suffer as the guinea pigs.

Texas is behind the national average of how much the state spends per student in the classroom.

More specifically, data from the U.S. Census Bureau shows that Texas spends $3,000 less than the national average.

We have to stop the State from intermeddling and overstepping into our educational systems—causing further harm and damage to our communities.

This legislation will make cuts to schools and communities that are already suffering.

With the pandemic, burnout and the rise in the cost of living, teachers are already struggling, and this bill will only add to that.

Without the support of our teachers, students will be left behind.

I also offered the Jackson Lee Amendment No. 24 as incorporated in the En Bloc.

Again, despite the horrible provisions throughout the entirety of this bill, the Jackson Lee Amendment No. 24 as incorporated into En Bloc Amendment is an important amendment that would increase and decrease by $2 million the National Cancer Institute in order to research triple negative breast cancer.

Breast cancer accounts for 12.5 percent of all new annual cancer cases worldwide, making it the most common cancer in the world.

This issue is extremely important, especially for the brave men and women in the military, who are up to 20–40 percent more likely to develop breast cancer.

There are few people in this country whose lives have not been touched by breast cancer.

Yet, there are persistent disparities in breast cancer incidence and death rates.

Breast cancer is the leading cause of cancer-related death in the United States for Black and Hispanic women.

Black women are more likely to die from breast cancer than women of any other racial or ethnic group.

Experts believe that it's partially because about 1 in 5 Black women is diagnosed with triple-negative breast cancer, more than any other racial or ethnic group.

Compared with non-Hispanic white women, Black women are less likely to receive guideline adherent care and have an approximate 2-fold higher mortality incidence, resulting in a disproportionately higher risk of death from Triple Negative Breast Cancer.

Triple Negative Breast Cancer (''TNBC'') is one of many forms of breast cancer and accounts for about 15–30 percent of all diagnosed invasive breast cancer cases in the United States.

Due to its aggressive behavior, TNBC grows quickly and is more likely to have spread at the time it is found and is more likely to come back after treatment than other types of breast cancer.

TNBC cells do not contain (are ''negative for'') three key receptors that medicines typically target in other types of breast cancers; therefore, there are limited treatment options that can be used to treat the cancer.

Patients with an early diagnosis can often be treated with chemotherapy, radiation, and surgery; however, the limited therapies available specifically addressing the management of TNBC has made treating this disease a challenge for clinicians.

Recent innovation in targeted therapies have fueled advances in the fight against TNBC.

Advances in breast cancer screening and treatment over the last few decades have reduced the overall breast cancer mortality rate, yet the disproportionate impact of TNBC on racial and ethnic minority communities raises considerations about the underlying determinants driving the disparities.

It is necessary to promote TNBC education, raise awareness about the disease-related disparities, and tackle inequities within the health care delivery such as inadequate access to screening, diagnostic testing, and care, to improve early detection and survival.

Providing the NIH with the resources necessary to research TNBC could save thousands of lives each year.

The Jackson Lee Amendment No. 24 would allow for more research so we can one day hopefully learn a way to reduce the number of Americans affected by breast cancer.

Additionally, I have introduced H.R. 225, the Triple-Negative Breast Cancer Research and Education Act of 2023, which focuses on expanding, intensifying, and coordinating programs for the conduct and support of research on triple-negative breast cancer, a type of breast cancer that is difficult to detect but disproportionately impacts African American and Hispanic women.

While these Jackson Lee Amendments are important, the negatives of this appropriations bill vastly outweigh these positive amendments—which is why H.R. 5894 must be voted down.

Importantly, this bill is harmful for women's reproductive rights.

Access to abortion and fertility care is essential to a person's freedom, including for service members, to make decisions about their health and well-being, and having control over their economic security.

Anti-abortion policymakers want to take away women's ability to make personal decisions about their health and safety.

We must defend their freedom to control their own bodies, lives, and futures.

The shameful attacks on women's reproductive health rights make it crystal clear: anti-abortion lawmakers will take any action to ensure people cannot access abortion care.

Anti-abortion lawmakers are pushing an extreme agenda to take away service women's freedom and autonomy, all while trying to claim they support women's rights.

Access to reproductive health care, including abortion and fertility care, is critical to our democracy and overall well-being as a free nation.

As policymakers, we must ensure that all Americans can access abortion care without barriers.

We aren't truly free unless we can control our own bodies, lives, and futures.

Our laws and policies should protect our rights, not try to control and dehumanize us.

This bill will undoubtedly have a devastating impact on all Americans.

As we know, the National Institutes of Health has had major progress in human health advances, promising medical findings, and research insights.

Yet, significant cuts to NIH make maintaining American research and development leadership worldwide more challenging at a time when competitor nations are increasing their support for biomedical research.

Funding cuts will delay progress towards new cures, treatments, and diagnostics that benefit the nation and drive our biomedical innovation economy forward.

Beyond sustaining American leadership in biomedical research, the NIH is a major catalyst for local economies, directly and indirectly supporting over 560,000 jobs and producing $96.84 billion in new economic activity in FY22, equaling an economic return of $2.64 for every $1 in research funding.

This bill eliminates funding for the Ending the HIV Epidemic Initiative within the Centers for Disease Control and Prevention (−$220 million), the Ryan White HIV/AIDS Program (−$165 million), and Community Health Centers Program (−$157 million).

The bill also cuts funding for the Minority HIV/AIDS Fund by 53 percent (−$32 million).

We have made significant advances in HIV/AIDS research and it would be devastating to cut back on the important work that is being done.

Rather than cutting billions of dollars for NIH-supported medical research occurring in nearly every congressional district across the country, the House should build on decades of strong bipartisan support and investment that has led to the lifesaving medications and treatments Americans rely on every day.

We must fund the NIH and the Department of Health and Human Services in order to research and solve conditions such as Triple Negative Breast Cancer, diabetes, and HIV.

This legislation would also impact Federal Work Study programs and Supplemental Education Opportunity Grants making it more difficult than it already is for college students to pay for a higher education and receive financial aid.

The elimination of these programs and the flat funding levels of Pell Grants for the first time since 2012 would create financial emergencies for low-income students.

Cutting these programs would not only drive-up student borrowing and potentially discourage the next generation of students, but it would also create a real and immediate financial shortfall for current low-income students who have rely on these programs to earn their degree.

This legislation would also take away funding from our elderly population.

Under the current LHHS bill there would be a $250 million dollar decrease to the Social Security Administration's customer service budget at a time when the agency continues to struggle to deliver timely and accurate service. This year saw continued record high hold times and wait times for disability claims.

The bill has a $15 million decrease for Elder Rights Supports, funding used to protect older Americans from elder abuse.

The Senior Community Service Employment Program would be eliminated. This program provides the opportunity for tens of thousands of older Americans to find work despite pernicious age discrimination.

This bill negatively impacts every single person in the United States from the youngest to the oldest.

This bill doesn't choose to impact just Republicans or Democrats.

We will all feel the severity of this bill if it is passed.

We cannot better the lives of everyday Americans with this terrible bill that eliminates much of the progress that has been made in education, public health, and the workforce.

This reckless underlying legislation would painfully impact the lives of millions of Americans by making disastrous cuts to programs that workers and families count on every day.

Instead of investing in America, Republicans would rather focus on advancing unpopular and dangerous right-wing priorities.

The proposal in front of us here today is not a reasonable middle ground, nor is it even a starting point for discussion.

I recognize that we are in the midst of austere budgetary and political times, however, we cannot continue to ignore the return on investment that advanced developments in health research, employment assistance, and education will yield to the American public.

I urge all my colleagues to oppose this dangerous and shameful bill.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

An amendment in the nature of a substitute consisting of the text of Rules Committee Print 118–13, modified by the amendment printed in part A of House Report 118–272, shall be considered as adopted in the House and in the Committee of the Whole, and the bill, as amended, shall be considered as read.

The text of the bill is as follows:

H.R. 5894

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

TITLE I

DEPARTMENT OF LABOR

EMPLOYMENT AND TRAINING ADMINISTRATION

TRAINING AND EMPLOYMENT SERVICES

For necessary expenses of the Workforce Innovation and Opportunity Act (referred to in this Act as ''WIOA'') and the National Apprenticeship Act, $2,836,808,000, plus reimbursements, shall be available. Of the amounts provided:

(1) for grants to States for adult employment and training activities and dislocated worker employment and training activities, $1,807,553,000 as follows:

(A) $712,000,000 for adult employment and training activities, which shall be available for the period October 1, 2024 through June 30, 2025; and

(B) $1,095,553,000 for dislocated worker employment and training activities, of which $235,553,000 shall be available for the period July 1, 2024 through June 30, 2025, and of which $860,000,000 shall be available for the period October 1, 2024 through June 30, 2025:

Provided, That the funds available for allotment to outlying areas to carry out subtitle B of title I of the WIOA shall not be subject to the requirements of section 127(b)(1)(B)(ii) of such Act: Provided further, That notwithstanding the requirements of WIOA, outlying areas may submit a single application for a consolidated grant that awards funds that would otherwise be available to such areas to carry out the activities described in subtitle B of title I of the WIOA: Provided further, That such application shall be submitted to the Secretary of Labor (referred to in this title as ''Secretary''), at such time, in such manner, and containing such information as the Secretary may require: Provided further, That outlying areas awarded a consolidated grant described in the preceding provisos may use the funds for any of the programs and activities authorized under such subtitle B of title I of the WIOA subject to approval of the application and such reporting requirements issued by the Secretary; and

(2) for national programs, $1,029,255,000 as follows:

(A) $360,859,0000 for the dislocated workers assistance national reserve, of which $160,859,000 shall be available for the period July 1, 2024 through September 30, 2025, and of which $200,000,000 shall be available for the period October 1, 2024 through September 30, 2025: Provided, That funds provided to carry out section 132(a)(2)(A) of the WIOA may be used to provide assistance to a State for statewide or local use in order to address cases where there have been worker dislocations across multiple sectors or across multiple local areas and such workers remain dislocated; coordinate the State workforce development plan with emerging economic development needs; and train such eligible dislocated workers: Provided further, That funds provided to carry out sections 168(b) and 169(c) of the WIOA may be used for technical assistance and demonstration projects, respectively, that provide assistance to new entrants in the workforce and incumbent workers: Provided further, That notwithstanding section 168(b) of the WIOA, of the funds provided under this subparagraph, the Secretary may reserve not more than 10 percent of such funds to provide technical assistance and carry out additional activities related to the transition to the WIOA: Provided further, That of the funds provided under this subparagraph, $115,000,000 shall be for training and employment assistance under sections 168(b), 169(c) (notwithstanding the 10 percent limitation in such section) and 170 of the WIOA as follows:

(i) $50,000,000 shall be for workers in the Appalachian region, as defined by 40 U.S.C. 14102(a)(1), workers in the Lower Mississippi, as defined in section 4(2) of the Delta Development Act (Public Law 100–460, 102 Stat. 2246; 7 U.S.C. 2009aa(2)), and workers in the region served by the Northern Border Regional Commission, as defined by 40 U.S.C. 15733; and

(ii) $65,000,000 shall be for the purpose of developing, offering, or improving educational or career training programs at community colleges, defined as public institutions of higher education, as described in section 101(a) of the Higher Education Act of 1965 and at which the associate's degree is primarily the highest degree awarded, with other eligible institutions of higher education, as defined in section 101(a) of the Higher Education Act of 1965, eligible to participate through consortia, with community colleges as the lead grantee;

(B) $60,000,000 for Native American programs under section 166 of the WIOA, which shall be available for the period July 1, 2024 through June 30, 2025;

(C) $97,396,000 for migrant and seasonal farmworker programs under section 167 of the WIOA, including $90,134,000 for formula grants (of which not less than 70 percent shall be for employment and training services), $6,591,000 for migrant and seasonal housing (of which not less than 70 percent shall be for permanent housing), and $671,000 for other discretionary purposes, which shall be available for the period April 1, 2024 through June 30, 2025: Provided, That notwithstanding any other provision of law or related regulation, the Department of Labor shall take no action limiting the number or proportion of eligible participants receiving related assistance services or discouraging grantees from providing such services: Provided further, That notwithstanding the definition of ''eligible seasonal farmworker'' in section 167(i)(3)(A) of the WIOA relating to an individual being ''low-income'', an individual is eligible for migrant and seasonal farmworker programs under section 167 of the WIOA under that definition if, in addition to meeting the requirements of clauses (i) and (ii) of section 167(i)(3)(A), such individual is a member of a family with a total family income equal to or less than 150 percent of the poverty line;

(D) $105,000,000 for YouthBuild activities as described in section 171 of the WIOA, which shall be available for the period April 1, 2024 through June 30, 2025;

(E) $115,000,000 for ex-offender activities, under the authority of section 169 of the WIOA, which shall be available for the period April 1, 2024 through June 30, 2025: Provided, That of this amount, $30,000,000 shall be for competitive grants to national and regional intermediaries for activities that prepare for employment young adults with criminal legal histories, young adults who have been justice system-involved, or young adults who have dropped out of school or other educational programs, with a priority for projects serving high-crime, high-poverty areas;

(F) $6,000,000 for the Workforce Data Quality Initiative, under the authority of section 169 of the WIOA, which shall be available for the period July 1, 2024 through June 30, 2025; and

(G) $285,000,000 to expand opportunities through apprenticeships, to be available to the Secretary to carry out activities through grants, cooperative agreements, contracts and other arrangements, with States and other appropriate entities, including equity intermediaries and business and labor industry partner intermediaries, which shall be available for the period July 1, 2024 through June 30, 2025.

FEDERAL UNEMPLOYMENT BENEFITS AND ALLOWANCES

For payments during fiscal year 2024 of trade adjustment benefit payments and allowances under part I of subchapter B of chapter 2 of title II of the Trade Act of 1974, and section 246 of that Act; and for training, employment and case management services, allowances for job search and relocation, and related State administrative expenses under part II of subchapter B of chapter 2 of title II of the Trade Act of 1974, and including benefit payments, allowances, training, employment and case management services, and related State administration provided pursuant to section 231(a) of the Trade Adjustment Assistance Extension Act of 2011, sections 405(a) and 406 of the Trade Preferences Extension Act of 2015, and section 285(a) of the Trade Act of 1974, as amended, $30,700,000 together with such amounts as may be necessary to be charged to the subsequent appropriation for payments for any period subsequent to September 15, 2024: Provided, That notwithstanding section 502 of this Act, any part of the appropriation provided under this heading may remain available for obligation beyond the current fiscal year pursuant to the authorities of section 245(c) of the Trade Act of 1974 (19 U.S.C. 2317(c)).

STATE UNEMPLOYMENT INSURANCE AND EMPLOYMENT SERVICE OPERATIONS

(INCLUDING TRANSFER OF FUNDS)

For authorized administrative expenses, $84,066,000, together with not to exceed $3,921,556,000 which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund (''the Trust Fund''), of which—

(1) $3,141,635,000 from the Trust Fund is for grants to States for the administration of State unemployment insurance laws as authorized under title III of the Social Security Act (including not less than $382,000,000 to carry out reemployment services and eligibility assessments under section 306 of such Act, any claimants of regular compensation, as defined in such section, including those who are profiled as most likely to exhaust their benefits, may be eligible for such services and assessments: Provided, That of such amount, $117,000,000 is specified for grants under section 306 of the Social Security Act and is provided to meet the terms of section 251(b)(2)(E)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended, and $265,000,000 is additional new budget authority specified for purposes of section 251(b)(2)(E)(i)(V) of such Act; and $9,000,000 for continued support of the Unemployment Insurance Integrity Center of Excellence), the administration of unemployment insurance for Federal employees and for ex-service

members as authorized under 5 U.S.C. 8501–8523, and the administration of trade readjustment allowances, reemployment trade adjustment assistance, and alternative trade adjustment assistance under the Trade Act of 1974 and under section 231(a) of the Trade Adjustment Assistance Extension Act of 2011, sections 405(a) and 406 of the Trade Preferences Extension Act of 2015, and section 285(a) of the Trade Act of 1974, as amended, and shall be available for obligation by the States through December 31, 2024, except that funds used for automation shall be available for Federal obligation until expended, and for State obligation through September 30, 2026, and funds for competitive grants awarded to States for improved operations and to conduct in-person reemployment and eligibility assessments and unemployment insurance improper payment reviews and provide reemployment services and referrals to training, as appropriate, shall be available for Federal obligation through December 31, 2024 (except that funds for outcome payments pursuant to section 306(f)(2) of the Social Security Act shall be available for Federal obligation through March 31, 2025), and for obligation by the States through September 30, 2026, and funds for the Unemployment Insurance Integrity Center of Excellence shall be available for obligation by the State through September 30, 2025, and funds used for unemployment insurance workloads experienced through September 30, 2024 shall be available for Federal obligation through December 31, 2024;

(2) $23,000,000 from the Trust Fund is for national activities necessary to support the administration of the Federal-State unemployment insurance system;

(3) $658,639,000 from the Trust Fund, together with $21,413,000 from the General Fund of the Treasury, is for grants to States in accordance with section 6 of the Wagner-Peyser Act, and shall be available for Federal obligation for the period July 1, 2024 through June 30, 2025;

(4) $25,000,000 from the Trust Fund is for national activities of the Employment Service, including administration of the work opportunity tax credit under section 51 of the Internal Revenue Code of 1986 (including assisting States in adopting or modernizing information technology for use in the processing of certification requests), and the provision of technical assistance and staff training under the Wagner-Peyser Act;

(5) $73,282,000 from the Trust Fund is for the administration of foreign labor certifications and related activities under the Immigration and Nationality Act and related laws, of which $50,000,000 shall be available for the Federal administration of such activities, and $23,282,000 shall be available for grants to States for the administration of such activities; and

(6) $62,653,000 from the General Fund is to provide workforce information, national electronic tools, and one-stop system building under the Wagner-Peyser Act and shall be available for Federal obligation for the period July 1, 2024 through June 30, 2025, of which up to $9,800,000 may be used to carry out research and demonstration projects related to testing effective ways to promote greater labor force participation of people with disabilities: Provided, That the Secretary may transfer amounts made available for research and demonstration projects under this paragraph to the ''Office of Disability Employment Policy'' account for such purposes:

Provided, That to the extent that the Average Weekly Insured Unemployment (''AWIU'') for fiscal year 2024 is projected by the Department of Labor to exceed 2,365,000, an additional $28,600,000 from the Trust Fund shall be available for obligation for every 100,000 increase in the AWIU level (including a pro rata amount for any increment less than 100,000) to carry out title III of the Social Security Act: Provided further, That funds appropriated in this Act that are allotted to a State to carry out activities under title III of the Social Security Act may be used by such State to assist other States in carrying out activities under such title III if the other States include areas that have suffered a major disaster declared by the President under the Robert T. Stafford Disaster Relief and Emergency Assistance Act: Provided further, That the Secretary may use funds appropriated for grants to States under title III of the Social Security Act to make payments on behalf of States for the use of the National Directory of New Hires under section 453(j)(8) of such Act: Provided further, That the Secretary may use funds appropriated for grants to States under title III of the Social Security Act to make payments on behalf of States to the entity operating the State Information Data Exchange System: Provided further, That funds appropriated in this Act which are used to establish a national one-stop career center system, or which are used to support the national activities of the Federal-State unemployment insurance, employment service, or immigration programs, may be obligated in contracts, grants, or agreements with States and non-State entities: Provided further, That States awarded competitive grants for improved operations under title III of the Social Security Act, or awarded grants to support the national activities of the Federal-State unemployment insurance system, may award subgrants to other States and non-State entities under such grants, subject to the conditions applicable to the grants: Provided further, That funds appropriated under this Act for activities authorized under title III of the Social Security Act and the Wagner-Peyser Act may be used by States to fund integrated Unemployment Insurance and Employment Service automation efforts, notwithstanding cost allocation principles prescribed under the final rule entitled ''Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards'' at part 200 of title 2, Code of Federal Regulations: Provided further, That the Secretary, at the request of a State participating in a consortium with other States, may reallot funds allotted to such State under title III of the Social Security Act to other States participating in the consortium or to the entity operating the Unemployment Insurance Information Technology Support Center in order to carry out activities that benefit the administration of the unemployment compensation law of the State making the request: Provided further, That the Secretary may collect fees for the costs associated with additional data collection, analyses, and reporting services relating to the National Agricultural Workers Survey requested by State and local governments, public and private institutions of higher education, and nonprofit organizations and may utilize such sums, in accordance with the provisions of 29 U.S.C. 9a, for the National Agricultural Workers Survey infrastructure, methodology, and data to meet the information collection and reporting needs of such entities, which shall be credited to this appropriation and shall remain available until September 30, 2025, for such purposes.

ADVANCES TO THE UNEMPLOYMENT TRUST FUND AND OTHER FUNDS

For repayable advances to the Unemployment Trust Fund as authorized by sections 905(d) and 1203 of the Social Security Act, and to the Black Lung Disability Trust Fund as authorized by section 9501(c)(1) of the Internal Revenue Code of 1986; and for nonrepayable advances to the revolving fund established by section 901(e) of the Social Security Act, to the Unemployment Trust Fund as authorized by 5 U.S.C. 8509, and to the ''Federal Unemployment Benefits and Allowances'' account, such sums as may be necessary, which shall be available for obligation through September 30, 2025.

PROGRAM ADMINISTRATION

For expenses of administering employment and training programs, $108,900,000, together with not to exceed $54,015,000 which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund.

EMPLOYEE BENEFITS SECURITY ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses for the Employee Benefits Security Administration, $152,880,000, of which up to $3,000,000 shall be made available through September 30, 2025, for the procurement of expert witnesses for enforcement litigation.

PENSION BENEFIT GUARANTY CORPORATION

PENSION BENEFIT GUARANTY CORPORATION FUND

The Pension Benefit Guaranty Corporation (''Corporation'') is authorized to make such expenditures, including financial assistance authorized by subtitle E of title IV of the Employee Retirement Income Security Act of 1974, within limits of funds and borrowing authority available to the Corporation, and in accord with law, and to make such contracts and commitments without regard to fiscal year limitations, as provided by 31 U.S.C. 9104, as may be necessary in carrying out the program, including associated administrative expenses, through September 30, 2024, for the Corporation: Provided, That none of the funds available to the Corporation for fiscal year 2024 shall be available for obligations for administrative expenses in excess of $512,900,000: Provided further, That to the extent that the number of new plan participants in plans terminated by the Corporation exceeds 100,000 in fiscal year 2024, an amount not to exceed an additional $9,200,000 shall be available through September 30, 2028, for obligations for administrative expenses for every 20,000 additional terminated participants: Provided further, That obligations in excess of the amounts provided for administrative expenses in this paragraph may be incurred and shall be available through September 30, 2028 for obligation for unforeseen and extraordinary pre-termination or termination expenses or extraordinary multiemployer program related expenses after approval by the Office of Management and Budget and notification of the Committees on Appropriations of the House of Representatives and the Senate: Provided further, That an additional amount shall be available for obligation through September 30, 2028 to the extent the Corporation's costs exceed $250,000 for the provision of credit or identity monitoring to affected individuals upon suffering a security incident or privacy breach, not to exceed an additional $100 per affected individual.

WAGE AND HOUR DIVISION

SALARIES AND EXPENSES

For necessary expenses for the Wage and Hour Division, including reimbursement to State, Federal, and local agencies and their employees for inspection services rendered, $185,000,000.

OFFICE OF LABOR-MANAGEMENT STANDARDS

SALARIES AND EXPENSES

For necessary expenses for the Office of Labor-Management Standards, $48,515,000.

OFFICE OF FEDERAL CONTRACT COMPLIANCE PROGRAMS

SALARIES AND EXPENSES

For necessary expenses for the Office of Federal Contract Compliance Programs, $83,232,000.

OFFICE OF WORKERS' COMPENSATION PROGRAMS

SALARIES AND EXPENSES

For necessary expenses for the Office of Workers' Compensation Programs, $106,500,000, together with $2,205,000 which may be expended from the Special Fund in accordance with sections 39(c), 44(d), and 44(j) of the Longshore and Harbor Workers' Compensation Act.

SPECIAL BENEFITS

(INCLUDING TRANSFER OF FUNDS)

For the payment of compensation, benefits, and expenses (except administrative expenses

not otherwise authorized) accruing during the current or any prior fiscal year authorized by 5 U.S.C. 81; continuation of benefits as provided for under the heading ''Civilian War Benefits'' in the Federal Security Agency Appropriation Act, 1947; the Employees' Compensation Commission Appropriation Act, 1944; section 5(f) of the War Claims Act (50 U.S.C. App. 2012); obligations incurred under the War Hazards Compensation Act (42 U.S.C. 1701 et seq.); and 50 percent of the additional compensation and benefits required by section 10(h) of the Longshore and Harbor Workers' Compensation Act, $700,000,000, together with such amounts as may be necessary to be charged to the subsequent year appropriation for the payment of compensation and other benefits for any period subsequent to August 15 of the current year, for deposit into and to assume the attributes of the Employees' Compensation Fund established under 5 U.S.C. 8147(a): Provided, That amounts appropriated may be used under 5 U.S.C. 8104 by the Secretary to reimburse an employer, who is not the employer at the time of injury, for portions of the salary of a re-employed, disabled beneficiary: Provided further, That balances of reimbursements unobligated on September 30, 2023, shall remain available until expended for the payment of compensation, benefits, and expenses: Provided further, That in addition there shall be transferred to this appropriation from the Postal Service and from any other corporation or instrumentality required under 5 U.S.C. 8147(c) to pay an amount for its fair share of the cost of administration, such sums as the Secretary determines to be the cost of administration for employees of such fair share entities through September 30, 2024: Provided further, That of those funds transferred to this account from the fair share entities to pay the cost of administration of the Federal Employees' Compensation Act, $83,007,000 shall be made available to the Secretary as follows:

(1) For enhancement and maintenance of automated data processing systems operations and telecommunications systems, $28,153,000;

(2) For automated workload processing operations, including document imaging, centralized mail intake, and medical bill processing, $26,526,000;

(3) For periodic roll disability management and medical review, $26,527,000;

(4) For program integrity, $1,801,000; and

(5) The remaining funds shall be paid into the Treasury as miscellaneous receipts:

Provided further, That the Secretary may require that any person filing a notice of injury or a claim for benefits under 5 U.S.C. 81, or the Longshore and Harbor Workers' Compensation Act, provide as part of such notice and claim, such identifying information (including Social Security account number) as such regulations may prescribe.

SPECIAL BENEFITS FOR DISABLED COAL MINERS

For carrying out title IV of the Federal Mine Safety and Health Act of 1977, as amended by Public Law 107–275, $22,890,000, to remain available until expended.

For making after July 31 of the current fiscal year, benefit payments to individuals under title IV of such Act, for costs incurred in the current fiscal year, such amounts as may be necessary.

For making benefit payments under title IV for the first quarter of fiscal year 2025, $7,000,000, to remain available until expended.

ADMINISTRATIVE EXPENSES, ENERGY EMPLOYEES OCCUPATIONAL ILLNESS COMPENSATION FUND

For necessary expenses to administer the Energy Employees Occupational Illness Compensation Program Act, $66,532,000, to remain available until expended: Provided, That the Secretary may require that any person filing a claim for benefits under the Act provide as part of such claim such identifying information (including Social Security account number) as may be prescribed.

BLACK LUNG DISABILITY TRUST FUND

(INCLUDING TRANSFER OF FUNDS)

Such sums as may be necessary from the Black Lung Disability Trust Fund (the ''Fund''), to remain available until expended, for payment of all benefits authorized by section 9501(d)(1), (2), (6), and (7) of the Internal Revenue Code of 1986; and repayment of, and payment of interest on advances, as authorized by section 9501(d)(4) of that Act. In addition, the following amounts may be expended from the Fund for fiscal year 2024 for expenses of operation and administration of the Black Lung Benefits program, as authorized by section 9501(d)(5): not to exceed $44,059,000 for transfer to the Office of Workers' Compensation Programs, ''Salaries and Expenses''; not to exceed $41,178,000 for transfer to Departmental Management, ''Salaries and Expenses''; not to exceed $368,000 for transfer to Departmental Management, ''Office of Inspector General''; and not to exceed $356,000 for payments into miscellaneous receipts for the expenses of the Department of the Treasury.

OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses for the Occupational Safety and Health Administration, $536,922,000, including not to exceed $120,000,000 which shall be the maximum amount available for grants to States under section 23(g) of the Occupational Safety and Health Act (the ''Act''), which grants shall be no less than 50 percent of the costs of State occupational safety and health programs required to be incurred under plans approved by the Secretary under section 18 of the Act; and, in addition, notwithstanding 31 U.S.C. 3302, the Occupational Safety and Health Administration may retain up to $499,000 per fiscal year of training institute course tuition and fees, otherwise authorized by law to be collected, and may utilize such sums for occupational safety and health training and education: Provided, That notwithstanding 31 U.S.C. 3302, the Secretary is authorized, during the fiscal year ending September 30, 2024, to collect and retain fees for services provided to Nationally Recognized Testing Laboratories, and may utilize such sums, in accordance with the provisions of 29 U.S.C. 9a, to administer national and international laboratory recognition programs that ensure the safety of equipment and products used by workers in the workplace: Provided further, That none of the funds appropriated under this paragraph shall be obligated or expended to prescribe, issue, administer, or enforce any standard, rule, regulation, or order under the Act which is applicable to any person who is engaged in a farming operation which does not maintain a temporary labor camp and employs 10 or fewer employees: Provided further, That no funds appropriated under this paragraph shall be obligated or expended to administer or enforce any standard, rule, regulation, or order under the Act with respect to any employer of 10 or fewer employees who is included within a category having a Days Away, Restricted, or Transferred (''DART'') occupational injury and illness rate, at the most precise industrial classification code for which such data are published, less than the national average rate as such rates are most recently published by the Secretary, acting through the Bureau of Labor Statistics, in accordance with section 24 of the Act, except—

(1) to provide, as authorized by the Act, consultation, technical assistance, educational and training services, and to conduct surveys and studies;

(2) to conduct an inspection or investigation in response to an employee complaint, to issue a citation for violations found during such inspection, and to assess a penalty for violations which are not corrected within a reasonable abatement period and for any willful violations found;

(3) to take any action authorized by the Act with respect to imminent dangers;

(4) to take any action authorized by the Act with respect to health hazards;

(5) to take any action authorized by the Act with respect to a report of an employment accident which is fatal to one or more employees or which results in hospitalization of two or more employees, and to take any action pursuant to such investigation authorized by the Act; and

(6) to take any action authorized by the Act with respect to complaints of discrimination against employees for exercising rights under the Act:

Provided further, That the foregoing proviso shall not apply to any person who is engaged in a farming operation which does not maintain a temporary labor camp and employs 10 or fewer employees: Provided further, That not less than $3,500,000 shall be for Voluntary Protection Programs.

MINE SAFETY AND HEALTH ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses for the Mine Safety and Health Administration, $325,052,000, including purchase and bestowal of certificates and trophies in connection with mine rescue and first-aid work, and the hire of passenger motor vehicles, including up to $2,000,000 for mine rescue and recovery activities and not less than $10,537,000 for State assistance grants: Provided, That notwithstanding 31 U.S.C. 3302, not to exceed $750,000 may be collected by the National Mine Health and Safety Academy for room, board, tuition, and the sale of training materials, otherwise authorized by law to be collected, to be available for mine safety and health education and training activities: Provided further, That notwithstanding 31 U.S.C. 3302, the Mine Safety and Health Administration is authorized to collect and retain up to $2,499,000 from fees collected for the approval and certification of equipment, materials, and explosives for use in mines, and may utilize such sums for such activities: Provided further, That the Secretary is authorized to accept lands, buildings, equipment, and other contributions from public and private sources and to prosecute projects in cooperation with other agencies, Federal, State, or private: Provided further, That the Mine Safety and Health Administration is authorized to promote health and safety education and training in the mining community through cooperative programs with States, industry, and safety associations: Provided further, That the Secretary is authorized to recognize the Joseph A. Holmes Safety Association as a principal safety association and, notwithstanding any other provision of law, may provide funds and, with or without reimbursement, personnel, including service of Mine Safety and Health Administration officials as officers in local chapters or in the national organization: Provided further, That any funds available to the Department of Labor may be used, with the approval of the Secretary, to provide for the costs of mine rescue and survival operations in the event of a major disaster.

BUREAU OF LABOR STATISTICS

SALARIES AND EXPENSES

For necessary expenses for the Bureau of Labor Statistics, including advances or reimbursements to State, Federal, and local agencies and their employees for services rendered, $589,952,000, together with not to exceed $68,000,000 which may be expended from the Employment Security Administration account in the Unemployment Trust Fund.

OFFICE OF DISABILITY EMPLOYMENT POLICY

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for the Office of Disability Employment Policy to provide leadership, develop policy and initiatives, and award grants furthering the objective of eliminating barriers

to the training and employment of people with disabilities, $43,000,000, of which not less than $9,000,000 shall be for research and demonstration projects related to testing effective ways to promote greater labor force participation of people with disabilities: Provided, That the Secretary may transfer amounts made available under this heading for research and demonstration projects to the ''State Unemployment Insurance and Employment Service Operations'' account for such purposes.

DEPARTMENTAL MANAGEMENT

SALARIES AND EXPENSES

For necessary expenses for Departmental Management, including the hire of three passenger motor vehicles, $200,995,000, together with not to exceed $308,000, which may be expended from the Employment Security Administration account in the Unemployment Trust Fund: Provided, That $6,211,000 shall be used for program evaluation and shall be available for obligation through September 30, 2025: Provided further, That funds available for program evaluation may be used to administer grants for the purpose of evaluation: Provided further, That grants made for the purpose of evaluation shall be awarded through fair and open competition.

VETERANS' EMPLOYMENT AND TRAINING

Not to exceed $269,841,000 may be derived from the Employment Security Administration account in the Unemployment Trust Fund to carry out the provisions of chapters 41, 42, and 43 of title 38, United States Code, of which—

(1) $185,000,000 is for Jobs for Veterans State grants under 38 U.S.C. 4102A(b)(5) to support disabled veterans' outreach program specialists under section 4103A of such title and local veterans' employment representatives under section 4104(b) of such title, and for the expenses described in section 4102A(b)(5)(C), which shall be available for expenditure by the States through September 30, 2026, and not to exceed 3 percent for the necessary Federal expenditures for data systems and contract support to allow for the tracking of participant and performance information: Provided, That, in addition, such funds may be used to support such specialists and representatives in the provision of services to transitioning members of the Armed Forces who have participated in the Transition Assistance Program and have been identified as in need of intensive services, to members of the Armed Forces who are wounded, ill, or injured and receiving treatment in military treatment facilities or warrior transition units, and to the spouses or other family caregivers of such wounded, ill, or injured members;

(2) $34,379,000 is for carrying out the Transition Assistance Program under 38 U.S.C. 4113 and 10 U.S.C. 1144;

(3) $47,048,000 is for Federal administration of chapters 41, 42, and 43 of title 38, and sections 2021, 2021A and 2023 of title 38, United States Code: Provided, That, up to $500,000 may be used to carry out the Hire VETS Act (division O of Public Law 115–31); and

(4) $3,414,000 is for the National Veterans' Employment and Training Services Institute under 38 U.S.C. 4109:

Provided, That the Secretary may reallocate among the appropriations provided under paragraphs (1) through (4) above an amount not to exceed 3 percent of the appropriation from which such reallocation is made.

In addition, from the General Fund of the Treasury, $65,500,000 is for carrying out programs to assist homeless veterans and veterans at risk of homelessness who are transitioning from certain institutions under sections 2021, 2021A, and 2023 of title 38, United States Code: Provided, That notwithstanding subsections (c)(3) and (d) of section 2023, the Secretary may award grants through September 30, 2024, to provide services under such section: Provided further, That services provided under sections 2021 or under 2021A may include, in addition to services to homeless veterans described in section 2002(a)(1), services to veterans who were homeless at some point within the 60 days prior to program entry or veterans who are at risk of homelessness within the next 60 days, and that services provided under section 2023 may include, in addition to services to the individuals described in subsection (e) of such section, services to veterans recently released from incarceration who are at risk of homelessness: Provided further, That notwithstanding paragraph (3) under this heading, funds appropriated in this paragraph may be used for data systems and contract support to allow for the tracking of participant and performance information: Provided further, That notwithstanding sections 2021(e)(2) and 2021A(f)(2) of title 38, United States Code, such funds shall be available for expenditure pursuant to 31 U.S.C. 1553.

In addition, fees may be assessed and deposited in the HIRE Vets Medallion Award Fund pursuant to section 5(b) of the HIRE Vets Act, and such amounts shall be available to the Secretary to carry out the HIRE Vets Medallion Award Program, as authorized by such Act, and shall remain available until expended: Provided, That such sums shall be in addition to any other funds available for such purposes, including funds available under paragraph (3) of this heading: Provided further, That section 2(d) of division O of the Consolidated Appropriations Act, 2017 (Public Law 115–31; 38 U.S.C. 4100 note) shall not apply.

IT MODERNIZATION

For necessary expenses for Department of Labor centralized infrastructure technology investment activities related to support systems and modernization, $27,269,000, which shall be available through September 30, 2025.

OFFICE OF INSPECTOR GENERAL

For salaries and expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $91,187,000, together with not to exceed $5,841,000 which may be expended from the Employment Security Administration account in the Unemployment Trust Fund: Provided, That not more than $2,000,000 of the amount provided under this heading may be available until expended.

GENERAL PROVISIONS

SEC. 101. None of the funds appropriated by this Act for the Job Corps shall be used to pay the salary and bonuses of an individual, either as direct costs or any proration as an indirect cost, at a rate in excess of Executive Level II.

(TRANSFER OF FUNDS)

SEC. 102. Not to exceed 1 percent of any discretionary funds (pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985) which are appropriated for the current fiscal year for the Department of Labor in this Act may be transferred between a program, project, or activity, but no such program, project, or activity shall be increased by more than 3 percent by any such transfer: Provided, That the transfer authority granted by this section shall not be used to create any new program or to fund any project or activity for which no funds are provided in this Act: Provided further, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

SEC. 103. In accordance with Executive Order 13126, none of the funds appropriated or otherwise made available pursuant to this Act shall be obligated or expended for the procurement of goods mined, produced, manufactured, or harvested or services rendered, in whole or in part, by forced or indentured child labor in industries and host countries already identified by the United States Department of Labor prior to enactment of this Act.

SEC. 104. Except as otherwise provided in this section, none of the funds made available to the Department of Labor for grants under section 414(c) of the American Competitiveness and Workforce Improvement Act of 1998 (29 U.S.C. 2916a) may be used for any purpose other than competitive grants for training individuals who are older than 16 years of age and are not currently enrolled in school within a local educational agency in the occupations and industries for which employers are using H–1B visas to hire foreign workers, and the related activities necessary to support such training.

SEC. 105. None of the funds made available by this Act under the heading ''Employment and Training Administration'' shall be used by a recipient or subrecipient of such funds to pay the salary and bonuses of an individual, either as direct costs or indirect costs, at a rate in excess of Executive Level II. This limitation shall not apply to vendors providing goods and services as defined in Office of Management and Budget Circular A–133. Where States are recipients of such funds, States may establish a lower limit for salaries and bonuses of those receiving salaries and bonuses from subrecipients of such funds, taking into account factors including the relative cost-of-living in the State, the compensation levels for comparable State or local government employees, and the size of the organizations that administer Federal programs involved including Employment and Training Administration programs.

(TRANSFER OF FUNDS)

SEC. 106. (a) Notwithstanding section 102, the Secretary may transfer funds made available to the Employment and Training Administration by this Act, either directly or through a set-aside, for technical assistance services to grantees to ''Program Administration'' when it is determined that those services will be more efficiently performed by Federal employees: Provided, That this section shall not apply to section 171 of the WIOA.

(b) Notwithstanding section 102, the Secretary may transfer not more than 0.5 percent of each discretionary appropriation made available to the Employment and Training Administration by this Act to ''Program Administration'' in order to carry out program integrity activities relating to any of the programs or activities that are funded under any such discretionary appropriations: Provided, That funds transferred under this subsection shall be available to the Secretary to carry out program integrity activities directly or through grants, cooperative agreements, contracts and other arrangements with States and other appropriate entities: Provided further, That funds transferred under the authority provided by this subsection shall be available for obligation through September 30, 2024.

(TRANSFER OF FUNDS)

SEC. 107. (a) The Secretary may reserve not more than 0.75 percent from each appropriation made available in this Act identified in subsection (b) in order to carry out evaluations of any of the programs or activities that are funded under such accounts. Any funds reserved under this section shall be transferred to ''Departmental Management'' for use by the Office of the Chief Evaluation Officer within the Department of Labor, and shall be available for obligation through September 30, 2024: Provided, That such funds shall only be available if the Chief Evaluation Officer of the Department of Labor submits a plan to the Committees on Appropriations of the House of Representatives and the Senate describing the evaluations to be carried out 15 days in advance of any transfer.

(b) The accounts referred to in subsection (a) are: ''Training and Employment Services'', ''State Unemployment Insurance and Employment Service Operations'', ''Employee Benefits Security Administration'', ''Office of Workers' Compensation Programs'', ''Wage and Hour Division'', ''Office of Federal Contract Compliance Programs'', ''Office of Labor Management Standards'', ''Occupational Safety and Health

Administration'', ''Mine Safety and Health Administration'', ''Office of Disability Employment Policy'', and ''Veterans' Employment and Training''.

SEC. 108. (a) Section 7 of the Fair Labor Standards Act of 1938 (29 U.S.C. 207) shall be applied as if the following text is part of such section:

''(s)(1) The provisions of this section shall not apply for a period of 2 years after the occurrence of a major disaster to any employee—

''(A) employed to adjust or evaluate claims resulting from or relating to such major disaster, by an employer not engaged, directly or through an affiliate, in underwriting, selling, or marketing property, casualty, or liability insurance policies or contracts;

''(B) who receives from such employer on average weekly compensation of not less than $591.00 per week or any minimum weekly amount established by the Secretary, whichever is greater, for the number of weeks such employee is engaged in any of the activities described in subparagraph (C); and

''(C) whose duties include any of the following:

''(i) interviewing insured individuals, individuals who suffered injuries or other damages or losses arising from or relating to a disaster, witnesses, or physicians;

''(ii) inspecting property damage or reviewing factual information to prepare damage estimates;

''(iii) evaluating and making recommendations regarding coverage or compensability of claims or determining liability or value aspects of claims;

''(iv) negotiating settlements; or

''(v) making recommendations regarding litigation.

''(2) The exemption in this subsection shall not affect the exemption provided by section 13(a)(1).

''(3) For purposes of this subsection—

''(A) the term 'major disaster' means any disaster or catastrophe declared or designated by any State or Federal agency or department;

''(B) the term 'employee employed to adjust or evaluate claims resulting from or relating to such major disaster' means an individual who timely secured or secures a license required by applicable law to engage in and perform the activities described in clauses (i) through (v) of paragraph (1)(C) relating to a major disaster, and is employed by an employer that maintains worker compensation insurance coverage or protection for its employees, if required by applicable law, and withholds applicable Federal, State, and local income and payroll taxes from the wages, salaries and any benefits of such employees; and

''(C) the term 'affiliate' means a company that, by reason of ownership or control of 25 percent or more of the outstanding shares of any class of voting securities of one or more companies, directly or indirectly, controls, is controlled by, or is under common control with, another company.''.

(b) This section shall be effective on the date of enactment of this Act.

SEC. 109. (a) FLEXIBILITY WITH RESPECT TO THE CROSSING OF H–2B NONIMMIGRANTS WORKING IN THE SEAFOOD INDUSTRY.—

(1) IN GENERAL.—Subject to paragraph (2), if a petition for H–2B nonimmigrants filed by an employer in the seafood industry is granted, the employer may bring the nonimmigrants described in the petition into the United States at any time during the 120-day period beginning on the start date for which the employer is seeking the services of the nonimmigrants without filing another petition.

(2) REQUIREMENTS FOR CROSSINGS AFTER 90TH DAY.—An employer in the seafood industry may not bring H–2B nonimmigrants into the United States after the date that is 90 days after the start date for which the employer is seeking the services of the nonimmigrants unless the employer—

(A) completes a new assessment of the local labor market by—

(i) listing job orders in local newspapers on 2 separate Sundays; and

(ii) posting the job opportunity on the appropriate Department of Labor Electronic Job Registry and at the employer's place of employment; and

(B) offers the job to an equally or better qualified United States worker who—

(i) applies for the job; and

(ii) will be available at the time and place of need.

(3) EXEMPTION FROM RULES WITH RESPECT TO STAGGERING.—The Secretary of Labor shall not consider an employer in the seafood industry who brings H–2B nonimmigrants into the United States during the 120-day period specified in paragraph (1) to be staggering the date of need in violation of section 655.20(d) of title 20, Code of Federal Regulations, or any other applicable provision of law.

(b) H–2B NONIMMIGRANTS DEFINED.—In this section, the term ''H–2B nonimmigrants'' means aliens admitted to the United States pursuant to section 101(a)(15)(H)(ii)(B) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(B)).

SEC. 110. The determination of prevailing wage for the purposes of the H–2B program shall be the greater of—(1) the actual wage level paid by the employer to other employees with similar experience and qualifications for such position in the same location; or (2) the prevailing wage level for the occupational classification of the position in the geographic area in which the H–2B nonimmigrant will be employed, based on the best information available at the time of filing the petition. In the determination of prevailing wage for the purposes of the H–2B program, the Secretary shall accept private wage surveys even in instances where Occupational Employment Statistics survey data are available unless the Secretary determines that the methodology and data in the provided survey are not statistically supported.

SEC. 111. None of the funds in this Act shall be used to enforce the definition of corresponding employment found in 20 CFR 655.5 or the three-fourths guarantee rule definition found in 20 CFR 655.20, or any references thereto. Further, for the purpose of regulating admission of temporary workers under the H–2B program, the definition of temporary need shall be that provided in 8 CFR 214.2(h)(6)(ii)(B).

SEC. 112. Notwithstanding any other provision of law, the Secretary may furnish through grants, cooperative agreements, contracts, and other arrangements, up to $2,000,000 of excess personal property, at a value determined by the Secretary, to apprenticeship programs for the purpose of training apprentices in those programs.

SEC. 113. (a) The Act entitled ''An Act to create a Department of Labor'', approved March 4, 1913 (37 Stat. 736, chapter 141) shall be applied as if the following text is part of such Act:

''SEC. 12. SECURITY DETAIL.

''(a) IN GENERAL.—The Secretary of Labor is authorized to employ law enforcement officers or special agents to—

''(1) provide protection for the Secretary of Labor during the workday of the Secretary and during any activity that is preliminary or postliminary to the performance of official duties by the Secretary;

''(2) provide protection, incidental to the protection provided to the Secretary, to a member of the immediate family of the Secretary who is participating in an activity or event relating to the official duties of the Secretary;

''(3) provide continuous protection to the Secretary (including during periods not described in paragraph (1)) and to the members of the immediate family of the Secretary if there is a unique and articulable threat of physical harm, in accordance with guidelines established by the Secretary; and

''(4) provide protection to the Deputy Secretary of Labor or another senior officer representing the Secretary of Labor at a public event if there is a unique and articulable threat of physical harm, in accordance with guidelines established by the Secretary.

''(b) AUTHORITIES.—The Secretary of Labor may authorize a law enforcement officer or special agent employed under subsection (a), for the purpose of performing the duties authorized under subsection (a), to—

''(1) carry firearms;

''(2) make arrests without a warrant for any offense against the United States committed in the presence of such officer or special agent;

''(3) perform protective intelligence work, including identifying and mitigating potential threats and conducting advance work to review security matters relating to sites and events;

''(4) coordinate with local law enforcement agencies; and

''(5) initiate criminal and other investigations into potential threats to the security of the Secretary, in coordination with the Inspector General of the Department of Labor.

''(c) COMPLIANCE WITH GUIDELINES.—A law enforcement officer or special agent employed under subsection (a) shall exercise any authority provided under this section in accordance with any—

''(1) guidelines issued by the Attorney General; and

''(2) guidelines prescribed by the Secretary of Labor.''.

(b) This section shall be effective on the date of enactment of this Act.

SEC. 114. The Secretary is authorized to dispose of or divest, by any means the Secretary determines appropriate, including an agreement or partnership to construct a new Job Corps center, all or a portion of the real property on which the Treasure Island Job Corps Center is situated. Any sale or other disposition, to include any associated construction project, will not be subject to any requirement of any Federal law or regulation relating to the disposition of Federal real property or relating to Federal procurement, including but not limited to subchapter III of chapter 5 of title 40 of the United States Code, subchapter V of chapter 119 of title 42 of the United States Code, and chapter 33 of division C of subtitle I of title 41 of the United States Code. The net proceeds of such a sale shall be transferred to the Secretary, which shall be available until expended to carry out the Job Corps Program on Treasure Island.

(RESCISSION)

SEC. 115. Of the unobligated funds available under section 286(s)(2) of the Immigration and Nationality Act (8 U.S.C. 1356(s)(2)), $206,000,000 are hereby permanently rescinded not later than September 30, 2024.

(RESCISSION)

SEC. 116. Of the amounts which are made available to ''Employment and Training Administration—Training and Employment Services'' on October 1, 2023 by Public Law 117–328, $712,000,000 are hereby rescinded.

SEC. 117. No Federal funds may be made available to alter or affect the administration, implementation, or enforcement of the final rule entitled ''Independent Contractor Status Under the Fair Labor Standards Act'' (86 Fed. Reg. 1168) and dated January 7, 2021.

SEC. 118. No Federal funds may be made available to administer, implement, or enforce the rule entitled ''Prudence and Loyalty in Selecting Plan Investments and Exercising Shareholder Rights'' (87 Fed. Reg. 73822) and dated December 1, 2022.

SEC. 119. No Federal funds may be made available to administer, implement, or enforce—

(1) the final rule entitled ''Adverse Effect Wage Rate Methodology for the Temporary Employment of H-2A Nonimmigrants in Non-Range Occupations in the United States'' (88 Fed. Reg. 12760) and dated February 28, 2023; or

(2) section 655.131(b) of title 20, Code of Federal Regulations (relating to joint employer requirements) as amended by the final regulations published by the Department of Labor in the Federal Register on October 12, 2022 (87 Fed. Reg. 61660).

SEC. 120. None of the funds made available by this Act may be used to implement, administer, or promote a program for clean energy apprenticeships or the promotion of apprenticeship opportunities based on a job applicant or potential job applicant's race, color, religion, or sex.

SEC. 121. None of the funds made available by this Act may be used to implement or enforce the proposed rule entitled ''Improving Protections for Workers in Temporary Agricultural Employment in the United States'' published by the Department of Labor in the Federal Register on September 15, 2023 (88 Fed. Reg. 63750 et seq.).

This title may be cited as the ''Department of Labor Appropriations Act, 2024''.

TITLE II

DEPARTMENT OF HEALTH AND HUMAN SERVICES

HEALTH RESOURCES AND SERVICES ADMINISTRATION

PRIMARY HEALTH CARE

For carrying out titles II and III of the Public Health Service Act (referred to in this Act as the ''PHS Act'') with respect to primary health care and the Native Hawaiian Health Care Act of 1988, $1,858,772,000: Provided, That no more than $1,000,000 shall be available until expended for carrying out the provisions of section 224(o) of the PHS Act: Provided further, That no more than $120,000,000 shall be available until expended for carrying out subsections (g) through (n) and (q) of section 224 of the PHS Act, and for expenses incurred by the Department of Health and Human Services (referred to in this Act as ''HHS'') pertaining to administrative claims made under such law: Provided further, That not less than $150,000,000 shall be obligated in fiscal year 2024 for construction and capital improvement costs: Provided further, That the time limitation in section 330(e)(3) of the PHS Act shall not apply to funds made available under the preceding proviso.

HEALTH WORKFORCE

For carrying out titles III, VII, and VIII of the PHS Act with respect to the health workforce, sections 1128E and 1921 of the Social Security Act, and the Health Care Quality Improvement Act of 1986, $1,336,348,000: Provided, That section 751(j)(2) of the PHS Act and the proportional funding amounts in paragraphs (1) through (4) of section 756(f) of the PHS Act shall not apply to funds made available under this heading: Provided further, That for any program operating under section 751 of the PHS Act on or before January 1, 2009, the Secretary of Health and Human Services (referred to in this title as the ''Secretary'') may hereafter waive any of the requirements contained in sections 751(d)(2)(A) and 751(d)(2)(B) of such Act for the full project period of a grant under such section: Provided further, That section 756(c) of the PHS Act shall apply to paragraphs (1) through (4) of section 756(a) of such Act: Provided further, That no funds shall be available for section 340G–1 of the PHS Act: Provided further, That fees collected for the disclosure of information under section 427(b) of the Health Care Quality Improvement Act of 1986 and sections 1128E(d)(2) and 1921 of the Social Security Act shall be sufficient to recover the full costs of operating the programs authorized by such sections and shall remain available until expended for the National Practitioner Data Bank: Provided further, That funds transferred to this account to carry out section 846 and subpart 3 of part D of title III of the PHS Act may be used to make prior year adjustments to awards made under such section and subpart: Provided further, That $126,000,000 shall remain available until expended for the purposes of providing primary health services, assigning National Health Service Corps (''NHSC'') participants to expand the delivery of substance use disorder treatment services, notwithstanding the assignment priorities and limitations under sections 333(a)(1)(D), 333(b), and 333A(a)(1)(B)(ii) of the PHS Act, and making payments under the NHSC Loan Repayment Program under section 338B of such Act: Provided further, That, within the amount made available in the previous proviso, $16,000,000 shall remain available until expended for the purposes of making payments under the NHSC Loan Repayment Program under section 338B of the PHS Act to individuals participating in such program who provide primary health services in Indian Health Service facilities, Tribally-Operated 638 Health Programs, and Urban Indian Health Programs (as those terms are defined by the Secretary), notwithstanding the assignment priorities and limitations under section 333(b) of such Act: Provided further, That for purposes of the previous two provisos, section 331(a)(3)(D) of the PHS Act shall be applied as if the term ''primary health services'' includes clinical substance use disorder treatment services, including those provided by masters level, licensed substance use disorder treatment counselors: Provided further, That of the funds made available under this heading, $6,000,000 shall be available to make grants to establish, expand, or maintain optional community-based nurse practitioner fellowship programs that are accredited or in the accreditation process, with a preference for those in Federally Qualified Health Centers, for practicing postgraduate nurse practitioners in primary care or behavioral health: Provided further, That of the funds made available under this heading, $10,000,000 shall remain available until expended for activities under section 775 of the PHS Act: Provided further, That the United States may recover liquidated damages in an amount determined by the formula under section 338E(c)(1) of the PHS Act if an individual either fails to begin or complete the service obligated by a contract under section 775(b) of the PHS Act: Provided further, That for purposes of section 775(c)(1) of the PHS Act, the Secretary may include other mental and behavioral health disciplines as the Secretary deems appropriate: Provided further, That the Secretary may terminate a contract entered into under section 775 of the PHS Act in the same manner articulated in section 206 of this title for fiscal year 2024 contracts entered into under section 338B of the PHS Act.

Of the funds made available under this heading, $60,000,000 shall remain available until expended for grants to public institutions of higher education to expand or support graduate education for physicians provided by such institutions, including funding for infrastructure development, maintenance, equipment, and minor renovations or alterations: Provided, That, in awarding such grants, the Secretary shall give priority to public institutions of higher education located in States with a projected primary care provider shortage in 2030, as determined by the Secretary: Provided further, That grants so awarded are limited to such public institutions of higher education in States in the top quintile of States with a projected primary care provider shortage in 2030, as determined by the Secretary: Provided further, That the minimum amount of a grant so awarded to such an institution shall be not less than $1,000,000 per year: Provided further, That such a grant may be awarded for a period not to exceed 5 years: Provided further, That such a grant awarded with respect to a year to such an institution shall be subject to a matching requirement of non-Federal funds in an amount that is not more than 10 percent of the total amount of Federal funds provided in the grant to such institution with respect to such year.

MATERNAL AND CHILD HEALTH

For carrying out titles III, XI, XII, and XIX of the PHS Act with respect to maternal and child health and title V of the Social Security Act, $991,582,000: Provided, That notwithstanding sections 502(a)(1) and 502(b)(1) of the Social Security Act, not more than $177,268,000 shall be available for carrying out special projects of regional and national significance pursuant to section 501(a)(2) of such Act and $10,276,000 shall be available for projects described in subparagraphs (A) through (F) of section 501(a)(3) of such Act.

RYAN WHITE HIV/AIDS PROGRAM

For carrying out title XXVI of the PHS Act with respect to the Ryan White HIV/AIDS program, $2,332,535,000, of which $2,045,630,000 shall remain available to the Secretary through September 30, 2026, for parts A and B of title XXVI of the PHS Act, and of which not less than $900,313,000 shall be for State AIDS Drug Assistance Programs under the authority of section 2616 or 311(c) of such Act.

HEALTH SYSTEMS

For carrying out titles III and XII of the PHS Act with respect to health care systems, and the Stem Cell Therapeutic and Research Act of 2005, $101,009,000, of which $122,000 shall be available until expended for facility renovations and other facilities-related expenses of the National Hansen's Disease Program: Provided, That the second sentence in section 372(a) of the PHS Act and section 372(b)(1)(A) of the PHS Act shall not apply to any contracts awarded by the Secretary of Health and Human Services for the operation of the Organ Procurement and Transplantation Network.

RURAL HEALTH

For carrying out titles III and IV of the PHS Act with respect to rural health, section 427(a) of the Federal Coal Mine Health and Safety Act of 1969, and sections 711 and 1820 of the Social Security Act, $402,607,000, of which $74,277,000 from general revenues, notwithstanding section 1820(j) of the Social Security Act, shall be available for carrying out the Medicare rural hospital flexibility grants program: Provided, That of the funds made available under this heading for Medicare rural hospital flexibility grants, $25,942,000 shall be available for the Small Rural Hospital Improvement Grant Program for quality improvement and adoption of health information technology, no less than $5,000,000 shall be available to award grants to public or nonprofit private entities for the Rural Emergency Hospital Technical Assistance Program, and up to $1,000,000 shall be to carry out section 1820(g)(6) of the Social Security Act, with funds provided for grants under section 1820(g)(6) available for the purchase and implementation of telehealth services and other efforts to improve health care coordination for rural veterans between rural providers and the Department of Veterans Affairs: Provided further, That notwithstanding section 338J(k) of the PHS Act, $12,500,000 shall be available for State Offices of Rural Health: Provided further, That $12,700,000 shall remain available through September 30, 2026, to support the Rural Residency Development Program.

HRSA-WIDE ACTIVITIES AND PROGRAM SUPPORT

For carrying out title III of the Public Health Service Act and for cross-cutting activities and program support for activities funded in other appropriations included in this Act for the Health Resources and Services Administration, $215,088,000, of which $45,050,000 shall be for expenses necessary for the Office for the Advancement of Telehealth, including grants, contracts, and cooperative agreements for the advancement of telehealth activities: Provided, That funds made available under this heading may be used to supplement program support funding provided under the headings ''Primary Health Care'', ''Health Workforce'', ''Maternal and Child Health'', ''Ryan White HIV/AIDS Program'', ''Health Systems'', and ''Rural Health''.

VACCINE INJURY COMPENSATION PROGRAM TRUST FUND

For payments from the Vaccine Injury Compensation Program Trust Fund (the ''Trust Fund''), such sums as may be necessary for claims associated with vaccine-related injury or death with respect to vaccines administered after September 30, 1988, pursuant to subtitle 2 of title XXI of the PHS Act, to remain available until expended: Provided, That for necessary administrative expenses, not to exceed $15,200,000 shall be available from the Trust Fund to the Secretary.

COVERED COUNTERMEASURES PROCESS FUND

For carrying out section 319F–4 of the PHS Act, $7,000,000, to remain available until expended.

CENTERS FOR DISEASE CONTROL AND PREVENTION

IMMUNIZATION AND RESPIRATORY DISEASES

For carrying out titles II, III, XVII, and XXI, and section 2821 of the PHS Act, and titles II and IV of the Immigration and Nationality Act, with respect to immunization and respiratory diseases, $326,075,000.

HIV/AIDS, VIRAL HEPATITIS, SEXUALLY TRANSMITTED DISEASES, AND TUBERCULOSIS PREVENTION

For carrying out titles II, III, XVII, and XXIII of the PHS Act with respect to HIV/AIDS, viral hepatitis, sexually transmitted diseases, and tuberculosis prevention, $1,171,056,000.

EMERGING AND ZOONOTIC INFECTIOUS DISEASES

For carrying out titles II, III, and XVII, and section 2821 of the PHS Act, and titles II and IV of the Immigration and Nationality Act, with respect to emerging and zoonotic infectious diseases, $708,772,000: Provided, That of the amounts made available under this heading, up to $1,000,000 shall remain available until expended to pay for the transportation, medical care, treatment, and other related costs of persons quarantined or isolated under Federal or State quarantine law.

CHRONIC DISEASE PREVENTION AND HEALTH PROMOTION

For carrying out titles II, III, XI, XV, XVII, and XIX of the PHS Act with respect to chronic disease prevention and health promotion, $797,569,000: Provided, That funds made available under this heading may be available for making grants under section 1509 of the PHS Act for not less than 21 States, tribes, or tribal organizations: Provided further, That the proportional funding requirements under section 1503(a) of the PHS Act shall not apply to funds made available under this heading.

BIRTH DEFECTS, DEVELOPMENTAL DISABILITIES, DISABILITIES AND HEALTH

For carrying out titles II, III, XI, and XVII of the PHS Act with respect to birth defects, developmental disabilities, disabilities and health, $205,560,000.

PUBLIC HEALTH SCIENTIFIC SERVICES

For carrying out titles II, III, and XVII of the PHS Act with respect to health statistics, surveillance, health informatics, and workforce development, $654,497,000.

ENVIRONMENTAL HEALTH

For carrying out titles II, III, and XVII of the PHS Act with respect to environmental health, $130,850,000: Provided, That of the amounts appropriated under this heading up to $2,600,000 may remain available until expended for carrying out the Vessel Sanitation Program, in addition to user fee collections available for such purpose.

INJURY PREVENTION AND CONTROL

For carrying out titles II, III, and XVII of the PHS Act with respect to injury prevention and control, $730,779,000.

NATIONAL INSTITUTE FOR OCCUPATIONAL SAFETY AND HEALTH

For carrying out titles II, III, and XVII of the PHS Act, sections 101, 102, 103, 201, 202, 203, 301, and 501 of the Federal Mine Safety and Health Act, section 13 of the Mine Improvement and New Emergency Response Act, and sections 20, 21, and 22 of the Occupational Safety and Health Act, with respect to occupational safety and health, $247,700,000.

ENERGY EMPLOYEES OCCUPATIONAL ILLNESS COMPENSATION PROGRAM

For necessary expenses to administer the Energy Employees Occupational Illness Compensation Program Act, $55,358,000, to remain available until expended: Provided, That this amount shall be available consistent with the provision regarding administrative expenses in section 151(b) of division B, title I of Public Law 106–554.

GLOBAL HEALTH

For carrying out titles II, III, and XVII of the PHS Act with respect to global health, $370,772,000, of which $100,000,000 shall remain available through September 30, 2026, for global public health protection: Provided, That funds may be used for purchase and insurance of official motor vehicles in foreign countries.

PUBLIC HEALTH PREPAREDNESS AND RESPONSE

For carrying out titles II, III, and XVII of the PHS Act with respect to public health preparedness and response, and for expenses necessary to support activities related to countering potential biological, nuclear, radiological, and chemical threats to civilian populations, $735,000,000: Provided, That the Director of the Centers for Disease Control and Prevention (referred to in this title as ''CDC'') or the Administrator of the Agency for Toxic Substances and Disease Registry may detail staff without reimbursement to support an activation of the CDC Emergency Operations Center, so long as the Director or Administrator, as applicable, provides a notice to the Committees on Appropriations of the House of Representatives and the Senate within 15 days of the use of this authority, a full report within 30 days after use of this authority which includes the number of staff and funding level broken down by the originating center and number of days detailed, and an update of such report every 180 days until staff are no longer on detail without reimbursement to the CDC Emergency Operations Center.

BUILDINGS AND FACILITIES

(INCLUDING TRANSFER OF FUNDS)

For acquisition of real property, equipment, construction, installation, demolition, and renovation of facilities, $40,000,000, which shall remain available until expended: Provided, That funds made available to this account in this or any prior Act that are available for the acquisition of real property or for construction or improvement of facilities shall be available to make improvements on non-federally owned property, provided that any improvements that are not adjacent to federally owned property do not exceed $2,500,000, and that the primary benefit of such improvements accrues to CDC: Provided further, That funds previously set-aside by CDC for repair and upgrade of the Lake Lynn Experimental Mine and Laboratory shall be used to acquire a replacement mine safety research facility: Provided further, That funds made available to this account in this or any prior Act that are available for the acquisition of real property or for construction or improvement of facilities in conjunction with the new replacement mine safety research facility shall be available to make improvements on non-federally owned property, provided that any improvements that are not adjacent to federally owned property do not exceed $5,000,000: Provided further, That in addition, the prior year unobligated balance of any amounts assigned to former employees in accounts of CDC made available for Individual Learning Accounts shall be credited to and merged with the amounts made available under this heading to support the replacement of the mine safety research facility.

CDC-WIDE ACTIVITIES AND PROGRAM SUPPORT

(INCLUDING TRANSFER OF FUNDS)

For carrying out titles II, III, XVII and XIX, and section 2821 of the PHS Act and for cross-cutting activities and program support for activities funded in other appropriations included in this Act for the Centers for Disease Control and Prevention, $231,428,000: Provided, That paragraphs (1) through (3) of subsection (b) of section 2821 of the PHS Act shall not apply to funds appropriated under this heading and in all other accounts of the CDC: Provided further, That of the amounts made available under this heading, $35,000,000, to remain available until expended, shall be available to the Director of the CDC for deposit in the Infectious Diseases Rapid Response Reserve Fund established by section 231 of division B of Public Law 115–245: Provided further, That funds appropriated under this heading may be used to support a contract for the operation and maintenance of an aircraft in direct support of activities throughout CDC to ensure the agency is prepared to address public health preparedness emergencies: Provided further, That employees of CDC or the Public Health Service, both civilian and commissioned officers, detailed to States, municipalities, or other organizations under authority of section 214 of the PHS Act, or in overseas assignments, shall be treated as non-Federal employees for reporting purposes only and shall not be included within any personnel ceiling applicable to the Agency, Service, or HHS during the period of detail or assignment: Provided further, That CDC may use up to $10,000 from amounts appropriated to CDC in this Act for official reception and representation expenses when specifically approved by the Director of CDC: Provided further, That in addition, such sums as may be derived from authorized user fees, which shall be credited to the appropriation charged with the cost thereof: Provided further, That with respect to the previous proviso, authorized user fees from the Vessel Sanitation Program and the Respirator Certification Program shall be available through September 30, 2025.

NATIONAL INSTITUTES OF HEALTH

NATIONAL CANCER INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to cancer, $7,104,159,000, of which up to $30,000,000 may be used for facilities repairs and improvements at the National Cancer Institute—Frederick Federally Funded Research and Development Center in Frederick, Maryland.

NATIONAL HEART, LUNG, AND BLOOD INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to cardiovascular, lung, and blood diseases, and blood and blood products, $3,982,345,000.

NATIONAL INSTITUTE OF DENTAL AND CRANIOFACIAL RESEARCH

For carrying out section 301 and title IV of the PHS Act with respect to dental and craniofacial diseases, $520,163,000.

NATIONAL INSTITUTE OF DIABETES AND DIGESTIVE AND KIDNEY DISEASES

For carrying out section 301 and title IV of the PHS Act with respect to diabetes and digestive and kidney disease, $2,300,721,000.

NATIONAL INSTITUTE OF NEUROLOGICAL DISORDERS AND STROKE

For carrying out section 301 and title IV of the PHS Act with respect to neurological disorders and stroke, $2,588,925,000.

NATIONAL INSTITUTE OF ALLERGY AND INFECTIOUS DISEASES

For carrying out section 301 and title IV of the PHS Act with respect to allergy and infectious diseases, $5,062,279,000.

NATIONAL INSTITUTE OF GENERAL MEDICAL SCIENCES

For carrying out section 301 and title IV of the PHS Act with respect to general medical sciences, $3,154,679,000, of which $1,327,482,000 shall be from funds available under section 241 of the PHS Act: Provided, That not less than $435,956,000 is provided for the Institutional Development Awards program.

EUNICE KENNEDY SHRIVER NATIONAL INSTITUTE OF CHILD HEALTH AND HUMAN DEVELOPMENT

For carrying out section 301 and title IV of the PHS Act with respect to child health and human development, $1,749,078,000.

NATIONAL EYE INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to eye diseases and visual disorders, $896,549,000.

NATIONAL INSTITUTE OF ENVIRONMENTAL HEALTH SCIENCES

For carrying out section 301 and title IV of the PHS Act with respect to environmental health sciences, $913,979,000.

NATIONAL INSTITUTE ON AGING

For carrying out section 301 and title IV of the PHS Act with respect to aging, $4,407,623,000.

NATIONAL INSTITUTE OF ARTHRITIS AND MUSCULOSKELETAL AND SKIN DISEASES

For carrying out section 301 and title IV of the PHS Act with respect to arthritis and musculoskeletal and skin diseases, $685,465,000.

NATIONAL INSTITUTE ON DEAFNESS AND OTHER COMMUNICATION DISORDERS

For carrying out section 301 and title IV of the PHS Act with respect to deafness and other communication disorders, $534,333,000.

NATIONAL INSTITUTE OF NURSING RESEARCH

For carrying out section 301 and title IV of the PHS Act with respect to nursing research, $197,693,000.

NATIONAL INSTITUTE ON ALCOHOL ABUSE AND ALCOHOLISM

For carrying out section 301 and title IV of the PHS Act with respect to alcohol abuse and alcoholism, $595,318,000.

NATIONAL INSTITUTE ON DRUG ABUSE

For carrying out section 301 and title IV of the PHS Act with respect to drug abuse, $1,662,695,000.

NATIONAL INSTITUTE OF MENTAL HEALTH

For carrying out section 301 and title IV of the PHS Act with respect to mental health, $2,112,843,000.

NATIONAL HUMAN GENOME RESEARCH INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to human genome research, $663,200,000.

NATIONAL INSTITUTE OF BIOMEDICAL IMAGING AND BIOENGINEERING

For carrying out section 301 and title IV of the PHS Act with respect to biomedical imaging and bioengineering research, $440,627,000.

NATIONAL CENTER FOR COMPLEMENTARY AND INTEGRATIVE HEALTH

For carrying out section 301 and title IV of the PHS Act with respect to complementary and integrative health, $170,384,000.

NATIONAL INSTITUTE ON MINORITY HEALTH AND HEALTH DISPARITIES

For carrying out section 301 and title IV of the PHS Act with respect to minority health and health disparities research, $524,395,000.

JOHN E. FOGARTY INTERNATIONAL CENTER

For carrying out the activities of the John E. Fogarty International Center (described in subpart 2 of part E of title IV of the PHS Act), $95,162,000.

NATIONAL LIBRARY OF MEDICINE

For carrying out section 301 and title IV of the PHS Act with respect to health information communications, $497,548,000: Provided, That of the amounts available for improvement of information systems, $4,000,000 shall be available until September 30, 2025: Provided further, That in fiscal year 2024, the National Library of Medicine may enter into personal services contracts for the provision of services in facilities owned, operated, or constructed under the jurisdiction of the National Institutes of Health (referred to in this title as ''NIH'').

NATIONAL CENTER FOR ADVANCING TRANSLATIONAL SCIENCES

For carrying out section 301 and title IV of the PHS Act with respect to translational sciences, $923,323,000: Provided, That not less than $75,000,000 shall be available to implement section 480 of the PHS Act, relating to the Cures Acceleration Network: Provided further, That at least $629,560,000 is provided to the Clinical and Translational Sciences Awards program.

OFFICE OF THE DIRECTOR

For carrying out the responsibilities of the Office of the Director, NIH, $2,069,459,000: Provided, That funding shall be available for the purchase of not to exceed 29 passenger motor vehicles for replacement only: Provided further, That all funds credited to the NIH Management Fund shall remain available for one fiscal year after the fiscal year in which they are deposited: Provided further, That $722,401,000 shall be available for the Common Fund established under section 402A(c)(1) of the PHS Act: Provided further, That of the funds provided, $10,000 shall be for official reception and representation expenses when specifically approved by the Director of the NIH: Provided further, That the Office of AIDS Research within the Office of the Director of the NIH may spend up to $8,000,000 to make grants for construction or renovation of facilities as provided for in section 2354(a)(5)(B) of the PHS Act: Provided further, That $80,000,000 shall be used to carry out section 404I of the PHS Act (42 U.S.C. 283k), relating to biomedical and behavioral research facilities: Provided further, That amounts made available under this heading are also available to establish, operate, and support the Research Policy Board authorized by section 2034(f) of the 21st Century Cures Act.

In addition to other funds appropriated for the Common Fund established under section 402A(c) of the PHS Act, $12,600,000 is appropriated to the Common Fund from the 10-year Pediatric Research Initiative Fund described in section 9008 of the Internal Revenue Code of 1986 (26 U.S.C. 9008), for the purpose of carrying out section 402(b)(7)(B)(ii) of the PHS Act (relating to pediatric research), as authorized in the Gabriella Miller Kids First Research Act.

BUILDINGS AND FACILITIES

For the study of, construction of, demolition of, renovation of, and acquisition of equipment for, facilities of or used by NIH, including the acquisition of real property, $350,000,000, to remain available until expended.

NIH INNOVATION ACCOUNT, CURES ACT

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out the purposes described in section 1001(b)(4) of the 21st Century Cures Act, in addition to amounts available for such purposes in the appropriations provided to the NIH in this Act, $407,000,000, to remain available until expended: Provided, That such amounts are appropriated pursuant to section 1001(b)(3) of such Act, are to be derived from amounts transferred under section 1001(b)(2)(A) of such Act, and may be transferred by the Director of the National Institutes of Health to other accounts of the National Institutes of Health solely for the purposes provided in such Act: Provided further, That upon a determination by the Director that funds transferred pursuant to the previous proviso are not necessary for the purposes provided, such amounts may be transferred back to the Account: Provided further, That the transfer authority provided under this heading is in addition to any other transfer authority provided by law.

ADVANCED RESEARCH PROJECTS AGENCY FOR HEALTH

For carrying out section 301 and part J of title IV of the PHS Act with respect to advanced research projects for health, $500,000,000.

SUBSTANCE ABUSE AND MENTAL HEALTH SERVICES ADMINISTRATION

MENTAL HEALTH

For carrying out titles III, V, and XIX of the PHS Act with respect to mental health, the Protection and Advocacy for Individuals with Mental Illness Act, and the SUPPORT for Patients and Communities Act, $2,706,282,000: Provided, That of the funds made available under this heading, $93,887,000 shall be for the National Child Traumatic Stress Initiative: Provided further, That notwithstanding section 520A(f)(2) of the PHS Act, no funds appropriated for carrying out section 520A shall be available for carrying out section 1971 of the PHS Act: Provided further, That in addition to amounts provided herein, $21,039,000 shall be available under section 241 of the PHS Act to carry out subpart I of part B of title XIX of the PHS Act to fund section 1920(b) technical assistance, national data, data collection and evaluation activities, and further that the total available under this Act for section 1920(b) activities shall not exceed 5 percent of the amounts appropriated for subpart I of part B of title XIX: Provided further, That of the funds made available under this heading for subpart I of part B of title XIX of the PHS Act, at least 5 percent shall be available to support evidence-based crisis systems: Provided further, That up to 10 percent of the amounts made available to carry out the Children's Mental Health Services program may be used to carry out demonstration grants or contracts for early interventions with persons not more than 25 years of age at clinical high risk of developing a first episode of psychosis: Provided further, That section 520E(b)(2) of the PHS Act shall not apply to funds appropriated in this Act for fiscal year 2024: Provided further, That $385,000,000 shall be available for grants to communities and community organizations who meet criteria for Certified Community Behavioral Health Clinics pursuant to section 223(a) of Public Law 113–93: Provided further, That none of the funds provided for section 1911 of the PHS Act shall be subject to section 241 of such Act: Provided further, That of the funds made available under this heading, $21,420,000 shall be to carry out section 224 of the Protecting Access to Medicare Act of 2014 (Public Law 113–93; 42 U.S.C. 290aa 22 note).

SUBSTANCE ABUSE TREATMENT

For carrying out titles III and V of the PHS Act with respect to substance abuse treatment and title XIX of such Act with respect to substance abuse treatment and prevention, section 1003 of the 21st Century Cures Act, and the SUPPORT for Patients and Communities Act, $3,980,103,000: Provided, That $1,583,000,000 shall be for carrying out section 1003 of the 21st Century Cures Act: Provided further, That of such amount in the preceding proviso not less than 4 percent shall be made available to Indian Tribes or tribal organizations: Provided further, That of the amount reserved by the previous proviso, the Secretary shall award grants using data that the Secretary determines to be the most objective and reliable measure of drug use and drug-related deaths: Provided further, That in addition to amounts provided herein, the following amounts shall be available under section 241 of the PHS Act: (1) $79,200,000 to carry out subpart II of part B of title XIX of the PHS Act to fund section 1935(b) technical assistance, national data, data collection and evaluation activities, and further that the total available under this Act for section 1935(b) activities shall

not exceed 5 percent of the amounts appropriated for subpart II of part B of title XIX; and (2) $2,000,000 to evaluate substance abuse treatment programs: Provided further, That none of the funds provided for section 1921 of the PHS Act or State Opioid Response Grants shall be subject to section 241 of such Act.

SUBSTANCE ABUSE PREVENTION

For carrying out titles III and V of the PHS Act with respect to substance abuse prevention, $179,602,000.

HEALTH SURVEILLANCE AND PROGRAM SUPPORT

For program support and cross-cutting activities that supplement activities funded under the headings ''Mental Health'', ''Substance Abuse Treatment'', and ''Substance Abuse Prevention'' in carrying out titles III, V, and XIX of the PHS Act and the Protection and Advocacy for Individuals with Mental Illness Act in the Substance Abuse and Mental Health Services Administration, $109,895,000: Provided, That in addition to amounts provided herein, $31,428,000 shall be available under section 241 of the PHS Act to supplement funds available to carry out national surveys on drug abuse and mental health, to collect and analyze program data, and to conduct public awareness and technical assistance activities: Provided further, That, in addition, fees may be collected for the costs of publications, data, data tabulations, and data analysis completed under title V of the PHS Act and provided to a public or private entity upon request, which shall be credited to this appropriation and shall remain available until expended for such purposes: Provided further, That amounts made available in this Act for carrying out section 501(o) of the PHS Act shall remain available through September 30, 2025: Provided further, That funds made available under this heading (other than amounts specified in the first proviso under this heading) may be used to supplement program support funding provided under the headings ''Mental Health'', ''Substance Abuse Treatment'', and ''Substance Abuse Prevention''.

CENTERS FOR MEDICARE & MEDICAID SERVICES

GRANTS TO STATES FOR MEDICAID

For carrying out, except as otherwise provided, titles XI and XIX of the Social Security Act, $406,956,850,000, to remain available until expended.

In addition, for carrying out such titles after May 31, 2024, for the last quarter of fiscal year 2024 for unanticipated costs incurred for the current fiscal year, such sums as may be necessary, to remain available until expended.

In addition, for carrying out such titles for the first quarter of fiscal year 2025, $245,580,414,000, to remain available until expended.

Payment under such title XIX may be made for any quarter with respect to a State plan or plan amendment in effect during such quarter, if submitted in or prior to such quarter and approved in that or any subsequent quarter.

PAYMENTS TO THE HEALTH CARE TRUST FUNDS

For payment to the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as provided under sections 217(g), 1844, and 1860D–16 of the Social Security Act, sections 103(c) and 111(d) of the Social Security Amendments of 1965, section 278(d)(3) of Public Law 97–248, and for administrative expenses incurred pursuant to section 201(g) of the Social Security Act, $476,725,000,000.

In addition, for making matching payments under section 1844 and benefit payments under section 1860D–16 of the Social Security Act that were not anticipated in budget estimates, such sums as may be necessary.

PROGRAM MANAGEMENT

For carrying out, except as otherwise provided, titles XI, XVIII, XIX, and XXI of the Social Security Act, titles XIII and XXVII of the PHS Act, the Clinical Laboratory Improvement Amendments of 1988, and other responsibilities of the Centers for Medicare & Medicaid Services, not to exceed $3,326,690,000 to be transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as authorized by section 201(g) of the Social Security Act; together with all funds collected in accordance with section 353 of the PHS Act and section 1857(e)(2) of the Social Security Act, funds retained by the Secretary pursuant to section 1893(h) of the Social Security Act, and such sums as may be collected from authorized user fees and the sale of data, which shall be credited to this account and remain available until expended: Provided, That all funds derived in accordance with 31 U.S.C. 9701 from organizations established under title XIII of the PHS Act shall be credited to and available for carrying out the purposes of this appropriation: Provided further, That the Secretary is directed to collect fees in fiscal year 2024 from Medicare Advantage organizations pursuant to section 1857(e)(2) of the Social Security Act and from eligible organizations with risk-sharing contracts under section 1876 of that Act pursuant to section 1876(k)(4)(D) of that Act: Provided further, That of the amount made available under this heading, $397,334,000 shall remain available until September 30, 2025, and shall be available for the Survey and Certification Program: Provided further, That amounts available under this heading to support quality improvement organizations (as defined in section 1152 of the Social Security Act) shall not exceed the amount specifically provided for such purpose under this heading in division H of the Consolidated Appropriations Act, 2018 (Public Law 115–141).

HEALTH CARE FRAUD AND ABUSE CONTROL ACCOUNT

In addition to amounts otherwise available for program integrity and program management, $915,000,000, to remain available through September 30, 2025, to be transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as authorized by section 201(g) of the Social Security Act, of which $675,648,000 shall be for the Centers for Medicare & Medicaid Services program integrity activities, of which $100,145,000 shall be for the Department of Health and Human Services Office of Inspector General to carry out fraud and abuse activities authorized by section 1817(k)(3) of such Act, and of which $132,207,000 shall be for the Department of Justice to carry out fraud and abuse activities authorized by section 1817(k)(3) of such Act: Provided, That the report required by section 1817(k)(5) of the Social Security Act for fiscal year 2024 shall include measures of the operational efficiency and impact on fraud, waste, and abuse in the Medicare, Medicaid, and CHIP programs for the funds provided by this appropriation: Provided further, That of the amount provided under this heading, $311,000,000 is provided to meet the terms of section 251(b)(2)(C)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended, and $604,000,000 is additional new budget authority specified for purposes of section 251(b)(2)(C)(i)(XI) of such Act for additional health care fraud and abuse control activities: Provided further, That the Secretary shall provide not less than $35,000,000 from amounts made available under this heading and amounts made available for fiscal year 2024 under section 1817(k)(3)(A) of the Social Security Act for the Senior Medicare Patrol program to combat health care fraud and abuse.

ADMINISTRATION FOR CHILDREN AND FAMILIES

PAYMENTS TO STATES FOR CHILD SUPPORT ENFORCEMENT AND FAMILY SUPPORT PROGRAMS

For carrying out, except as otherwise provided, titles I, IV–D, X, XI, XIV, and XVI of the Social Security Act and the Act of July 5, 1960, $3,309,000,000, to remain available until expended; and for such purposes for the first quarter of fiscal year 2025, $1,400,000,000, to remain available until expended.

For carrying out, after May 31 of the current fiscal year, except as otherwise provided, titles I, IV–D, X, XI, XIV, and XVI of the Social Security Act and the Act of July 5, 1960, for the last 3 months of the current fiscal year for unanticipated costs, incurred for the current fiscal year, such sums as may be necessary.

LOW INCOME HOME ENERGY ASSISTANCE

For making payments under subsections (b) and (d) of section 2602 of the Low-Income Home Energy Assistance Act of 1981 (42 U.S.C. 8621 et seq.), $4,011,000,000: Provided, That notwithstanding section 2609A(a) of such Act, not more than $9,600,000 may be reserved by the Secretary for technical assistance, training, and monitoring of program activities for compliance with internal controls, policies and procedures, and to supplement funding otherwise available for necessary administrative expenses to carry out such Act, and the Secretary may, in addition to the authorities provided in section 2609A(a)(1), use such funds through contracts with private entities that do not qualify as nonprofit organizations: Provided further, That all but $900,000,000 of the amount appropriated under this heading shall be allocated as though the total appropriation for such payments for fiscal year 2024 was less than $1,975,000,000: Provided further, That, after applying all applicable provisions of section 2604 of such Act and the previous proviso, each State or territory that would otherwise receive an allocation that is less than 97 percent of the amount that it received under this heading for fiscal year 2023 from amounts appropriated in Public Law 117–328 shall have its allocation increased to that 97 percent level, with the portions of other States' and territories' allocations that would exceed 100 percent of the amounts they respectively received in such fashion for fiscal year 2023 being ratably reduced.

REFUGEE AND ENTRANT ASSISTANCE

For necessary expenses for refugee and entrant assistance activities authorized by section 414 of the Immigration and Nationality Act and section 501 of the Refugee Education Assistance Act of 1980, and for carrying out section 462 of the Homeland Security Act of 2002, section 235 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008, the Trafficking Victims Protection Act of 2000 (''TVPA''), and the Torture Victims Relief Act of 1998, $2,756,956,000, of which $2,707,201,000 shall remain available through September 30, 2026, for carrying out such sections 414, 501, 462, and 235: Provided, That amounts available under this heading to carry out the TVPA shall also be available for research and evaluation with respect to activities under such Act: Provided further, That the contribution of funds requirement under section 235(c)(6)(C)(iii) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 shall not apply to funds made available under this heading.

PAYMENTS TO STATES FOR THE CHILD CARE AND DEVELOPMENT BLOCK GRANT

For carrying out the Child Care and Development Block Grant Act of 1990 (''CCDBG Act''), $8,021,387,000 shall be used to supplement, not supplant State general revenue funds for child care assistance for low-income families: Provided, That technical assistance under section 658I(a)(3) of such Act may be provided directly, or through the use of contracts, grants, cooperative agreements, or interagency agreements: Provided further, That all funds made available to carry out section 418 of the Social Security Act (42 U.S.C. 618), including funds appropriated for that purpose in such section 418 or any other provision of law, shall be subject to the reservation of funds authority in paragraphs (4) and (5) of section 658O(a) of the CCDBG Act: Provided further, That notwithstanding section

658O(a)(2) of such Act, 5 percent of the amount appropriated under this heading for such Act shall be reserved under such section for Indian tribes and tribal organizations with applications approved under section 658O(c) of such Act: Provided further, That of the amounts made available under this heading, the Secretary may reserve up to 0.5 percent for Federal administrative expenses.

SOCIAL SERVICES BLOCK GRANT

For making grants to States pursuant to section 2002 of the Social Security Act, $1,700,000,000: Provided, That notwithstanding subparagraph (B) of section 404(d)(2) of such Act, the applicable percent specified under such subparagraph for a State to carry out State programs pursuant to title XX–A of such Act shall be 10 percent.

CHILDREN AND FAMILIES SERVICES PROGRAMS

For carrying out, except as otherwise provided, the Runaway and Homeless Youth Act, the Head Start Act, the Every Student Succeeds Act, the Child Abuse Prevention and Treatment Act, sections 303 and 313 of the Family Violence Prevention and Services Act, the Native American Programs Act of 1974, title II of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (adoption opportunities), part B–1 of title IV and sections 429, 473A, 477(i), 1110, 1114A, and 1115 of the Social Security Act, and the Community Services Block Grant Act (''CSBG Act''); and for necessary administrative expenses to carry out titles I, IV, V, X, XI, XIV, XVI, and XX–A of the Social Security Act, the Act of July 5, 1960, and the Low-Income Home Energy Assistance Act of 1981, $13,388,077,000, of which $75,000,000, to remain available through September 30, 2025, shall be for grants to States for adoption and legal guardianship incentive payments, as defined by section 473A of the Social Security Act and may be made for adoptions and legal guardianships completed before September 30, 2024: Provided, That $11,246,820,000 shall be for making payments under the Head Start Act, including for Early Head Start–Child Care Partnerships, and, of which, notwithstanding section 640 of such Act:

(1) $25,000,000 shall be available for allocation by the Secretary to supplement activities described in paragraphs (7)(B) and (9) of section 641(c) of the Head Start Act under the Designation Renewal System, established under the authority of sections 641(c)(7), 645A(b)(12), and 645A(d) of such Act, and such funds shall not be included in the calculation of ''base grant'' in subsequent fiscal years, as such term is used in section 640(a)(7)(A) of such Act;

(2) $8,000,000 shall be available for the Tribal Colleges and Universities Head Start Partnership Program consistent with section 648(g) of such Act; and

(3) up to $40,000,000 shall be available to supplement funding otherwise available for research, evaluation, and Federal administrative costs:

Provided further, That notwithstanding the income eligibility requirements of subsection (a) and paragraphs (1) and (2) of subsection (d) of section 645 of the Head Start Act, and of the income eligibility criteria and allowances prescribed in regulations under such Act, an Indian tribe that operates a Head Start program may, at its discretion, establish selection criteria, including criteria to prioritize children in families for which a child, a family member, or a member of the same household, is a member of an Indian tribe, to enroll children who would benefit from the Head Start program: Provided further, That the Secretary may reduce the reservation of funds under section 640(a)(2)(C) of such Act in lieu of reducing the reservation of funds under sections 640(a)(2)(B), 640(a)(2)(D), and 640(a)(2)(E) of such Act: Provided further, That $804,383,000 shall be for making payments under the CSBG Act: Provided further, That $34,383,000 shall be for section 680 of the CSBG Act, of which not less than $22,383,000 shall be for section 680(a)(2) and not less than $12,000,000 shall be for section 680(a)(3)(B) of such Act: Provided further, That, notwithstanding section 675C(a)(3) of the CSBG Act, to the extent Community Services Block Grant funds are distributed as grant funds by a State to an eligible entity as provided under such Act, and have not been expended by such entity, they shall remain with such entity for carryover into the next fiscal year for expenditure by such entity consistent with program purposes: Provided further, That the Secretary shall establish procedures regarding the disposition of intangible assets and program income that permit such assets acquired with, and program income derived from, grant funds authorized under section 680 of the CSBG Act to become the sole property of such grantees after a period of not more than 12 years after the end of the grant period for any activity consistent with section 680(a)(2)(A) of the CSBG Act: Provided further, That intangible assets in the form of loans, equity investments and other debt instruments, and program income may be used by grantees for any eligible purpose consistent with section 680(a)(2)(A) of the CSBG Act: Provided further, That these procedures shall apply to such grant funds made available after November 29, 1999: Provided further, That funds appropriated for section 680(a)(2) of the CSBG Act shall be available for financing construction and rehabilitation and loans or investments in private business enterprises owned by community development corporations: Provided further, That $240,000,000 shall be for carrying out section 303(a) of the Family Violence Prevention and Services Act, of which $7,000,000 shall be allocated notwithstanding section 303(a)(2) of such Act for carrying out section 309 of such Act: Provided further, That the percentages specified in section 112(a)(2) of the Child Abuse Prevention and Treatment Act shall not apply to funds appropriated under this heading: Provided further, That $1,864,000 shall be for a human services case management system for federally declared disasters, to include a comprehensive national case management contract and Federal costs of administering the system: Provided further, That up to $2,000,000 shall be for improving the Public Assistance Reporting Information System, including grants to States to support data collection for a study of the system's effectiveness.

PROMOTING SAFE AND STABLE FAMILIES

For carrying out, except as otherwise provided, section 436 of the Social Security Act, $345,000,000 and, for carrying out, except as otherwise provided, section 437 of such Act, $86,515,000: Provided, That of the funds available to carry out section 437, $59,765,000 shall be allocated consistent with subsections (b) through (d) of such section: Provided further, That of the funds available to carry out section 437, to assist in meeting the requirements described in section 471(e)(4)(C), $20,000,000 shall be for grants to each State, territory, and Indian tribe operating title IV–E plans for developing, enhancing, or evaluating kinship navigator programs, as described in section 427(a)(1) of such Act and $6,750,000, in addition to funds otherwise appropriated in section 476 for such purposes, shall be for the Family First Clearinghouse and to support evaluation and technical assistance relating to the evaluation of child and family services: Provided further, That section 437(b)(1) shall be applied to amounts in the previous proviso by substituting ''5 percent'' for ''3.3 percent'', and notwithstanding section 436(b)(1), such reserved amounts may be used for identifying, establishing, and disseminating practices to meet the criteria specified in section 471(e)(4)(C): Provided further, That the reservation in section 437(b)(2) and the limitations in section 437(d) shall not apply to funds specified in the second proviso: Provided further, That the minimum grant award for kinship navigator programs in the case of States and territories shall be $200,000, and, in the case of tribes, shall be $25,000.

PAYMENTS FOR FOSTER CARE AND PERMANENCY

For carrying out, except as otherwise provided, title IV–E of the Social Security Act, $8,594,000,000.

For carrying out, except as otherwise provided, title IV–E of the Social Security Act, for the first quarter of fiscal year 2025, $3,400,000,000.

For carrying out, after May 31 of the current fiscal year, except as otherwise provided, section 474 of title IV–E of the Social Security Act, for the last 3 months of the current fiscal year for unanticipated costs, incurred for the current fiscal year, such sums as may be necessary.

ADMINISTRATION FOR COMMUNITY LIVING

AGING AND DISABILITY SERVICES PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For carrying out, to the extent not otherwise provided, the Older Americans Act of 1965 (''OAA''), the RAISE Family Caregivers Act, the Supporting Grandparents Raising Grandchildren Act, titles III and XXIX of the PHS Act, sections 1252 and 1253 of the PHS Act, section 119 of the Medicare Improvements for Patients and Providers Act of 2008, title XX–B of the Social Security Act, the Developmental Disabilities Assistance and Bill of Rights Act of 2000, parts 2 and 5 of subtitle D of title II of the Help America Vote Act of 2002, the Assistive Technology Act of 1998, titles II and VII (and section 14 with respect to such titles) of the Rehabilitation Act of 1973, and for Department-wide coordination of policy and program activities that assist individuals with disabilities, $2,418,901,000, together with $55,242,000 to be transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund to carry out section 4360 of the Omnibus Budget Reconciliation Act of 1990: Provided, That of amounts made available under this heading to carry out sections 311, 331, and 336 of the OAA, up to one percent of such amounts shall be available for developing and implementing evidence-based practices for enhancing senior nutrition, including medically-tailored meals: Provided further, That notwithstanding any other provision of this Act, funds made available under this heading to carry out section 311 of the OAA may be transferred to the Secretary of Agriculture in accordance with such section: Provided further, That up to 5 percent of the funds provided for adult protective services grants under section 2042 of title XX of the Social Security Act may be used to make grants to Tribes and tribal organizations: Provided further, That $2,000,000 shall be for competitive grants to support alternative financing programs that provide for the purchase of assistive technology devices, such as a low-interest loan fund; an interest buy-down program; a revolving loan fund; a loan guarantee; or an insurance program: Provided further, That applicants shall provide an assurance that, and information describing the manner in which, the alternative financing program will expand and emphasize consumer choice and control: Provided further, That State agencies and community-based disability organizations that are directed by and operated for individuals with disabilities shall be eligible to compete: Provided further, That none of the funds made available under this heading may be used by an eligible system (as defined in section 102 of the Protection and Advocacy for Individuals with Mental Illness Act (42 U.S.C. 10802)) to continue to pursue any legal action in a Federal or State court on behalf of an individual or group of individuals with a developmental disability (as defined in section 102(8)(A) of the Developmental Disabilities and Assistance and Bill of Rights Act of 2000 (20 U.S.C. 15002(8)(A)) that is attributable to a mental impairment (or a combination of mental and physical impairments), that has

as the requested remedy the closure of State operated intermediate care facilities for people with intellectual or developmental disabilities, unless reasonable public notice of the action has been provided to such individuals (or, in the case of mental incapacitation, the legal guardians who have been specifically awarded authority by the courts to make healthcare and residential decisions on behalf of such individuals) who are affected by such action, within 90 days of instituting such legal action, which informs such individuals (or such legal guardians) of their legal rights and how to exercise such rights consistent with current Federal Rules of Civil Procedure: Provided further, That the limitations in the immediately preceding proviso shall not apply in the case of an individual who is neither competent to consent nor has a legal guardian, nor shall the proviso apply in the case of individuals who are a ward of the State or subject to public guardianship.

ADMINISTRATION FOR STRATEGIC PREPAREDNESS AND RESPONSE

RESEARCH, DEVELOPMENT, AND PROCUREMENT

For carrying out title III and subtitles A and B of title XXVIII of the PHS Act, with respect to the research, development, storage, production, and procurement of medical countermeasures to counter potential chemical, biological, radiological, and nuclear threats to civilian populations, $3,277,991,000. Of such amount:

(1) $1,100,000,000 shall be for expenses necessary to support advanced research and development pursuant to section 319L of the PHS Act and other administrative expenses of the Biomedical Advanced Research and Development Authority, to remain available through September 30, 2025: Provided, That funds provided under this heading for purposes of acquisition of security countermeasures shall be in addition to any other funds made available for such purposes: Provided further, That products purchased with funds made available under this paragraph may, at the discretion of the Secretary, be deposited in the Strategic National Stockpile pursuant to section 319F–2 of the PHS Act;

(2) $850,000,000 shall be for expenses necessary for procuring security countermeasures (as defined in section 319F–2(c)(1)(B) of the PHS Act), to remain available until expended;

(3) $1,000,000,000 shall be for expenses necessary to carry out section 319F–2(a) of the PHS Act, to remain available until expended; and

(4) $327,991,000 shall be for expenses necessary to prepare for or respond to an influenza pandemic, of which $300,000,000 shall remain available until expended for activities including the development and purchase of vaccines, antivirals, necessary medical supplies, diagnostics, and surveillance tools: Provided, That notwithstanding section 496(b) of the PHS Act, funds allocated under this paragraph may be used for the construction or renovation of privately owned facilities for the production of pandemic influenza vaccines and other biologics, if the Secretary finds such construction or renovation necessary to secure sufficient supplies of such vaccines or biologics.

OPERATIONS AND EMERGENCY RESPONSE

For carrying out titles III, XII, and subtitles A and B of title XXVIII of the PHS Act, operations and emergency response activities related to countering potential chemical biological, radiological, and nuclear threats and other public health emergencies, $342,606,000.

OFFICE OF THE SECRETARY

GENERAL DEPARTMENTAL MANAGEMENT

For necessary expenses, not otherwise provided, for general departmental management, for carrying out titles III, XVII, XXI, and section 229 of the PHS Act, the United States-Mexico Border Health Commission Act, and research studies under section 1110 of the Social Security Act, $402,341,000, together with $58,028,000 from the amounts available under section 241 of the PHS Act to carry out national health or human services research and evaluation activities: Provided, That of this amount, $28,000,000 shall be for minority AIDS prevention and treatment activities: Provided further, That of the funds made available under this heading, $40,000,000 shall be for making competitive grants which exclusively implement education in sexual risk avoidance (defined as voluntarily refraining from non-marital sexual activity): Provided further, That funding for such competitive grants for sexual risk avoidance shall use medically accurate information referenced to peer-reviewed publications by educational, scientific, governmental, or health organizations; implement an evidence-based approach integrating research findings with practical implementation that aligns with the needs and desired outcomes for the intended audience; and teach the benefits associated with self-regulation, success sequencing for poverty prevention, healthy relationships, goal setting, and resisting sexual coercion, dating violence, and other youth risk behaviors such as underage drinking or illicit drug use without normalizing teen sexual activity: Provided further, That no more than 10 percent of the funding for such competitive grants for sexual risk avoidance shall be available for technical assistance and administrative costs of such programs: Provided further, That funds provided in this Act for embryo adoption activities may be used to provide to individuals adopting embryos, through grants and other mechanisms, medical and administrative services deemed necessary for such adoptions: Provided further, That such services shall be provided consistent with 42 CFR 59.5(a)(4): Provided further, That of the funds made available under this heading, $5,000,000 shall be for carrying out prize competitions sponsored by the Office of the Secretary to accelerate innovation in the prevention, diagnosis, and treatment of kidney diseases (as authorized by section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719)).

MEDICARE HEARINGS AND APPEALS

For expenses necessary for Medicare hearings and appeals in the Office of the Secretary, $196,000,000, of which $40,000,000 shall remain available until September 30, 2025, to be transferred in appropriate part from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund.

OFFICE OF THE NATIONAL COORDINATOR FOR HEALTH INFORMATION TECHNOLOGY

For expenses necessary for the Office of the National Coordinator for Health Information Technology, including grants, contracts, and cooperative agreements for the development and advancement of interoperable health information technology, $56,238,000 shall be from amounts made available under section 241 of the PHS Act.

OFFICE OF INSPECTOR GENERAL

For expenses necessary for the Office of Inspector General, including the hire of passenger motor vehicles for investigations, in carrying out the provisions of the Inspector General Act of 1978, $80,000,000: Provided, That of such amount, necessary sums shall be available for providing protective services to the Secretary and investigating non-payment of child support cases for which non-payment is a Federal offense under 18 U.S.C. 228: Provided further, That of the amount appropriated under this heading, necessary sums shall be available for carrying out activities authorized under section 3022 of the PHS Act (42 U.S.C. 300jj–52).

OFFICE FOR CIVIL RIGHTS

For expenses necessary for the Office for Civil Rights, $32,000,000.

RETIREMENT PAY AND MEDICAL BENEFITS FOR COMMISSIONED OFFICERS

For retirement pay and medical benefits of Public Health Service Commissioned Officers as authorized by law, for payments under the Retired Serviceman's Family Protection Plan and Survivor Benefit Plan, and for medical care of dependents and retired personnel under the Dependents' Medical Care Act, such amounts as may be required during the current fiscal year.

GENERAL PROVISIONS

SEC. 201. Funds appropriated in this title shall be available for not to exceed $50,000 for official reception and representation expenses when specifically approved by the Secretary.

SEC. 202. None of the funds appropriated in this title shall be used to pay the salary of an individual, through a grant or other extramural mechanism, at a rate in excess of Executive Level II: Provided, That none of the funds appropriated in this title shall be used to prevent the NIH from paying up to 100 percent of the salary of an individual at this rate.

SEC. 203. None of the funds appropriated in this Act may be expended pursuant to section 241 of the PHS Act, except for funds specifically provided for in this Act, or for other taps and assessments made by any office located in HHS, prior to the preparation and submission of a report by the Secretary to the Committees on Appropriations of the House of Representatives and the Senate detailing the planned uses of such funds.

SEC. 204. Notwithstanding section 241(a) of the PHS Act, such portion as the Secretary shall determine, but not more than 2.5 percent, of any amounts appropriated for programs authorized under such Act shall be made available for the evaluation (directly, or by grants or contracts) of the implementation and effectiveness of such programs.

(TRANSFER OF FUNDS)

SEC. 205. Not to exceed 1 percent of any discretionary funds (pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985) which are appropriated for the current fiscal year for HHS in this Act may be transferred between appropriations, but no such appropriation shall be increased by more than 3 percent by any such transfer: Provided, That the transfer authority granted by this section shall not be used to create any new program or to fund any project or activity for which no funds are provided in this Act: Provided further, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

SEC. 206. In lieu of the timeframe specified in section 338E(c)(2) of the PHS Act, terminations described in such section may occur up to 60 days after the effective date of a contract awarded in fiscal year 2024 under section 338B of such Act, or at any time if the individual who has been awarded such contract has not received funds due under the contract.

SEC. 207. None of the funds appropriated in this Act may be made available to any entity under title X of the PHS Act unless the applicant for the award certifies to the Secretary that it encourages family participation in the decision of minors to seek family planning services and that it provides counseling to minors on how to resist attempts to coerce minors into engaging in sexual activities.

SEC. 208. Notwithstanding any other provision of law, no provider of services under title X of the PHS Act shall be exempt from any State law requiring notification or the reporting of child abuse, child molestation, sexual abuse, rape, or incest.

SEC. 209. None of the funds appropriated by this Act (including funds appropriated to any trust fund) may be used to carry out the Medicare Advantage program if the Secretary denies participation in such program to an otherwise eligible entity (including a Provider Sponsored Organization) because the entity informs the Secretary that it will not provide, pay for, provide coverage of, or provide referrals for abortions: Provided, That the Secretary shall make appropriate prospective adjustments to the capitation payment to such an entity (based on an

actuarially sound estimate of the expected costs of providing the service to such entity's enrollees): Provided further, That nothing in this section shall be construed to change the Medicare program's coverage for such services and a Medicare Advantage organization described in this section shall be responsible for informing enrollees where to obtain information about all Medicare covered services.

SEC. 210. None of the funds made available in this title may be used, in whole or in part, to advocate or promote gun control.

SEC. 211. The Secretary shall make available through assignment not more than 60 employees of the Public Health Service to assist in child survival activities and to work in AIDS programs through and with funds provided by the Agency for International Development, the United Nations International Children's Emergency Fund or the World Health Organization.

SEC. 212. In order for HHS to carry out international health activities, including HIV/AIDS and other infectious disease, chronic and environmental disease, and other health activities abroad during fiscal year 2024:

(1) The Secretary may exercise authority equivalent to that available to the Secretary of State in section 2(c) of the State Department Basic Authorities Act of 1956. The Secretary shall consult with the Secretary of State and relevant Chief of Mission to ensure that the authority provided in this section is exercised in a manner consistent with section 207 of the Foreign Service Act of 1980 and other applicable statutes administered by the Department of State.

(2) The Secretary is authorized to provide such funds by advance or reimbursement to the Secretary of State as may be necessary to pay the costs of acquisition, lease, alteration, renovation, and management of facilities outside of the United States for the use of HHS. The Department of State shall cooperate fully with the Secretary to ensure that HHS has secure, safe, functional facilities that comply with applicable regulation governing location, setback, and other facilities requirements and serve the purposes established by this Act. The Secretary is authorized, in consultation with the Secretary of State, through grant or cooperative agreement, to make available to public or nonprofit private institutions or agencies in participating foreign countries, funds to acquire, lease, alter, or renovate facilities in those countries as necessary to conduct programs of assistance for international health activities, including activities relating to HIV/AIDS and other infectious diseases, chronic and environmental diseases, and other health activities abroad.

(3) The Secretary is authorized to provide to personnel appointed or assigned by the Secretary to serve abroad, allowances and benefits similar to those provided under chapter 9 of title I of the Foreign Service Act of 1980, and 22 U.S.C. 4081 through 4086 and subject to such regulations prescribed by the Secretary. The Secretary is further authorized to provide locality-based comparability payments (stated as a percentage) up to the amount of the locality-based comparability payment (stated as a percentage) that would be payable to such personnel under section 5304 of title 5, United States Code if such personnel's official duty station were in the District of Columbia. Leaves of absence for personnel under this subsection shall be on the same basis as that provided under subchapter I of chapter 63 of title 5, United States Code, or section 903 of the Foreign Service Act of 1980, to individuals serving in the Foreign Service.

(TRANSFER OF FUNDS)

SEC. 213. The Director of the NIH, jointly with the Director of the Office of AIDS Research, may transfer up to 3 percent among institutes and centers from the total amounts identified by these two Directors as funding for research pertaining to the human immunodeficiency virus: Provided, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

(TRANSFER OF FUNDS)

SEC. 214. Of the amounts made available in this Act for NIH, the amount for research related to the human immunodeficiency virus, as jointly determined by the Director of NIH and the Director of the Office of AIDS Research, shall be made available to the ''Office of AIDS Research'' account. The Director of the Office of AIDS Research shall transfer from such account amounts necessary to carry out section 2353(d)(3) of the PHS Act.

SEC. 215. (a) AUTHORITY.—Notwithstanding any other provision of law, the Director of NIH (''Director'') may use funds authorized under section 402(b)(12) of the PHS Act to enter into transactions (other than contracts, cooperative agreements, or grants) to carry out research identified pursuant to or research and activities described in such section 402(b)(12).

(b) PEER REVIEW.—In entering into transactions under subsection (a), the Director may utilize such peer review procedures (including consultation with appropriate scientific experts) as the Director determines to be appropriate to obtain assessments of scientific and technical merit. Such procedures shall apply to such transactions in lieu of the peer review and advisory council review procedures that would otherwise be required under sections 301(a)(3), 405(b)(1)(B), 405(b)(2), 406(a)(3)(A), 492, and 494 of the PHS Act.

SEC. 216. Not to exceed $100,000,000 of funds appropriated by this Act to the institutes and centers of the National Institutes of Health may be used for alteration, repair, or improvement of facilities, as necessary for the proper and efficient conduct of the activities authorized herein, at not to exceed $5,000,000 per project.

(TRANSFER OF FUNDS)

SEC. 217. Of the amounts made available for NIH, 1 percent of the amount made available for National Research Service Awards (''NRSA'') shall be made available to the Administrator of the Health Resources and Services Administration to make NRSA awards for research in primary medical care to individuals affiliated with entities who have received grants or contracts under sections 736, 739, or 747 of the PHS Act, and 1 percent of the amount made available for NRSA shall be made available to the Director of the Agency for Healthcare Research and Quality to make NRSA awards for health service research.

SEC. 218. (a) The Biomedical Advanced Research and Development Authority (''BARDA'') may enter into a contract, for more than one but no more than 10 program years, for purchase of research services or of security countermeasures, as that term is defined in section 319F–2(c)(1)(B) of the PHS Act (42 U.S.C. 247d–6b(c)(1)(B)), if—

(1) funds are available and obligated—

(A) for the full period of the contract or for the first fiscal year in which the contract is in effect; and

(B) for the estimated costs associated with a necessary termination of the contract; and

(2) the Secretary determines that a multi-year contract will serve the best interests of the Federal Government by encouraging full and open competition or promoting economy in administration, performance, and operation of BARDA's programs.

(b) A contract entered into under this section—

(1) shall include a termination clause as described by subsection (c) of section 3903 of title 41, United States Code; and

(2) shall be subject to the congressional notice requirement stated in subsection (d) of such section.

SEC. 219. (a) The Secretary shall publish in the fiscal year 2025 budget justification and on Departmental Web sites information concerning the employment of full-time equivalent Federal employees or contractors for the purposes of implementing, administering, enforcing, or otherwise carrying out the provisions of the ACA, and the amendments made by that Act, in the proposed fiscal year and each fiscal year since the enactment of the ACA.

(b) With respect to employees or contractors supported by all funds appropriated for purposes of carrying out the ACA (and the amendments made by that Act), the Secretary shall include, at a minimum, the following information:

(1) For each such fiscal year, the section of such Act under which such funds were appropriated, a statement indicating the program, project, or activity receiving such funds, the Federal operating division or office that administers such program, and the amount of funding received in discretionary or mandatory appropriations.

(2) For each such fiscal year, the number of full-time equivalent employees or contracted employees assigned to each authorized and funded provision detailed in accordance with paragraph (1).

(c) In carrying out this section, the Secretary may exclude from the report employees or contractors who—

(1) are supported through appropriations enacted in laws other than the ACA and work on programs that existed prior to the passage of the ACA;

(2) spend less than 50 percent of their time on activities funded by or newly authorized in the ACA; or

(3) work on contracts for which FTE reporting is not a requirement of their contract, such as fixed-price contracts.

SEC. 220. The Secretary shall publish, as part of the fiscal year 2025 budget of the President submitted under section 1105(a) of title 31, United States Code, information that details the uses of all funds used by the Centers for Medicare & Medicaid Services specifically for Health Insurance Exchanges for each fiscal year since the enactment of the ACA and the proposed uses for such funds for fiscal year 2025. Such information shall include, for each such fiscal year, the amount of funds used for each activity specified under the heading ''Health Insurance Exchange Transparency'' in the Explanatory Materials published at https://appropriations.house.gov/sites/republicans.appropriations.house.gov/files/FY24-LHHS-Explanatory-Materials.pdf (hereinafter ''Explanatory Materials'').

SEC. 221. None of the funds made available by this Act from the Federal Hospital Insurance Trust Fund or the Federal Supplemental Medical Insurance Trust Fund, or transferred from other accounts funded by this Act to the ''Centers for Medicare & Medicaid Services—Program Management'' account, may be used for payments under section 1342(b)(1) of Public Law 111–148 (relating to risk corridors).

(TRANSFER OF FUNDS)

SEC. 222. (a) Within 45 days of enactment of this Act, the Secretary shall transfer funds appropriated under section 4002 of the ACA to the accounts specified, in the amounts specified, and for the activities specified under the heading ''Prevention and Public Health Fund'' in the Explanatory Materials.

(b) Notwithstanding section 4002(c) of the ACA, the Secretary may not further transfer these amounts.

(c) Funds transferred for activities authorized under section 2821 of the PHS Act shall be made available without reference to section 2821(b) of such Act.

SEC. 223. Effective during the period beginning on November 1, 2015 and ending January 1, 2026, any provision of law that refers (including through cross-reference to another provision of law) to the current recommendations of the United States Preventive Services Task Force with respect to breast cancer screening, mammography, and prevention shall be administered by the Secretary involved as if—

(1) such reference to such current recommendations were a reference to the recommendations of such Task Force with respect to breast cancer screening, mammography, and prevention last issued before 2009; and

(2) such recommendations last issued before 2009 applied to any screening mammography modality under section 1861(jj) of the Social Security Act (42 U.S.C. 1395x(jj)).

(TRANSFER OF FUNDS)

SEC. 224. The NIH Director may transfer funds for opioid addiction, opioid alternatives, stimulant misuse and addiction, pain management, and addiction treatment to other Institutes and Centers of the NIH to be used for the same purpose 15 days after notifying the Committees on Appropriations of the House of Representatives and the Senate: Provided, That the transfer authority provided in the previous proviso is in addition to any other transfer authority provided by law.

SEC. 225. (a) The Secretary shall provide to the Committees on Appropriations of the House of Representatives and the Senate:

(1) Detailed monthly enrollment figures from the Exchanges established under the Patient Protection and Affordable Care Act of 2010 pertaining to enrollments during the open enrollment period; and

(2) Notification of any new or competitive grant awards, including supplements, authorized under section 330 of the Public Health Service Act.

(b) The Committees on Appropriations of the House and Senate must be notified at least 2 business days in advance of any public release of enrollment information or the award of such grants.

SEC. 226. The Department of Health and Human Services shall provide the Committees on Appropriations of the House of Representatives and Senate a biannual report 30 days after enactment of this Act on staffing described in the Explanatory Materials.

SEC. 227. Funds appropriated in this Act that are available for salaries and expenses of employees of the Department of Health and Human Services shall also be available to pay travel and related expenses of such an employee or of a member of his or her family, when such employee is assigned to duty, in the United States or in a U.S. territory, during a period and in a location that are the subject of a determination of a public health emergency under section 319 of the Public Health Service Act and such travel is necessary to obtain medical care for an illness, injury, or medical condition that cannot be adequately addressed in that location at that time. For purposes of this section, the term ''U.S. territory'' means Guam, the Commonwealth of Puerto Rico, the Northern Mariana Islands, the Virgin Islands, American Samoa, or the Trust Territory of the Pacific Islands.

SEC. 228. The Department of Health and Human Services may accept donations from the private sector, nongovernmental organizations, and other groups independent of the Federal Government for the care of unaccompanied alien children (as defined in section 462(g)(2) of the Homeland Security Act of 2002 (6 U.S.C. 279(g)(2))) in the care of the Office of Refugee Resettlement of the Administration for Children and Families, including medical goods and services, which may include early childhood developmental screenings, school supplies, toys, clothing, and any other items intended to promote the wellbeing of such children.

SEC. 229. In addition to the existing Congressional notification for formal site assessments of potential influx facilities, the Secretary shall notify the Committees on Appropriations of the House of Representatives and the Senate at least 15 days before operationalizing an unlicensed facility, and shall (1) specify whether the facility is hard-sided or soft-sided, and (2) provide analysis that indicates that, in the absence of the influx facility, the likely outcome is that unaccompanied alien children will remain in the custody of the Department of Homeland Security for longer than 72 hours or that unaccompanied alien children will be otherwise placed in danger. Within 60 days of bringing such a facility online, and monthly thereafter, the Secretary shall provide to the Committees on Appropriations of the House of Representatives and the Senate a report detailing the total number of children in care at the facility, the average length of stay and average length of care of children at the facility, and, for any child that has been at the facility for more than 60 days, their length of stay and reason for delay in release.

SEC. 230. None of the funds made available in this Act may be used to prevent a United States Senator or Member of the House of Representatives from entering, for the purpose of conducting oversight, any facility in the United States used for the purpose of maintaining custody of, or otherwise housing, unaccompanied alien children (as defined in section 462(g)(2) of the Homeland Security Act of 2002 (6 U.S.C. 279(g)(2))), provided that such Senator or Member has coordinated the oversight visit with the Office of Refugee Resettlement not less than two business days in advance to ensure that such visit would not interfere with the operations (including child welfare and child safety operations) of such facility.

SEC. 231. Not later than 14 days after the date of enactment of this Act, and monthly thereafter, the Secretary shall submit to the Committees on Appropriations of the House of Representatives and the Senate, and make publicly available online, a report with respect to children who were separated from their parents or legal guardians by the Department of Homeland Security (DHS) (regardless of whether or not such separation was pursuant to an option selected by the children, parents, or guardians), subsequently classified as unaccompanied alien children, and transferred to the care and custody of ORR during the previous month. Each report shall contain the following information:

(1) the number and ages of children so separated subsequent to apprehension at or between ports of entry, to be reported by sector where separation occurred; and

(2) the documented cause of separation, as reported by DHS when each child was referred.

SEC. 232. Funds appropriated in this Act that are available for salaries and expenses of employees of the Centers for Disease Control and Prevention shall also be available for the primary and secondary schooling of eligible dependents of personnel stationed in a U.S. territory as defined in section 227 of this Act at costs not in excess of those paid for or reimbursed by the Department of Defense.

SEC. 233. Section 231 of division B of the Department of Defense and Labor, Health and Human Services, and Education Appropriations Act, 2019 and Continuing Appropriations Act, 2019 (42 U.S.C. 247d–4a) is amended by striking ''Provided further, That the Committees on Appropriations of the House of Representatives'' and all that follows through ''and all the actual obligations incurred to date:'' and inserting the following: ''Provided further, That the Director shall provide to the Committees on Appropriations of the House of Representatives and the Senate, at least 15 days in advance of any transfer or obligation of funds made under the authority provided in this section, (1) a notification on the anticipated uses of funds by program, project, or activity; and (2) a detailed spend plan of anticipated uses of funds, including estimated personnel and administrative costs, disaggregated by program, project, or activity: Provided further, That such spend plans shall be updated to include all applicable obligations to date and unobligated amounts and submitted quarterly to such Committees on Appropriations until such funds are fully expended: Provided further, That the Director shall brief such Committees on Appropriations not later than 15 days after providing such a notification: Provided further, That the Director shall provide to such Committees on a monthly basis a report on all amounts available in the Reserve Fund for the current fiscal year and the preceding two fiscal years, including (1) each individual obligation above $5,000,000; (2) with respect to each such obligation, the notification to which it relates; and (3) the total amount unobligated in the Reserve Fund:''.

SEC. 234. Title VIII of division B of the CARES Act (Public Law 116–136) is amended, under the heading ''Department of Health and Human Services–Centers for Disease Control and Prevention–CDC-Wide Activities and Program Support'', by striking ''Provided further, That the Secretary of Health and Human Services, in consultation with the Director of the CDC, shall provide a report to the Committees on Appropriations of the House of Representatives and the Senate every 14 days, for one year from the date from any such declaration or determination described in the third proviso of section 231 of division B of Public Law 115–245, that details commitment and obligation information for the Reserve Fund during the prior two weeks, as long as such report would detail obligations in excess of $5,000,000, and upon the request by such Committees:''.

(RESCISSION)

SEC. 235. Of the unobligated balances in the ''Nonrecurring Expenses Fund'' established in section 223 of division G of Public Law 110–161, $1,000,000,000 are hereby rescinded not later than September 30, 2024: Provided, That from any remaining unobligated balances in such Fund, the Secretary of Health and Human Services may transfer up to $85,000,000 to ''Department of Health and Human Services—Centers for Disease Control and Prevention—Buildings and Facilities'' to be merged with and to be available for the same time period as the appropriations to which transferred: Provided further, That, except as otherwise provided in this Act, none of the funds provided by this Act may be obligated for a new program, project, or activity using such Fund for which a notification was not submitted to the Committees on Appropriations of the House of Representatives and the Senate prior to the date of enactment of this Act: Provided further, That the Secretary may obligate funds from such Fund for any program, project, or activity for which a notification was submitted before the date of enactment of this Act: Provided further, That the Secretary may transfer amounts into such Fund: Provided further, That any amounts transferred into such Fund are available for the purposes provided by this section or for which a notification was submitted to such Committees on Appropriations before the date of enactment of this Act: Provided further, That the authority to transfer amounts under this section is in addition to any other transfer authority in law.

SEC. 236. (a) Not later than March 16, 2023, and every 30 days thereafter, the Secretary of Health and Human Services shall submit to the Committee on Appropriations of the House of Representatives and the Committee on Appropriations of the Senate a report with respect to Federal expenditures made pursuant to a covered law. Such report shall include the following (if applicable for the period covered by the report):

(1) The total amount of funding made available by covered laws (and the amendments made by such laws) that has been obligated to date.

(2) A list of each financial award funded, in part or in full, by covered laws (and the amendments made by such laws), including the following information for each such award:

(A) All recipients for which funding has been obligated.

(B) The amount of funding that has been obligated for each recipient.

(C) The type of award (such as a grant or loan).

(3) The number, job title, and duties of any full time equivalent employees who have been hired using the funding made available by covered laws (and the amendments made by such laws).

(4) An accounting of such funds that have not yet been obligated.

(5) The identity of any contractors that have been procured using such funding.

(6) The total amount of funding awarded under a covered law that was returned to the Treasury and the specific accounts to which such funds were obligated after being so returned.

(7) The total amount of such funds that have been transferred out of each account established or funded under a covered law, and with respect to such transferred funds, the information specified in paragraphs (1) through (6).

(b) For purposes of this section, the term ''covered law'' means—

(1) section 11004 of Public Law 117–169 (commonly referred to as the ''Inflation Reduction Act of 2022'');

(2) the American Rescue Plan Act (Public Law 117–2) (and the amendments made by such Act); and

(3)(A) the third paragraph under the heading ''Office of the Secretary—Public Health and Social Services Emergency Fund'' of division B of the CARES Act (Public Law 116–136);

(B) the second paragraph under the heading ''Office of the Secretary—Public Health and Social Services Emergency Fund'' of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139); and

(C) the third paragraph under the heading ''Office of the Secretary—Public Health and Social Services Emergency Fund'' of the Coronavirus Response and Relief Supplemental Appropriations Act, 2021 (division M of Public Law 117–260).

SEC. 237. None of the funds provided in this Act under the heading ''Department of Health and Human Services—Office of the Secretary—General Departmental Management'' may be used for employee travel.

SEC. 238. None of the funds provided in this Act may be used to conduct or support research using human fetal tissue if such tissue is obtained pursuant to an induced abortion.

SEC. 239. (a) IN GENERAL.—Notwithstanding any other provision of law, none of the funds made available by this Act may be made available either directly, through a State (including through managed care contracts with a State), or through any other means, to a prohibited entity.

(b) PROHIBITED ENTITY.—The term ''prohibited entity'' means an entity, including its affiliates, subsidiaries, successors, and clinics—

(1) that, as of the date of enactment of this Act—

(A) is an organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of such Code;

(B) is an essential community provider described in section 156.235 of title 45, Code of Federal Regulations (as in effect on the date of enactment of this Act), that is primarily engaged in family planning services, reproductive health, and related medical care; and

(C) performs, or provides any funds to any other entity that performs abortions, other than an abortion performed—

(i) in the case of a pregnancy that is the result of an act of rape or incest; or

(ii) in the case where a woman suffers from a physical disorder, physical injury, or physical illness that would, as certified by a physician, place the woman in danger of death unless an abortion is performed, including a life endangering physical condition caused by, or arising from, the pregnancy itself; and

(2) for which the total amount of Federal grants to such entity, including grants to any affiliates, subsidiaries, or clinics of such entity, under title X of the Public Health Service Act in fiscal year 2016 exceeded $23,000,000.

(c)(1) END OF PROHIBITION.—The definition in subsection (b) shall cease to apply to an entity if such entity certifies that it, including its affiliates, subsidiaries, successors, and clinics, will not perform, and will not provide any funds to any other entity that performs, an abortion as described in subsection (b)(1)(C).

(2) REPAYMENT.—The Secretary of Health and Human Services shall seek repayment of any Federal assistance received by any entity that had made a certification described in paragraph (1) and subsequently violated the terms of such certification.

SEC. 240. None of the funds in this Act may be used to support, administer, oversee, or issue a grant, contract, or cooperative agreement for the purposes of providing information on, promoting access to, or facilitating an abortion.

SEC. 241. Notwithstanding any other provision of law, no Federal funding may be made available to the EcoHealth Alliance, Inc. located in New York.

SEC. 242. None of the funds provided in this Act to the Department of Health and Human Services, or provided under a previous or subsequent appropriations Act to such department, or provided from any account in the Treasury of the United States derived by the collection of fees available to such department, may be used to enforce the rule titled ''Medicare and Medicaid Programs; Omnibus COVID-19 Health Care Staff Vaccination'', which was issued by the Centers for Medicare and Medicaid Services on November 5, 2021, or any substantially similar rule.

SEC. 243. None of the funds in this Act may be used to implement, administer, or enforce Executive Order 13988, entitled 'Preventing and Combating Discrimination on the Basis of Gender Identity or Sexual Orientation,' published by the Executive Office of the President on January 25, 2021 (86 Fed. Reg. 7023).

SEC. 244. Beginning on the fourth day following the date of enactment of this Act, the aggregate dollar amount appropriated under the heading ''Department of Health and Human Services—Office of the Secretary—General Departmental Management'' shall be reduced by $1,000 for each day on which the Secretary of Health and Human Services fails to submit to the Congress the fiscal year 2023 and 2024 Moyer Report.

SEC. 245. None of the funds appropriated under this act may be used to require any project under title X of the PHS Act to refer for abortions: Provided, That no provider of services under title X of the PHS Act shall be required to subvert or operate in conflict with any State law limiting referral for abortion/pregnancy counseling.

SEC. 246. Title II of the Public Health Service Act (42 U.S.C. 202 et seq.) is amended by inserting after section 245 the following:

''SEC. 245A. CIVIL ACTION FOR CERTAIN VIOLATIONS.

''(a) IN GENERAL.—A qualified party may, in a civil action, obtain appropriate relief with regard to a designated violation.

''(b) DEFINITIONS.—For purposes of this section:

''(1) DESIGNATED VIOLATION.—The term 'designated violation' means an actual or threatened violation of—

''(A) section 507(d) of division H of the Consolidated Appropriations Act, 2023 (or any subsequent substantially similar provision); or

''(B) any funding condition imposed by the Federal Government pursuant to such section 507(d) (or such provision).

''(2) QUALIFIED PARTY.—The term 'qualified party' means—

''(A) the Attorney General of the United States;

''(B) any attorney general of a State; or

''(C) any person or entity adversely affected by the designated violation without regard to whether such person or entity is a health care provider.

''(3) STATE GOVERNMENTAL ENTITY.—The term 'State governmental entity' means a State, a local government within a State, and any agency or other governmental unit or subdivision of a State, or of such a local government.

''(c) ADMINISTRATIVE REMEDIES NOT REQUIRED.—An action under this section may be commenced, and relief may be granted, without regard to whether the party commencing the action has sought or exhausted any available administrative remedies.

''(d) DEFENDANTS.—An action under this section may be maintained against a Federal agency committing a designated violation described in subsection (b)(1)(A) or any recipient or subrecipient of Federal assistance committing a designated violation described in subsection (b)(1)(B), including a State governmental entity.

''(e) NATURE OF RELIEF.—In an action under this section, the court shall grant—

''(1) all appropriate relief, including injunctive relief, declaratory relief, and compensatory damages to prevent the occurrence, continuance, or repetition of the designated violation and to compensate for losses resulting from the designated violation; and

''(2) to a prevailing plaintiff, reasonable attorneys' fees and litigation costs.

Relief in an action under this section may include money damages even if the defendant is a governmental entity.

''(f) ABROGATION OF STATE IMMUNITY.—No State or governmental official that commits a designated violation shall be immune under the Tenth Amendment to the Constitution of the United States, the Eleventh Amendment to the Constitution of the United States, or any other source of law, from an action under subsection (a).''.

SEC. 247. None of the funds in this Act may be used to issue or implement as a final rule the proposed rule entitled ''Nondiscrimination in Health Programs and Activities'' published by the Department of Health and Human Services in the Federal Register on August 4, 2022 (87 Fed. Reg. 47824) (relating to section 1557 of the Affordable Care Act) or any successor or substantially similar rule.

SEC. 248. None of the funds in this Act may be used by the Secretary of Health and Human Services to declare a public health emergency pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) or any related order that would impede, limit, or restrict a citizen's Second Amendment right.

This title may be cited as the ''Department of Health and Human Services Appropriations Act, 2024''.

TITLE III

DEPARTMENT OF EDUCATION

OFFICE OF ELEMENTARY AND SECONDARY EDUCATION

EDUCATION FOR THE DISADVANTAGED

For carrying out title I and subpart 2 of part B of title II of the Elementary and Secondary Education Act of 1965 (referred to in this Act as ''ESEA'') and section 418A of the Higher Education Act of 1965 (referred to in this Act as ''HEA''), $13,055,290,000, of which $2,126,990,000 shall become available on July 1, 2024, and shall remain available through September 30, 2025, and of which $10,841,177,000 shall become available on October 1, 2024, and shall remain available through September 30, 2025, for academic year 2024–2025: Provided, That $1,906,901,000 shall be for basic grants under section 1124 of the ESEA: Provided further, That up to $5,000,000 of these funds shall be available to the Secretary of Education (referred to in this title as ''Secretary'') on October 1, 2023, to obtain annually updated local educational agency-level census poverty data from the Bureau of the Census: Provided further, That $1,362,301,000 shall be for concentration grants

under section 1124A of the ESEA: Provided further, That $4,542,550,000 shall be for targeted grants under section 1125 of the ESEA: Provided further, That $4,542,550,000 shall be for education finance incentive grants under section 1125A of the ESEA: Provided further, That $224,000,000 shall be for carrying out subpart 2 of part B of title II: Provided further, That $52,123,000 shall be for carrying out section 418A of the HEA.

IMPACT AID

For carrying out programs of financial assistance to federally affected schools authorized by title VII of the ESEA, $1,618,112,000, of which $1,468,242,000 shall be for basic support payments under section 7003(b), $48,316,000 shall be for payments for children with disabilities under section 7003(d), $18,406,000 shall be for construction under section 7007(a), $78,313,000 shall be for Federal property payments under section 7002, and $4,835,000, to remain available until expended, shall be for facilities maintenance under section 7008: Provided, That for purposes of computing the amount of a payment for an eligible local educational agency under section 7003(a) for school year 2023–2024, children enrolled in a school of such agency that would otherwise be eligible for payment under section 7003(a)(1)(B) of such Act, but due to the deployment of both parents or legal guardians, or a parent or legal guardian having sole custody of such children, or due to the death of a military parent or legal guardian while on active duty (so long as such children reside on Federal property as described in section 7003(a)(1)(B)), are no longer eligible under such section, shall be considered as eligible students under such section, provided such students remain in average daily attendance at a school in the same local educational agency they attended prior to their change in eligibility status.

SCHOOL IMPROVEMENT PROGRAMS

For carrying out school improvement activities authorized by part B of title I, part A of title II, subpart 1 of part A of title IV, part B of title IV, part B of title V, and parts B and C of title VI of the ESEA; the McKinney-Vento Homeless Assistance Act; section 203 of the Educational Technical Assistance Act of 2002; the Compact of Free Association Amendments Act of 2003; and the Civil Rights Act of 1964, $4,850,428,000, of which $3,053,673,000 shall become available on July 1, 2024, and remain available through September 30, 2025, and of which $1,681,441,000 shall become available on October 1, 2024, and shall remain available through September 30, 2025, for academic year 2024–2025: Provided, That $1,329,673,000 shall be for part B of title IV: Provided further, That $45,897,000 shall be for part B of title VI, which may be used for construction, renovation, and modernization of any public elementary school, secondary school, or structure related to a public elementary school or secondary school that serves a predominantly Native Hawaiian student body, and that the 5 percent limitation in section 6205(b) of the ESEA on the use of funds for administrative purposes shall apply only to direct administrative costs: Provided further, That $44,953,000 shall be for part C of title VI, which shall be awarded on a competitive basis, and may be used for construction, and that the 5 percent limitation in section 6305 of the ESEA on the use of funds for administrative purposes shall apply only to direct administrative costs: Provided further, That $24,464,000 shall be available to carry out the Supplemental Education Grants program for the Federated States of Micronesia and the Republic of the Marshall Islands: Provided further, That the Secretary may reserve up to 5 percent of the amount referred to in the previous proviso to provide technical assistance in the implementation of these grants: Provided further, That $215,000,000 shall be for part B of title V: Provided further, That $1,380,000,000 shall be available for grants under subpart 1 of part A of title IV: Provided further, That notwithstanding subsection (a)(3) of section 4103 of such Act, the Secretary may reserve not more than 1 percent under such subsection (a)(3) only for technical assistance.

INDIAN EDUCATION

For expenses necessary to carry out, to the extent not otherwise provided, title VI, part A of the ESEA, $194,746,000, of which $72,000,000 shall be for subpart 2 of part A of title VI and $12,365,000 shall be for subpart 3 of part A of title VI: Provided, That the 5 percent limitation in sections 6115(d), 6121(e), and 6133(g) of the ESEA on the use of funds for administrative purposes shall apply only to direct administrative costs: Provided further, That grants awarded under sections 6132 and 6133 of the ESEA with funds provided under this heading may be for a period of up to 5 years.

INNOVATION AND IMPROVEMENT

For carrying out activities authorized by subparts 1, 3, and 4 of part B of title II, and parts C, E, and subparts 1 and 4 of part F of title IV of the ESEA, $737,000,000: Provided, That $3,000,000 shall be for subpart 3 of part B of title II and shall be made available without regard to sections 2201 and 2231(b): Provided further, That $450,000,000 shall be for part C of title IV, and shall be made available without regard to section 4311: Provided further, That section 4303(d)(3)(A)(i) shall not apply to the funds available for part C of title IV: Provided further, That of the funds available for part C of title IV, the Secretary shall use not less than $65,000,000 to carry out section 4304, up to $140,000,000, to remain available through March 31, 2025, to carry out section 4305(b), and not more than $16,000,000 to carry out the activities in section 4305(a)(3): Provided further, That the Secretary shall allow entities receiving grants under section 4303 to use up to 10 percent of such grants for activities described in section 4303(b)(2) and up to 5 percent for the activities described in section 4303(c)(1)(C): Provided further, That entities receiving grants under section 4304(k) shall not be required to meet the matching requirements described in section 4304(k)(2)(C) and (D) and shall not be required to use such grants to support facilities aid programs that allocate funds on a per-pupil basis: Provided further, That notwithstanding section 4601(b), $284,000,000 shall be available through December 31, 2024 for subpart 1 of part F of title IV.

SAFE SCHOOLS AND CITIZENSHIP EDUCATION

For carrying out activities authorized by subparts 2 and 3 of part F of title IV of the ESEA, $316,000,000, to remain available through December 31, 2024: Provided, That $216,000,000 shall be available for section 4631, of which up to $5,000,000, to remain available until expended, shall be for the Project School Emergency Response to Violence (Project SERV) program: Provided further, That $100,000,000 shall be available for section 4625.

SPECIAL EDUCATION

For carrying out the Individuals with Disabilities Education Act (IDEA) and the Special Olympics Sport and Empowerment Act of 2004, $15,453,264,000, of which $5,870,321,000 shall become available on July 1, 2024, and shall remain available through September 30, 2025, and of which $9,283,383,000 shall become available on October 1, 2024, and shall remain available through September 30, 2025, for academic year 2024–2025: Provided, That the amount for section 611(b)(2) of the IDEA shall be equal to the lesser of the amount available for that activity during fiscal year 2023, increased by the amount of inflation as specified in section 619(d)(2)(B) of the IDEA, or the percent change in the funds appropriated under section 611(i) of the IDEA, but not less than the amount for that activity during fiscal year 2023: Provided further, That the Secretary shall, without regard to section 611(d) of the IDEA, distribute to all other States (as that term is defined in section 611(g)(2)), subject to the third proviso, any amount by which a State's allocation under section 611, from funds appropriated under this heading, is reduced under section 612(a)(18)(B), according to the following: 85 percent on the basis of the States' relative populations of children aged 3 through 21 who are of the same age as children with disabilities for whom the State ensures the availability of a free appropriate public education under this part, and 15 percent to States on the basis of the States' relative populations of those children who are living in poverty: Provided further, That the Secretary may not distribute any funds under the previous proviso to any State whose reduction in allocation from funds appropriated under this heading made funds available for such a distribution: Provided further, That the States shall allocate such funds distributed under the second proviso to local educational agencies in accordance with section 611(f): Provided further, That the amount by which a State's allocation under section 611(d) of the IDEA is reduced under section 612(a)(18)(B) and the amounts distributed to States under the previous provisos in fiscal year 2012 or any subsequent year shall not be considered in calculating the awards under section 611(d) for fiscal year 2013 or for any subsequent fiscal years: Provided further, That, notwithstanding the provision in section 612(a)(18)(B) regarding the fiscal year in which a State's allocation under section 611(d) is reduced for failure to comply with the requirement of section 612(a)(18)(A), the Secretary may apply the reduction specified in section 612(a)(18)(B) over a period of consecutive fiscal years, not to exceed 5, until the entire reduction is applied: Provided further, That the Secretary may, in any fiscal year in which a State's allocation under section 611 is reduced in accordance with section 612(a)(18)(B), reduce the amount a State may reserve under section 611(e)(1) by an amount that bears the same relation to the maximum amount described in that paragraph as the reduction under section 612(a)(18)(B) bears to the total allocation the State would have received in that fiscal year under section 611(d) in the absence of the reduction: Provided further, That the Secretary shall either reduce the allocation of funds under section 611 for any fiscal year following the fiscal year for which the State fails to comply with the requirement of section 612(a)(18)(A) as authorized by section 612(a)(18)(B), or seek to recover funds under section 452 of the General Education Provisions Act (20 U.S.C. 1234a): Provided further, That the funds reserved under 611(c) of the IDEA may be used to provide technical assistance to States to improve the capacity of the States to meet the data collection requirements of sections 616 and 618 and to administer and carry out other services and activities to improve data collection, coordination, quality, and use under parts B and C of the IDEA: Provided further, That the Secretary may use funds made available for the State Personnel Development Grants program under part D, subpart 1 of IDEA to evaluate program performance under such subpart: Provided further, That States may use funds reserved for other State-level activities under sections 611(e)(2) and 619(f) of the IDEA to make subgrants to local educational agencies, institutions of higher education, other public agencies, and private non-profit organizations to carry out activities authorized by those sections: Provided further, That, notwithstanding section 643(e)(2)(A) of the IDEA, if 5 or fewer States apply for grants pursuant to section 643(e) of such Act, the Secretary shall provide a grant to each State in an amount equal to the maximum amount described in section 643(e)(2)(B) of such Act: Provided further, That if more than 5 States apply for grants pursuant to section 643(e) of the IDEA, the Secretary shall award funds to those States on the basis of the States' relative populations of infants and toddlers except that no such State shall receive a grant in excess of the amount described in section

643(e)(2)(B) of such Act: Provided further, That States may use funds allotted under section 643(c) of the IDEA to make subgrants to local educational agencies, institutions of higher education, other public agencies, and private nonprofit organizations to carry out activities authorized by section 638 of IDEA: Provided further, That, notwithstanding section 638 of the IDEA, a State may use funds it receives under section 633 of the IDEA to offer continued early intervention services to a child who previously received services under part C of the IDEA from age 3 until the beginning of the school year following the child's third birthday with parental consent and without regard to the procedures in section 635(c) of the IDEA.

REHABILITATION SERVICES

For carrying out, to the extent not otherwise provided, the Rehabilitation Act of 1973 and the Helen Keller National Center Act, $4,397,033,000, of which $4,253,834,000 shall be for grants for vocational rehabilitation services under title I of the Rehabilitation Act.

SPECIAL INSTITUTIONS FOR PERSONS WITH DISABILITIES

AMERICAN PRINTING HOUSE FOR THE BLIND

For carrying out the Act to Promote the Education of the Blind of March 3, 1879, $43,431,000.

NATIONAL TECHNICAL INSTITUTE FOR THE DEAF

For the National Technical Institute for the Deaf under titles I and II of the Education of the Deaf Act of 1986, $92,500,000: Provided, That from the total amount available, the Institute may at its discretion use funds for the endowment program as authorized under section 207 of such Act.

GALLAUDET UNIVERSITY

For the Kendall Demonstration Elementary School, the Model Secondary School for the Deaf, and the partial support of Gallaudet University under titles I and II of the Education of the Deaf Act of 1986, $165,361,000, of which up to $15,000,000, to remain available until expended, shall be for construction, as defined by section 201(2) of such Act: Provided, That from the total amount available, the University may at its discretion use funds for the endowment program as authorized under section 207 of such Act.

CAREER, TECHNICAL, AND ADULT EDUCATION

For carrying out, to the extent not otherwise provided, the Carl D. Perkins Career and Technical Education Act of 2006 (''Perkins Act'') and the Adult Education and Family Literacy Act (''AEFLA''), $2,191,436,000, of which $1,400,436,000 shall become available on July 1, 2024, and shall remain available through September 30, 2025, and of which $791,000,000 shall become available on October 1, 2024, and shall remain available through September 30, 2025: Provided, That $25,000,000 shall be available for innovation and modernization grants under such section 114(e) of the Perkins Act: Provided further, That of the amounts made available for AEFLA, $13,712,000 shall be for national leadership activities under section 242.

STUDENT FINANCIAL ASSISTANCE

For carrying out subparts 1 and 10 of part A of title IV of the HEA, $22,475,352,000 which shall remain available through September 30, 2025.

The maximum Pell Grant for which a student shall be eligible during award year 2024–2025 shall be $6,335.

STUDENT AID ADMINISTRATION

For Federal administrative expenses to carry out part D of title I, and subparts 1, 9, and 10 of part A, and parts B, D, and E of title IV of the HEA, and subpart 1 of part A of title VII of the Public Health Service Act, $1,769,207,000, to remain available through September 30, 2025: Provided, That for student loan contracts awarded prior to October 1, 2017, the Secretary shall allow student loan borrowers who are consolidating Federal student loans to select from any student loan servicer to service their new consolidated student loan: Provided further, That in order to promote accountability and high-quality service to borrowers, the Secretary shall not award funding for any contract solicitation for a new Federal student loan servicing environment, including the solicitation for the Federal Student Aid (FSA) Next Generation Processing and Servicing Environment, unless such an environment provides for the participation of multiple student loan servicers that contract directly with the Department of Education to manage a unique portfolio of borrower accounts and the full life-cycle of loans from disbursement to pay-off with certain limited exceptions, and allocates student loan borrower accounts to eligible student loan servicers based on performance: Provided further, That the Secretary shall provide quarterly briefings to the Committees on Appropriations and Education and Labor of the House of Representatives and the Committees on Appropriations and Health, Education, Labor, and Pensions of the Senate on general progress related to solicitations for Federal student loan servicing contracts: Provided further, That not later than 60 days after enactment of this Act, FSA shall provide to the Committees on Appropriations of the House of Representatives and the Senate a detailed spend plan of anticipated uses of funds made available in this account for fiscal year 2024 and provide quarterly updates on this plan (including contracts awarded, change orders, bonuses paid to staff, reorganization costs, and any other activity carried out using amounts provided under this heading for fiscal year 2024).

HIGHER EDUCATION

For carrying out, to the extent not otherwise provided, titles III, IV, V, VI, VII, and VIII of the HEA, and section 117 of the Perkins Act, $2,767,239,000: Provided, That notwithstanding any other provision of law, funds made available in this Act to carry out title VI of the HEA may be used to support visits and study in foreign countries by individuals who are participating in advanced foreign language training and international studies in areas that are vital to United States national security and who plan to apply their language skills and knowledge of these countries in the fields of government, the professions, or international development: Provided further, That of the funds referred to in the preceding proviso up to 1 percent may be used for program evaluation, national outreach, and information dissemination activities: Provided further, That up to 1.5 percent of the funds made available under chapter 2 of subpart 2 of part A of title IV of the HEA may be used for evaluation: Provided further, That section 313(d) of the HEA shall not apply to an institution of higher education that is eligible to receive funding under section 318 of the HEA: Provided further, That of the funds made available under this Act to carry out part B of title III of the HEA, to supplement amounts otherwise available, not less than $10,000,000 shall be for grants to part B institutions as defined under section 322(2) of the HEA, that are junior or community colleges, as defined in section 312(f) of the HEA: Provided further, That funds in the preceding proviso are in addition to any grant award that any such institution may receive under section 323 of such Act and shall be allocated in accordance with the allotments specified under section 324 of such Act.

HOWARD UNIVERSITY

For partial support of Howard University, $301,693,000, of which not less than $3,405,000 shall be for a matching endowment grant pursuant to the Howard University Endowment Act and shall remain available until expended.

COLLEGE HOUSING AND ACADEMIC FACILITIES LOANS PROGRAM

For Federal administrative expenses to carry out activities related to existing facility loans pursuant to section 121 of the HEA, $321,000.

HISTORICALLY BLACK COLLEGE AND UNIVERSITY CAPITAL FINANCING PROGRAM ACCOUNT

For the cost of guaranteed loans, $20,150,000, as authorized pursuant to part D of title III of the HEA, which shall remain available through September 30, 2025: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed, not to exceed $377,340,824: Provided further, That these funds may be used to support loans to public and private Historically Black Colleges and Universities without regard to the limitations within section 344(a) of the HEA.

In addition, for administrative expenses to carry out the Historically Black College and University Capital Financing Program entered into pursuant to part D of title III of the HEA, $528,000.

INSTITUTE OF EDUCATION SCIENCES

For necessary expenses for the Institute of Education Sciences as authorized by section 208 of the Department of Education Organization Act and carrying out activities authorized by the National Assessment of Educational Progress Authorization Act, section 208 of the Educational Technical Assistance Act of 2002, and section 664 of the Individuals with Disabilities Education Act, $707,372,000, which shall remain available through September 30, 2025.

DEPARTMENTAL MANAGEMENT

PROGRAM ADMINISTRATION

For carrying out, to the extent not otherwise provided, the Department of Education Organization Act, including rental of conference rooms in the District of Columbia and hire of three passenger motor vehicles, $350,000,000: Provided, That none of the funds provided by this Act may be used to support a number of non-career employees that is above the number of non-career employees as of December 31, 2021.

OFFICE FOR CIVIL RIGHTS

For expenses necessary for the Office for Civil Rights, as authorized by section 203 of the Department of Education Organization Act, $105,000,000.

OFFICE OF INSPECTOR GENERAL

For expenses necessary for the Office of Inspector General, as authorized by section 212 of the Department of Education Organization Act, $60,000,000, of which $3,000,000 shall be available through September 30, 2025.

GENERAL PROVISIONS

SEC. 301. No funds appropriated in this Act may be used to prevent the implementation of programs of voluntary prayer and meditation in the public schools.

(TRANSFER OF FUNDS)

SEC. 302. Not to exceed 1 percent of any discretionary funds (pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985) which are appropriated for the Department of Education in this Act may be transferred between appropriations, but no such appropriation shall be increased by more than 3 percent by any such transfer: Provided, That the transfer authority granted by this section shall not be used to create any new program or to fund any project or activity for which no funds are provided in this Act: Provided further, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

SEC. 303. Funds appropriated in this Act and consolidated for evaluation purposes under section 8601(c) of the ESEA shall be available from July 1, 2024, through September 30, 2025.

SEC. 304. (a) An institution of higher education that maintains an endowment fund supported with funds appropriated for title III or V of the HEA for fiscal year 2024 may use the income from that fund to award scholarships to

students, subject to the limitation in section 331(c)(3)(B)(i) of the HEA. The use of such income for such purposes, prior to the enactment of this Act, shall be considered to have been an allowable use of that income, subject to that limitation.

(b) Subsection (a) shall be in effect until titles III and V of the HEA are reauthorized.

SEC. 305. Section 114(f) of the HEA (20 U.S.C. 1011c(f)) shall be applied by substituting ''2024'' for ''2021''.

SEC. 306. Section 458(a)(4) of the HEA (20 U.S.C. 1087h(a)) shall be applied by substituting ''2024'' for ''2021''.

SEC. 307. Funds appropriated in this Act under the heading ''Student Aid Administration'' may be available for payments for student loan servicing to an institution of higher education that services outstanding Federal Perkins Loans under part E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087aa et seq.).

SEC. 308. The Secretary may reserve not more than 0.5 percent from any amount made available in this Act for an HEA program, except for any amounts made available for subpart 1 of part A of title IV of the HEA, to carry out rigorous and independent evaluations and to collect and analyze outcome data for any program authorized by the HEA: Provided, That no funds made available in this Act for the ''Student Aid Administration'' account shall be subject to the reservation under this section: Provided further, That any funds reserved under this section shall be available through September 30, 2026: Provided further, That if, under any other provision of law, funds are authorized to be reserved or used for evaluation activities with respect to a program or project, the Secretary may also reserve funds for such program or project for the purposes described in this section so long as the total reservation of funds for such program or project does not exceed any statutory limits on such reservations: Provided further, That not later than 30 days prior to the initial obligation of funds reserved under this section, the Secretary shall submit to the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Health, Education, Labor and Pensions of the Senate, and the Committee on Education and Labor of the House of Representatives a plan that identifies the source and amount of funds reserved under this section, the impact on program grantees if funds are withheld for the purposes of this section, and the activities to be carried out with such funds.

(INCLUDING TRANSFER OF FUNDS)

SEC. 309. Of the amounts appropriated in this Act for ''Institute of Education Sciences'', up to $19,000,000 shall be available for the Secretary of Education (''the Secretary'') to provide support services to the Institute of Education Sciences (including, but not limited to information technology services, lease or procurement of office space, human resource services, financial management services, financial systems support, budget formulation and execution, legal counsel, equal employment opportunity services, physical security, facilities management, acquisition and contract management, grants administration and policy, and enterprise risk management): Provided, That the Secretary shall calculate the actual amounts obligated and expended for such support services by using a standard Department of Education methodology for allocating the cost of all such support services: Provided further, That the Secretary may transfer any amounts available for IES support services in excess of actual amounts needed for IES support services, as so calculated, to the ''Program Administration'' account from the ''Institute of Education Sciences'' account: Provided further, That in order to address any shortfall between amounts available for IES support services and amounts needed for IES support services, as so calculated, the Secretary may transfer necessary amounts to the ''Institute of Education Sciences'' account from the ''Program Administration'' account: Provided further, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 14 days in advance of any transfer made pursuant to this section.

(RESCISSION)

SEC. 310. Of the unobligated balances in the ''Department of Education Nonrecurring Expenses Fund'' established in section 313 of division H of Public Law 116–260, $29,000,000 are hereby rescinded not later than September 30, 2024: Provided, That from any remaining unobligated balances in such Fund, the Secretary may transfer up to $45,325,000 to ''Howard University'' for completion of the Howard University hospital, to remain available until expended: Provided further, That, except as otherwise provided in this Act, none of the funds provided by this Act may be obligated for a new program, project, or activity using such Fund for which a notification was not submitted to the Committees on Appropriations of the House of Representatives and the Senate before the date of enactment of this Act: Provided further, That the Secretary may obligate funds from such Fund for any program, project, or activity for which a notification was submitted before the date of enactment of this Act: Provided further, That the Secretary may transfer amounts into such Fund: Provided further, That any amounts transferred into such Fund are available for the purposes provided by this section or for which a notification was submitted to such Committees on Appropriations before the date of enactment of this Act: Provided further, That the authority to transfer amounts under this section is in addition to any other transfer authority in law.

SEC. 311. (a) None of the funds made available by this title may be used to issue or implement as final rules the rules proposed by the Department of Education relating to title IX of the Education Amendments of 1972 (20 5 U.S.C. 1681-1688) and described under the heading ''Nondiscrimination on the Basis of Sex in Education Programs or Activities Receiving Federal Financial Assistance'' (87 Fed. Reg. 41390; published July 12, 2022).

(b) None of the funds made available by this title may be used to issue or implement—

(1) as final rules the rules proposed by the Department of Education relating to title IX of the Education Amendments of 1972 (20 U.S.C. 1681-1688) and described under the heading ''Nondiscrimination on the Basis of Sex in Education Programs or Activities Receiving Federal Financial Assistance: Sex-Related Eligibility Criteria for Male and Female Athletic Teams'' (88 Fed. Reg. 22860; published April 13, 2023), or

(2) any rule similar in substance to the proposed rules described in paragraph (1) that relates to eligibility criteria for participation on athletic teams.

SEC. 312. None of the funds made available under this Act may be provided to any public institution of higher education that denies to a religious student organization any right, benefit, or privilege that is otherwise afforded to other student organizations at the institution (including full access to the facilities of the institution and official recognition of the organization by the institution) because of the religious beliefs, practices, speech, leadership standards, or standards of conduct of the religious student organization.

(RESCISSION)

SEC. 313. Of the amounts which are made available to ''Department of Education—Education for the Disadvantaged'' on October 1, 2023 by Public Law 117–328, $8,671,399,000 are hereby rescinded.

(RESCISSION)

SEC. 314. Of the amounts which are made available to ''Department of Education—School Improvement Programs'' on October 1, 2023 by Public Law 117–328, $1,681,441,000 are hereby rescinded.

SEC. 315. None of the funds made available by this Act may be used to—

(1) implement the waivers and modifications of statutory and regulatory provisions relating to an extension of the suspension of payments on certain loans and waivers of interest on such loans under section 3513 of the CARES Act (20 U.S.C. 1001 note), described by the Department of Education in the Federal Register on October 12, 2022 (87 Fed. Reg. 61513 et seq.), and most recently extended in the announcement by the Department of Education on November 22, 2022;

(2) take any substantially similar action; or

(3) waive any consequences of nonpayment by a borrower in repayment such as delinquency or default.

SEC. 316. None of the funds made available by this Act may be used to—

(1) implement the modifications of statutory and regulatory provisions relating to debt discharge described by the Department of Education in the Federal Register on October 12, 2022 (87 Fed. Reg. 61514), or take any substantially similar action;

(2) issue a final rule or otherwise implement the proposed rule on ''Improving Income-Driven Repayment for the William D. Ford Federal Direct Loan Program'' published by the Department of Education in the Federal Register on January 11, 2023 (88 Fed. Reg. 1894 et seq.), or take any substantially similar action; or

(3) implement, administer, or enforce parts 600, 668, and 685 of title 34, Code of Federal Regulations, (relating to borrower defense to repayment), as amended by the final regulations published by the Department of Education in the Federal Register on November 1, 2022 (87 Fed. Reg. 65904 et seq.) or take any substantially similar action.

SEC. 317. None of the funds made available by this Act may be used to provide financial assistance to an educational institution that allows an individual whose sex is male to participate in an athletic program or activity that is designated for women or girls. For the purpose of this section, the term ''sex'' means the reproductive biology and genetics of an individual as determined solely at birth.

This title may be cited as the ''Department of Education Appropriations Act, 2024''.

TITLE IV

RELATED AGENCIES

COMMITTEE FOR PURCHASE FROM PEOPLE WHO ARE BLIND OR SEVERELY DISABLED

SALARIES AND EXPENSES

For expenses necessary for the Committee for Purchase From People Who Are Blind or Severely Disabled (referred to in this title as ''the Committee'') established under section 8502 of title 41, United States Code, $13,124,000: Provided, That in order to authorize any central nonprofit agency designated pursuant to section 8503(c) of title 41, United States Code, to perform requirements of the Committee as prescribed under section 51–3.2 of title 41, Code of Federal Regulations, the Committee shall enter into a written agreement with any such central nonprofit agency: Provided further, That such agreement shall contain such auditing, oversight, and reporting provisions as necessary to implement chapter 85 of title 41, United States Code: Provided further, That such agreement shall include the elements listed under the heading ''Committee For Purchase From People Who Are Blind or Severely Disabled—Written Agreement Elements'' in the explanatory statement described in section 4 of Public Law 114–113 (in the matter preceding division A of that consolidated Act): Provided further, That any such central nonprofit agency may not charge a fee under section 51–3.5 of title 41, Code of Federal Regulations, prior to executing a written agreement with the Committee: Provided further, That no less than $3,150,000 shall be available for the Office of Inspector General.

CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

OPERATING EXPENSES

For necessary expenses for the Corporation for National and Community Service (referred to in this title as ''CNCS'') to carry out the Domestic Volunteer Service Act of 1973 (referred to in this title as ''1973 Act'') and the National and Community Service Act of 1990 (referred to in this title as ''1990 Act''), $593,347,000, notwithstanding sections 198B(b)(3), 198S(g), 501(a)(4)(C), and 501(a)(4)(F) of the 1990 Act: Provided, That of the amounts provided under this heading up to 1 percent of program grant funds may be used to defray the costs of conducting grant application reviews, including the use of outside peer reviewers and electronic management of the grants cycle: Provided further, That for the purposes of carrying out the 1990 Act, satisfying the requirements in section 122(c)(1)(D) may include a determination of need by the local community.

SALARIES AND EXPENSES

For necessary expenses of administration as provided under section 501(a)(5) of the 1990 Act and under section 504(a) of the 1973 Act, including payment of salaries, authorized travel, hire of passenger motor vehicles, the rental of conference rooms in the District of Columbia, the employment of experts and consultants authorized under 5 U.S.C. 3109, and not to exceed $2,500 for official reception and representation expenses, $60,000,000.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the Inspector General Act of 1978, $7,595,000.

ADMINISTRATIVE PROVISIONS

SEC. 401. CNCS shall make any significant changes to program requirements, service delivery or policy only through public notice and comment rulemaking. For fiscal year 2024, during any grant selection process, an officer or employee of CNCS shall not knowingly disclose any covered grant selection information regarding such selection, directly or indirectly, to any person other than an officer or employee of CNCS that is authorized by CNCS to receive such information.

SEC. 402. AmeriCorps programs receiving grants under the National Service Trust program shall meet an overall minimum share requirement of 24 percent for the first 3 years that they receive AmeriCorps funding, and thereafter shall meet the overall minimum share requirement as provided in section 2521.60 of title 45, Code of Federal Regulations, without regard to the operating costs match requirement in section 121(e) or the member support Federal share limitations in section 140 of the 1990 Act, and subject to partial waiver consistent with section 2521.70 of title 45, Code of Federal Regulations.

SEC. 403. Donations made to CNCS under section 196 of the 1990 Act for the purposes of financing programs and operations under titles I and II of the 1973 Act or subtitle B, C, D, or E of title I of the 1990 Act shall be used to supplement and not supplant current programs and operations.

SEC. 404. In addition to the requirements in section 146(a) of the 1990 Act, use of an educational award for the purpose described in section 148(a)(4) shall be limited to individuals who are veterans as defined under section 101 of the Act.

SEC. 405. For the purpose of carrying out section 189D of the 1990 Act—

(1) entities described in paragraph (a) of such section shall be considered ''qualified entities'' under section 3 of the National Child Protection Act of 1993 (''NCPA'');

(2) individuals described in such section shall be considered ''volunteers'' under section 3 of NCPA; and

(3) State Commissions on National and Community Service established pursuant to section 178 of the 1990 Act, are authorized to receive criminal history record information, consistent with Public Law 92–544.

SEC. 406. Notwithstanding sections 139(b), 146 and 147 of the 1990 Act, an individual who successfully completes a term of service of not less than 1,200 hours during a period of not more than one year may receive a national service education award having a value of 70 percent of the value of a national service education award determined under section 147(a) of the Act.

(RESCISSION)

SEC. 407. Of the unobligated balances available in the ''National Service Trust'' established in section 102 of the National and Community Service Trust Act of 1993, $243,000,000 are hereby permanently rescinded, except that no amounts may be rescinded from amounts that were previously designated by the Congress as being for an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL MEDIATION AND CONCILIATION SERVICE

SALARIES AND EXPENSES

For expenses necessary for the Federal Mediation and Conciliation Service (''Service'') to carry out the functions vested in it by the Labor-Management Relations Act, 1947, including hire of passenger motor vehicles; for expenses necessary for the Labor-Management Cooperation Act of 1978; and for expenses necessary for the Service to carry out the functions vested in it by the Civil Service Reform Act, $53,705,000: Provided, That notwithstanding 31 U.S.C. 3302, fees charged, up to full-cost recovery, for special training activities and other conflict resolution services and technical assistance, including those provided to foreign governments and international organizations, and for arbitration services shall be credited to and merged with this account, and shall remain available until expended: Provided further, That fees for arbitration services shall be available only for education, training, and professional development of the agency workforce: Provided further, That the Director of the Service is authorized to accept and use on behalf of the United States gifts of services and real, personal, or other property in the aid of any projects or functions within the Director's jurisdiction.

FEDERAL MINE SAFETY AND HEALTH REVIEW COMMISSION

SALARIES AND EXPENSES

For expenses necessary for the Federal Mine Safety and Health Review Commission, $18,012,000.

INSTITUTE OF MUSEUM AND LIBRARY SERVICES

OFFICE OF MUSEUM AND LIBRARY SERVICES: GRANTS AND ADMINISTRATION

For carrying out the Museum and Library Services Act of 1996 and the National Museum of African American History and Culture Act, $294,800,000.

MEDICAID AND CHIP PAYMENT AND ACCESS COMMISSION

SALARIES AND EXPENSES

For expenses necessary to carry out section 1900 of the Social Security Act, $9,405,000.

MEDICARE PAYMENT ADVISORY COMMISSION

SALARIES AND EXPENSES

For expenses necessary to carry out section 1805 of the Social Security Act, $13,824,000, to be transferred to this appropriation from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund.

NATIONAL COUNCIL ON DISABILITY

SALARIES AND EXPENSES

For expenses necessary for the National Council on Disability as authorized by title IV of the Rehabilitation Act of 1973, $3,850,000.

NATIONAL LABOR RELATIONS BOARD

SALARIES AND EXPENSES

For expenses necessary for the National Labor Relations Board to carry out the functions vested in it by the Labor-Management Relations Act, 1947, and other laws, $200,000,000: Provided, That no part of this appropriation shall be available to organize or assist in organizing agricultural laborers or used in connection with investigations, hearings, directives, or orders concerning bargaining units composed of agricultural laborers as referred to in section 2(3) of the Act of July 5, 1935, and as amended by the Labor-Management Relations Act, 1947, and as defined in section 3(f) of the Act of June 25, 1938, and including in said definition employees engaged in the maintenance and operation of ditches, canals, reservoirs, and waterways when maintained or operated on a mutual, nonprofit basis and at least 95 percent of the water stored or supplied thereby is used for farming purposes.

ADMINISTRATIVE PROVISIONS

SEC. 408. None of the funds provided by this Act or previous Acts making appropriations for the National Labor Relations Board may be used to issue any new administrative directive or regulation that would provide employees any means of voting through any electronic means in an election to determine a representative for the purposes of collective bargaining.

SEC. 409. No Federal funds may be made available to alter or affect the administration, implementation, or enforcement of the final rule entitled ''Joint Employer Status Under the National Labor Relations Act'' (86 Fed. Reg. 11184) and dated February 26, 2020.

NATIONAL MEDIATION BOARD

SALARIES AND EXPENSES

For expenses necessary to carry out the provisions of the Railway Labor Act, including emergency boards appointed by the President, $15,113,000.

OCCUPATIONAL SAFETY AND HEALTH REVIEW COMMISSION

SALARIES AND EXPENSES

For expenses necessary for the Occupational Safety and Health Review Commission, $15,449,000.

RAILROAD RETIREMENT BOARD

DUAL BENEFITS PAYMENTS ACCOUNT

For payment to the Dual Benefits Payments Account, authorized under section 15(d) of the Railroad Retirement Act of 1974, $8,000,000, which shall include amounts becoming available in fiscal year 2024 pursuant to section 224(c)(1)(B) of Public Law 98–76; and in addition, an amount, not to exceed 2 percent of the amount provided herein, shall be available proportional to the amount by which the product of recipients and the average benefit received exceeds the amount available for payment of vested dual benefits: Provided, That the total amount provided herein shall be credited in 12 approximately equal amounts on the first day of each month in the fiscal year.

FEDERAL PAYMENTS TO THE RAILROAD RETIREMENT ACCOUNTS

For payment to the accounts established in the Treasury for the payment of benefits under the Railroad Retirement Act for interest earned on unnegotiated checks, $150,000, to remain available through September 30, 2025, which shall be the maximum amount available for payment pursuant to section 417 of Public Law 98–76.

LIMITATION ON ADMINISTRATION

For necessary expenses for the Railroad Retirement Board (''Board'') for administration of the Railroad Retirement Act and the Railroad Unemployment Insurance Act, $103,000,000, to be derived in such amounts as determined by the Board from the railroad retirement accounts

and from moneys credited to the railroad unemployment insurance administration fund: Provided, That notwithstanding section 7(b)(9) of the Railroad Retirement Act this limitation may be used to hire attorneys only through the excepted service: Provided further, That the previous proviso shall not change the status under Federal employment laws of any attorney hired by the Railroad Retirement Board prior to January 1, 2013: Provided further, That notwithstanding section 7(b)(9) of the Railroad Retirement Act, this limitation may be used to hire students attending qualifying educational institutions or individuals who have recently completed qualifying educational programs using current excepted hiring authorities established by the Office of Personnel Management.

LIMITATION ON THE OFFICE OF INSPECTOR GENERAL

For expenses necessary for the Office of Inspector General for audit, investigatory and review activities, as authorized by the Inspector General Act of 1978, not more than $14,000,000, to be derived from the railroad retirement accounts and railroad unemployment insurance account.

SOCIAL SECURITY ADMINISTRATION

PAYMENTS TO SOCIAL SECURITY TRUST FUNDS

For payment to the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund, as provided under sections 201(m) and 1131(b)(2) of the Social Security Act, $10,000,000.

SUPPLEMENTAL SECURITY INCOME PROGRAM

For carrying out titles XI and XVI of the Social Security Act, section 401 of Public Law 92–603, section 212 of Public Law 93–66, as amended, and section 405 of Public Law 95–216, including payment to the Social Security trust funds for administrative expenses incurred pursuant to section 201(g)(1) of the Social Security Act, $45,455,426,000, to remain available until expended: Provided, That any portion of the funds provided to a State in the current fiscal year and not obligated by the State during that year shall be returned to the Treasury: Provided further, That not more than $91,000,000 shall be available for research and demonstrations under sections 1110, 1115, and 1144 of the Social Security Act, and remain available through September 30, 2026.

For making, after June 15 of the current fiscal year, benefit payments to individuals under title XVI of the Social Security Act, for unanticipated costs incurred for the current fiscal year, such sums as may be necessary.

For making benefit payments under title XVI of the Social Security Act for the first quarter of fiscal year 2025, $21,700,000,0000, to remain available until expended.

LIMITATION ON ADMINISTRATIVE EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses, including the hire and purchase of two passenger motor vehicles, and not to exceed $20,000 for official reception and representation expenses, not more than $11,951,978,000 may be expended, as authorized by section 201(g)(1) of the Social Security Act, from any one or all of the trust funds referred to in such section: Provided, That not less than $2,700,000 shall be for the Social Security Advisory Board: Provided further, That unobligated balances of funds provided under this paragraph at the end of fiscal year 2024 not needed for fiscal year 2024 shall remain available until expended to invest in the Social Security Administration information technology and telecommunications hardware and software infrastructure, including related equipment and nonpayroll administrative expenses associated solely with this information technology and telecommunications infrastructure: Provided further, That the Commissioner of Social Security shall notify the Committees on Appropriations of the House of Representatives and the Senate prior to making unobligated balances available under the authority in the previous proviso: Provided further, That reimbursement to the trust funds under this heading for expenditures for official time for employees of the Social Security Administration pursuant to 5 U.S.C. 7131, and for facilities or support services for labor organizations pursuant to policies, regulations, or procedures referred to in section 7135(b) of such title shall be made by the Secretary of the Treasury, with interest, from amounts in the general fund not otherwise appropriated, as soon as possible after such expenditures are made.

In addition, $1,851,000,000 may be expended, as authorized by section 201(g)(1) of the Social Security Act, from any one or all of the trust funds referred to in such section, to remain available through March 31, 2025, for the costs associated with continuing disability reviews under titles II and XVI of the Social Security Act, including work-related continuing disability reviews to determine whether earnings derived from services demonstrate an individual's ability to engage in substantial gainful activity, for the costs associated with conducting redeterminations of eligibility under title XVI of the Social Security Act, for the costs of co-operative disability investigation units, and for the costs associated with the prosecution of fraud in the programs and operations of the Social Security Administration by Special Assistant United States Attorneys: Provided, That, of such amount, $273,000,000 is provided to meet the terms of section 251(b)(2)(B)(ii)(III) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended, and $1,578,000,000 is additional new budget authority specified for purposes of section 251(b)(2)(B)(i)(XI) of such Act: Provided further, That, of the additional new budget authority described in the preceding proviso, $18,000,000 may be transferred to the ''Office of Inspector General'', Social Security Administration, for the costs of jointly operated co-operative disability investigation units: Provided further, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That the Commissioner shall provide to the Congress (at the conclusion of the fiscal year) a report on the obligation and expenditure of these funds, similar to the reports that were required by section 103(d)(2) of Public Law 104–121 for fiscal years 1996 through 2002: Provided further, That none of the funds described in this paragraph shall be available for transfer or reprogramming except as specified in this paragraph.

In addition, $150,000,000 to be derived from administration fees in excess of $5.00 per supplementary payment collected pursuant to section 1616(d) of the Social Security Act or section 212(b)(3) of Public Law 93–66, which shall remain available until expended: Provided, That to the extent that the amounts collected pursuant to such sections in fiscal year 2024 exceed $150,000,000, the amounts shall be available in fiscal year 2025 only to the extent provided in advance in appropriations Acts.

In addition, up to $1,000,000 to be derived from fees collected pursuant to section 303(c) of the Social Security Protection Act, which shall remain available until expended.

OFFICE OF INSPECTOR GENERAL

(INCLUDING TRANSFER OF FUNDS)

For expenses necessary for the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $32,000,000, together with not to exceed $82,665,000, to be transferred and expended as authorized by section 201(g)(1) of the Social Security Act from the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund: Provided, That $2,000,000 shall remain available until expended for information technology modernization, including related hardware and software infrastructure and equipment, and for administrative expenses directly associated with information technology modernization.

In addition, an amount not to exceed 3 percent of the total provided in this appropriation may be transferred from the ''Limitation on Administrative Expenses'', Social Security Administration, to be merged with this account, to be available for the time and purposes for which this account is available: Provided, That notice of such transfers shall be transmitted promptly to the Committees on Appropriations of the House of Representatives and the Senate at least 15 days in advance of any transfer.

TITLE V

GENERAL PROVISIONS

(TRANSFER OF FUNDS)

SEC. 501. The Secretaries of Labor, Health and Human Services, and Education are authorized to transfer unexpended balances of prior appropriations to accounts corresponding to current appropriations provided in this Act. Such transferred balances shall be used for the same purpose, and for the same periods of time, for which they were originally appropriated.

SEC. 502. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 503. (a) No part of any appropriation contained in this Act or transferred pursuant to section 4002 of Public Law 111–148 shall be used, other than for normal and recognized executive-legislative relationships, for publicity or propaganda purposes, for the preparation, distribution, or use of any kit, pamphlet, booklet, publication, electronic communication, radio, television, or video presentation designed to support or defeat the enactment of legislation before the Congress or any State or local legislature or legislative body, except in presentation to the Congress or any State or local legislature itself, or designed to support or defeat any proposed or pending regulation, administrative action, or order issued by the executive branch of any State or local government, except in presentation to the executive branch of any State or local government itself.

(b) No part of any appropriation contained in this Act or transferred pursuant to section 4002 of Public Law 111–148 shall be used to pay the salary or expenses of any grant or contract recipient, or agent acting for such recipient, related to any activity designed to influence the enactment of legislation, appropriations, regulation, administrative action, or Executive order proposed or pending before the Congress or any State government, State legislature or local legislature or legislative body, other than for normal and recognized executive-legislative relationships or participation by an agency or officer of a State, local or tribal government in policymaking and administrative processes within the executive branch of that government.

(c) The prohibitions in subsections (a) and (b) shall include any activity to advocate or promote any proposed, pending or future Federal, State or local tax increase, or any proposed, pending, or future requirement or restriction on any legal consumer product, including its sale or marketing, including but not limited to the advocacy or promotion of gun control.

SEC. 504. The Secretaries of Labor and Education are authorized to make available not to exceed $28,000 and $20,000, respectively, from funds available for salaries and expenses under titles I and III, respectively, for official reception and representation expenses; the Director of the Federal Mediation and Conciliation Service is authorized to make available for official reception and representation expenses not to exceed $5,000 from the funds available for ''Federal Mediation and Conciliation Service, Salaries and Expenses''; and the Chairman of the National Mediation Board is authorized to make available for official reception and representation expenses not to exceed $5,000 from funds available for ''National Mediation Board, Salaries and Expenses''.

SEC. 505. When issuing statements, press releases, requests for proposals, bid solicitations

and other documents describing projects or programs funded in whole or in part with Federal money, all grantees receiving Federal funds included in this Act, including but not limited to State and local governments and recipients of Federal research grants, shall clearly state—

(1) the percentage of the total costs of the program or project which will be financed with Federal money;

(2) the dollar amount of Federal funds for the project or program; and

(3) percentage and dollar amount of the total costs of the project or program that will be financed by non-governmental sources.

SEC. 506. (a) None of the funds appropriated in this Act, and none of the funds in any trust fund to which funds are appropriated in this Act, shall be expended for any abortion.

(b) None of the funds appropriated in this Act, and none of the funds in any trust fund to which funds are appropriated in this Act, shall be expended for health benefits coverage that includes coverage of abortion.

(c) The term ''health benefits coverage'' means the package of services covered by a managed care provider or organization pursuant to a contract or other arrangement.

SEC. 507. (a) The limitations established in the preceding section shall not apply to an abortion—

(1) if the pregnancy is the result of an act of rape or incest; or

(2) in the case where a woman suffers from a physical disorder, physical injury, or physical illness, including a life-endangering physical condition caused by or arising from the pregnancy itself, that would, as certified by a physician, place the woman in danger of death unless an abortion is performed.

(b) Nothing in the preceding section shall be construed as prohibiting the expenditure by a State, locality, entity, or private person of State, local, or private funds (other than a State's or locality's contribution of Medicaid matching funds).

(c) Nothing in the preceding section shall be construed as restricting the ability of any managed care provider from offering abortion coverage or the ability of a State or locality to contract separately with such a provider for such coverage with State funds (other than a State's or locality's contribution of Medicaid matching funds).

(d)(1) None of the funds made available in this Act may be made available to a Federal agency or program, or to a State or local government, if such agency, program, or government subjects any institutional or individual health care entity to discrimination on the basis that the health care entity does not provide, pay for, provide coverage of, or refer for abortions.

(2) In this subsection, the term ''health care entity'' includes an individual physician or other health care professional, a hospital, a provider-sponsored organization, a health maintenance organization, a health insurance plan, or any other kind of health care facility, organization, or plan.

SEC. 508. (a) None of the funds made available in this Act may be used for—

(1) the creation of a human embryo or embryos for research purposes; or

(2) research in which a human embryo or embryos are destroyed, discarded, or knowingly subjected to risk of injury or death greater than that allowed for research on fetuses in utero under 45 CFR 46.204(b) and section 498(b) of the Public Health Service Act (42 U.S.C. 289g(b)).

(b) For purposes of this section, the term ''human embryo or embryos'' includes any organism, not protected as a human subject under 45 CFR 46 as of the date of the enactment of this Act, that is derived by fertilization, parthenogenesis, cloning, or any other means from one or more human gametes or human diploid cells.

SEC. 509. (a) None of the funds made available in this Act may be used for any activity that promotes the legalization of any drug or other substance included in schedule I of the schedules of controlled substances established under section 202 of the Controlled Substances Act except for normal and recognized executive-congressional communications.

(b) The limitation in subsection (a) shall not apply when there is significant medical evidence of a therapeutic advantage to the use of such drug or other substance or that federally sponsored clinical trials are being conducted to determine therapeutic advantage.

SEC. 510. None of the funds made available in this Act may be used to promulgate or adopt any final standard under section 1173(b) of the Social Security Act providing for, or providing for the assignment of, a unique health identifier for an individual (except in an individual's capacity as an employer or a health care provider), until legislation is enacted specifically approving the standard.

SEC. 511. None of the funds made available in this Act may be obligated or expended to enter into or renew a contract with an entity if—

(1) such entity is otherwise a contractor with the United States and is subject to the requirement in 38 U.S.C. 4212(d) regarding submission of an annual report to the Secretary of Labor concerning employment of certain veterans; and

(2) such entity has not submitted a report as required by that section for the most recent year for which such requirement was applicable to such entity.

SEC. 512. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriation Act.

SEC. 513. None of the funds made available by this Act to carry out the Library Services and Technology Act may be made available to any library covered by paragraph (1) of section 224(f) of such Act, as amended by the Children's Internet Protection Act, unless such library has made the certifications required by paragraph (4) of such section.

SEC. 514. (a) None of the funds provided under this Act, or provided under previous appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in fiscal year 2024, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that—

(1) creates new programs;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel by any means for any project or activity for which funds have been denied or restricted;

(4) relocates an office or employees;

(5) reorganizes or renames offices;

(6) reorganizes programs or activities; or

(7) contracts out or privatizes any functions or activities presently performed by Federal employees;

unless the Committees on Appropriations of the House of Representatives and the Senate are consulted 15 days in advance of such reprogramming or of an announcement of intent relating to such reprogramming, whichever occurs earlier, and are notified in writing 10 days in advance of such reprogramming.

(b) None of the funds provided under this Act, or provided under previous appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in fiscal year 2024, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds in excess of $500,000 or 10 percent, whichever is less, that—

(1) augments existing programs, projects (including construction projects), or activities;

(2) reduces by 10 percent funding for any existing program, project, or activity, or numbers of personnel by 10 percent as approved by Congress; or

(3) results from any general savings from a reduction in personnel which would result in a change in existing programs, activities, or projects as approved by Congress;

unless the Committees on Appropriations of the House of Representatives and the Senate are consulted 15 days in advance of such reprogramming or of an announcement of intent relating to such reprogramming, whichever occurs earlier, and are notified in writing 10 days in advance of such reprogramming.

SEC. 515. (a) None of the funds made available in this Act may be used to request that a candidate for appointment to a Federal scientific advisory committee disclose the political affiliation or voting history of the candidate or the position that the candidate holds with respect to political issues not directly related to and necessary for the work of the committee involved.

(b) None of the funds made available in this Act may be used to disseminate information that is deliberately false or misleading.

SEC. 516. Within 45 days of enactment of this Act, each department and related agency funded through this Act shall submit an operating plan that details at the program, project, and activity level any funding allocations for fiscal year 2024 that are different than those specified in this Act, the accompanying detailed table in the Explanatory Materials, or the fiscal year 2024 budget request.

SEC. 517. The Secretaries of Labor, Health and Human Services, and Education shall each prepare and submit to the Committees on Appropriations of the House of Representatives and the Senate a report on the number and amount of contracts, grants, and cooperative agreements exceeding $500,000, individually or in total for a particular project, activity, or programmatic initiative, in value and awarded by the Department on a non-competitive basis during each quarter of fiscal year 2024, but not to include grants awarded on a formula basis or directed by law. Such report shall include the name of the contractor or grantee, the amount of funding, the governmental purpose, including a justification for issuing the award on a non-competitive basis. Such report shall be transmitted to the Committees within 30 days after the end of the quarter for which the report is submitted.

SEC. 518. None of the funds appropriated in this Act shall be expended or obligated by the Commissioner of Social Security, for purposes of administering Social Security benefit payments under title II of the Social Security Act, to process any claim for credit for a quarter of coverage based on work performed under a social security account number that is not the claimant's number and the performance of such work under such number has formed the basis for a conviction of the claimant of a violation of section 208(a)(6) or (7) of the Social Security Act.

SEC. 519. None of the funds appropriated by this Act may be used by the Commissioner of Social Security or the Social Security Administration to pay the compensation of employees of the Social Security Administration to administer Social Security benefit payments, under any agreement between the United States and Mexico establishing totalization arrangements between the social security system established by title II of the Social Security Act and the social security system of Mexico, which would not otherwise be payable but for such agreement.

SEC. 520. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 521. For purposes of carrying out Executive Order 13589, Office of Management and Budget Memorandum M–12–12 dated May 11, 2012, and requirements contained in the annual appropriations bills relating to conference attendance and expenditures:

(1) the operating divisions of HHS shall be considered independent agencies; and

(2) attendance at and support for scientific conferences shall be tabulated separately from and not included in agency totals.

SEC. 522. Federal agencies funded under this Act shall clearly state within the text, audio, or video used for advertising or educational purposes, including emails or Internet postings, that the communication is printed, published, or produced and disseminated at United States taxpayer expense. The funds used by a Federal agency to carry out this requirement shall be derived from amounts made available to the agency for advertising or other communications regarding the programs and activities of the agency.

SEC. 523. (a) Federal agencies may use Federal discretionary funds that are made available in this Act to carry out up to 10 Performance Partnership Pilots. Such Pilots shall be governed by the provisions of section 526 of division H of Public Law 113–76, except that in carrying out such Pilots section 526 shall be applied by substituting ''Fiscal Year 2024'' for ''Fiscal Year 2014'' in the title of subsection (b) and by substituting ''September 30, 2028'' for ''September 30, 2018'' each place it appears: Provided, That such pilots shall include communities that have experienced civil unrest.

(b) In addition, Federal agencies may use Federal discretionary funds that are made available in this Act to participate in Performance Partnership Pilots that are being carried out pursuant to the authority provided by section 526 of division H of Public Law 113–76, section 524 of division G of Public Law 113–235, section 525 of division H of Public Law 114–113, section 525 of division H of Public Law 115–31, section 525 of division H of Public Law 115–141, section 524 of division A of Public Law 116–94, section 524 of division H of Public Law 116–260, and section 523 of division H of Public Law 117–103.

(c) Pilot sites selected under authorities in this Act and prior appropriations Acts may be granted by relevant agencies up to an additional 5 years to operate under such authorities.

SEC. 524. Not later than 30 days after the end of each calendar quarter, beginning with the first month of fiscal year 2024 the Departments of Labor, Health and Human Services and Education and the Social Security Administration shall provide the Committees on Appropriations of the House of Representatives and Senate a report on the status of balances of appropriations: Provided, That for balances that are unobligated and uncommitted, committed, and obligated but unexpended, the monthly reports shall separately identify the amounts attributable to each source year of appropriation (beginning with fiscal year 2012, or, to the extent feasible, earlier fiscal years) from which balances were derived.

SEC. 525. The Departments of Labor, Health and Human Services, and Education shall provide to the Committees on Appropriations of the House of Representatives and the Senate a comprehensive list of any new or competitive grant award notifications, including supplements, issued at the discretion of such Departments not less than 3 full business days before any entity selected to receive a grant award is announced by the Department or its offices (other than emergency response grants at any time of the year or for grant awards made during the last 10 business days of the fiscal year, or if applicable, of the program year).

SEC. 526. Notwithstanding any other provision of this Act, no funds appropriated in this Act shall be used to purchase sterile needles or syringes for the hypodermic injection of any illegal drug: Provided, That such limitation does not apply to the use of funds for elements of a program other than making such purchases if the relevant State or local health department, in consultation with the Centers for Disease Control and Prevention, determines that the State or local jurisdiction, as applicable, is experiencing, or is at risk for, a significant increase in hepatitis infections or an HIV outbreak due to injection drug use, and such program is operating in accordance with State and local law.

SEC. 527. (a) Each department and related agency funded through this Act shall provide substantive answers to questions submitted for the record by members of any congressional committee within 45 business days after receipt.

(b) There is rescinded an amount equal to $1,000 for each day of the noncompliance period described in subsection (c) from an account listed in subsection (d).

(c) The noncompliance period under subsection (b) means the period beginning on the first day following the failure to comply with the deadline described in subsection (a) and ending on the date on which the department or agency becomes compliant.

(d) Any rescission under subsection (b) shall be from the applicable following account of the noncompliant department or agency:

(1)''Department of Health and Human Services—Office of the Secretary—General Departmental Management''

(2) ''Department of Labor—Departmental Management—Salaries and Expenses''

(3) ''Department of Education—Departmental Management—Program Administration''

SEC. 528. Of amounts deposited in the Child Enrollment Contingency Fund under section 2104(n)(2) of the Social Security Act and the income derived from investment of those funds pursuant to section 2104(n)(2)(C) of that Act, $13,493,000,000 shall not be available for obligation in this fiscal year.

SEC. 529. (a) This section applies to: (1) the Administration for Children and Families in the Department of Health and Human Services; and (2) the Chief Evaluation Office and the statistical-related cooperative and interagency agreements and contracting activities of the Bureau of Labor Statistics in the Department of Labor.

(b) Amounts made available under this Act which are either appropriated, allocated, advanced on a reimbursable basis, or transferred to the functions and organizations identified in subsection (a) for research, evaluation, or statistical purposes shall be available for obligation through September 30, 2028: Provided, That when an office referenced in subsection (a) receives research and evaluation funding from multiple appropriations, such offices may use a single Treasury account for such activities, with funding advanced on a reimbursable basis.

(c) Amounts referenced in subsection (b) that are unexpended at the time of completion of a contract, grant, or cooperative agreement may be deobligated and shall immediately become available and may be reobligated in that fiscal year or the subsequent fiscal year for the research, evaluation, or statistical purposes for which such amounts are available.

SEC. 530. None of the funds made available by this Act may be used to carry out any program, project, or activity that promotes or advances Critical Race Theory or any concept associated with Critical Race Theory.

SEC. 531. None of the funds appropriated or otherwise made available by this Act may be made available to implement, administer, apply, enforce, or carry out Executive Order 13985 of January 20, 2021 (86 Fed. Reg. 7009, relating to advancing racial equity and support for underserved communities through the Federal Government), Executive Order 14035 of June 25, 2021 (86 Fed. Reg. 34593, relating to diversity, equity, inclusion, and accessibility in the federal workforce), or Executive Order 14091 of February 16, 2023 (88 Fed. Reg. 10825 relating to further advancing racial equity and support for underserved communities through the federal government).

SEC. 532. None of the funds made available by this Act may be made available to support, directly or indirectly, the Wuhan Institute of Virology, or any laboratory owned or controlled by the governments of the People's Republic of China, the Republic of Cuba, the Islamic Republic of Iran, The Democratic People's Republic of Korea, the Russian Federation, the Bolivarian Republic of Venezuela under the regime of Nicolás Maduro Moros, or any other country determined by the Secretary of State to be a foreign adversary.

SEC. 533. None of the funds made available by this Act may be used, either directly or indirectly, to conduct or support any gain-of-function research involving a potential pandemic pathogen by any country determined by the Secretary of State to be a foreign adversary including the People's Republic of China, the Republic of Cuba, the Islamic Republic of Iran, The Democratic People's Republic of Korea, the Russian Federation, or the Bolivarian Republic of Venezuela under the regime of Nicolás Maduro Moros.

SEC. 534. None of the funds made available by this Act may be used for surgical procedures or hormone therapies for the purposes of gender affirming care.

SEC. 535. None of the funds made available by this Act may be used to implement, administer, apply, enforce, or carry out any diversity, equity, and inclusion office, program, or training.

SEC. 536. None of the funds made available by this Act may be used to implement, administer, or enforce Executive Order 14076 (Protecting Access to Reproductive Healthcare Services) or Executive Order 14079 (Securing Access to Reproductive and Other Healthcare Services).

SEC. 537. (a) In general.—Notwithstanding section 7 of title 1, United States Code, section 1738C of title 28, United States Code, or any other provision of law, none of the funds provided by this Act, or previous appropriations Acts, shall be used in whole or in part to take any discriminatory action against a person, wholly or partially, on the basis that such person speaks, or acts, in accordance with a sincerely held religious belief, or moral conviction, that marriage is, or should be recognized as, a union of one man and one woman.

(b) Discriminatory action defined.—As used in subsection (a), a discriminatory action means any action taken by the Federal Government to—

(1) alter in any way the Federal tax treatment of, or cause any tax, penalty, or payment to be assessed against, or deny, delay, or revoke an exemption from taxation under section 501(a) of the Internal Revenue Code of 1986 of, any person referred to in subsection (a);

(2) disallow a deduction for Federal tax purposes of any charitable contribution made to or by such person;

(3) withhold, reduce the amount or funding for, exclude, terminate, or otherwise make unavailable or deny, any Federal grant, contract, subcontract, cooperative agreement, guarantee, loan, scholarship, license, certification, accreditation, employment, or other similar position or status from or to such person;

(4) withhold, reduce, exclude, terminate, or otherwise make unavailable or deny, any entitlement or benefit under a Federal benefit program, including admission to, equal treatment in, or eligibility for a degree from an educational program, from or to such person; or

(5) withhold, reduce, exclude, terminate, or otherwise make unavailable or deny access or an entitlement to Federal property, facilities, educational institutions, speech fora (including traditional, limited, and nonpublic fora), or charitable fundraising campaigns from or to such person.

(c) Accreditation; Licensure; Certification.—The Federal Government shall consider accredited, licensed, or certified for purposes of Federal law any person that would be accredited, licensed, or certified, respectively, for such purposes but for a determination against such person wholly or partially on the basis that the person speaks, or acts, in accordance with a sincerely held religious belief or moral conviction described in subsection (a).

(RESCISSION)

SEC. 538. Of the unobligated balances in the ''Nonrecurring Expenses Fund'' established in section 111(a) of division B of Public Law 116–93, $11,000,000,000 are hereby permanently rescinded.

(RESCISSION)

SEC. 539. Of the unobligated balances available in Public Law 117-169, $9,774,000,000 available under section 10301(1)(A)(iii) as of the date of the enactment of this Act are permanently rescinded.

SEC. 540. None of the funds made available by this Act may be used by the Secretaries of Labor, Health and Human Services, or Education, the Commissioner of the Social Security Administration, or the head of any other agency funded in this Act to fly or display a flag over a federal facility other than the flag of the United States; the flag of a State, territory, or the District of Columbia; the flag of an Indian Tribal Government; the official flag of a U.S. Department or agency; or the POW/MIA flag.

SEC. 541. (a) None of the funds appropriated in this Act, and none of the funds in any trust fund to which funds are appropriated in this Act, shall be made available to a hospital or any other entity that administers any postgraduate physician training program, or any other program of training in the health professions, that provides training in the performance of, or assisting in the performance of, induced abortions, or in counseling or referrals for such abortions, if such program—

(1) provides or requires such training for any participant in such program without the participant first voluntarily electing to opt-in to undergo such training; or

(2) subjects any participant in such program to discrimination on the basis that the participant does not—

(A) voluntarily elect to opt-in to undergo such training; or

(B) perform, assist in the performance of, or provide counseling or referrals for, such abortions.

(b) Nothing in this section shall be construed to permit training described in subsection (a) that is not otherwise allowed by law.

SPENDING REDUCTION ACCOUNT

SEC. 542. This Act may be cited as the ''Departments of Labor, Health and Human Services, and Education, and Related Agencies Appropriations Act, 2024''.

The CHAIR. All points of order against provisions of the bill, as amended, are waived.

No further amendment to the bill, as amended, shall be in order except those printed in part B of House Report 118–272, amendments en bloc described in section 3 of House Resolution 864, and pro forma amendments described in section 4 of House Resolution 864.

Each further amendment printed in part B of House Report 118–272 may be offered only in the order printed in the report, by the Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment except as provided by section 4 of House Resolution 864, and shall not be subject to a demand for division of the question.

It shall be in order at any time for the chair of the Committee on Appropriations or her designee to offer amendments en bloc consisting of amendments printed in part B of House Report 118–272 not earlier disposed of. Amendments en bloc shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subjected to amendment, except as provided by section 4 of House Resolution 864, and shall not be subject to a demand for division of the question.

During consideration of the bill for amendment, the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate.

AMENDMENTS EN BLOC NO. 1 OFFERED BY MR. ADERHOLT OF ALABAMA

Mr. ADERHOLT. Mr. Chair, pursuant to House Resolution 864, I offer amendments en bloc.

The CHAIR. The Clerk will designate the amendments en bloc.

Amendments en bloc No. 1 consisting of amendment Nos. 3, 5, 7, 12, 14, 15, 16, 17, 18, 20, 21, 23, 24, 25, 27, 29, 30, 31, 37, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 56, 57, 59, 60, 64, 65, 66, 67, 68, 72, 73, 74, 75, 77, 79, and 141, printed in part B of House Report 118–272, offered by Mr. ADERHOLT of Alabama:

AMENDMENT NO. 3 OFFERED BY MS. SHERRILL OF NEW JERSEY

Page 28, line 21, after the first dollar amount, insert ''(reduced by $5,000,000)''.

Page 128, line 9, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 128, line 10, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 128, line 15, after the dollar amount, insert ''(increased by $5,000,000)''.

AMENDMENT NO. 5 OFFERED BY MR. HARRIS OF MARYLAND

Page 49, line 5, after the first dollar amount, insert ''(increased by $9,500,000)''.

Page 94, line 14, after the first dollar amount, insert ''(decreased by $10,000,000)''.

AMENDMENT NO. 7 OFFERED BY MS. CARAVEO OF COLORADO

Page 53, line 6, after the dollar amount, insert ''(reduced by $35,000,000) (increased by $35,000,000)''.

AMENDMENT NO. 12 OFFERED BY MS. BOEBERT OF COLORADO

Page 66, line 19, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

AMENDMENT NO. 14 OFFERED BY MS. CASTOR OF FLORIDA

Page 56, line 21, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 15 OFFERED BY MRS. MILLER OF WEST VIRGINIA

Page 57, line 7, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(decreased by $5,000,000)''.

AMENDMENT NO. 16 OFFERED BY MR. PFLUGER OF TEXAS

Page 57, line 7, after the dollar amount, insert ''(reduced by $1,500,000) (increased by $1,500,000)''.

AMENDMENT NO. 17 OFFERED BY MR. MURPHY OF NORTH CAROLINA

Page 57, line 17, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 18 OFFERED BY MS. SHERRILL OF NEW JERSEY

Page 57, line 17, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $5,000,000)''.

AMENDMENT NO. 20 OFFERED BY MR. GALLAGHER OF WISCONSIN

Page 58, line 12, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $5,000,000)''.

AMENDMENT NO. 21 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 58, line 12, after the dollar amount, insert ''(increased by $1,000,000)(reduced by $1,000,000)''.

AMENDMENT NO. 23 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 63, line 14, after the dollar amount, insert ''(increased by $5,000,000)(reduced by $5,000,000)''.

AMENDMENT NO. 24 OFFERED BY MS. JACKSON LEE OF TEXAS

Page 63, line 14, after the dollar amount, insert ''(reduced by $2,000,000) (increased by $2,000,000)''.

AMENDMENT NO. 25 OFFERED BY MR. MURPHY OF NORTH CAROLINA

Page 64, line 15, after the dollar amount, insert ''(increased by $1,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $1,000,000)''.

AMENDMENT NO. 27 OFFERED BY MS. PEREZ OF WASHINGTON

Page 64, line 20, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 29 OFFERED BY MS. CARAVEO OF COLORADO

Page 65, line 7, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 30 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 65, line 19, after the dollar amount, insert ''(increased by $10,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(decreased by $10,000,000)''.

AMENDMENT NO. 31 OFFERED BY MS. BARRAGÁN OF CALIFORNIA

Page 67, line 15, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 37 OFFERED BY MR. STEIL OF WISCONSIN

Page 68, line 17, after the dollar amount, insert ''(reduced by $19,000,000)''.

Page 71, line 12, after the dollar amount, insert ''(increased by $18,000,000)''.

AMENDMENT NO. 40 OFFERED BY MS. BALINT OF VERMONT

Page 71, line 12, after the dollar amount, insert ''(reduced by $1,953,000) (increased by $1,953,000)''.

AMENDMENT NO. 41 OFFERED BY MR. MOLINARO OF NEW YORK

Page 71, line 12, after the first dollar amount, insert ''(increased by $10,000,000) (reduced by $10,000,000)''.

AMENDMENT NO. 42 OFFERED BY MR. MURPHY OF NORTH CAROLINA

Page 71, line 12, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

AMENDMENT NO. 43 OFFERED BY MS. CARAVEO OF COLORADO

Page 71, line 13, after the dollar amount, insert ''(reduced by $7,000,000) (increased by $7,000,000)''.

AMENDMENT NO. 44 OFFERED BY MR. BARR OF KENTUCKY

Page 73, line 4, after the first dollar amount, insert ''(increased by $8,000,000)''.

Page 74, line 12, after the dollar amount, insert ''(reduced by $8,000,000)''.

AMENDMENT NO. 45 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 73, line 4, after the first dollar amount, insert ''(increased by $10,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(decreased by $10,000,000)''.

AMENDMENT NO. 46 OFFERED BY MS. PETTERSEN OF COLORADO

Page 73, line 4, after the first dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

AMENDMENT NO. 47 OFFERED BY MR. MOLINARO OF NEW YORK

Page 73, line 21, after the first dollar amount, insert ''(increased by $2,000,000) (reduced by $2,000,000)''.

AMENDMENT NO. 48 OFFERED BY MR. STEUBE OF FLORIDA

Page 79, line 15, after the dollar amount, insert ''(reduced by $2,000,000) (increased by $2,000,000)''.

AMENDMENT NO. 49 OFFERED BY MRS. RAMIREZ OF ILLINOIS

Page 81, line 14, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 50 OFFERED BY MR. CISCOMANI OF ARIZONA

Page 84, line 5, after the dollar amount, insert ''(reduced by $750,000,000) (Increased by $750,000,000)''.

AMENDMENT NO. 51 OFFERED BY MS. JACKSON LEE OF TEXAS

Page 84, line 5, after the dollar amount, insert ''(reduced by $2,000,000) (increased by $2,000,000)''.

AMENDMENT NO. 52 OFFERED BY MR. MOLINARO OF NEW YORK

Page 89, line 21, after the first dollar amount, insert ''(increased by $5,000,000) (reduced by $5,000,000)''.

AMENDMENT NO. 53 OFFERED BY MR. DUNN OF FLORIDA

Page 93, line 3, after the dollar amount, insert ''(reduced by $400,000,000) (increased by $400,000,000)''.

AMENDMENT NO. 56 OFFERED BY MR. HUDSON OF NORTH CAROLINA

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

Page 96, line 22, after the dollar amount, insert ''(increased by $2,000,000)''.

AMENDMENT NO. 57 OFFERED BY MRS. KIGGANS OF VIRGINIA

Page 96, line 5, after the dollar amount, insert ''(reduced by $196,000,000) (increased by $196,000,000)''.

AMENDMENT NO. 59 OFFERED BY MRS. HOUCHIN OF INDIANA

Page 128, line 9, after the dollar amount, insert ''(increased by $1,000,000) (reduced by $1,000,000)''.

AMENDMENT NO. 60 OFFERED BY MRS. HOUCHIN OF INDIANA

Page 128, line 10, after the dollar amount, insert ''(increased by $1,000,000) (reduced by $1,000,000)''.

AMENDMENT NO. 64 OFFERED BY MR. DAVID SCOTT OF GEORGIA

Page 132, line 16, after the dollar amount, insert ''(reduced by $15,000,000) (increased by $15,000,000)''.

AMENDMENT NO. 65 OFFERED BY MR. MOLINARO OF NEW YORK

Page 134, line 6, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 66 OFFERED BY MR. MOLINARO OF NEW YORK

Page 134, line 6, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 67 OFFERED BY MR. STEIL OF WISCONSIN

Page 134, line 6, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 134, line 7, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 145, line 7, after the dollar amount, insert ''(reduced by $5,000,000)''.

AMENDMENT NO. 68 OFFERED BY MR. MCGARVEY OF KENTUCKY

Page 138, line 19, after the dollar amount, insert ''(increased by $2,000,000) (reduced by $2,000,000)''.

AMENDMENT NO. 72 OFFERED BY MR. MOLINARO OF NEW YORK

Page 142, line 4, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 73 OFFERED BY MS. MOORE OF WISCONSIN

Page 142, line 4, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 74 OFFERED BY MRS. RAMIREZ OF ILLINOIS

Page 142, line 4, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 75 OFFERED BY MRS. RAMIREZ OF ILLINOIS

Page 142, line 4, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 77 OFFERED BY MR. LAWLER OF NEW YORK

Page 145, line 14, after the dollar amount, insert ''(increased by $105,000,000) (reduced by $105,000,000)''.

AMENDMENT NO. 79 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 167, line 12, after the dollar amount, insert ''(increased by $10,000,000) (reduced by $10,000,000)''.

AMENDMENT NO. 141 OFFERED BY MR. SCHWEIKERT OF ARIZONA

Page 66, line 16, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $5,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentleman from Alabama (Mr. ADERHOLT) and the gentlewoman from Connecticut (Ms. DELAURO) each will control 10 minutes.

The Chair recognizes the gentleman from Alabama.

Mr. ADERHOLT. Mr. Chair, I yield 2 minutes to the gentleman from North Carolina (Mr. MURPHY).

Mr. MURPHY. Mr. Speaker, I rise in support of the bipartisan amendments submitted by myself and my friend Congressman COSTA which would transfer $1 million from the HHS Secretary's general department management account to the National Institute of Neurological Disorders and Stroke to begin to design the infrastructure for the Pediatric-Onset Epilepsies Consortium.

The Consortium would enable cooperative research studies, accelerate the development of knowledge about the epilepsies, and rapidly advance therapeutic options and their implementation to improve treatments and healthcare outcomes.

As a co-chair of the Congressional Epilepsy Caucus, along with Congressman COSTA, I am proud to offer this bipartisan amendment to support millions of Americans with epilepsy.

Just to give you a few statistics. More than 3.4 million individuals and their families are affected by epilepsy in the U.S. today, with nearly 500,000 children having epilepsy in the United States. One in 26 individuals will be diagnosed with epilepsy during their lifetime.

As November is Epilepsy Awareness Month, we must continue to build awareness around epilepsy, reduce the stigma applied to it, and educate the public and physicians on epilepsy disorders.

I thank Representative COSTA for his support and co-leading this amendment. This is personal to me, as I have a child who has dealt with epilepsy now for close to 16 years and is doing well, but I want other individuals from across the country to do well also.

Mr. Chair, I encourage a ''yes'' vote on the amendment.

Ms. DELAURO. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I rise in support of the amendments en bloc, and in support of the amendment with regard to the CDC ALS registry, which increases the funding for the Centers for Disease Control and Prevention's National Amyotrophic Lateral Sclerosis, ALS, Registry.

I cannot talk about ALS without acknowledging the remarkable Ady Barkan, who died earlier this month. ALS is a cruel disease. Ady and Brian Wallach, who continues his own battle against ALS, are two of the amazing advocates who are changing the face of medical advocacy in this country. I support this amendment in their honor.

The ALS Registry collects and analyzes information about persons with ALS in the United States. It advances our understanding of the disease. With approximately 30,000 participants, the ALS Registry has provided crucial information to guide future research.

Mr. Chair, I urge my colleagues to support the amendment, and I reserve the balance of my time.

Mr. ADERHOLT. Mr. Chair, I yield 3 minutes to gentleman from Maryland (Mr. HARRIS), the chair of Subcommittee on Agricultural and also a member of our Subcommittee on Labor, Health and Human Services.

Mr. HARRIS. Mr. Chair, I rise today to offer amendment No. 5 included in the en bloc, to increase our investment in the health workforce and to decrease spending for the Office of the Secretary of HHS, who has driven this historic health workforce shortage.

In December of 2020, Congress passed the No Surprises Act, which was the result of a yearslong effort to ban surprise medical bills in a way that both takes the patient out of the middle and sets up a fair process for the provider and payer to negotiate the resulting bill.

Unfortunately, the administration has implemented the policy in such a way that has tilted the scales in favor of the big insurance companies at every possible turn.

Historically, Medicare has reimbursed physicians for their services at a lower rate than private insurance, which is why many providers don't even accept Medicare. In fact, 42 percent of psychiatrists don't accept Medicare patients. Most providers rely on private insurance to keep their practices open.

Now, due to the botched implementation of the No Surprises Act, private insurance companies are paying the same or less than Medicare, which, as we unfortunately predicted, is forcing doctors to close their practices and decreases access to patient care.

Someone told me a long time ago, if you are losing money on every patient, you can't make up for it on volume. The fact of the matter is that the Secretary is not enforcing the No Surprises Act as written.

Once an out-of-network bill is generated, we set up a 30–30–30-day timeline. The doctor and insurance company have 30 days to agree on a payment amount, or else either side can initiate the arbitration process. The arbiter has 30 days to determine the appropriate payment, and then the insurance company has 30 days to pay the provider.

This timeline is simply not happening in a majority of cases. On average, it takes 236 days for a payment dispute to be resolved and paid. A recent survey found that after arbitration, 52 percent of the insurance companies aren't making payments at all.

Unfortunately, the Secretary has implemented this policy poorly and without serious enforcement. As a result, doctors are leaving the workforce in droves. Forcing doctors to provide care for which they may never receive payment is unsustainable.

Because the Secretary is perpetuating the healthcare workforce shortage, this amendment would decrease the Office of the Secretary of HHS and increase the top line of the HRSA Health Workforce accounts.

Mr. Chair, I urge all Members to support this amendment, which would penalize the Secretary for driving the health workforce shortage.

Ms. DELAURO. Mr. Chair, I yield 1 minute to the gentlewoman from California (Ms. BARRAGÁN).

Ms. BARRAGÁN. Mr. Chair, I rise in support of this bipartisan en bloc, which includes my amendment to increase funding for the Research Endowment Program at the National Institute of Minority Health and Health Disparities.

This program has bipartisan support. Earlier this year, Democrats and Republicans called for an increase in funding through a letter I led to House Appropriations.

My colleague Representative BUDDY CARTER in the House and Senator CASSIDY in the Senate worked hard in the last Congress to pass my bill, the John Lewis NIMHD Research Endowment Revitalization Act. It was signed into law, but now we need to increase the funding to this program so schools like Charles R. Drew University, Moorehouse School of Medicine, and many others, can continue to conduct critical research into minority health disparities. Increased funding will support existing and new grantees.

Mr. Chair, I urge support for my amendment so we can fund research to reduce health disparities and save lives.

Mr. ADERHOLT. Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield myself such time as I may consume, and I rise to support another amendment in the en bloc.

This is the Congressman GOTTHEIMER's amendment with regard to safe school drinking water. I rise in support of the amendment, and I thank the Representative for sponsoring the amendment and allowing this time to talk about the importance of safe drinking water at schools.

Children are more susceptible to lead exposure because their bodies are still rapidly developing. Approximately 400,000 schools and childcare centers are served by a lead service line or pipes and other fixtures.

Let me be clear. There is no amount of lead that can be tolerated in the body. We know what happened in Flint, Michigan. Thousands of children were lead poisoned.

I met most recently with medical staff who was trying to work with these children, because of their brain, their slow development, et cetera, all as a result of a political decision allowing for the contamination of water with lead and lead poisoning so many thousands of children in Flint, Michigan.

□ 1215

That is why clean and safe drinking water at schools is so critically important. That is our responsibility. The CDC funding allows health departments to develop partnerships with schools, daycare facilities, and early childhood education centers to strengthen blood lead testing reporting and link lead-exposed children to recommended services. The earlier they get their services, the more likely they are to be able to grow and thrive.

Mr. Chairman, I urge my colleagues to support this en bloc amendment, and I yield back the balance of my time.

Mr. ADERHOLT. Mr. Chairman, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Chair, pursuant to House Resolution 864, I rise in support of the En Bloc Amendment incorporating the Jackson Lee Amendments No. 24 and No. 51 to H.R. 5894—Labor, Health and Human Services, Education, and Related Agencies Appropriations Act, 2024.

I thank my colleagues on the Rules Committee for making in order Jackson Lee Amendment No. 24 and No. 51 and for including them in the bipartisan En Bloc Amendment.

The Jackson Lee Amendments No. 24 and No. 51 are potentially life altering amendments in an unfortunate and distracting appropriations bill.

The Jackson Lee Amendment No. 24 as incorporated into En Bloc Amendment is an important amendment that seeks to increase and decrease by $2 million the National Cancer Institute in order to research triple negative breast cancer.

Breast cancer accounts for 12.5 percent of all new annual cancer cases worldwide, making it the most common cancer in the world.

This issue is extremely important, especially for the brave men and women in the military, who are up to 20 to 40 percent more likely to develop breast cancer.

There are few people in this country whose lives have not been touched by breast cancer.

Yet, there are persistent disparities in breast cancer incidence and death rates.

Breast cancer is the leading cause of cancer-related death in the United States for Black and Hispanic women.

Black women are more likely to die from breast cancer than women of any other racial or ethnic group.

Experts believe that it's partially because about 1 in 5 Black women is diagnosed with triple-negative breast cancer, more than any other racial or ethnic group.

Compared with non-Hispanic white women, Black women are less likely to receive guideline adherent care and have an approximate 2-fold higher mortality incidence, resulting in a disproportionately higher risk of death from Triple Negative Breast Cancer.

Triple Negative Breast Cancer (''TNBC'') is one of many forms of breast cancer and accounts for about 15 to 30 percent of all diagnosed invasive breast cancer cases in the United States.

Due to its aggressive behavior, TNBC grows quickly and is more likely to have spread at the time it is found and is more likely to come back after treatment than other types of breast cancer.

TNBC cells do not contain (are ''negative for'') three key receptors that medicines typically target in other types of breast cancers; therefore, there are limited treatment options that can be used to treat the cancer.

Patients with an early diagnosis can often be treated with chemotherapy, radiation, and surgery; however, the limited therapies available specifically addressing the management of TNBC has made treating this disease a challenge for clinicians.

Recent innovation in targeted therapies have fueled advances in the fight against TNBC.

Advances in breast cancer screening and treatment over the last few decades have reduced the overall breast cancer mortality rate, yet the disproportionate impact of TNBC on racial and ethnic minority communities raises considerations about the underlying determinants driving the disparities.

It is necessary to promote TNBC education, raise awareness about the disease-related disparities, and tackle inequities within the health care delivery such as inadequate access to screening, diagnostic testing, and care, to improve early detection and survival.

The Jackson Lee Amendment No. 24 would allow for more research so we can one day hopefully learn a way to reduce the number of Americans affected by breast cancer.

Additionally, I have introduced H.R. 225, the Triple-Negative Breast Cancer Research and Education Act of 2023, which focuses on expanding, intensifying, and coordinating programs for the conduct and support of research on triple-negative breast cancer, a type of breast cancer that is difficult to detect but disproportionately impacts African American and Hispanic women.

The Jackson Lee Amendment No. 51 as incorporated into En Bloc Amendment is an important amendment that seeks to increase and decrease by $2 million the Head Start Act, including Head Start partnerships.

I think we can all agree children are our future and that we should invest to make our future better and brighter.

As Chair of the Congressional Children's Caucus, I am extremely passionate about the wellbeing and education of children.

One of the objectives of the Congressional Children's Caucus is to ensure that all the children in this country have an opportunity to receive an education, including early childhood development.

Head Start helps all children succeed, especially vulnerable children.

If we continue to underfund education in the United States our children will suffer, we will dismantle public education, and we will be weaker as a nation.

This legislation would kick teachers out of classrooms.

The United States is already in a teacher shortage and this bill would cut another 22,300 teachers from Texas schools due to cuts from Title 1.

This bill would severely impact teachers and students all over the state of Texas, where the Texas Education Agency has already decided to unnecessarily takeover Houston ISD.

Houston ISD is the largest school district in the state, with a student population of more than 200,000, according to a breakdown by the Texas Tribune.

A TEA takeover would have a negative impact on each Independent School District (ISD) because a board of managers are not elected, and they don't have to answer to the constituents in those districts.

State takeovers in other districts have led to school closures, layoffs, and no improvements in test scores.

The vast majority of school districts that have been taken over by state agencies (TEA included) have not improved but declined.

TEA has no experience managing a district of 200k plus scholars and we should not suffer as the guinea pigs.

Texas is behind the national average of how much the state spends per student in the classroom.

More specifically, data from the U.S. Census Bureau shows that Texas spends $3,000 less than the national average.

We have to stop the State from intermeddling and overstepping into our educational systems—causing further harm and damage to our communities.

This legislation will make cuts to schools and communities that are already suffering.

With the pandemic, burnout and the rise in the cost of living, teachers are already struggling, and this bill will only add to that.

Without the support of our teachers, students will be left behind.

I recognize that we are in the midst of austere budgetary and political times, however, we cannot continue to ignore the return on investment that advanced developments in health research and education will yield to the American public.

For these reasons, I urge my colleagues to support the bipartisan En Bloc Amendment incorporating my amendment, the Jackson Lee Amendments No. 24 and No. 51.

While the negatives of this appropriations bill disappointingly outweigh my positive amendments, I respectfully ask my colleagues to vote in favor of this amendment notwithstanding my strong opposition and encouragement to vote down the underlying bill.

The CHAIR. The question is on the amendments en bloc offered by the gentleman from Alabama (Mr. ADERHOLT).

The en bloc amendments were agreed to.

AMENDMENT NO. 1 OFFERED BY MRS. MILLER OF ILLINOIS

The CHAIR. It is now in order to consider amendment No. 1 printed in part B of House Report 118–272.

Mrs. MILLER of Illinois. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 23, line 8, after the dollar amount, insert ''(reduced by $536,922,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentlewoman from Illinois (Mrs. MILLER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Illinois.

Mrs. MILLER of Illinois. Mr. Chairman, I rise today in support of my amendment to defund Joe Biden's radical Occupational Safety and Health Administration.

Under Joe Biden, OSHA attempted to fire 84 million Americans if they didn't take an experimental vaccine or show their private medical documents to their employer.

The Supreme Court had to step in and tell Joe Biden he did not have the authority to force Big Pharma's experimental vaccine on the American people.

It shouldn't take the Supreme Court to stop OSHA from attempting to force an experimental vaccine on 84 million Americans.

I had the opportunity to question the OSHA Assistant Secretary during an Education and the Workforce Committee hearing. I asked him if he agreed with the court decision and would commit to never attempting to force a vaccine mandate again. He refused.

We must rein in OSHA, which is exactly what this amendment does.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chairman, I claim the time in opposition.

The CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chairman, I rise in strong opposition to this amendment.

For over 50 years, the mission of the Department of Labor's Occupational Safety and Health Administration has been to assure safe and healthful working conditions for working men and women by setting and enforcing standards by providing training, outreach, education, and assistance.

OSHA is responsible for making sure employers provide safe workplaces. Since OSHA was created in 1971, the number of workplace deaths and the rate of on-the-job injuries has declined by 65 percent—with a workforce twice as large.

During that time, OSHA issued lifesaving standards for asbestos, lead, carcinogens, chemical exposure, and blood-borne pathogens. Do we not want standards for those illnesses and disasters?

The agency has enforced these standards and provided assistance to employers to keep American workers safe on the job.

Make no mistake, by eliminating all funding for OSHA, this amendment results in an unconscionable spike in workplace injury, illness, and death.

In the most recent Bureau of Labor Statistics report, there were 2.8 million nonfatal workplace injuries in 2022. This is up 7½ percent over 2021. In 2021, there were 5,190 workplace fatalities. That is up 8.9 percent.

This is a reckless amendment. This says we don't care what kind of conditions workers are working in and that we ought to go back to the industrial revolution. It should be clear. This is a reckless amendment, and I urge my colleagues to vote ''no.''

Mr. Chair, I reserve the balance of my time.

Mrs. MILLER of Illinois. Mr. Chairman, what is reckless is trying to force 84 million American workers to take an experimental vaccine. OSHA needs to be reined in. It took the Supreme Court's action to stop them.

Mr. Chairman, I support this amendment to hold the Biden administration accountable, and I yield back the balance of my time.

Ms. DELAURO. Mr. Chairman, I oppose the amendment, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Illinois (Mrs. MILLER).

The question was taken; and the Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Illinois will be postponed.

AMENDMENT NO. 2 OFFERED BY MR. HIGGINS OF LOUISIANA

The CHAIR. It is now in order to consider amendment No. 2 printed in part B of House Report 118–272.

Mr. HIGGINS of Louisiana. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 26, line 4, after the dollar amount, insert ''(decreased by $1,000,000)''.

Page 32, line 23, after the dollar amount, insert ''(increased by $1,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentleman from Louisiana (Mr. HIGGINS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Louisiana.

Mr. HIGGINS of Louisiana. Mr. Chairman, over the past few months a salt mine in my district, Morton Salt's Weeks Island Mine, a salt mine that has been in operation for many, many years, has been unrighteously targeted by the Mine Safety and Health Administration, MSHA.

In particular, there is a singular MSHA inspector who appears to have a personal vendetta. These concerns have been brought to my attention and MSHA's leadership has also been advised. This has been an ongoing issue between MSHA and Morton Salt.

These are justified concerns, yet they have fallen on deaf ears at MSHA. MSHA's handling of this matter isn't just about one company or one mine, I would say to my colleague across the aisle. It is about the integrity of our regulatory institutions and the protection of due process rights.

In this case, the evidence has been brought to me that shows a concerning pattern where enforcement actions may have been influenced by conflicts of interest and retaliatory motives, specifically involving MSHA Inspector Brandon Olivier.

These allegations are not just troubling, they indicate a potential breach of trust. This trust is placed in Congress for the oversight role of our regulatory bodies.

Furthermore, when Morton Salt raised these valid concerns to MSHA's district manager, Mr. William O'Dell, their grievances were seemingly ignored, contributing to a breakdown in the fair and impartial resolution process that should be a cornerstone of our regulatory system.

I am sure my colleagues on both sides of the aisle would agree with that general premise. In response to these findings and to ensure accountability within MSHA, I am proposing several amendments.

These are not just punitive measures. They are essential steps toward restoring trust and ensuring that such lapses in judgment and responsibility do not recur.

Amendment No. 2 that we are currently discussing will be reducing MSHA's salary and expense account and redirecting funds to the Department of Labor's Office of Inspector General account.

Mr. Chair, I rise in favor of amendment No. 2. With the cuts in salary that I have offered in amendments 112 and 113, this amendment would reduce MSHA's salary and expense account by $1 million and reallocate it to the Department of Labor's Office of Inspector General, which reflects Congress' commitment to accountability, given issues that have arisen in the Morton Salt case.

Congress should demand ethical enforcement from our agencies. Failures, as in this case, must have oversight and consequences. This reallocation strengthens oversight, enhancing the Inspector General's capacity to investigate and ensure fair, unbiased regulatory actions.

This measure shows Congress' dedication to integrity in Federal institutions, ensuring regulatory bodies like MSHA maintain high standards of conduct.

Mr. Chairman, I reserve the balance of my time.

Ms. DELAURO. Mr. Chairman, I claim the time in opposition.

The CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, this amendment and the prior one are indicative of the majority's willingness to put workers' health and safety at risk.

Mr. Chair, I rise in strong opposition to this amendment. Public servants should be commended and not demonized.

Our Federal Government needs talented, intelligent, hardworking people who are willing to bring their skills to public service.

Proposing to eliminate the salaries of hardworking public servants is petty. It really is beneath the dignity of this body. It is not how we should solve differences of opinion on policy.

For 45 years, the mission of the Department of Labor's Mine Safety and Health Administration has been to ensure that miners can return home from work every day to their families and their communities safe and healthy.

When MSHA was created in 1977, the fatality rate in the mining industry was more than four times greater than the average for all industries in the United States. Since then, mining fatalities have dropped sharply as MSHA has established and enforced workplace safety standards and worked together with all stakeholders to prevent fatalities.

For fiscal year 2024, MSHA is prioritizing additional actions to reduce accidents, injuries, and fatalities involving customer and contract truck drivers, falls from heights, and lack of use of personal protective equipment.

Taking out the agency's top enforcement official, as this amendment seeks to do while MSHA completes this important work, would be reckless and irresponsible.

In addition, it is particularly shameful that this amendment targets a nonpolitical Federal employee who is part of our Federal civil service.

Mr. Chairman, I urge my colleagues to vote ''no'' on this vindictive amendment, which I believe is small and is petty, and I reserve the balance of my time.

□ 1230

Mr. HIGGINS of Louisiana. Mr. Chair, may I inquire how much time I have remaining.

The CHAIR. The gentleman has 1 minute remaining.

Mr. HIGGINS of Louisiana. Mr. Chair, I respect the gentlewoman's opposition, but I take exception to the nature of the gentlewoman's opposition.

My amendment specifically addresses the health and safety of the American workers within that mine because the health and safety of every American family begins with economic security. To have their jobs threatened by the targeted and vindictive actions and the abused authority of one regulator, and for Congress not to act when this has been brought to our attention, would be truly shameful.

Mr. Chairman, I respectfully submit to the gentlewoman that I am using the mechanisms of Congress constitutionally, specifically to address the health and welfare of the American citizens whom I serve.

Mr. Chairman, I urge full support of my amendment, and I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, I oppose the amendment, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Louisiana (Mr. HIGGINS).

The amendment was agreed to.

AMENDMENT NO. 4 OFFERED BY MR. CLOUD

The CHAIR. It is now in order to consider amendment No. 4 printed in part B of House Report 118–272.

Mr. CLOUD. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 45, line 9, strike ''Treasure Island Job Corps Center'' and insert ''Gary Job Corps Center''.

Page 45, line 20, strike ''Job Corps Program on Treasure Island'' and insert ''Job Corps Program in San Marcos, Texas''.

The CHAIR. Pursuant to House Resolution 864, the gentleman from Texas (Mr. CLOUD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. CLOUD. Mr. Chair, my amendment makes a technical fix to what seems to be a copy and paste drafting

error in the bill, replacing ''Treasure Island Job Corps'' in section 114 of the bill, which was the language signed into last year's bill, to ''Gary Job Corps Center,'' which was supposed to be in this year's bill.

The Gary Job Corps facility in San Marcos, Texas, is one of the largest in the country and, as such, has a great deal of excess land. This land is located adjacent to the fast-growing San Marcos Regional Airport.

For several years now, the city of San Marcos has been working closely with the Gary Job Corps Center and the Department of Labor on ways for the city to make better use of that excess land to the benefit of its citizens. This area of San Marcos is a key cog in the regional growth plan for the city and region, and the use of such additional land will ensure that the trend continues as the area brings in more and more economic investment.

This amendment will simply allow the Department of Labor to negotiate directly with the city on dispersal of such land at fair market value without having to go through the yearlong GSA Federal land dispersal process. It replicates an effort that was done last year with the Treasure Island facility in California, so there is strong precedent.

By removing some bureaucratic red tape, the amendment, which has the blessing of the Department of Labor, will ensure that San Marcos, Texas, continues its efforts to be an economic engine for the region.

Mr. Chair, I urge my colleagues to vote in favor of my amendment, which provides a small technical fix to this bill.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. First of all, Mr. Chair, let me correct the record here. The Job Corps provision was not a drafting error.

I rise in strong opposition to this amendment.

Treasure Island, a former naval installation island between Oakland and San Francisco, was closed in the 1990s and is undergoing a major redevelopment.

Treasure Island Job Corps is one of the best-performing sites in the country and serves over 430 students with outdated and crumbling buildings. It is located on a sizable piece of land in the middle of the island.

The Department of Labor and Treasure Island Development Authority, TIDA, are jointly examining the possibility of selling or exchanging land from the Department of Labor to the Treasure Island Development Authority to allow for additional housing development on the island in exchange for building a brand-new campus for Job Corps within a smaller portion of their current site.

Longstanding language on this matter has been included in appropriations bills since 2018. This language waives potential barriers to an exchange, allowing the Department to retain the proceeds from a sale to rebuild a more compact Job Corps site within its current boundaries.

There is no cost—let me repeat—no cost to the Federal Government. For years, Congress has recognized this as a win-win: a new Job Corps facility without additional appropriations and badly needed additional housing in the area.

This amendment strikes the reference to Treasure Island in a general provision specific to that Job Corps site and inserts the name of a different Job Corps site from the author's State of Texas.

This amendment is silly and nonsensical, and it breaks from years of precedent around this language.

Mr. Chair, I urge my colleagues to vote ''no'' on the amendment, and I reserve the balance of my time.

Mr. CLOUD. Mr. Chair, I will repeat that Treasure Island Job Corps was in last year's bill, and as the majority drafted this year's bill, I think we know what needs to be in the bill. Let me also point out that President Biden's Department of Labor supports this amendment.

Mr. Chair, I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, I continue to oppose the amendment, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. CLOUD).

The amendment was agreed to.

AMENDMENT NO. 6 OFFERED BY MR. MEUSER

The CHAIR. It is now in order to consider amendment No. 6 printed in part B of House Report 118–272.

Mr. MEUSER. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 49, line 5, after the dollar amount, insert ''(increased by $10,000,000)''.

Page 66, line 8, after the dollar amount, insert ''(reduced by $19,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentleman from Pennsylvania (Mr. MEUSER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Pennsylvania.

Mr. MEUSER. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chair, I rise today in support of my amendment No. 6 to H.R. 5894.

My amendment would increase the health workforce account in the underlying bill by $10 million. This increase is completely offset by a decrease in funding for the National Institute of Nursing Research by $19 million. While the National Institute of Nursing Research provides funding for important research, the nursing workforce shortage is at a critical point, Mr. Chair, and must be addressed immediately.

The increase in funding for the health workforce account is intended to provide additional funding to Nurse Corps programs, which would bring the total funding amount for this program to $102 million for fiscal year 2024.

This critical HRSA workforce program provides scholarship and loan repayment opportunities for nurses working in either a hospital or a community-based setting located in a critical shortage facility. Increasing scholarship and loan repayment opportunities will help encourage nurses to serve at facilities that are facing nursing shortages.

As we all know, there is a shortage of healthcare professionals across our country, especially amongst the nursing workforce. The nursing workforce shortage is especially felt in rural communities, including those in my district.

This fact was recently reinforced when I visited the Guthrie Robert Packer Hospital in Sayre last month. During this visit, I was able to see the great work that the hospital was doing to incorporate new technologies to combat some of this nursing shortage.

Nevertheless, the American people deserve this Congress to support such a critical profession, and we must keep in mind that this amendment, again, is fully offset and will aid in our efforts to resolve the nursing shortage workforce that exists.

Nurses are the backbone of our hospitals and our healthcare in general, Mr. Chair, and, again, we must support this crucial profession.

Mr. Chair, I urge my colleagues to support my amendment, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, the amendment would cut funding for the National Institute of Nursing Research by $19 million. I support $10 million for health workforce training, but I am in total opposition to a $19 million cut to the National Institute of Nursing Research.

The National Institute of Nursing Research supports research that develops the scientific basis for nursing practice. For example, the NINR is supporting a research initiative to assess changes in organizational factors that could mitigate or prevent nurse burnout, which we know to be one of the primary causes of a nursing shortage and of people leaving the profession.

NINR also supports initiatives such as the AIM of care initiative to address high rates of maternal morbidity and mortality and to prevent adverse maternal health outcomes. Again, we know what a serious issue this is in our Nation with maternal morbidity and mortality. Women are dying. They look at these efforts to try to give us the best information and data possible.

The National Institute of Nursing Research supports training opportunities to develop doctorly trained nurse

scientists at schools of nursing throughout the United States.

By cutting funding for the National Institute of Nursing Research, this amendment would reduce funding for nursing faculty, which would result in schools of nursing turning away many qualified applicants. Let me just say that, in 2020, over 80,000 qualified applicants were not accepted at schools of nursing primarily due to a shortage of clinical sites, faculty, and resources.

This institute is already underfunded and underappreciated, which is true of all nursing professions. Maybe that is why HRSA estimates that the nursing shortage will grow from 56,000 to 78,000 by 2025.

More importantly, this amendment demonstrates, once again, that overall funding in this bill is grossly insufficient. I support $10 million for training but not a $19 million cut.

We need to properly fund health workforce training and the National Institute of Nursing Research. We should not be forced to choose between nurses and nursing research.

Mr. Chair, I urge my colleagues to oppose the amendment, and I reserve the balance of my time.

Mr. MEUSER. Mr. Chair, with all due respect to my colleague, this amendment was developed and created with the assistance of the nursing community from rural hospitals as well as more urban.

We have in our country a finite level of resources. We cannot continue to do things the same way they have always been done. We need to properly dedicate resources where they will deliver the most good for the most people.

This bill, by reallocating and having such an offset, will improve, enhance, and augment the nursing pipeline for the critical needs and value that nurses bring to our hospitals, particularly in rural communities.

We have a win-win. We have a reduction in the excessive spending that takes place. This bill brings accountability, and it fortifies the all-important professional nursing pipeline now and for the next generation.

Mr. Chair, I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, I continue to oppose the amendment, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Pennsylvania (Mr. MEUSER).

The amendment was agreed to.

□ 1245

Ms. DELAURO. Mr. Chair, I move to strike the last word.

The CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentlewoman from Massachusetts (Ms. CLARK), the Democratic whip and former member of the Appropriations Committee and of the subcommittee, I might add.

Ms. CLARK of Massachusetts. Mr. Chairman, I thank the gentlewoman from Connecticut, The Nutmeg State, The Constitution State, for all her work and for yielding this time.

Mr. Chair, a budget is a reflection of our values, and what a low value the majority places on women and children in these bills.

In the 2 minutes allotted to me, 40 Americans will be physically abused by a partner, but instead of standing with those survivors, MAGA Republicans are defunding the Violence Against Women Act and they are taking away survivors' access to legal counsel. Those are the GOP's values.

MAGA ideology is about controlling people—their health, their lives, their bodies, and in these bills, they are continuing their march toward a national abortion ban, defunding family planning programs, banning providers from talking to patients about abortion care, and banning medical students from even learning how to provide safe abortions. Those are their values.

Millions of parents sent their kids to school today not knowing if they will come home safe. The Republicans' response? Unleash more guns onto the streets, including untraceable ghost guns. Those are their values.

In these bills, they are gutting public education and childcare. They are even defunding programs for missing and exploited children.

We see the extreme values of the GOP in these bills. These values are not shared by the American people. We are here to serve people. These bills work against them.

Mr. Chair, I urge my colleagues to vote ''no.''

Ms. DELAURO. Mr. Chair, I yield back the balance of my time.

AMENDMENT NO. 8 OFFERED BY MS. BOEBERT

The CHAIR. It is now in order to consider amendment No. 8 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 54, line 14, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 54, line 20, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my amendment that will transfer funds from government bureaucracy to the Small Rural Hospital Improvement Grant Program.

The rural hospital closure crisis continues to intensify. Unfortunately, over 138 rural hospitals have closed since 2010 and over 450 additional facilities are vulnerable to closure.

While recent innovations in healthcare, such as the implementation of telehealth technology, show promise to rural communities, rural America is facing crises that are leading to dwindling access to essential care.

Competitive grant programs like the Small Rural Hospital Improvement Grant Program play a large role in ensuring that Americans living in rural communities can access quality, cost-effective healthcare.

This program supports small rural hospitals in meeting value-based payment and care goals for their respective organizations through purchases of hardware, software, and training.

While current spending for rural health discretionary programs is relatively small in the largest discretionary spending bill, it plays a critical role in solidifying the fragile healthcare infrastructure and workforce in rural communities.

Americans, especially in rural communities, continue to struggle with affordable coverage, yet Joe Biden has done nothing to actually lower costs.

Let's empower our rural communities to keep providing high-quality healthcare and eliminate red tape and useless bureaucracy that is standing between doctors and patients. This amendment takes an important first step to accomplish both of these goals.

Mr. Chair, I urge my colleagues to support my amendment that will transfer funds from the HHS bureaucracy to the Small Rural Hospital Improvement Grant Program. Again, I urge colleagues to support this amendment, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 9 OFFERED BY MS. BOEBERT

The CHAIR. It is now in order to consider amendment No. 9 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 54, line 14, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 55, line 1, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my straightforward amendment that seeks to provide more resources in the bill for telehealth services for veterans in rural areas.

Colorado's Third Congressional District has over 100,000 veterans who call our beautiful State home. I am committed to ensuring that our veterans receive the care and respect they have earned for their service and sacrifice.

That is why I am here today to talk about the importance of telehealth for veterans in rural areas. Telehealth is the use of technology to deliver healthcare services remotely, such as through video, phone, or online platforms.

Telehealth can help veterans access quality care from the comfort and convenience of their homes or nearby locations without having to travel long distances or face transportation barriers.

Telehealth is especially important for veterans who live in rural or highly rural areas like many of the veterans in my district.

According to the Department of Veterans Affairs, there are 2.8 million rural veterans who are enrolled in and rely on VA healthcare systems. However, these veterans often face challenges in accessing timely and quality care due to provider shortages, limited facilities, and geographical isolation. These challenges can result in poor health outcomes, such as higher rates of chronic diseases, mental health issues, and, unfortunately, even suicide.

For instance, rural veterans are more likely to be diagnosed with diabetes, high blood pressure, and heart conditions than veterans living in more urban areas. Rural veterans are also 65 percent more likely to die from suicide than those residing in urban areas.

These statistics are unacceptable. They are absolutely heartbreaking. Our veterans deserve better. They deserve to have access to the best care possible regardless of where they live.

I will continue to advocate for these programs and for the expansion of telehealth access for rural veterans. I believe that telehealth is not only a matter of convenience, but a matter of necessity. It is a matter of honoring our veterans and fulfilling our promises to them.

Let's pass my amendment so we can increase telehealth services for veterans in rural areas.

Mr. Chair, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 10 OFFERED BY MS. BOEBERT

The CHAIR. It is now in order to consider amendment No. 10 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 54, line 14, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 55, line 1, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my amendment that will transfer funds from the Federal bureaucracy to the Rural Emergency Hospital Technical Assistance Program. Programs like the Rural Emergency Hospital Technical Assistance Program play a large role in ensuring that Americans living in rural communities can access quality, cost-effective healthcare.

The program works to ensure rural hospitals and the communities they serve have the information and resources needed to make informed decisions as to whether rural emergency hospitals are the best model of care for their communities and facilitate a successful implementation of REH requirements for those hospitals converting to this new provider type.

This program provides hospitals and rural communities considering this new model assistance across a broad range of issues, including financial analysis, workforce or staffing planning, establishment of referral relationships and processes, determining REH service lines, community health needs, and impact on the community health system including emergency medical services.

I will keep working for responsible healthcare policies that respect the dignity of individuals, support rural communities, decrease healthcare costs, and restore free market competition to the healthcare industry.

Let's empower our rural communities to keep providing high-quality healthcare and eliminate red tape and useless bureaucracy that is standing between doctors and patients. This amendment takes an important step to accomplish both of these goals.

Mr. Chair, I urge my colleagues to support my amendment that will transfer funds to the Rural Emergency Hospital Technical Assistance Program, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 11 OFFERED BY MS. BOEBERT

The CHAIR. It is now in order to consider amendment No. 11 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 54, line 14, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 55, line 10, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 94, line 14, after the dollar amount, insert ''(reduced by $2,000,000)''.

The CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my amendment that will transfer funds from government bureaucracy to the Rural Residency Planning and Development Program to support physician workforce expansion in rural areas.

On top of closures, the healthcare workforce shortages continue to plague rural communities. Over 75 percent of rural counties are designated Health Professional Shortage Areas.

Programs like the Rural Residency Planning and Development Program support the development of new rural residency programs in family medicine, internal medicine, and psychiatry to address the physician workforce shortages and challenges faced by rural communities.

Rural residency programs are accredited medical residency training programs that train residents in rural settings for greater than 50 percent of their total time in residency and focus on producing physicians who will practice in rural communities.

This program also contributes jobs to rural economies, provides access to a range of medical services, and strengthens communities throughout rural America.

Competitive grant programs, like the Rural Residency Planning and Development Program, play a large role in ensuring that Americans living in rural communities can access quality, cost-effective healthcare.

Let's support our rural communities instead of handicapping them with one-size-fits-all mandates as the Biden administration has done.

In September, the Centers for Medicare and Medicaid Services proposed a rule to mandate increased nursing home staff ratio which will put nursing homes, particularly in rural areas, in an impossible dilemma as they grapple with how to manage current occupancy levels with the insufficient workforce available to meet the requirements.

□ 1300

Rules like this fail to adequately balance the needs of both patients and healthcare staff in rural communities in the face of the current staffing shortage gripping our Nation.

This is why we should focus on giving our rural communities the resources and support that they need to provide low-cost, high-quality healthcare.

I urge my colleagues to support my amendment that will transfer funds to the Rural Residency Planning and Development Program to support physician workforce expansion in rural areas.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR (Mr. FITZGERALD). The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 13 OFFERED BY MS. BOEBERT

The Acting CHAIR. It is now in order to consider amendment No. 13 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 94, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

Page 96, line 22, after the dollar amount, insert ''(increased by $2,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I yield myself such time as I may consume.

I rise today to offer my amendment to redirect $2 million in this bill to the Office of Inspector General to combat waste, fraud, and abuse.

As a proud member of the House Committee on Oversight and Reform, I am a firm believer in holding our government accountable to the people we serve. Honest, hardworking American citizens should be able to trust that their tax dollars are being spent responsibly. To achieve this goal, the Office of Inspector General must have the funding they need to ensure that the Department of Health and Human Services is using our tax dollars efficiently and for their intended purpose.

Inspectors general across the Federal Government have saved taxpayers billions of dollars and exposed numerous instances of criminal wrongdoing. According to the most recent report from the HHS on healthcare fraud and abuse: ''In FY 2021, investigations conducted by HHS's Office of Inspector General (HHS-OIG) resulted in 504 criminal actions against individuals or entities that engaged in crimes related to Medicare or Medicaid, and 669 civil actions, which include false claims and unjust enrichment lawsuits filed in the Federal district court, and civil monetary penalty (CMP) settlements. HHS-OIG also excluded 1,689 individuals and entities from participation in Medicare, Medicaid, and other Federal healthcare programs. Among these were exclusions based on criminal convictions for crimes related to Medicare and Medicaid or to other healthcare programs, for beneficiary abuse or neglect, and as a result of State healthcare licensure revocations.''

Mr. Chair, the American people believe the government is corrupt and rife with fraud. The only way to address these concerns is to promote accountability in the Federal Government and ensure that their tax dollars are used responsibly for their intended purpose.

My commonsense amendment will ensure that the HHS Office of Inspector General has the funding and resources they need to keep this agency in line. Two million dollars is a small sum to pay to restore faith in our institutions and to potentially uncover billions and billions in fraud.

Mr. Chair, I urge my colleagues to support my amendment to promote accountability and oversight in the Department of Health and Human Services, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 19 OFFERED BY MR. MILLS

The Acting CHAIR. It is now in order to consider amendment No. 19 printed in part B of House Report 118–272.

Mr. MILLS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 58, line 9, after the dollar amount, insert ''(reduced by $158,100,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Florida (Mr. MILLS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. MILLS. Mr. Chair, I yield myself such time as I may consume.

This amendment cuts back spending for the Office of Public Health Scientific Services by more than $158 million to return us back to our FY19 funding levels. This reins back the irresponsible, ballooned spending that we have seen during the COVID–19 pandemic.

The House of Representatives has to hold itself accountable to fiscal responsibility. We cannot continue to spend money that we do not have, entrenching our country into more debt that future generations will be unable to pay back.

Our public health offices, particularly during COVID–19, have proven they do not effectively follow scientific method. In fact, I would argue that this body only follows political science, not medical science. While some of these offices certainly played roles in helping to research the effects of COVID, others like the Office of Public Health Scientific Services, were ineffective and do not serve their purpose.

We do not need another redundant public health office to advance the politicized work of the Federal Government's public health operations. Furthermore, as a businessowner, I know the value of industry driving policy and not policy driving industry. These cuts encourage increased collaboration with the private sector to leverage external resources and expertise to support the public health initiatives.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, this amendment would reduce the Centers for Disease Control and Prevention Public Health Scientific Services account by $158 million.

Bringing this account to the FY 2019 level, think about what it would eliminate: significant advancements in public health, negatively impacting the National Center for Health Statistics, laboratory science, and public health data modernization efforts.

I have personal propriety on data modernization. I championed the establishment of a public health data modernization initiative in fiscal year 2020, just prior to the pandemic, I might add. This massive undertaking is moving public health away from the fax machine and into the 21st century.

Think about what happened during the pandemic, with all of the laboratories around the country. I think about Connecticut, nearly shut down. It couldn't do its work because it didn't have the equipment, the modernization, the ability to collect data that makes it incredibly important for us to deal with a pandemic or any other disease.

I might add, this modernization initiative provides funding directly to 64 jurisdictions, including States, territories, large cities, and Tribes. Eliminating this funding impacts the entire country.

I suspect that my colleague on the other side of the aisle would agree with me that the local jurisdictions of public health need to have the capacity to do their job. This funding is critical to improving jurisdictions' public health decisionmaking capabilities. Some have very highly rated and forward-thinking decisionmaking capabilities, and they have what they need, but we have a lot of communities with minimal capacity.

This is really pretty extraordinary. We have people entering records by hand. They are writing their records out by hand or using software not designed for tracking outbreak data, to being able to publish provisional national death data on a weekly basis. Some places have no capacity to do this, and they are not reporting the data so that we have no idea what is happening.

We all want to know the scope of a foodborne or infectious disease outbreak in our community. I suspect my colleague wants that information for himself, his family, and for his constituents. We all do. However, that does not happen without the data first identifying the cases. Our public health data systems, laboratory resources, and the National Center for Health Statistics are already far behind where we need them to be, and this amendment would only make matters worse.

We should have learned a very, very big lesson from the pandemic, where our public health infrastructure in many instances crashed because of the lack of technology, the lack of data collection, the lack of modernizing their ability to collect that data.

Mr. Chair, I urge my colleagues to oppose this amendment, and I reserve the balance of my time.

Mr. MILLS. Mr. Chair, I appreciate the gentlewoman actually stepping up. She asked two key questions that I really liked. First off, what would it eliminate was one of the questions. Well, what it would eliminate is the wasteful and fraudulent spending that has gone to the NIH, as well as to those who have actually continued to pursue things like gain of function under Fauci, and we saw how that worked out.

The other thing she also questioned, what should we have learned. Well, what we have learned is that we are actually spinning ourselves into an economic abyss; the fact that we are actually leading the Nation when it comes to continually frivolous spending. I love how only in Washington can we call something emergency spending levels but then maintain it throughout the period in which we are going to move forward.

We have to acknowledge the fact that in 2019, pre-COVID spending levels, if you did a 3½ percent adjusted rate, that would get us to an actual spending cap of $1.477 trillion today, not the $1.586 trillion, not the $1.786 trillion, and certainly not the $2 trillion that the Democrats want to continue to spend.

The bottom line, Mr. Chair, is this: We are not saying that we will not have the necessary spending for our public health sectors and others to continue to do their job. What we are saying is that we should return our spending levels to pre-COVID, pre-emergency levels that would be in sync with what we have always done, at a 3½ percent adjusted rate.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I oppose the amendment. I think it is not just for the emergency. We need to have a very, very strong public health infrastructure.

Mr. Chair, I yield back the balance of my time.

Mr. MILLS. Mr. Chair, in closing, it is very clear that the only thing that D.C. continues to do successfully is spend American taxpayer funding. We did not do what was necessary to mitigate these risks. There was always this 2 weeks to slow the curve. I wish there were 2 weeks to slow our spending. We need to get back to where we were before so that we can get control, start looking at economic growth, start looking at what is best and having industry drive the actual policy, not policy drive the industry. We need to reduce and limit the government's reach into the public sector to ensure that they have what they need driven by them, for them.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. MILLS).

The amendment was agreed to.

□ 1315

AMENDMENT NO. 22 OFFERED BY MR. GROTHMAN

The Acting CHAIR. It is now in order to consider amendment No. 22 printed in part B of House Report 118–272.

Mr. GROTHMAN. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 62, line 3, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Wisconsin (Mr. GROTHMAN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Wisconsin.

Mr. GROTHMAN. Mr. Chair, I rise in support of my amendment, which is an increase/decrease in prioritized money for the CDC to do a study on the effectiveness of vitamin D against COVID–19.

Vitamin D has long been associated with a healthy immune system, particularly when combating viral and respiratory infections. It is evident that maintaining adequate vitamin D levels can dramatically improve outcomes for patients who are infected with COVID.

I was incredibly disappointed during the entire COVID scare, when over a million Americans died, that the public health establishment did very little to encourage people to take vitamin D.

There are many studies out there—they vary from one to the other—from Spain, from Harvard, from the University of Chicago. In some, they say that the chance of death can be reduced by 60 percent. In others, they say for people with adequate vitamin D levels, 2.3 percent pass away compared to 25.6 percent. In other words, you are 10 times better off with vitamin D.

In any event, the public health establishment did very little to push this. In my heart—I have read a lot of this stuff—I believe we could have cut the deaths by over 80 percent had they done it, which is why I want to require some sort of study out of the CDC to show this.

The other thing that should have been done during this COVID thing is if you went in for a checkup, you should have had your vitamin D checked. That should have been automatic. If you would have had levels, say, under 20, your doctor could have said that you are in much worse shape now and that you have to take vitamin D right away. They didn't do that, I think, because they couldn't make enough money on it and because, today, the medical establishment is too money driven.

Hopefully, if we do a study and something like this comes back, we can put our public health establishment a little bit more on the ball. I think it was an identical thing to COVID. I think it would reduce the number of deaths by over 80 percent.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, let me just preface my comments by saying we are not scientists, and we are not doctors. Maybe some are. We may have one or two, but we are not in the business of scientific research or in the medical profession, for the most part.

This amendment calls for the Centers for Disease Control and Prevention to conduct an exploratory study on the topic of a supplement, vitamin D deficiencies, and COVID mortality rates.

To make recommendations, Federal agencies leverage the results of multiple randomized control trials that form the same conclusion, which builds the scientific evidence for recommendations.

The National Institutes of Health and academic peers have consistently found that there is insufficient evidence for a recommendation either for or against the use of vitamin D for the prevention or treatment of COVID–19.

Supplements are not a replacement for preventive measures like a vaccination. Studies are being conducted on more effective linkages between COVID–19 infection and preventive measures, including vaccination and ventilation. The CDC should be receiving additional investments for these studies, not being told to conduct a study on this supplement.

Mr. Chair, I urge my colleagues to vote ''no'' on this amendment, and I reserve the balance of my time.

Mr. GROTHMAN. Mr. Chair, let me point out that there are many scientists in different countries who feel overwhelmingly that vitamin D would have reduced the number of deaths.

I believe, sadly, that both our research establishment and medical establishment kind of tilt toward something that will be more profitable.

If they would have gotten vitamin D out there in the almost year before vaccines were available, I think it would have saved a lot of lives, and it would have probably saved lives even after vaccines became available.

It is a mystery to me why the public health establishment does not get involved and, quite frankly, encourage people to take vitamin D well beyond the normal supplement level. You should probably take four or five times the amount of the supplement.

In any event, it is frustrating it wasn't done. It is frustrating we wouldn't check vitamin D levels when the cost to check them is, from what I could tell, if you go through a mail order thing, like, 50 bucks to check.

Nevertheless, it wasn't worthwhile for the medical establishment to do that. I don't see any harm in doing a

study, and it could result in a massive benefit.

Let me also point out that, disproportionately, people of color were dying from this disease, and a lot of people feel the reason they were dying far in excess of the population as a whole was because people with darker skin don't have as much vitamin D. In particular, it would have helped people of color.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentleman from New Jersey (Mr. NORCROSS).

Mr. NORCROSS. Mr. Chair, I thank the ranking member for recognizing me.

Mr. Chair, I rise in opposition to the Republican Labor-HHS appropriations bill, which, among other cuts, would slash funding for DOL's Wage and Hour Division by nearly 30 percent.

Among other functions of the Wage and Hour Division, it enforces the Davis-Bacon Act, which ensures that workers are fairly compensated. It has been around since 1931.

Davis-Bacon requires that workers on Federal construction projects are paid a prevailing wage, which prevents workers from being undercut, not being paid the correct amount of money for their work.

For this reason, at the appropriate time, I will offer a motion to recommit this bill back to committee. If the House rules permitted, I would have offered the motion with an amendment to increase funding for the Wage and Hour Division to improve the full force of Davis-Bacon.

Mr. Chair, I hope my colleagues will join me in voting for this motion to recommit.

Mr. Chair, I include in the RECORD the text of my amendment.

Mr. Norcross moves to recommit the bill H.R. 5894 to the Committee on Appropriations with the following amendment:

Page 18, line 12, after the dollar amount, insert ''(increased by $155,953,000)''.

Ms. DELAURO. Mr. Chair, I strongly oppose the amendment, and I yield back the balance of my time.

Mr. GROTHMAN. Mr. Chair, I have nothing more to say other than that I hope the amendment passes, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Wisconsin (Mr. GROTHMAN).

The amendment was agreed to.

The Acting CHAIR. The Chair understands that amendment No. 26 will not be offered.

AMENDMENT NO. 28 OFFERED BY MR. GOOD OF VIRGINIA

The Acting CHAIR. It is now in order to consider amendment No. 28 printed in part B of House Report 118–272.

Mr. GOOD of Virginia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 64, line 24, after the first dollar amount, insert ''(reduced b y $10,000,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $10,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Virginia (Mr. GOOD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. GOOD of Virginia. Mr. Chair, today, I ask for my colleagues' support for my amendment to cut $10 million from this appropriations bill and contribute those funds instead toward deficit reduction.

This particular $10 million is set aside to increase diversity in biomedical research.

The Federal Government has an addiction to growth and expansion. Find a problem? Just create a new program and assign a few bureaucrats to handle it, and that will somehow allegedly fix the problem.

Under this administration, you don't have to set aside special money to support diversity. President Biden has made it very clear through nearly every executive action that he takes that every agency should look at every issue through a diversity lens.

The Biden administration makes everything about race anyway. We should not believe they need a few more million in taxpayer dollars just to make a difference in this aspect.

At some point, the Biden administration needs to stop dividing everyone based on the way they look and instead focus on actual health solutions for all Americans in need.

Americans are tired of everything being about race. When it comes to the future of biomedical research, we want to know that the best of the best are researching ways to cure cancer, fight heart disease, and help us lead longer and healthier lives. None of those are racial problems. They are human problems.

Throughout our history, American innovation has been at the top of the charts for finding breakthrough cures and therapeutics.

This year, through this bill, we are already set to invest in that research, and we can spare the $10 million that focuses on diversity and instead spend it on something that helps every American—contributing to the spending reduction account that would actually decrease our deficit.

Mr. Chair, I hope my colleagues will join me in this simple cost-saving amendment, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in opposition to this amendment.

Let me tell you a brief story. I arrived at Congress in 1990. At the time—and this is on a bipartisan basis, and this had to do with women's health—what we discovered at the National Institutes of Health was that all the clinical trials on illnesses and diseases in the country, all the research, all science, and all of these diseases, the clinical trials had included only men—only men.

I don't think anyone would view that this is rocket science, that women are physiologically different than men.

On a bipartisan basis, the women—Nancy Johnson, Barbara Kennelly, NANCY PELOSI, Nita Lowey, and Marge Roukema—banded together and said this was crazy.

Women and minorities need to be included in clinical studies so that we do not just extrapolate data from clinical trials for men and apply it to women. Women and minorities deserved to be in those trials so that we could find out what was the best treatment, what was the best cure, and what was the best way to treat their health issues.

This is an amendment that would cut $10 million to the National Institute of General Medical Sciences at the NIH. One of the basic missions of NIGMS is to support the next generation of scientists. This amendment would reduce support for scientific trainees across every stage of their career trajectories, from supporting undergraduate and community college students in research experiences, to Ph.D. and clinician-scientist training, to postdoctoral training and the transition to a first scientific position.

Eliminating an office of diversity in biomedical research takes us backward when we moved forward all those years ago to talk about how biomedical research and discovery to cure had to include in the scientific endeavor, yes, men but also women and minorities.

This amendment would limit early stage investigators, who are a pipeline to a next generation of researchers for future scientific discoveries.

Mr. Chair, with all deference and respect for my colleague, this amendment is shortsighted and counterproductive, and I urge my colleagues to oppose the amendment.

Mr. Chair, I yield back the balance of my time.

Mr. GOOD of Virginia. Mr. Chairman, we have made progress today. I am glad to hear the gentlewoman from the other side of the aisle recognizes there are differences between men and women. We may next actually be able to define what a woman is and what a man is. I am glad to hear that recognition from my friends on the other side of the aisle.

If President Biden were serious about helping people, he would cut our spending. He would renew American energy. He would secure the southern border. In fact, there are millions of illegals pouring across our border, costing taxpayers $150 billion a year.

While every issue is not a racial issue, as the administration would have you think, and every issue is not a climate issue, as the administration

would have you think, today, every issue is a border issue and a spending issue. Yet, President Biden focused on woke initiatives like the Justice40 Initiative that promotes equity across the Federal Government.

□ 1330

Certainly today we would not criticize biomedical research. As a matter of fact, we recognize the value that it brings to our country, and I am thankful for those in the field who are doing their best to help all Americans.

We want the research done by the best researchers for all Americans, regardless of what any of them look like.

Mr. Chair, I urge my colleagues to support this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. GOOD).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

AMENDMENT NO. 32 OFFERED BY MR. GOOD OF VIRGINIA

The Acting CHAIR. It is now in order to consider amendment No. 32 printed in part B of House Report 118–272.

Mr. GOOD of Virginia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 67, line 15, after the dollar amount, insert ''(reduced by $524,395,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $524,395,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Virginia (Mr. GOOD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. GOOD of Virginia. Mr. Chair, today I ask for my colleagues' support for my amendment to transfer $524.4 million from the National Institute on Minority Health and Health Disparities to the spending reduction account that would reduce our national debt and our current deficit.

The way we throw around trillions of dollars and billions of dollars, I guess $524 million doesn't seem like a lot here in Washington, but to average Americans, that is real money.

Well, this office—formerly created by ObamaCare—brags about being a leader in the scientific community's focus on socioeconomics, politics, discrimination, of course, culture, and environment in relation to health disparities.

I have heard enough there. Americans don't want politicized science. We want scientific science. We don't want health research that divides by race. We want health research that unleashes American ingenuity on a horrific disease.

Let's talk about some of the studies that are associated with this particular office: A report on how various racial groups have faced COVID–19 discrimination; a program to address how—COVID–19 discriminates, of course. Didn't you know that?

Another program is a program to address how access to safe spaces—safe spaces—impacts health, and of course, a program on how climate change in and of itself is somehow racist.

I submit to my colleagues today that any actual scientific health innovations that come out of this office could develop in one of the other offices or projects that the $43 billion—with a b—NIH budget supports.

We don't need to set aside $524 million to focus on race once again and publish more politically charged studies that do nothing to contribute to meaningful health outcomes.

I hope my colleagues will join me to reduce spending, reduce the size of government, and support the best possible health research that is not done on a racist basis.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in vehement opposition to this amendment. This amendment would eliminate all funding to the National Institute on Minority Health and Health Disparities, which would eviscerate funding for research on minority health.

This is a lack of understanding of scientific discovery or discovery to cure. Frankly, it is appalling and disgusting. I will be calling for a roll call vote on this amendment. I want to know exactly which Members of the House of Representatives want to eliminate funding for research on minority health and health disparities.

The National Institute on Minority Health and Health Disparities supports research on diseases and conditions that disproportionately affect minority populations—minorities, writ large.

The United States continues to experience persistent and preventable adverse health effects with a disproportionate burden on minority communities.

To take one example, chronic diseases are among the leading causes of death in the United States. Some racial or ethnic minority groups experience a higher prevalence of multiple chronic conditions. We need to continue research on interventions to reduce mortality from multiple chronic diseases such as hypertension, cardiovascular disease, diabetes, sickle cell disease, maternal mortality, obesity, asthma, heart disease, cancer, which continues to disproportionately affect minority communities.

The National Institute on Minority Health and Health Disparities also supports researchers from backgrounds who are underrepresented in the biomedical research workforce.

I urge my colleagues to think about this amendment and how it lacks scientific understanding and the ability to use biomedical research as a discovery for a cure.

Oppose this amendment. I look forward to seeing the results of the recorded vote.

Mr. Chair, I reserve the balance of my time.

Mr. GOOD of Virginia. Mr. Chair, it continues to be clear that our friends on the other side just cannot tolerate or abide by the absence of racist initiatives or disparate treatment based on race, but Americans are done with the politicization of science, especially after the tyrannical government mandates that shut down the economy during the coronavirus.

President Biden promised a few years ago a return to normalcy, but his administration has only weaponized the government against the American people even more.

I wish the Biden administration would focus as much on cutting the reckless spending, securing our border, and putting Americans first as they do on dividing people along racial lines.

Mr. Chair, I urge adoption of my amendment, and I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, I can't state strongly enough how much I oppose this amendment, which thwarts biomedical research to save people's lives. That is what is done in this area. That is what the NIH does. That is what the National Institute on Minority Health and Health Disparities reviews. It is about saving lives. We have no more noble cause in this institution than to help to save people's lives, whoever they are.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. GOOD).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

AMENDMENT NO. 33 OFFERED BY MR. ROSENDALE

The Acting CHAIR. It is now in order to consider amendment No. 33 printed in part B of House Report 118–272.

Mr. ROSENDALE. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 67, line 19, after the dollar amount, insert ''(reduced by $95,162,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman

from Montana (Mr. ROSENDALE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Montana.

Mr. ROSENDALE. Mr. Chair, my amendment No. 33 prohibits funding for the John E. Fogarty International Center saving approximately $95 million.

Our Nation is over $33 trillion in debt, with an expected annual deficit this year of nearly $2 trillion. We need to find innovative ways to reduce spending. While many would consider this small potatoes, we must begin with the most blatant violations of the public trust, and that is what we consider this.

My amendment builds off of President Trump's first budget request, which called for eliminating the Fogarty International Center.

According to their website, the Fogarty International Center is dedicated to advancing the mission of the National Institutes of Health by supporting and facilitating global health research conducted by the U.S.

However, the center emphasizes a perverted view of ''global health equity'' and partners with the World Health Organization.

The World Health Organization is a corrupt organization that worked with the Chinese Communist Party to cover up the origins of the COVID–19 pandemic. The Fogarty Center should not be working with the World Health Organization.

Moreover, a large amount of the grants funded by the Fogarty International Center are counterproductive to our interests.

One such egregious project that received funds in the Philippines is titled: Stigma Reduction and Gender Affirmation to Promote HIV Prevention/Testing in Trans Women. That is what your tax dollars are being used for. The project is a joint partnership between Brown University and the University of the Philippines Manila.

There are biological women and biological males, as stressed by the other side of the aisle in the previous amendment. They have finally recognized that. I find it ironic that we are funding projects in the name of science that ignores basic biology.

Funding these woke, ridiculous projects hurt our standing in the Philippines and globally.

Christianity is the dominant faith in the Philippines, making up approximately 90 percent of the population. This project is a slap in the face to anyone in the Philippines who holds traditional Christian beliefs.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in opposition to this amendment. This amendment would eliminate funding for the Fogarty International Center at the National Institutes of Health.

This amendment is shortsighted. It would undermine our ability to prevent and mitigate disease outbreaks around the world.

The Fogarty International Center has supported research training programs which have been vital to fighting emerging infectious diseases including Ebola and Zika.

Now, we dealt with Ebola in 2014, and we dealt with the Zika crisis in 2016. I know that the gentleman was not here at that time and really didn't experience what was happening both here in the U.S. and also internationally. The very fact is that Fogarty helped to train the people who were involved with on-the-ground responders to the Ebola and to the Zika crisis.

Moreover, Fogarty supports training programs for scientists in the United States and abroad who are engaged in prevention and treatment of diseases, such as malaria, dengue fever, and tuberculosis, all of which now have affected parts of the United States.

Fogarty programs have provided research training to 6,000 scientists worldwide. It contributes to biomedical innovation. It supports the next generation of researchers across the globe.

In addition, health innovations developed with foreign partners can be adapted to help solve health issues in the United States.

I urge my colleagues to oppose this amendment, and I reserve the balance of my time.

□ 1345

Mr. ROSENDALE. Mr. Chair, if we are going to send funds overseas, they should project our values. I agree with the overwhelming majority of Americans and Montanans stating this center doesn't project our values.

A grant that received funds through the Fogarty International Center in Uganda is titled: ''HIV Self Testing to Empower Prevention Choices in Sex Workers.'' If you want to protect men and women from drug abuse and sex crimes, my colleagues should begin by helping me and my colleagues on this side of the aisle by securing the southern border and helping us to locate the approximately 100,000 children who have been released into our country and most likely condemned to a life of sex slavery.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, in my continued opposition to this amendment, I suspect that my colleague is not interested in saving lives in West Africa, in Brazil, or in Haiti.

Once again, with prior amendments that were listed here today, the issue of the work of science and research in the pursuit of saving lives is what this institution should be about. We are not talking about helicopters, roads, bridges, or anything else. Fundamentally, we are addressing the issue of using the biomedical research which we have scientists engaged and involved in both for the United States and internationally. If it happens internationally, it happens in the United States. That is our job. There is no higher calling than to save lives here and abroad.

Mr. Chair, I yield back the balance of my time.

Mr. ROSENDALE. Mr. Chair, may I inquire as to the time remaining.

The Acting CHAIR. The gentleman from Montana has 1½ minutes remaining.

Mr. ROSENDALE. Mr. Chair, again, if we are going to invest funds overseas and here domestically, we should make sure that it projects our values.

Another grant that received funds through the Fogarty International Center in Ukraine, where we have seen billions of dollars squandered, was titled: ''Using latent class analysis to understand the role of layered stigma on engagement in care among HIV positive women who use drugs in Ukraine.''

They have a battle going on. They have a war in Ukraine. We hear about it daily. Yet, the Fogarty International Center is not going to try to figure out a way to bring those parties to the table to achieve peace. They want to find out about drugs being used by women who participate in the sex trade.

Mr. Chair, again, for this and many reasons, I hope my colleagues can support this amendment. We need to protect our values oversees, and the Fogarty International Center does not do so.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Montana (Mr. ROSENDALE).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Montana will be postponed.

AMENDMENT NO. 34 OFFERED BY MR. PFLUGER

The Acting CHAIR. It is now in order to consider amendment No. 34 printed in part B of House Report 118–272.

Mr. PFLUGER. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 68, line 17, after the dollar amount, insert ''(reduced by $3,748,715)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Texas (Mr. PFLUGER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. PFLUGER. Mr. Chair, I rise today to present an amendment that

holds the key to accountability and transparency in the aftermath of the devastating COVID–19 pandemic.

The amendment I am proposing to the fiscal year 2024 Labor, Health and Human Services, and Education appropriations bill targets a critical issue within the National Institutes of Health, NIH, Office of the Director. Specifically, it aims to reduce funding by $3,748,715. That is an amount equivalent to the grant awarded to EcoHealth Alliance, Incorporated, for their research on ''Understanding the Risk of Bat Coronavirus Emergence'' at the Wuhan Institute of Virology.

The gravity of the COVID–19 pandemic cannot be overstated. Lives were lost, businesses shuttered, and families torn apart. It is a collective responsibility to address the origins of this crisis, and my proposed amendment aligns with three fundamental principles that I have consistently emphasized while being in Congress.

First, we must uncover the truth of the pandemic's origins. This shouldn't be a Republican or Democrat thing. This is an American thing. Second, we must hold those involved responsible and accountable. Last, we must provide the American people with full transparency.

After nearly 4 years of investigation, substantial evidence now points to the Wuhan Institute of Virology as the source of the COVID–19 virus. Disturbingly, it has come to light that the Wuhan lab conducted this research funded by the United States Government. While the Department of Health and Human Services has taken action against the institution, it is evident that more must be done.

The HHS Office of Inspector General released a report in January of this year, January of 2023, revealing that the NIH failed to effectively monitor or address EcoHealth's compliance with certain requirements. Shockingly, the NIH only began investigating the Wuhan Institute's role in the pandemic at the outset of the crisis. This lack of foresight is unacceptable, especially considering the potential consequences of such research.

Moreover, the investigation brought to light EcoHealth's delayed submission of a critical report containing evidence of a virus with enhanced growth, a report that should have been reported immediately. This is just one instance of the NIH's failure to exercise proper oversight.

In light of these findings, it is imperative that we hold the NIH accountable for its shortcomings. The American people deserve an assurance that our agencies are performing their duties diligently and responsibly, especially when the consequences are as far-reaching as the global pandemic was.

The HHS's report highlights a series of lapses in NIH's monitoring and oversight. Given these documented failures, I strongly believe that the NIH should face consequences for its role in the mishandling of funds and lack of oversight. Our amendment sends a clear message that we, as representatives of the American people, will not tolerate negligence that results in such catastrophic outcomes.

In conclusion, let us come together to pass this crucial amendment, demonstrating our commitment to accountability, transparency, and the well-being of the American people. It is time to act decisively and ensure that our agencies fulfill their responsibilities to prevent future crises of this magnitude.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in opposition to this amendment.

Unfortunately, this amendment is nothing more than a political stunt. It would cut funding to the National Institutes of Health's Office of the Director as a penalty for a research grant awarded years ago.

The grant awarded by NIH was subject to rigorous peer review and judged by reviewers to be a high priority due to the previous emergence of SARS-CoV in a bat population.

The grant application did not propose research to enhance coronaviruses to be more transmissible or virulent in humans. The NIH determined that the award did not involve research with enhanced potential pandemic pathogens.

The bat coronavirus sequences under this grant award showed that the viruses studied at the Wuhan Institute of Virology under the NIH-funded grant were evolutionary, distant from SARS-CoV–2, and could not have been the source of SARS-CoV–2.

Essentially, this is a cut of $3.7 million as a penalty for funding research and thereby taking funds away from the NIH as well, which are sorely needed.

Mr. Chair, I urge my colleagues to oppose the amendment, and I yield back the balance of my time.

Mr. PFLUGER. Mr. Chair, may I inquire as to the time remaining.

The Acting CHAIR. The gentleman from Texas has 2 minutes remaining.

Mr. PFLUGER. Mr. Chair, I disagree with my colleague from Connecticut. The American people want the NIH to succeed. We need the NIH to succeed, but the American people are also saying, show us transparency. Tell us what is going on.

When the government is trusted, then we can actually get results and do good things for the American people. This is about trust. In fact, $3.7 million, I think that is a small price to pay when it comes to the price that Americans paid.

Yes, I urge this to be a bipartisan amendment, that we have transparency. If you are on the side of the American people, who deserve better from government agencies, this should be an easy amendment.

Mr. Chair, I urge a ''yes'' vote, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. PFLUGER).

The amendment was agreed to.

AMENDMENT NO. 35 OFFERED BY MR. MILLS

The Acting CHAIR. It is now in order to consider amendment No. 35 printed in part B of House Report 118–272.

Mr. MILLS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 68, line 17, after the dollar amount, insert ''(reduced by $160,384,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Florida (Mr. MILLS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. MILLS. Mr. Chair, my amendment is pretty simple. This would cut back on the spending for the office of the NIH Director by more than $160 million to return us back to the fiscal year 2019 funding level. This amendment ensures appropriate accountability for the NIH's recent failures while also advancing the urgent need for better fiscal responsibility of the House.

When the Republicans took over the majority, we promised to rein in inflation and government spending. We must do more than talk. We must start to act.

The NIH resoundingly failed to do its due diligence to prevent gain-of-function research at Chinese labs, and this failure was fundamental to the existence of the virus that caused the pandemic.

To date, there has been absolutely no accountability for these failures and others, and Congress would be failing its duty to ensure accountability by doing nothing and continuing this irresponsible funding to the NIH.

We must stop Fauci's experimental process, start holding accountability, get research into finding out exactly what the leading cause was, and make sure we have the necessary prevention.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, this amendment would cut funding by $160 million to the Office of the Director of the National Institutes of Health.

During the time that I had the opportunity, for the 4 years that I served as chair of this subcommittee, we increased funding for NIH research by $8.4 billion, an increase of 21 percent above the 2019 level, and I might add, something I am really extremely proud of.

As chair and with Ranking Member COLE, we agreed on a bipartisan basis

for the increases to the NIH. I, again, feel very, very proud of the role that I was able to play with my colleague in providing additional funding for lifesaving research at the NIH, including research to develop cures or treatments for cancer, Alzheimer's, ALS, diabetes, the funding to develop a universal flu vaccine, and the funding to ensure that women are represented in clinical trials.

This amendment would undermine the progress that we made on a bipartisan basis over the last 4 years, and I urge my colleagues to please oppose this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. MILLS. Mr. Chair, I appreciate the gentlewoman for her acknowledgment that we have increased spending by $8.4 billion, of which some of that funding led to additional trillions of dollars in spending and thousands of lives lost, as we funded things like the gain of function under Fauci, which led to the spread of COVID.

□ 1400

Now, when you talk about the cut of $160 million, the only response that I can think of is you are welcome. You are welcome to the American people for us saving money and for us actually doing our job to be fiscally responsible once again.

You are welcome that we won't allow continuation of funding for gain of function that would lead to another pandemic, as we saw across the world. You are welcome that we are actually, in the Republican Party as the majority, taking a stand to stop the out-of-control and runaway spending that has been irresponsible and driving generations and generations into future debt.

Mr. Chairman, this is pretty simple. Without that funding there probably would have been no pandemic. Unless we are going to get accountability and do the necessary research, I cannot continue to sponsor Fauci and NIH and their efforts to go ahead and spread and lead to another COVID.

Mr. Chairman, I reserve the balance of my time.

Ms. DELAURO. Mr. Chairman, I don't know if the gentleman knows this but, as another point, I will extol the virtues of Dr. Anthony Fauci and his scientific background and experience of what he has done to resolve issues of disease and cures in the United States of America and overseas.

Maybe the gentleman doesn't know, Dr. Fauci is no longer at the NIH. It is unbelievably stunning to me that we are listening to someone talk about how COVID came out of the NIH. What happened to all your other theories?

Mr. Chairman, this is really a conspiracy theory that we are generating here. For that reason, and probably for many, many other reasons that have no basis in science or in reality, I continue to oppose this amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. MILLS. Mr. Chairman, I love how our colleagues on the left refer to every conspiracy as a conspiracy until it is found to be factual, which is 99 percent of the time.

I am also aware that Mr. Fauci is no longer there and we are very thankful for that. His accountability on what he had done with helping to fund gain of function, which was actually something that led to spreading the Wuhan virus, which was also in partnership with China—this is something that still needs accountability research and the necessary review within Congress.

I am aware that we are continuing to spend at emergency COVID levels and we need to get back to where we were before. This is simple mathematics. If emergency-level spending is meant to be only during a time of emergency, then why do we continue to make that the new benchmark of spending moving forward.

The whole point is, is that we would bring it back to the pre-COVID spending levels, which is what the American people are looking at. They are looking for us to stop the irresponsible spending and actually get to what the root cause is, which is the U.S. Congress.

I hate to say it in this way, but the bottom line is that I will not continue to fund these types of things.

Mr. Chairman, I urge my colleagues to support me in this, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. MILLS).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Florida will be postponed.

AMENDMENT NO. 36 OFFERED BY MS. BOEBERT

The Acting CHAIR. It is now in order to consider amendment No. 36 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I rise as the designee of the gentleman from Georgia (Mr. CLYDE), and I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 63, line 14, after the dollar amount, insert ''(reduced by $710,415,900)''.

Page 63, line 22, after the dollar amount, insert ''(reduced by $398,234,500)''.

Page 64, line 5, after the dollar amount, insert ''(reduced by $52,016,300)''.

Page 64, line 10, after the dollar amount, insert ''(reduced by $230,072,100)''.

Page 64, line 15, after the dollar amount, insert ''(reduced by $258,892,500)''.

Page 64, line 24, after the first dollar amount, insert ''(reduced by $315,467,900)''.

Page 65, line 7, after the dollar amount, insert ''(reduced by $174,907,800)''.

Page 65, line 11, after the dollar amount, insert ''(reduced by $89,654,900)''.

Page 65, line 16, after the dollar amount, insert ''(reduced by $91,397,900)''.

Page 65, line 19, after the dollar amount, insert ''(reduced by $440,762,300)''.

Page 65, line 24, after the dollar amount, insert ''(reduced by $68,546,500)''.

Page 66, line 5, after the dollar amount, insert ''(reduced by $53,433,000)''.

Page 66, line 8, after the dollar amount, insert ''(reduced by $19,769,300)''.

Page 66, line 13, after the dollar amount, insert ''(reduced by $59,531,800)''.

Page 66, line 16, after the dollar amount, insert ''(reduced by $166,269,500)''.

Page 66, line 19, after the dollar amount, insert ''(reduced by $211,284,300)''.

Page 66, line 23, after the dollar amount, insert ''(reduced by $66,320,000)''.

Page 67, line 5, after the dollar amount, insert ''(reduced by $44,062,700)''.

Page 67, line 10, after the dollar amount, insert ''(reduced by $17,038,400)''.

Page 67, line 23, after the dollar amount, insert ''(reduced by $49,754,800)''.

Page 68, line 9, after the dollar amount, insert ''(reduced by $92,332,300)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chairman, I rise to urge all of my colleagues to support this amendment, which would provide for additional funding reductions for NIH.

If we have learned nothing else from the executive branch's involvement and handling of the COVID–19 pandemic, at the very least, we learned just how corrupt and money hungry the NIH as an organization truly is.

It has been over 3½ years since the initial COVID lockdowns and the NIH continues to cover up and downplay its gain-of-function research at the Wuhan Institute of Virology.

Earlier this year, the Inspector General's report found that between 2014 and 2021, the NIH did not adequately follow its policies with respect to three grants totaling about $8 million to the EcoHealth Alliance.

The EcoHealth Alliance had a relationship with the Wuhan Institute of Virology in which it subawarded $600,000 to research coronaviruses in the years leading up to the COVID–19 pandemic.

The NIH terminated the EcoHealth grant in April of 2020, then later reinstated it, only to suspend it again after setting conditions for resumption that EcoHealth claimed it could not meet.

The NIH permanently terminated the award in August 2022 for compliance issues, including the Wuhan Institute of Virology's failure to provide NIH with laboratory notebooks related to the funded experiments.

Then again, in May of this year, the NIH reinstated grants to renew its ''collaborative research to understand the risk of bat coronavirus spillover emergence.'' Seriously?

In late last year, the NIH issued a new grant to EcoHealth Alliance for a project titled: ''Analyzing the Potential for Future Bat Coronavirus Emergence in Myanmar, Vietnam, and

Laos.'' The grant provides EcoHealth Alliance with $653,392 covering a period until August 31, 2027.

Why is an organization that failed to comply with reporting requirements continuing to receive more and more American tax dollars?

Even more disturbing, earlier this year, the acting director of NIH, Dr. Tabak, testified before the House Appropriations Committee. I asked him whether gain-of-function research was conducted at the Wuhan Institute of Virology, and he responded ''no.''

In an October 20, 2021, letter to then-Oversight and Reform Committee Ranking Member JAMES COMER, the NIH admitted to funding gain-of-function research on bat coronaviruses at the WIV. Ironically, Mr. Tabak authored this letter in which he stated that the limited experiment tested whether spike proteins from naturally occurring bat coronaviruses circulating in China were capable of binding to the human ACE2 receptor in a mouse model. This is classic gain of function and this is unacceptable.

Americans deserve to know the truth, especially when their tax dollars are funding these dangerous practices.

As if that were not enough evidence to justify a budget cut, the Biden administration has also inappropriately used the NIH as an extension of the President's radical, unethical policies. For instance, in April of 2021, the NIH reversed restrictions governing Federal-funded research to allow the use of fetal tissue obtained from elective abortions.

I am grateful the underlying bill includes several guardrails for fiscal year 2024, such as prohibiting funding for unethical human embryo and aborted fetal tissue research, prohibiting any support to the Wuhan Institute of Virology, and prohibiting gain-of-function research in an adversarial country. These are good provisions, but they are simply not enough.

I recognize that the underlying bill has reduced the NIH's funding by about 12½ percent, but I strongly believe a larger cut is warranted if we want the NIH to realign its priorities with congressional intent.

Not only would a larger budget cut force the NIH to eliminate irresponsible spending and research, but it would also send a strong message to the Biden administration that Congress does not approve the NIH's actions.

Mr. Chairman, I yield back the balance of my time.

Ms. DELAURO. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chairman, I am having trouble listening to a series of science deniers here this afternoon. That is really troubling.

The amendment would cut funding to the National Institutes of Health by an additional $3.6 billion.

The base bill already cuts NIH funding by $2.8 billion below what we are talking about in 2023. That is 2.8 and another 3.6. I think there was another amendment that took additional money, which means that this amendment would bring the overall funding cut to the NIH of $6.4 billion at the current funding levels.

That would mean drastic cuts to life-saving research on cancer, Alzheimer's disease, ALS, diabetes, infectious diseases, and the list goes on and on and on.

This amendment would cut funding to the National Cancer Institute by an additional $710 million.

I am a 36-year survivor of ovarian cancer. I had the benefit of biomedical research. Why shouldn't other women have the benefit of biomedical research to save their lives with ovarian cancer, one of the biggest killers of women in the Nation?

This bill would also cut funding to the National Institute of Child Health and Human Development by $175 million.

It would cut funding to the National Institute on Aging by $441 million. Let's tell that to all of our elder Americans with the issues that they have as they age. Let's cut back that research.

It would cut funding to the National Institute on Drug Abuse by $166 million. I continue to hear from my colleagues on the other side of the aisle about how upset they are about addiction and drug abuse and the increase of that. What are we doing about it? This research addresses that issue.

It would cut funding to the National Institute of Mental Health by $200 million. Do we not understand that we had a crisis in mental health in this country before the pandemic, and we are in a serious crisis with mental health at all ages post-pandemic?

We want to cut the money for the research for mental health?

Put simply, this amendment would mean a drastic cut to scientific breakthroughs, cures to diseases, and life-saving treatments.

Did you know that the United States has been the leader in the world in health and advancement. We have the NIH, the CDC, and the FDA. These are crown jewels in what health is about in the United States and the cures here and abroad. Why would we want to roll back our advancements in health, science, and medical achievements?

This does go backwards. Like I have said in prior amendments, our job with these bills is to save lives, not to be engaged in political diatribes.

Mr. Chairman, I yield back the balance of my time.

□ 1415

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 38 OFFERED BY MR. HARRIS

The Acting CHAIR. It is now in order to consider amendment No. 38 printed in part B of House Report 118–272.

Mr. HARRIS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 70, line 5, after the dollar amount, insert ''(reduced by $59,000,000)''.

Page 92, line 12, after the dollar amount, insert ''(increased by $50,000,000)''.

Page 93, line 3, after the dollar amount, insert ''(increased by $50,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Maryland (Mr. HARRIS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Maryland.

Mr. HARRIS. Mr. Chairman, I rise today to offer an amendment to increase funding for Project BioShield from $820 million to $870 million, with the funds coming from taking money from the recurring expense fund for buildings and facilities at HHS.

Mr. Chairman, medical countermeasures are important. We know that the chemical, biological, radiological, and nuclear threats are real in this world and that there is no natural market incentive for private industry to invest in developing countermeasures despite their critical importance to national security. That is exactly why Congress authorized Project BioShield almost 20 years ago, in 2004, which incentivizes industry to invest in these products despite the fact that there is no natural market incentive.

The program provides multiyear funding to support advanced research, clinical development, manufacturing, and procurement. BioShield responds to national security threats identified by the Department of Homeland Security's material threat determination process.

According to the Public Health Emergency Medical Countermeasures Enterprise, or PHEMCE, their multiyear budget, BARDA's Project BioShield would need $1.7 billion in fiscal year 2024 to develop and support the candidates in the smallpox, radiological, nuclear, broad-spectrum antimicrobials, Ebola, and chemical countermeasure portfolios. That is in contrast to the $820 million that is in the underlying bill. Again, the experts have said we need $1.7 billion.

Additionally, last year, the House included report language in the fiscal year 2023 omnibus that asked BARDA to compile a procurement strategy for novel antimicrobials. BARDA then included this objective in their 5-year strategic plan, but it was, of course, way underfunded. This amendment would allow them to move forward with these activities to provide additional funding, which could be used for the procurement of new antimicrobials.

Mr. Chair, I urge all Members to support this amendment, which would increase funding for Project BioShield to $870 million, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, let me say a couple of things because I am a strong supporter of BioShield.

Within the 2023 budget, I might add, there is $850 million. I am for emergency preparedness. The gentleman every year puts in requests for increases, and we put in increases every year for Project BioShield. However, what I am concerned about, which I will address, is the $59 million cut. I think we should continue to increase money every year for Project BioShield, but the amendment cuts funding for the buildings and facilities at the NIH by $59 million.

NIH currently has a backlog of nearly $4 billion in needed repairs, and during the 4 years that I served as chair of the subcommittee, we increased funding for the NIH buildings and facilities account from $200 million in 2019 to $350 million in 2023 to begin to address the long-term backlog in a responsible way. This amendment would undermine the progress we have made.

I might add, once again, this was on a bipartisan basis over the last 4 years that we agreed to the increases in the NIH buildings and facilities account as well as the increases in Project BioShield.

Cutting funding for NIH's buildings and facilities would exacerbate the backlog of repairs, potentially affecting NIH's intramural research projects if laboratories and facilities are degraded.

More importantly, this amendment demonstrates, once again, that overall funding in this bill is grossly insufficient. That is one of my biggest concerns about this bill. We need to properly fund Project BioShield and the National Institutes of Health. We should not be forced to choose between research facilities and emergency preparedness.

Mr. Chair, I urge my colleagues to oppose this amendment, and I reserve the balance of my time.

Mr. HARRIS. Mr. Chair, to pay for this, we take money from the NIH buildings and facilities. That is true. However, Mr. Chairman, you know that the way CBO works is that we had to take it from that fund because we expect that money to be replaced from the nonrecurring expense fund at HHS. The CBO won't score it as a savings, but they will score it as a savings if you take it from NIH.

Mr. Chair, I get it. Nobody understands how CBO works. It makes no sense. Nevertheless, that money could be backfilled easily because, Mr. Chair, that nonrecurring expense fund at HHS is a slush fund with $1.8 billion in it unspent with moneys each year authorized in the bills to be rolled over to the next year, so there is $1.8 billion sitting at HHS.

Mr. Chair, that money would be much better spent on countermeasures.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I continue to oppose the amendment, and I yield back the balance of my time.

Mr. HARRIS. Mr. Chair, may I inquire how much time is remaining.

The Acting CHAIR. The gentleman from Maryland has 1½ minutes remaining.

Mr. HARRIS. Mr. Chair, the dangers in the world are immense. China and North Korea both, obviously, are nuclear and nonconventional weapons threats. We are looking at a war in Israel right now with the possibility that Iran could make a dirty bomb. There are nuclear threats. We need countermeasures. We need to spend money on countermeasures.

Just as we are spending $880 billion on what I call kinetic defense, we need to spend money on nonkinetic defense. One of the things we need to do is fund Project BioShield because that is where we develop these countermeasures.

Mr. Chair, I urge adoption of this amendment. It would take $59 million that HHS would transfer out of a $1.8 billion fund that they have unspent and use that money for countermeasures.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Maryland (Mr. HARRIS).

The amendment was agreed to.

AMENDMENT NO. 39 OFFERED BY MR. HARRIS

The Acting CHAIR. It is now in order to consider amendment No. 39 printed in part B of House Report 118–272.

Mr. HARRIS. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 70, line 5, after the dollar amount, insert ''(reduced by $119,000,000)''.

Page 92, line 12, after the dollar amount, insert ''(increased by $100,000,000)''.

Page 93, line 7, after the dollar amount, insert ''(increased by $100,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Maryland (Mr. HARRIS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Maryland.

Mr. HARRIS. Mr. Chairman, this amendment is similar to the last one. It takes money from the NIH buildings and facilities funds, which, under authorization of law, can be transferred back from HHS' nonrecurring expense fund and transfers $100 million of that to the Strategic National Stockpile.

The Strategic National Stockpile is the only program dedicated to having civilian medical countermeasures on hand to respond to chemical, biological, radiological, and nuclear threats that may occur on U.S. soil.

From what we are seeing in Israel now to the current Marburg virus outbreak in Equatorial Guinea, these threats are real and growing.

Again, according to the PHEMCE multiyear budget, in fiscal year 2024, the stockpile would need $1.96 billion, almost $2 billion, to meet current stockpiling needs. Yet, in the bill is less than $1 billion.

The sharp increase that they feel is necessary—again, these are the experts in these countermeasures—is largely due to needed investment in the anthrax, Ebola, and smallpox portfolios. When we underfund that stockpile, then risky decisions have to be made. A prior annual review proposed reducing anthrax vaccine and antibiotic holdings. This amendment provides funds that will help meet the goals that have been identified by these experts.

I appreciate the Appropriations Committee including my requested report language directing the Assistant Secretary for Preparedness and Readiness in coordination with the intelligence community to provide annual classified threat briefings to Members of Congress.

Mr. Chairman, I urge all Members to support this amendment, which is vital to our national security, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR (Mr. PERRY). The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. As with the prior amendment, Mr. Chair, I support the National Strategic Stockpile very strongly, and I might say I strongly support it, so I don't oppose it.

As the chair of the subcommittee in the past, I have increased funding on a yearly basis for the stockpile. I know that the gentleman has made requests for increases, and we have met those increases with regard to the stockpile.

The question, once again, for me is cutting the buildings and facilities at the NIH by $119 million. I will repeat this: NIH has a backlog of nearly $4 billion in needed repairs. In the 4 years that I served on the subcommittee as chair, we increased the NIH building and facilities account from $200 million in 2019 to $350 million in 2023 to begin to address the backlog and build up in a responsible way.

I might add that I am particularly proud that we did this on a bipartisan basis, and we have done that over the last 4 years while recognizing the gentleman's concerns in this area and responding in a positive way to the increases that have been requested.

Cutting the funding for NIH buildings and facilities exacerbates the backlog of repairs. It affects their intramural research projects if the laboratory and the facilities are in disrepair.

More importantly, as I said just a few moments ago, the amendment demonstrates that overall funding in this bill is grossly insufficient. I know that there are some who want to cut it even further, so we begin to deal with robbing Peter to pay Paul here.

Nonetheless, we need to properly fund the Strategic National Stockpile. That is in our national interest and the interest of the National Institutes of Health.

However, it is my colleagues on the other side of the aisle who are always telling me that we have hard choices to make and that we do have to make choices—and we do—but we should not be forced to choose between research facilities and emergency preparedness.

Nevertheless, my colleagues on the other side of the aisle believe that we should starve the bill and then, for the issues that may be critically important, take money from another critically important bill or program.

Let us fund this bill where it should be to meet the needs of the National Strategic Stockpile as well as allowing the NIH to be able to have laboratories and buildings in good repair so that our scientists can perform in an environment that allows them to be more creative, more innovative, and do more about the discovery to cure.

Mr. Chair, I urge my colleagues to oppose this amendment, and I yield back the balance of my time.

□ 1430

Mr. HARRIS. Mr. Chair, I agree with the gentlewoman from Connecticut when she said we need to fund the SNS. That is the bottom line. Mr. Chair, you read the Constitution like I read it. National Defense is one of the things outlined for Congress in the Constitution.

We don't have adequate defense stockpiles in the Strategic National Stockpile.

Let's talk smallpox, for example. We had 200 million doses back in 2018. A lot of those have expired. The bottom line is that anthrax has a 30 percent mortality rate. We need a vaccine for every American, everyone living in the United States.

It is that simple, because anthrax, Mr. Chair, is not something you have to develop in the Wuhan Institute of Virology. God knows they can develop dangerous weaponry. It can be stolen from somewhere and duplicated. It doesn't take a First World country to be an anthrax threat.

Now with regard to the buildings at NIH, as I explained before, Mr. Chair, there is a $1.8 billion building slush fund over at HHS. They have accumulated $1.8 billion in what they call their nonrecurring expense fund.

Mr. Chair, I will remind you, because of Bidenomics and a 5 percent interest rate, that is $90 million a year we are paying on interest on their slush fund.

Mr. Chair, what I am proposing is we take the money out of NIH—and I will join with the gentlewoman from Connecticut in writing a letter to Secretary Becerra asking him to backfill that money from his slush fund.

Enough with slush funds—$22 billion in Commerce, the Commodity Credit Corp, in USDA; $1.8 billion slush fund, nonrecurring expense fund in HHS.

Mr. Chair, we can't afford it. We also can't afford to be without a Strategic National Stockpile. We need to make sure that we have the antimicrobials, that we have the vaccines in there that are necessary to protect against the next threat from China, North Korea, Russia, or Iran.

Mr. Chair, I urge my colleagues to support this commonsense amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Maryland (Mr. HARRIS).

The amendment was agreed to.

AMENDMENT NO. 54 OFFERED BY MR. CARTER OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 54 printed in part B of House Report 118–272.

Mr. CARTER of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 93, line 9, before the semicolon insert the following: '': *Provided*, That $15,000,000 of the funds made available under this paragraph shall be used to carry out section 2409 of division FF of Public Law 117–328''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Georgia (Mr. CARTER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Georgia.

Mr. CARTER of Georgia. Mr. Chair, I rise today to speak in support of my amendment, which will allow States to build or maintain their own medical stockpiles and encourage regional coordination of those stockpiles.

Over the past few years, the COVID–19 pandemic exposed vulnerabilities in our Strategic National Stockpile, leading to a shortage of critical drugs, vaccines, and medical supplies. We all remember the scramble among States and the Federal Government for limited supplies of diagnostics, PPE, treatments, and other critical medical countermeasures.

Each State had different priorities and needs: while one needed ventilators, another needed masks. In my home State of Georgia, healthcare providers and patients struggled to access critical medical supplies and personal protective equipment. That is why it is important to not only ensure that the Strategic National Stockpile is robust, but also to provide ways for States to stockpile treatments and products for their specific needs. To be clear, this amendment would supplement, not replace, the Federal Strategic National Stockpile.

This amendment would empower States to build and maintain their own medical stockpiles so they can respond quickly to emerging infectious diseases in the future. That is why I encourage my colleagues to support this amendment before us here today.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, this amendment would direct $15 million from the Strategic National Stockpile to allow States to build or maintain their own medical stockpile.

The 2023 appropriation bill authorized a demonstration program for State Strategic National Stockpiles but did not include funding. This amendment would reduce funding for the Federal Strategic National Stockpile to support State efforts. You have one amendment that wants to go to $100 million, one who wants to take $15 million away from the national stockpile.

It is important to note that the authorization specifically stated that authorized funds were intended to supplement rather than supplant the maintenance and use of the Federal Strategic National Stockpile. Redirecting SNS funds as this amendment does is in conflict with the intended purpose of the law. We are not adding on to, we are taking away from and moving someplace else.

I would suggest that with regard to our public health and our national security, that through these efforts what we should do is to focus in on dealing with public health infrastructure in the strongest possible way, and that means making the investments in data modernization and data collection.

There ought to be the authority to report data that the CDC should have to get this information, so we know what is happening in real time. We ought to take a look at the State laboratories and look at how we are supporting State laboratories, which many crashed, the whole infrastructure during COVID, the public health infrastructure nearly crashed.

This amendment is in conflict with the intended purpose of the law. Once again, it takes money rather than adding to. It is intended to supplement, but what it does is it supplants.

Mr. Chair, I urge my colleagues to oppose the amendment, and I reserve the balance of my time.

Mr. CARTER of Georgia. Mr. Chair, in response I would just say that this is simply to supplement the National Strategic Stockpiles. It is not to replace them. It is not to do anything but give the States the opportunity to have their own stockpiles. This is not a cookie-cutter-type situation that you have here. Different States have different needs. We all understand that, and this is what that addresses.

Mr. Chair, this is a commonsense bill and commonsense amendment, and I would ask and encourage my colleagues to vote in favor.

Mr. Chair, I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, I stand in continued opposition to the amendment. It is hard to fathom the logic of supplanting versus supplementing. If you are taking money from the stockpile, you are taking away the funds

that are there, but you are not adding funds to what they already have so, in fact, you are taking money from the SNS for this other effort which is contrary to what the law states.

I agree different States have different needs, et cetera. That is why I think that what you ought to do is to buttress what we are doing in State laboratories, dealing with data modernization, to make our public health infrastructure as strong as possible. This really takes money away from the SNS.

Mr. Chair, I oppose it, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Georgia (Mr. CARTER).

The amendment was agreed to.

AMENDMENT NO. 55 OFFERED BY MR. GOOD OF VIRGINIA

The Acting CHAIR. It is now in order to consider amendment No. 55 printed in part B of House Report 118–272.

Mr. GOOD of Virginia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 94, line 14, after the first dollar amount, insert ''(reduced by $28,000,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $28,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Virginia (Mr. GOOD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. GOOD of Virginia. Mr. Chair, today, I ask for my colleagues' support for my amendment to cut $28 million from this bill and contribute that money to paying down our deficit.

My amendment takes the funds from the allocation to minority AIDS prevention. The targeted $28 million is actually a small fraction of what Americans pay in research and prevention of AIDS.

According to HIV.gov, we spent $28 billion—1,000 times this targeted amount—on the domestic response to HIV/AIDS this year.

The government approach to tackling HIV/AIDS encompasses five agencies and countless offices within those agencies. Our Housing and Urban Development Department, our Justice Department, our Defense Department, all of them spent money to combat AIDS last year. In fact, there are at least a dozen programs focused on AIDS, and the more you look into it, the more it represents the typical, bloated, ineffective government spending.

My amendment targets, again, one-tenth of a percent of those funds that are racially focused because, once again, we are dividing people and our research based on race, which does nothing to help all Americans. Race can be a contributing factor in health outcomes, but that doesn't mean it needs special funding.

If a disease disproportionately impacts a certain group, that will come out in the research and that group will benefit more from the program. The funds themselves should not be allocated based on race but allocated based on need.

I hope my colleagues will join me in reducing a small amount of spending for an issue that our government already spends billions upon.

If Members are bold enough to cut spending, we can contribute to reducing our deficit, and that is an issue that actually helps all Americans regardless of race.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in strong opposition to this amendment. This amendment would cut $28 million from the Department of Health and Human Services for the purpose of eliminating the Minority HIV/AIDS Prevention Initiative.

How far my colleagues on the other side of the aisle have come from the vision of George Bush and his PEPFAR Initiative. The underlying bill already cuts funding for the Minority HIV/AIDS Prevention Initiative by more than 50 percent. We have cut it already in this bill by 50 percent from its current funding level of $60 million to a proposed funding level of only $28 million. That is unacceptable.

In the explanatory materials the Republican majority posted online to accompany the Labor, HHS, Education appropriations bill, the majority acknowledges ''the critical role that the Minority AIDS Initiative plays in our longstanding efforts to eliminate HIV and address the disproportionate disease burden that racial minority communities face.'' That is in the explanatory materials, and that is true.

□ 1445

The minority HIV/AIDS prevention initiative supports HIV prevention, as well as treatment in minority communities to help address that disparity.

While we have made significant advances in recent decades against the HIV epidemic, it continues to be a crisis in many racial and ethnic minority communities. Almost three out of four new HIV diagnoses are among racial and ethnic minorities.

This amendment to eliminate funding for the minority HIV/AIDS prevention initiative would take us back to a time when the Federal Government turned a blind eye to the spread of HIV, especially in minority communities.

Let me be clear: Not only is this amendment unacceptable, but the funding cut of more than 50 percent in the base bill is unacceptable. When we go to conference with the Senate, after this House bill goes up in flames, I will ensure that these disastrous funding cuts are not included in the final bill.

I strongly urge my colleagues to vote ''no'' on this amendment, and I reserve the balance of my time.

Mr. GOOD of Virginia. Mr. Chair, I reiterate, there are over a dozen agencies that focus on this issue, and this amendment reduces by one-tenth of 1 percent the amount that is allocated toward AIDS research and prevention in our country today. This is the portion which is race based, which of course my friends across the aisle cannot tolerate any reduction or elimination of any program that is race based because their policies seek to divide the country.

This $28 million may seem like a drop in the bucket of what does need to be cut from our Federal spending, but this is a start.

I urge my colleagues to support ensuring funding allocation that is based on need and not based on race and to vote in favor of this amendment.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I continue to oppose this amendment. I also might add, if you take the base bill which my Republican colleagues have come forward with, which is really unacceptable, the base bill ends the HIV initiative. These are programs that have been eliminated. It eliminates the HIV initiative here.

This amendment would further cut the opportunity for treating AIDS in the minority community. What is going on here that we are not moving toward ending the HIV epidemic? We are close to it, which is why we dealt with this initiative on a bipartisan basis over the last 4 years.

This, once again, is my colleagues turning their backs on saving people's lives. What more important effort should we be involved in in this Congress?

Mr. Chair, I oppose this amendment, and I yield back the balance of my time.

Mr. GOOD of Virginia. Mr. Chairman, we have the opportunity today to stop treating people differently based on race and to cut our spending together in one amendment. I support it, and I urge passage of it.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. GOOD).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

The Acting CHAIR. It is now in order to consider amendment No. 58, printed in part B of House Report 118–272.

AMENDMENT NO. 61 OFFERED BY MS. BOEBERT

The Acting CHAIR. It is now in order to consider amendment No. 61 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 132, line 16, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 132, line 20, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 145, line 7, after the dollar amount, insert ''(reduced by $2,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my amendment that transfers funds from government bureaucracy to charter school grants.

As a mom raising four boys, I understand that families across this country want the best education possible for their children. One size does not fit all when it comes to education and our Nation's youth, and education matters are best handled at the State, local, and especially family levels.

Charter schools are an important part of the public education landscape because they empower parents to choose a high-quality educational environment for their child regardless of income or ZIP Code. The unique educational experience of attending charter schools ensures more children have a chance to achieve the American Dream.

During the first two full school years of COVID, nearly 240,000 additional students enrolled in public charter schools. Charter schools were the only sector of public education to grow during the COVID lockdowns. They also serve our Nation's marginalized children.

A 2021 analysis of research on charter school effects and competitive influence by the National Bureau of Economic Research highlighted trends from three decades of research on charter schools. They found that charter schools boost student test scores, particularly for Black, Hispanic, and low-income students, and that attending charter schools increases college enrollment and civic engagement.

The competitive impact of charter schools on traditional public schools suggests a beneficial influence on neighboring schools' student achievement.

The Charter Schools Program is the only program at the Department of Education that supports school choice and allows parents to place their children in a school that works for their unique needs. Parents know how to raise their children better than government bureaucrats and teachers' unions.

Mr. Chair, I urge my colleagues to support my amendment that transfers funds from the government bureaucracy to charter school grants, and I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in strong opposition to this amendment because for me this amendment continues that road that has been laid out in this Labor-HHS bill where the majority is moving to really eliminate public education in the United States.

This bill decimates public education by cutting the Department of Education by $22.5 billion, 28 percent. It seeks to plus-up one of the only education programs that received an increase, the Charter Schools Program. They cut everything else in public education but increased the charter schools in this bill.

We have had some spirited discussions about charter schools on the Labor-HHS subcommittee, and there are certainly some differences of opinion around the role that they should play in our public education system and whether they have historically received appropriate oversight by the Department of Education.

The Charter Schools Program provides seed money to open new charter schools around the country. We should be in agreement on one point: This program has far more money than the Department of Education knows what to do with.

In 2019, months after Secretary DeVos pleaded with our subcommittee for a $60 million increase to the Charter Schools Program, the Department approached us with warnings that demand for funding was low. Sure enough, before the end of the year, the Department was unable to use the full appropriation and transferred $12 million to other education accounts. That was almost 3 percent of the program's appropriation.

In addition, over the years, our committee discussed issues raised by the inspector general, including findings that States have mismanaged charter school closures and that the Department failed to provide any adequate guidance or oversight on the issue. I know my colleagues on the other side of the aisle want oversight, and that is why we need to continue our oversight of the Charter Schools Program with respect to accountability, transparency, and success. Many open, many close. Many take people, and then they disgorge people.

I support charter schools, but not at the risk of eliminating public education in this country, which is one of the issues that is on the agenda of the Republican majority in this Labor-HHS bill. This amendment provides a wasteful increase that would be better directed at restoring some of the underlying bill's disastrous cuts.

Let's take a look at those cuts that are disastrous in education. Let's make sure that we are supporting title I. Let's make sure that we are supporting the development of teachers. Let's make sure that we are looking at Promise Neighborhoods. Let's make sure that we are dealing with the social and emotional learning of our kids instead of plussing-up a program that has enough money to make it and has not had the kind of oversight it needs in order to make sure that it is doing its job.

Mr. Chair, I urge my colleagues to vote ''no'' on this amendment, and I reserve the balance of my time.

Ms. BOEBERT. Mr. Chair, I also have an amendment to add funding to the IG's account, and this amendment takes no funds from public schools. This is simply giving more choice to families throughout our Nation.

Transparency is good, and the argument that we just heard was not so good. Parents know how to raise their children better than government bureaucrats and politicians. We certainly experienced that during the COVID lockdowns. The restrictions that we saw to our children's education and the educational experiences that were lost during those 2 years or more of COVID lockdowns were a travesty.

I cannot reiterate enough that parents know how to raise their children better than politicians, better than bureaucrats, better than teachers' unions. We want to strengthen the Charter Schools Program, and that is what this amendment does.

Mr. Chair, I urge adoption of my amendment, and I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, I continue my opposition of this amendment. As I understand it, this is an increase for the inspector general. As I mentioned a few moments ago, the inspector general has done intensive investigation of the charter school movement. They have findings that the States mismanaged charter school closures, and the Department failed to provide adequate guidance or oversight on this issue.

Mr. Chair, I oppose this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

□ 1500

Ms. DELAURO. Mr. Chair, I move to strike the last word.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I yield to the gentleman from Maryland (Mr. HOYER), the ranking member of the Subcommittee on Financial Services and General Government.

Mr. HOYER. Mr. Chair, I thank the gentlewoman for yielding.

This bill perhaps will pass this House. It certainly will not pass the Senate, and it will not see the light of day on the President's desk.

We spend our time here arguing a bill that violates the agreement made by

314 of us in this body, 165 Democrats and 149 Republicans. A majority of both parties said that we are going to have a funding level, otherwise known in our jargon as a 302(a) number; we will mark to that number; the Senate will mark to that number; and we will be able to get a bill.

We have not done that, nor is there any intention to do that because compromise is out of the question and confrontation is the order of the day.

I do not rise solely to talk about this Labor-HHS bill. I rise because I just came from a rally. It was an American rally on behalf of Israel, on behalf of the people of Israel, and in opposition to terror, murder, genocide, and the willingness of some to claim the destruction of Israel and its people as their objective.

Yet, what do we do here in the House of Representatives? We sound an uncertain trumpet. If Speaker JOHNSON, who spoke at the rally today in support of Israel, would bring that bill to the floor to help fund that effort, it would pass with over 400 votes. Yet, it lies slumbering somewhere between the House and the Senate, and the Senate won't consider it.

In addition, we are here disagreeing but disagreeing peacefully. Unfortunately, the citizens of Ukraine do not have that luxury. They stand. They fight for freedom, for democracy, against a Russian criminal attack on a free and sovereign nation.

What do we do? We argue about a bill that is going nowhere, another uncertain trumpet of our conviction that the defense of democracy and freedom is worthy of our votes.

Mr. Chair, 400 votes for Israel, over 300 votes for Ukraine, and it does not come to the floor.

How strong a voice does America send to not only our enemies but to our allies as to our commitment to democracy, to freedom, and to international law? How muddled our voice seems to be on the international scene.

Mr. Chair, I hope you bring those two bills to the floor, not as a political deal, not as a tit for tat, but as a statement of America that we stand for those who fight for freedom and democracy and a world of law.

Bring those bills to the floor. We have already voted eight or nine times on Ukraine, 300 votes every vote, and Israel, over 400 votes.

Please do that, Mr. Chair. Please do it for our own ideals. Do it for the defense of democracy and freedom and survival in Israel and freedom and democracy and sovereignty in Ukraine. America ought to do no less.

Ms. DELAURO. Mr. Chair, I yield back the balance of my time.

AMENDMENT NO. 62 OFFERED BY MS. BOEBERT

The Acting CHAIR (Mr. VAN DREW). It is now in order to consider amendment No. 62 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

On page 130, line 15, after the dollar amount, insert ''(increased by $2,000,000)''.

On page 131, line 17, after the dollar amount, insert ''(increased by $2,000,000)''.

On page 145, line 7, after the dollar amount, insert ''(reduced by $2,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. Boebert) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my amendment that transfers funds from the Department of Education bureaucracy to support the Rural Education Achievement Program, REAP.

Most of the country's poorest counties are rural and are often disconnected from the nonprofits and social service agencies that fill the gaps in urban and suburban schools.

After decades of population loss and divestment by State governments, many rural communities are struggling to keep up when it comes to educating our children and are being forced to close. When these schools close, children are forced to travel additional hours to get to school. Closures and consolidations also force teachers, administrators, and educators out of their jobs.

Yet, America has continued to turn a blind eye, leaving our rural communities helpless. More than 9.3 million children attend rural schools. This makes up nearly one-fifth of public school students across the country.

Rural children had an especially hard time keeping up when Democrats shut down our schools for 2 years and required students to learn via Zoom. Many of our children in rural communities don't have access to the internet, and some don't even have cell phone service. They deserve better than this.

The Rural Education Achievement Program initiatives are designed to help rural districts that may lack the personnel and resources to compete effectively for competitive Federal grants.

There are two dedicated programs funded by this account that aim to assist rural school districts with improving teaching and learning in their schools. The Small, Rural School Achievement Program provides funds to rural districts that serve a small number of students. The Rural and Low-Income School Program provides funds to rural districts that serve concentrations of poor students regardless of the number of students served by the district.

Our children deserve a proper education no matter what their ZIP Code is, and it is our duty to build a better future for them.

Mr. Chair, I urge my colleagues to support my amendment that transfers funds from the Department of Education bureaucracy to the Rural Education Achievement Program.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 63 OFFERED BY MS. BOEBERT

The Acting CHAIR. It is now in order to consider amendment No. 63 printed in part B of House Report 118–272.

Ms. BOEBERT. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

On page 132, line 4, after the first dollar amount, insert ''(increased by $2,000,000)''.

On page 145, line 7, after the dollar amount, insert ''(reduced by $2,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentlewoman from Colorado (Ms. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Ms. BOEBERT. Mr. Chair, I rise today to offer my amendment on behalf of the thousands of Native Americans who deserve a quality education that respects their culture, history, and identity. These students face unique challenges and opportunities in their communities, and they need our support to achieve their full potential.

The Federal Government has a trust responsibility to provide educational services to Tribes and their members as established by treaties, statutes, and court decisions. However, for far too long, this responsibility has been neglected and underfunded, resulting in poor outcomes and inequities for Native students.

According to the Office of Indian Education, there are 183 bureau-funded elementary and secondary schools located on 64 reservations in 23 States, serving approximately 42,000 Native students. These schools are often in remote and rural areas with limited access to resources, technology, and qualified teachers. Many of these schools are also in dire need of repair and renovation, posing health and safety risks to students and staff.

Mr. Chair, I believe that education is the key to empowering opportunity and prosperity for all Americans. I also believe that we have a moral and legal obligation to honor our commitments to Tribes and their members and to respect their sovereignty and self-determination.

By redirecting wasteful spending in this bill to Native Americans' education, we can make a difference in the lives of Native students and in the strength and resilience of Tribal communities.

Mr. Chair, I urge my colleagues to support my amendment to transfer funds from the Department of Education bureaucracy to the Indian Education account.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Colorado (Ms. BOEBERT).

The amendment was agreed to.

AMENDMENT NO. 69 OFFERED BY MR. BIGGS

The Acting CHAIR. It is now in order to consider amendment No. 69 printed in part B of House Report 118–272.

Mr. BIGGS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 140, line 6, after the dollar amount, insert ''(reduced by $9,250,000,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $9,250,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Arizona (Mr. BIGGS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. BIGGS. Mr. Chairman, I rise in support of my amendment that would cut funding for the student financial assistance account by $9.25 billion.

The student financial assistance account is being funded at $22 billion for fiscal year 2024. This account provides funding for grants, loans, and other financial assistance to students who choose to pursue higher education, but the Federal Government's subsidization of higher education costs for individuals has actually created perverse incentives for higher education institutions to raise prices for all students and prospective students.

This is a spiral and cycle that has been going on for decades. A 2017 study from the Federal Reserve found the average tuition increase associated with expansion of student loans is as much as 60 cents per dollar.

Federal student loan subsidies don't help students with the cost of higher education. These subsidies actually result in increased costs for higher education, tuition, fees, and expenses.

With the Federal Government bearing the brunt of student loans, colleges are guaranteed to get the funding they ask for at the expense of the American taxpayer. This is a cycle that only leads to higher spending each fiscal year.

Cutting funding for this program would claw back billions that could be diverted to lowering the national debt and the financial burden on the taxpayer.

The Federal Government should not have a place in the monetary affairs of its private citizens. That is a matter for private banks, colleges, and students.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in strong opposition to this amendment. Make no mistake, this amendment will result in fewer students receiving Pell grants and will cut the maximum Pell grant award for 6.4 million students who use Federal student aid to pay to get a college education.

A cut of $9.25 billion will leave the program with a shortfall of $875 million in 2024. Under special scoring rules for the Pell Grant Program passed by Congress nearly two decades ago, Congress cannot provide less funding than required under current estimates by the Congressional Budget Office.

□ 1515

This cuts a Pell grant to every single Pell recipient. If this amendment passes, the Pell grant program would have less funding than required to sustain the current maximum award and existing eligibility parameters.

Faced with this reality, House Republicans will have two choices—cut the Pell grant maximum award or kick students out of the Pell Grant Program.

At a time when students and families are struggling to cover rising college costs, it was already unconscionable that House Republicans would eliminate Federal Work-Study for 660,000 students and eliminate the Supplemental Education Opportunity Grants for another 1.7 million students nationwide. It was already cruel when House Republicans offered no relief to rising college costs by freezing the maximum Pell grant for the first time in 12 years.

If this amendment passes, House Republicans will go one step further by cutting the maximum Pell grant or kicking students out of the program. This is truly a new low.

Does anyone in this Chamber remember Senator Claiborne Pell? I remember him. Claiborne Pell was from Rhode Island to the manner born, affluent, but he had a vision. He understood that the sons and daughters of working men and women of middle-class families, of vulnerable families, had a right to an education just as every rich person in this country does, and therefore, he created this program, the Pell Grant Program.

If my colleagues on the other side of the aisle pass this amendment, then, in fact, they are on that road that I have said over and over and over again is eliminating public education in the United States of America, eliminating opportunity for people to succeed in this country.

Why would you want a legacy or a legend that follows you with that kind of effort?

The United States is the land of opportunity. It should be, particularly where it comes to education for our children. It is the way to the future.

I urge my colleagues to vote ''no'' on this misguided amendment, and I reserve the balance of my time.

Mr. BIGGS. Mr. Chair, as it stands today, Americans owe over $1.7 trillion in student loan debt, more than 5 percent of the Nation's total $33 trillion debt.

The annual cost of attendance for students living on campus at a public 4-year State institution is 26 grand, or over $104,000 for a 4-year degree. Out-of-State students pay $27,000, or over $108,000. Private nonprofit university students pay 55 grand, or more than $225,000.

Do you know what is a new low? Do you know what is cruel? Do you know what is unconscionable? It is sending kids out with worthless degrees with debt that they can never sustain.

It is a new low to oppose something like this because you know what is driving this? It is the exponential growth of children and kids who are coming up who cannot afford education because your grants, your continued giving of taxpayer funding to the universities has actually increased the number of people who have to get assistance.

Why? Because tuition has spiked. It is growing multiples of the inflation rate. That is what is cruel. That is what is unconscionable.

Mr. Chair, I reserve the balance of my time.

The Acting CHAIR. Members are reminded to direct their remarks to the Chair.

Ms. DELAURO. Mr. Chair, I yield the balance of my time to the gentleman from Virginia (Mr. SCOTT), the distinguished ranking member of the Education and the Workforce Committee.

Mr. SCOTT of Virginia. Mr. Chair, I rise in opposition to the amendment and the underlying bill. House Republicans' partisan bill is an attack on students, workers, and families.

For 2024, the bill would cut close to $64 billion, roughly 28 percent from the Department of Labor, Health and Human Services, Education, and Related Agencies. The last time it was this low was in 2008.

Inequity in America's education system persists. Significant funding disparities among neighboring schools continue to rob students of equal access to quality education, and this bill cuts title I significantly.

Moreover, the bill cuts other programs like completely eliminating the Federal Work-Study that allows students to work their way through college; the Teacher Quality Partnership; the Job Corps, completely eliminated.

There are essential programs that workers in our districts rely on, and if this becomes law, those programs would be eliminated. This amendment would cut Federal student aid, making it more likely that they would have to take out student loans.

The underlying bill is bad enough. It is the first time in over a decade that the Pell grant wouldn't increase.

Also, our Nation is facing disturbing child labor law violations, and House Republicans are slashing the OSHA budget. Despite actively negotiating bipartisan reauthorization for the

Workforce Innovation and Opportunity Act, we are proposing cuts in adult and youth job training programs.

Finally, the bill is an insult to families. It cuts Head Start programs so drastically, if this bill were to become law, 50,000 children would lose access to childcare.

Mr. Chair, I would ask that we oppose the amendment and the underlying bill, and I yield back the balance of my time.

Mr. BIGGS. Mr. Chair, what is driving the increased costs of tuition? Well, most of that is because the bureaucratization of academia. That drives costs higher every year.

Let's go back to that 2017 study from the Federal Reserve Bank of New York. The average tuition increase associated with expansion of student loans is 60 cents for every dollar. So when your tuition is going up a buck, 60 cents of it is because of expansion of student loan programs.

The Biden administration's efforts to eliminate student loan debt is wrong—wrong because they force everyday Americans to pay for the student loans taken out by others and wrong because they doubled down on a failed public policy that incentivizes price increases. You incentivize tuition to go up. Why would a university ever reduce its tuition or its costs? They know that they have the Federal Government to backstop every student who wants to go in.

The way to curb the rise in both college tuition and student debt is to get the Federal Government out of the student loan business. The result will bring about more fiscally responsible citizens and a more fiscally responsible Federal Government. This would make the loan market more responsible and cause colleges to rein in their costs and reduce tuition so fewer students would need Pell grants or private aid.

Private lending would also limit taxpayers' exposure to billions of dollars in student loan defaults. Did I say billions? I meant to say trillions because that is where we sit.

Now, I want to respond in the time I have left to the cynical statement by the previous speaker who was talking about aid to Israel. We passed aid to Israel by a 226–196 vote. How did that happen? Mr. Chair, 196 of my friends across the aisle did not want to provide aid to Israel in that circumstance.

Mr. Chair, I urge people to adopt this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. BIGGS).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. ADERHOLT. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arizona will be postponed.

AMENDMENT NO. 70 OFFERED BY MR. BIGGS

The Acting CHAIR. It is now in order to consider amendment No. 70 printed in part B of House Report 118–272.

Mr. BIGGS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 140, line 15, after the dollar amount, insert ''(reduced by $1,769,207,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $1,769,207,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Arizona (Mr. BIGGS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. BIGGS. Mr. Chair, I rise to speak in support of my amendment that would strike funding for the Student Aid Administration.

The Student Aid Administration provides funding for the government to administer student financial assistance programs, including funding for the office responsible for ensuring accountability for higher education institutions who receive Federal dollars.

Unfortunately, under this administration, this regime, the Department of Education has developed a pattern of attacking large, higher education institutions that have a religious affiliation.

I will give you two of these today.

The Department of Education has repeatedly gone after Grand Canyon University, the largest private Christian university in the country. The Department of Education levied a $37.7 million fine. This is the largest fine in the Department's history.

GCU was a nonprofit from its inception in 1949 until 2004 when they partnered with private investors in order to avoid closing.

In 2018, GCU returned to its nonprofit status and is recognized by the IRS, the Higher Learning Commission, the State of Arizona, Arizona Private Postsecondary Board, and the NCAA. However, despite all this, the Department of Education has refused to acknowledge GCU's nonprofit status for purposes of Federal student financial aid.

By not acknowledging GCU's nonprofit status, the Department of Education is able to target GCU and others as ''bad actors due to the disproportionate number of Americans who attend those schools and then default on Federal student loans.''

However, GCU provides much higher levels of transparency than are legally required, and it is considered a leader in education transparency. The Department of Education, for instance, only requires universities to provide cost estimates for the first year in college—for first-year, first-time students, and only for undergraduate programs, but GCU goes beyond these requirements by providing cost estimates for each year of the program study and for all of its degree programs, including the doctoral level.

Rather than apply what GCU has done, the Department has attacked them, making this fine all the more troubling. The Department of Education is trying to make the claim that GCU lied to students about the cost to attend doctorate programs, but that is inaccurate.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, this is one more amendment on the road to eliminating public education in the United States of America.

I rise in strong opposition to this amendment. I am shocked by this amendment's intent to eliminate all funding to the Department of Education's Office of Federal Student Aid. What will this mean for the 17.5 million students who need to fill out a Free Application for Federal Student Aid, the FAFSA? What will this mean for the 6.4 million students who rely on Pell grants to pay for college? What will this mean for nearly 43 million individuals, one in six adult Americans who are working to repay their Federal student loans?

Make no mistake, this amendment signals an intent to destroy postsecondary education in this country. The House Republican Labor, HHS, Education bill already follows through on the other side's intent to break and dismantle public and postsecondary education for American students and families. This amendment just takes that destruction to another level.

Mr. Chair, I urge my colleagues to vote ''no'' on this amendment, and I reserve the balance of my time.

Mr. BIGGS. Mr. Chair, GCU's degree program calculator provides the total estimated cost for a 60-credit doctoral program the exact same way it does for other degree programs. That is not required under the Department of Education, but the Department of Education still goes after them.

GCU in its effort for clear transparency in red print above the calculator makes clear both the average number of continuation courses and cost for continuation courses that students may need to complete a doctoral dissertation.

The Department of Ed even acknowledges that GCU provides this disclosure, but nonetheless, continues to go after them. GCU graduates are incurring less debt than the national average due to its affordable tuition rates, and still, the Department of Ed goes after them.

A GAO report found that 91 percent of American colleges have misleading information in their financial aid offers, but GCU is the only nonprofit university being attacked from the Department of Education.

At the same time, Liberty University is being threatened with a similar $37 million fine by the Department of Education, alleging Clery Act violations based on a preliminary report in May of this year.

Liberty University has fully cooperated with the Department's investigation and found the Department made significant errors, misstatements, and unsupported conclusions in their findings.

Why is Liberty University getting threatened with what would be another $37 million fine from the Department of Education when they are fully cooperating?

□ 1530

These two big universities are two of the largest Christian universities in America. Is that why they are being attacked by this Department of Education? It certainly seems to be the case.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I yield 2 minutes to the gentleman from Virginia (Mr. SCOTT), the distinguished ranking member of the Education and Workforce Committee.

Mr. SCOTT of Virginia. Mr. Chair, we know that the most effective way for young people to get into the middle class is with an education. Those without an education are going to have challenges. Whatever station of life you come from, if you get a good education, you have got a good shot at the American Dream.

When President Johnson signed the Higher Education Act back in 1965, he said that essentially any student in any State could apply to any college or university and not be turned away because their family is poor. This amendment essentially eliminates that powerful promise.

What is the vision for administering the opportunity to get an education? How are you going to get a Pell grant if you don't have anywhere to apply? How are you going to administer student loans?

This just eliminates the opportunity for young people to get the education they deserve. I would hope that we would not adopt this amendment and, in fact, not even adopt the underlying bill. We need to make sure those opportunities are there.

Mr. BIGGS. Mr. Chair, I ask my friends: Do you support a tax on private Christian universities by the Department of Education, the very Department that I am trying to defund?

When you talk about the American Dream, student loan debt is crushing graduates, which is why when you look at polling, it indicates very clearly that young graduates do not believe they will attain the American Dream that their parents had access to. They are coming out with crushing student debt at the same time that that same Department is trying to crush very fine universities.

Mr. Chair, I urge adoption of my amendment, and I yield back the balance of my time.

Ms. DELAURO. Mr. Chair, may I inquire as to how much time is remaining?

The Acting CHAIR. The gentlewoman from Connecticut has 2¼ minutes remaining.

Ms. DELAURO. Mr. Chair, the gentleman wants to cut and wants to privatize higher education. He wants to send students to the for-profit colleges where there is a raft of information about how they are harming college students, and he wants to provide funding for the for-profit online program management companies, profiteers. That is who these folks are. It is everywhere. We know it.

The data is rife with how they have created terrible situations for young people, and even those who are older, by shutting down, leaving these people with a bill, about not providing a credential so that people can get jobs. They are a menace on our education system.

The gentleman here, as I understand it, will cut the Department of Education's Office of Federal Student Aid in order——

Mr. BIGGS. Will the gentlewoman yield?

Ms. DELAURO. No, I am sorry, I won't.——in order to be able to support an online, for-profit industry that is bilking America's students and, in many instances, America's veterans. It is really pretty incredible the direction that the majority will go in destroying public education in this country.

Mr. Chair, may I inquire as to the time remaining?

The Acting CHAIR. The gentlewoman from Connecticut has 15 seconds remaining.

Ms. DELAURO. Mr. Chair, with that 15 seconds, I will repeat what I said. We are looking at something that is scurrilous, supporting institutions that have been putting our students and our veterans at great risk.

Mr. Chair, I oppose this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. BIGGS).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arizona will be postponed.

AMENDMENT NO. 71 OFFERED BY MR. BIGGS

The Acting CHAIR. It is now in order to consider amendment No. 71 printed in part B of House Report 118–272.

Mr. BIGGS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 142, line 4, after the dollar amount, insert ''(reduced by $2,767,239,000)''.

Page 142, line 25, after the dollar amount, insert ''(reduced by $10,000,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $2,767,239,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Arizona (Mr. BIGGS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. BIGGS. Mr. Chair, I am going to respond to the ''scurrilous'' comments made in the last statement. Nothing in my amendment addressed online, for-profit private colleges, postsecondary. That was a deliberate mischaracterization of what I said, because the two universities I talked about are both nonprofit universities, recognized as postsecondary education institutions.

GCU is recognized by the IRS as nonprofit, Higher Learning Commission, State of Arizona, and the Arizona Private Postsecondary Board. Liberty University is equal in their classification.

To say what was said for 2½ minutes, to actually misdirect and try to misattribute my purpose, was an ascribing of motivations which should have been taken down.

Mr. Chair, I rise now to speak in support of my amendment, which would strike funding for the higher education account. It appropriates over $2.7 billion. This account provides appropriations for grant programs that provide direct taxpayer support to higher education institutions.

The effect of government subsidy and control has been more damaging than anyone has yet realized. Coupled with student assistance programs, direct government assistance to institutions has led to increased education costs and administrative costs.

Let's think of it. College costs are out of control. Harvard, the total cost of attending for 4 years is now around $300 grand. College costs have risen to this level because D.C. is heavily subsidizing tuition through Federal grants and loans, leaving colleges and universities free to increase their prices because they know the Federal Government is going to pick up the tab in between.

In FY 2023, we enacted a level of $2.994 billion, $600 million more than fiscal year 2019.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, just as a point of reference, Grand Canyon is online and nonprofit in name only.

I rise in strong opposition to this amendment. I am shocked by this amendment's intent. To eliminate all Federal education funding for Historically Black Colleges and Universities,

HBCUs, and minority-serving institutions, it is staggering, truly staggering. $400 million for HBCUs, eliminated. $228 million for Hispanic-serving institutions, eliminated. $100 for historically Black graduate institutions, eliminated. $52 million for Tribal colleges and universities, eliminated. Public education, eliminated.

This colossal cut also eliminates countless other programs that help students access a postsecondary education and receive expanded economic opportunities.

$1.2 trillion for the Federal TRIO program, eliminated. How far we have come. I have been on this Appropriations Committee for almost 28 years and been on the Labor-HHS subcommittee, and I can remember my Republican colleague Ralph Regula. Some of my colleagues on the other side will remember Ralph. There was no bigger supporter of the TRIO program or for the GEAR UP program. He understood the relevance of these economic and educational opportunities for youngsters.

It was not just Ralph Regula. I can go down the line in a bipartisan way of individuals who have supported the TRIO program. It is eliminated. $388 million for the Federal GEAR UP program, eliminated.

Once again, the House Republican goal in this bill is crystal clear: Destroy postsecondary education opportunity for students and for families nationwide. This amendment makes that goal explicit.

Mr. Chair, I urge my colleagues to vote ''no'' on this amendment, and I reserve the balance of my time.

Mr. BIGGS. Mr. Chair, it is a shame that people make aspersions on the floor when they don't know anything about a subject.

I think of Grand Canyon University and the 35,000 students on campus, on a physical plant, in Phoenix, Arizona. I just heard that they are an online school. Go tell those people who commute or live in the dorms at one of the fastest growing physical plant campuses in the country.

It is like saying the University of Arizona is an online school, with their 35,000 students, because they have an online program where you can get a bachelor's degree without ever setting foot on campus, or ASU or BYU, or any of the hundreds of other campuses.

How can you misdirect and try to attack an amendment when you simply don't know what is going on with what you are saying? It is astounding. It is astounding.

Mr. Chair, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I just had a quick look. At Grand Canyon, 86,000 students are online, so let's put that aside.

The essential point of this amendment is what it would do to education and educational opportunities. As I mentioned, for the historically Black colleges, eliminated; Hispanic-serving institutions, eliminated; historically Black graduate institutions, eliminated; Tribal colleges—where else do you want to go to revoke education for youngsters in this country?

I go back to an unbelievable man of vision, Claiborne Pell, who said, let's make postsecondary education available to all, not just the rich.

□ 1545

I said it before on this floor. I am the daughter of an immigrant family who shared the dream that I would be here someday. The road for me was education—tough. My mother worked as a garment worker in the old sweatshops in the city of New Haven. My father was an insurance agent. They pieced together what they could to give me the best education that I could have so I could have success. I am successful. I am here and grateful for it.

All those young people out there who are going to be denied a chance to get a college education because somewhere deep inside the psyche of the Republican majority now—this hasn't been in the past; there has been bipartisan support on these issues—but right now deep in that psyche is that we have to rid ourselves of public education.

Mr. Chairman, I yield back the balance of my time.

Mr. BIGGS. Mr. Chairman, nobody wants to revoke postsecondary education. What we want to do is acknowledge what the Federal Government has done to distort the cost of education.

The New York Fed itself has said it is eating it up, and 60 percent of every tuition increase is coming because of this aid. We want to get it down so it is affordable again. We want nobody leaving college crushed by the student debt that they have. That is what is going on here.

The fiscal year 2023 enacted level was $3 billion. That is $600 million more than just a few years before in 2019. The 2024 number is slightly less, but it doesn't do enough to cut spending when we are $35.5 trillion in debt.

Let's talk about what is happening. Universities are discriminating against conservative-leaning students. We see that. We had a hearing on that just last week. A recent University of North Carolina study found that conservative students within the UNC system face distinctive challenges when it comes to free speech and expression.

Nearly 68 percent of conservative students are at least slightly concerned about possible social consequences that may come from voicing one's true opinion in class. It is a massive problem that higher education fosters.

It is time that we move the Federal Government out of this business because they don't have any constitutional authority to be there in the first place.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. BIGGS).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. ADERHOLT. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arizona will be postponed.

AMENDMENT NO. 76 OFFERED BY MR. BIGGS

The Acting CHAIR. It is now in order to consider amendment No. 76 printed part B of House Report 118–272.

Mr. BIGGS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 144, line 21, after the dollar amount, insert ''(reduced by $707,372,000)''.

Page 195, line 9, after the dollar amount, insert ''(increased by $707,372,000)''.

The Acting CHAIR. Pursuant to House Resolution 864, the gentleman from Arizona (Mr. BIGGS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. BIGGS. Mr. Chairman, I rise to speak in support of my amendment, which strikes funding for the Institute of Education Sciences.

The current funding in the fiscal year 2024 bill is $707 million. The institute puts this funding toward programs such as governing boards of institutions of higher education, which is interested in the disclosure of gender, racial, and ethnic composition of governing boards of higher education to promote DEI institutions, which is a pointless use of information and resources.

This institute puts funding toward programs such as cross-sectional studies. This is a program launched to provide real-time data about the impact of COVID–19 on public K–12 education. The content focuses on how COVID–19 is affecting the delivery of education and how schools are navigating recovery efforts from that epidemic.

The Department of Education requested $4 million initially to further expand the survey across districts nationally. It is not a mission that the American taxpayer needs to fund, and it is a direct waste of our budget.

It is offices such as this that contribute to the rapid wasteful spending that has become so commonplace in our country under our Federal Government.

As far as the grant programs under the Institute of Education Sciences, they go toward post-COVID–19 research. This is research to accelerate pandemic recovery in special education grant programs and improve pandemic recovery efforts in education agencies' grant programs.

Mr. Chairman, I reserve the balance of my time.

Ms. DELAURO. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Connecticut is recognized for 5 minutes.

Ms. DELAURO. Mr. Chair, I rise in strong opposition to this amendment.

This amendment highlights the extreme lengths that House Republicans will go in order to dismantle public education for students and families nationwide.

The Institute of Education Sciences', IES', mission is to provide scientific evidence on which to ground education practice and policy and to share this information and make it accessible to educators, parents, policymakers, researchers, and the public.

IES is independent. IES is nonpartisan. They are the statistics research and evaluation arm of the U.S. Department of Education.

What would happen if this amendment is successful? Well, it would mean the end of the National Assessment of Educational Progress, NAEP. That is the assessment of what students in the United States are able to do in various subjects. That has been administered since 1969.

It would mean the end of regional educational laboratories, which provide evidence-based technical assistance to school districts and States across the country.

It would mean the end of new advances in education research and development, including exciting initiatives to expand high-risk, high-reward transformational research.

This amendment would be the death of our Federal investment in education research.

We just saw a little while ago that we were going to end our investment in biomedical research. Now, we are ending our investment in educational research. Simply, I cannot accept that outcome.

Mr. Chairman, I urge my colleagues to vote ''no'' on this amendment, and I reserve the balance of my time.

Mr. BIGGS. Mr. Chair, under the Institute of Education Sciences, they will establish two research networks, the pre-kindergarten through grade 12 recovery research network and the community college recovery research network to study pandemic events. It is a grant that pertains to gender-integrated classrooms to see if boys and girls are better equipped to learn together or separately in the classroom.

The fiscal year 2019 enacted level was over $615 million, but 2024 is currently set at over $707 million. That is a $90 million increase in just 5 years. This rate of growth is not sustainable.

This program is part of what we could safely call the educational-industrial complex. Over the years, our predecessors created a constituency and expanded on it every year by giving more money. They justify it by putting more mandates and doing more studies that don't mean anything. They come back and do it again and again.

Thus, we are well over $33 trillion in national debt. Our structural deficit last year was over $2 trillion. Fiscal year 2024 looks like it is going to be about the same, except we are going to be north of $35 trillion, $36 trillion in national debt. That is crushing.

Mr. Chair, I take my colleagues back to the New York Fed and its study. Of every dollar of tuition that increased, 60 percent of that, 60 cents of that, goes to the fact that the Federal Government is meddling in postsecondary education. That is what is happening here. That is the educational-industrial complex.

In December 2020, the Trump administration nominated Steve Hanke and John Yoo, both professors, to the advisory board for the IES. Education Secretary Miguel Cardona refused to acknowledge the appointments, deliver their credentials, or facilitate statutorily required board meetings.

That is the educational-industrial complex that we are facing today. It is crushing. It is crushing our students who want an education.

Mr. Chairman, I reserve the balance of my time.

Ms. DELAURO. Mr. Chair, I continue to oppose this amendment, but I want to provide a framework here for a moment.

I was looking through the various amendments over the last little while. Amendment No. 69 from Mr. BIGGS slashes the Pell grant funding. Amendment No. 70 from Mr. BIGGS eliminates funding to give out Pell grants and to be able to collect student loans. Amendment No. 71 from Mr. BIGGS eliminates funds for HBCUs, MSIs, TRIO, GEAR UP, and Tribal colleges. Amendment No. 76 from Mr. BIGGS eliminates education, research, and funding. The most recent one is eliminating the funding by the Department of Education for the Institute of Education Sciences.

There are two others, amendment No. 104 that eliminates the salary of the Department of Education Secretary, and amendment No. 92 from Mr. CRANE that cuts education staff by $38 million.

This is the litany of this battery of amendments where I make my point that the Republican majority is really in the business, within this bill, of eliminating public education. These amendments come on top of the underlying bill, which makes a 28 percent cut in education.

Do we think we have a reasonable understanding of where the Republican majority wants to go with public education? Let's do it in.

Mr. Chairman, I say to Mr. BIGGS that he has the lion's share of taking education and public education to the graveyard. Is that what we are to do?

The greater strength of this institution is its potential to help make a difference in people's lives and to provide opportunity. That is what we are supposed to do in the United States Congress and in the House of Representatives.

Mr. Chair, this battery of amendments would destroy educational opportunity, and I yield back the balance of my time.

Mr. BIGGS. Mr. Chair, the greatest strength of this body is that we represent constituents who send us here knowing that we are constrained in protecting their rights because we are limited by what we can and cannot do by that great document, the Constitution.

I stand here willing to learn and find out where in the Constitution there is any specific authority for this body to meddle in postsecondary educational choices of the American people. That is the educational-industrial complex at work, for what we are seeing in the arguments against my amendments today.

I support postsecondary education. I do not support the Federal Government meddling in the choices of individuals to get that education and how they are going to get it and the institutions that are providing it—the harassment that some of those institutions are receiving from this administration.

Mr. Chair, I urge the adoption of my amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. BIGGS).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. DELAURO. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arizona will be postponed.

□ 1600

Mr. ADERHOLT. Mr. Chairman, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. VAN DREW) having assumed the chair, Mr. CALVERT, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 5894) making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024, and for other purposes, had come to no resolution thereon.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or votes objected to under clause 6 of rule XX.

The House will resume proceedings on postponed questions at a later time.

FURTHER CONTINUING APPROPRIATIONS AND OTHER EXTENSIONS ACT, 2024

Ms. GRANGER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6363) making further continuing appropriations for fiscal year 2024, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6363

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Further Continuing Appropriations and Other Extensions Act, 2024''.

SEC. 2. TABLE OF CONTENTS.

The table of contents of this Act is as follows:

Sec. 1. Short title.
Sec. 2. Table of Contents.
Sec. 3. References.

DIVISION A—FURTHER CONTINUING APPROPRIATIONS ACT, 2024

DIVISION B—OTHER MATTERS

Title I—Extensions and Other Matters
Title II—Health and Human Services
Title III—Miscellaneous Extensions
Title IV—Budgetary Effects

SEC. 3. REFERENCES.

Except as expressly provided otherwise, any reference to ''this Act'' contained in any division of this Act shall be treated as referring only to the provisions of that division.

DIVISION A—FURTHER CONTINUING APPROPRIATIONS ACT, 2024

SEC. 101. Division A of the Continuing Appropriations Act, 2024 and Other Extensions Act (Public Law 118–15) is amended—

(1) by striking the date specified in section 106(3) and inserting ''February 2, 2024, except as provided in paragraph (4)'';

(2) by inserting after paragraph (3) of section 106 the following:

''(4) In the case of appropriations and funds made available and authority granted pursuant to sections 101(1), 101(4), 101(10), 101(12), 134, and 137, January 19, 2024.'';

(3) in section 101(1) by inserting after ''except section 729,'' the following: ''and except that the language under the heading 'Rural Utilities Service—Rural Water and Waste Disposal Program Account' in title III shall be applied by inserting 'direct loans and,' before 'loan guarantees' at the beginning of the first sentence of the second paragraph,'';

(4) in section 101(10), by inserting before the period '', except section 123 as well as the provisions carrying the same restriction in prior Acts'';

(5) in section 123, by striking ''17 days'' and inserting ''94 days'' and by striking ''17-day'' and inserting ''94-day'';

(6) in section 124, by striking ''$621,270,000'' and inserting ''$663,070,000'';

(7) in section 125, by striking ''During the period covered by this Act'' and inserting ''Through the date specified in section 106(3) of this Act''; and

(8) by adding after section 137 the following new sections:

''SEC. 138. Section 2(f)(2) of the Undetectable Firearms Act of 1988 (18 U.S.C. 922 note) shall be applied through the date specified in section 106(3) of this Act by substituting '36' for '35'.

''SEC. 139. Through the date specified in section 106(3) of this Act, amounts appropriated in section 124 of the Continuing Appropriations Act, 2023 (division A of Public Law 117–180) may be charged for any proper expense pursuant to section 1553(b)(1) of title 31, United States Code, notwithstanding the limitation in section 1553(b)(2) of such title.

''SEC. 140. Notwithstanding sections 102 and 104, amounts made available by section 101 to the Department of Defense for 'Procurement—Shipbuilding and Conversion, Navy' may be apportioned up to the rate for operations necessary for 'Columbia Class Submarine (AP)' in an amount not to exceed $3,338,413,000.

''SEC. 141. (a) Notwithstanding section 101, section 747 of title VII of division E of Public Law 117–328 shall be applied through the date specified in section 106(3) of this Act by—

''(1) substituting '2025' for '2024';

''(2) substituting '2024' for '2023' each place it appears;

''(3) substituting '2023' for '2022' each place it appears; and

''(4) substituting 'section 747 of division E of Public Law 117–328, as in effect on September 30, 2023' for 'section 747 of division E of Public Law 117–103' each place it appears.

''(b) Subsection (a) shall not take effect until the first day of the first applicable pay period beginning on or after January 1, 2024.

''SEC. 142. Section 302 of title III of Public Law 108–494 shall be applied by substituting the date specified in section 106(3) of this Act for 'December 31, 2023' each place it appears.

''SEC. 143. Amounts made available by section 101 to the Department of Homeland Security under the heading 'United States Secret Service—Operations and Support' may be apportioned up to the rate for operations necessary to carry out activities related to National Special Security Events and the 2024 Presidential Campaign.

''SEC. 144. Section 1901(e) of the Homeland Security Act of 2002 (6 U.S.C. 591(e)) shall be applied by substituting the date that is 1 day after the date specified in section 106(3) of this Act for 'the date that is 5 years after the date of the enactment of the Countering Weapons of Mass Destruction Act of 2018'.

''SEC. 145. (a) Amounts made available by section 101 for 'Department of Education—Student Aid Administration' may be apportioned up to the rate for operations necessary to ensure the continuation of student loan servicing activities, including supporting borrowers reentering repayment.

''(b) The limitation in section 302 of division H of Public Law 117–328 regarding transfers increasing any appropriation shall be applied to transfers to appropriations under the heading 'Department of Education—Student Aid Administration' through the date specified in section 106(3) of this Act by substituting '10 percent' for '3 percent' for the purposes of the continuation of basic operations, including student loan servicing, business process operations, digital customer care, common origination and disbursement, cybersecurity activities, and information technology systems.

''SEC. 146. Notwithstanding any other provision of this Act, there is hereby appropriated for fiscal year 2024, out of any money in the Treasury not otherwise appropriated, for payment to Katherine Anne Feinstein, beneficiary of Dianne Feinstein, late a Senator from the State of California, $174,000.

''This division may be cited as the 'Continuing Appropriations Act, 2024'.''.

This division may be cited as the ''Further Continuing Appropriations Act, 2024''.

DIVISION B—OTHER MATTERS

TITLE I—EXTENSIONS AND OTHER MATTERS

SEC. 101. EXTENSION OF CERTAIN PROVISIONS OF THE COMPACTS OF FREE ASSOCIATION WITH THE FEDERATED STATES OF MICRONESIA AND THE REPUBLIC OF THE MARSHALL ISLANDS.

Section 2101 of the Continuing Appropriations Act, 2024 and Other Extensions Act (Public Law 118–15; 137 Stat. 81) is amended—

(1) in the section heading, by striking ''**COMPACT OF FREE ASSOCIATION WITH THE FEDERATED STATES OF MICRONESIA**'' and inserting ''**COMPACTS OF FREE ASSOCIATION WITH THE FEDERATED STATES OF MICRONESIA AND THE REPUBLIC OF THE MARSHALL ISLANDS**''; and

(2) in subsection (a)(1)—

(A) by striking ''November 17, 2023'' and inserting ''February 2, 2024'' ;

(B) by inserting '', section 103(f)(2) of the Compact of Free Association Amendments Act of 2003 (48 U.S.C. 1921b(f)(2)), and sections 211, 213, and 216 of the Compact of Free Association between the Government of the United States of America and the Government of the Republic of the Marshall Islands set forth in section 201(b) of that Act (48 U.S.C. 1921 note; Public Law 108–188)'' before ''shall,'';

(C) by inserting ''or the Republic of the Marshall Islands, as applicable'' before '', continue''; and

(D) by striking ''of that Compact'' and inserting ''of the applicable Compact''.

SEC. 102. EXTENSION OF AGRICULTURAL PROGRAMS.

(a) EXTENSION.—Except as otherwise provided in this section and the amendments made by this section, notwithstanding any other provision of law, the authorities (including any limitations on the authorities) provided by each provision of the Agriculture Improvement Act of 2018 (Public Law 115–334; 132 Stat. 4490) and each provision of law amended by that Act (and for mandatory programs at such funding levels), as in effect on September 30, 2023, shall continue, and the authorities shall be carried out, until the later of—

(1) September 30, 2024; or

(2) the date specified in the provision of that Act or the provision of law amended by that Act.

(b) DISCRETIONARY PROGRAMS.—Programs carried out using the authorities described in subsection (a) that are funded by discretionary appropriations (as defined in section 250(c) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 900(c))) shall be subject to the availability of appropriations.

(c) COMMODITY PROGRAMS.—

(1) IN GENERAL.—The provisions of law applicable to a covered commodity (as defined in section 1111 of the Agricultural Act of 2014 (7 U.S.C. 9011)), a loan commodity (as defined in section 1201 of that Act (7 U.S.C. 9031)), sugarcane, or sugar beets for the 2023 crop year pursuant to title I of that Act (7 U.S.C. 9011 et seq.) and each amendment made by subtitle C of title I of the Agriculture Improvement Act of 2018 (Public Law 115–334; 132 Stat. 4511) shall be applicable to the 2024 crop year for that covered commodity, loan commodity, sugarcane, or sugar beets.

(2) DAIRY.—

(A) BASE PRODUCTION HISTORY ADJUSTMENT FOR PARTICIPATING DAIRY OPERATIONS WITH PRODUCTION OF LESS THAN 5,000,000 POUNDS.—Section 1405(a) of the Agricultural Act of 2014 (7 U.S.C. 9055(a)) is amended—

(i) in paragraph (1), by inserting ''paragraph (4) and'' before ''subsection (b)''; and

(ii) by adding at the end the following:

''(4) BASE PRODUCTION HISTORY ADJUSTMENT FOR PARTICIPATING DAIRY OPERATIONS WITH PRODUCTION OF LESS THAN 5,000,000 POUNDS.—

''(A) IN GENERAL.—If the amount determined under paragraph (1) is less than 5,000,000 pounds, the production history of the dairy operation for dairy margin coverage shall be equal to—

''(i) the amount determined under paragraph (1); plus

''(ii) 75 percent of the amount described in subparagraph (B).

''(B) AMOUNT.—The amount referred to in subparagraph (A)(ii) is, with respect to a dairy operation, the amount equal to—

''(i) the production volume of such dairy operation for the 2019 milk marketing year; minus

''(ii) the amount determined under paragraph (1).''.

(B) DAIRY MARGIN COVERAGE.—

(i) DURATION.—Section 1409 of the Agricultural Act of 2014 (7 U.S.C. 9059) is amended by striking ''2023'' and inserting ''2024''.

(ii) AVAILABILITY OF PREMIUM DISCOUNT.—With respect to coverage for calendar year 2024, section 1407(g) of the Agricultural Act of 2014 (7 U.S.C. 9057(g)) shall only apply to a participating dairy operation with respect to which the premium was reduced in accordance with that section for calendar year 2023.

(C) DAIRY FORWARD PRICING PROGRAM.—Section 1502(e)(2) of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 8772(e)(2)) is amended by striking ''2026'' and inserting ''2027''.

(3) EXTENSION OF PAYMENT AMOUNT.—Section 1116(d) of the Agricultural Act of 2014 (7 U.S.C. 9016(d)) is amended, in the matter preceding paragraph (1), by striking ''2018'' and inserting ''2024''.

(4) SUSPENSION OF PERMANENT PRICE SUPPORT AUTHORITIES.—The provisions of law specified in—

(A) subsections (a) and (b) of section 1602 of the Agricultural Act of 2014 (7 U.S.C. 9092)—

(i) shall not be applicable to the 2024 crops of covered commodities (as defined in section 1111 of that Act (7 U.S.C. 9011)), cotton, and sugar; and

(ii) shall not be applicable to milk through December 31, 2024; and

(B) section 1602(c) of that Act (7 U.S.C. 9092(c)) shall not be applicable to the crops of wheat planted for harvest in calendar year 2024.

(d) OTHER PROGRAMS.—

(1) CONSERVATION.—

(A) GRASSROOTS SOURCE WATER PROTECTION PROGRAM.—Section 1240O(b)(3) of the Food Security Act of 1985 (16 U.S.C. 3839bb–2(b)(3)) is amended—

(i) by striking the period at the end and inserting ''; and'';

(ii) by striking ''use $5,000,000'' and inserting the following: ''use—

''(A) $5,000,000''; and

(iii) by adding at the end the following:

''(B) $1,000,000 beginning in fiscal year 2024, to remain available until expended.''.

(B) VOLUNTARY PUBLIC ACCESS AND HABITAT INCENTIVE PROGRAM.—Section 1240R(f)(1) of the Food Security Act of 1985 (16 U.S.C. 3839bb–5(f)(1)) is amended—

(i) by striking ''and'' after ''2018,''; and

(ii) by inserting '', and $10,000,000 for fiscal year 2024'' before the period at the end.

(C) FERAL SWINE ERADICATION AND CONTROL PILOT PROGRAM.—Section 2408(g)(1) of the Agriculture Improvement Act of 2018 (7 U.S.C. 8351 note; Public Law 115–334) is amended by inserting ''and $15,000,000 for fiscal year 2024'' before the period at the end.

(2) TRADE.—Section 302(h)(2) of the Bill Emerson Humanitarian Trust Act (7 U.S.C. 1736f–1(h)(2)) is amended by striking ''2023'' and inserting ''2024''.

(3) NUTRITION.—Section 203D(d)(5) of the Emergency Food Assistance Act of 1983 (7 U.S.C. 7507(d)(5)) is amended by striking ''2023'' and inserting ''2024''.

(4) RURAL ECONOMIC DEVELOPMENT PROGRAM.—Section 313B(e)(2) of the Rural Electrification Act of 1936 (7 U.S.C. 940c–2(e)(2)) is amended by striking ''and 2023'' and inserting ''through 2024''.

(5) RESEARCH.—

(A) SCHOLARSHIPS FOR STUDENTS.—Section 1446 of the National Agricultural Research, Extension, and Teaching Policy Act of 1977 (7 U.S.C. 3222a) is amended—

(i) in subsection (a)(3), by striking ''three'' and inserting ''4''; and

(ii) in subsection (b)(1)—

(I) by striking ''Of'' and inserting the following:

''(A) FUNDING.—Of''; and

(II) by adding at the end the following:

''(B) ADDITIONAL FUNDING.—Not later than 30 days after the date of enactment of this subparagraph, of the funds of the Commodity Credit Corporation, the Secretary shall make available to carry out this section $10,000,000, to remain available until expended.''.

(B) URBAN, INDOOR, AND OTHER EMERGING AGRICULTURAL PRODUCTION RESEARCH, EDUCATION, AND EXTENSION INITIATIVE.—Section 1672E(d)(1) of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 5925g(d)(1)) is amended—

(i) by striking the period at the end and inserting ''; and'';

(ii) by striking ''section $10,000,000'' and inserting the following: ''section—

''(A) $10,000,000''; and

(iii) by adding at the end the following:

''(B) $2,000,000 for fiscal year 2024, to remain available until expended.''.

(C) FOUNDATION FOR FOOD AND AGRICULTURE RESEARCH.—Section 7601(g)(1)(A) of the Agricultural Act of 2014 (7 U.S.C. 5939(g)(1)(A)) is amended by adding at the end the following:

''(iii) ADDITIONAL FUNDING.—Not later than 30 days after the date of enactment of this clause, of the funds of the Commodity Credit Corporation, the Secretary shall transfer to the Foundation to carry out this section $37,000,000, to remain available until expended.''.

(D) GRAZINGLANDS RESEARCH LABORATORY.—Section 7502 of the Food, Conservation, and Energy Act of 2008 (Public Law 110–246; 122 Stat. 2019; 132 Stat. 4817) shall be applied by substituting ''the period beginning on the date of enactment of this Act and ending on September 30, 2024'' for ''the 15-year period beginning on the date of enactment of this Act''.

(6) ENERGY.—

(A) BIOBASED MARKETS PROGRAM.—Section 9002(k)(1) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8102(k)(1)) is amended by striking ''2023'' and inserting ''2024''.

(B) BIOENERGY PROGRAM FOR ADVANCED BIOFUELS.—Section 9005(g)(1)(F) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8105(g)(1)(F)) is amended by striking ''2023'' and inserting ''2024''.

(C) FEEDSTOCK FLEXIBILITY PROGRAM.—Section 9010(b) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8110(b)) is amended in paragraphs (1)(A) and (2)(A) by striking ''2023'' each place it appears and inserting ''2024''.

(7) HORTICULTURE.—

(A) ORGANIC PRODUCTION AND MARKET DATA INITIATIVES.—Section 7407(d)(1) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 5925c(d)(1)) is amended—

(i) in subparagraph (A), by striking ''and'' at the end;

(ii) in subparagraph (B), by striking the period at the end and inserting ''; and''; and

(iii) by adding at the end the following:

''(C) $1,000,000 for fiscal year 2024.''.

(B) MODERNIZATION AND IMPROVEMENT OF INTERNATIONAL TRADE TECHNOLOGY SYSTEMS AND DATA COLLECTION.—Section 2123(c)(4) of the Organic Foods Production Act of 1990 (7 U.S.C. 6522(c)(4)) is amended, in the matter preceding subparagraph (A), by inserting ''and $1,000,000 for fiscal year 2024'' after ''2019''.

(C) NATIONAL ORGANIC CERTIFICATION COST-SHARE PROGRAM.—Section 10606(d)(1)(C) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 6523(d)(1)(C)) is amended by striking ''and 2023'' and inserting ''through 2024''.

(D) MULTIPLE CROP AND PESTICIDE USE SURVEY.—Section 10109(c)(1) of the Agriculture Improvement Act of 2018 (Public Law 115–334; 132 Stat. 4906) is amended by inserting ''and $100,000 for fiscal year 2024'' after ''2019''.

(8) MISCELLANEOUS.—

(A) PIMA AGRICULTURE COTTON TRUST FUND.—Section 12314 of the Agricultural Act of 2014 (7 U.S.C. 2101 note; Public Law 113–79) is amended—

(i) in subsection (b), in the matter preceding paragraph (1), by striking ''2023'' and inserting ''2024''; and

(ii) in subsection (h), by striking ''2023'' and inserting ''2024''.

(B) AGRICULTURE WOOL APPAREL MANUFACTURERS TRUST FUND.—Section 12315 of the Agricultural Act of 2014 (7 U.S.C. 7101 note; Public Law 113–79) is amended by striking ''2023'' each place it appears and inserting ''2024''.

(C) WOOL RESEARCH AND PROMOTION.—Section 12316(a) of the Agricultural Act of 2014 (7 U.S.C. 7101 note; Public Law 113–79) is amended by striking ''2023'' and inserting ''2024''.

(D) EMERGENCY CITRUS DISEASE RESEARCH AND DEVELOPMENT TRUST FUND.—Section 12605(d) of the Agriculture Improvement Act of 2018 (7 U.S.C. 7632 note; Public Law 115–334) is amended by striking ''2023'' and inserting ''2024''.

(E) SHEEP PRODUCTION AND MARKETING GRANT PROGRAM.—Section 209(c) of the Agricultural Marketing Act of 1946 (7 U.S.C. 1627a(c)) is amended by inserting ''and $400,000 for fiscal year 2024,'' after ''2019,''.

(9) EXCEPTIONS.—Subsection (a) shall not apply with respect to mandatory funding under the following provisions of law:

(A) Section 1614(c)(4) of the Agricultural Act of 2014 (7 U.S.C. 9097(c)(4)).

(B) Subparagraphs (A) and (B) of section 1241(a)(1) of the Food Security Act of 1985 (16 U.S.C. 3841(a)(1)).

(e) REPORTS.—

(1) IN GENERAL.—Subject to paragraph (2), any requirement under a provision of law described in subsection (a) to submit a report on a recurring basis, and the final report under which was required to be submitted during fiscal year 2023, shall continue, and the requirement shall be carried out, on the same recurring basis, until the later of the dates specified in paragraphs (1) and (2) of that subsection.

(2) APPROPRIATIONS REQUIRED.—If discretionary appropriations (as defined in section 250(c) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 900(c))) are required to carry out a reporting requirement described in paragraph (1), the application of that paragraph to that reporting requirement shall be subject to the availability of appropriations.

(f) RESCISSION.—Of the unobligated balances of amounts made available under section 9003(g)(1)(A) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8103(g)(1)(A)), $177,350,000 is rescinded.

(g) EFFECTIVE DATE.—This section and the amendments made by this section (except subsection (f) and the amendments made by subparagraphs (A) and (C) of subsection (d)(5)) shall be applied and administered as if this section and those amendments had been enacted on September 30, 2023.

TITLE II—HEALTH AND HUMAN SERVICES

Subtitle A—Public Health Extenders

SEC. 201. EXTENSION FOR COMMUNITY HEALTH CENTERS, NATIONAL HEALTH SERVICE CORPS, AND TEACHING HEALTH CENTERS THAT OPERATE GME PROGRAMS.

(a) TEACHING HEALTH CENTERS THAT OPERATE GRADUATE MEDICAL EDUCATION PROGRAMS.—Section 340H(g)(1) of the Public Health Service Act (42 U.S.C. 256h(g)) is amended by striking ''and $16,635,616 for the period beginning on October 1, 2023, and ending on November 17, 2023'' and inserting ''$16,635,616 for the period beginning on October 1, 2023, and ending on November 17, 2023, and $21,834,247 for the period beginning on November 18, 2023, and ending on January 19, 2024''.

(b) EXTENSION FOR COMMUNITY HEALTH CENTERS.—Section 10503(b)(1)(F) of the Patient Protection and Affordable Care Act (42 U.S.C. 254b–2(b)(1)(F)), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended by striking ''and $526,027,397 for the period beginning on October 1, 2023, and ending on November 17, 2023'' and inserting ''$526,027,397 for the period beginning on October 1, 2023, and ending on November 17, 2023, and $690,410,959 for the period beginning on November 18, 2023, and ending on January 19, 2024''.

(c) EXTENSION FOR THE NATIONAL HEALTH SERVICE CORPS.—Section 10503(b)(2)(I) of the Patient Protection and Affordable Care Act (42 U.S.C. 254b–2(b)(2)(I)), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended by striking ''$40,767,123 for the period beginning on October 1, 2023, and ending on November 17, 2023'' and inserting ''$40,767,123 for the period beginning on October 1, 2023, and ending on November 17, 2023, and $53,506,849 for the period beginning on November 18, 2023, and ending on January 19, 2024''.

(d) APPLICATION OF PROVISIONS.—Amounts appropriated pursuant to the amendments made by this section shall be subject to the requirements contained in Public Law 117–328 for funds for programs authorized under sections 330 through 340 of the Public Health Service Act (42 U.S.C. 254b et seq.).

(e) CONFORMING AMENDMENT.—Section 3014(h)(4) of title 18, United States Code, is amended by striking ''and section 2321(d) of the Continuing Appropriations Act, 2024 and Other Extensions Act'' and inserting ''section 2321(d) of the Continuing Appropriations Act, 2024 and Other Extensions Act, and section 201(d) of the Further Continuing Appropriations and Other Extensions Act, 2024''.

SEC. 202. EXTENSION OF SPECIAL DIABETES PROGRAMS.

(a) EXTENSION OF SPECIAL DIABETES PROGRAMS FOR TYPE I DIABETES.—Section 330B(b)(2)(E) of the Public Health Service Act (42 U.S.C. 254c–2(b)(2)(E)), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended by striking ''$19,726,027 for the period beginning on October 1, 2023, and ending on November 17, 2023'' and inserting ''$19,726,027 for the period beginning on October 1, 2023, and ending on November 17, 2023, and $25,890,411 for the period beginning on November 18, 2023, and ending on January 19, 2024''.

(b) EXTENDING FUNDING FOR SPECIAL DIABETES PROGRAMS FOR INDIANS.—Section 330C(c)(2)(E) of the Public Health Service Act (42 U.S.C. 254c–3(c)(2)(E)), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended by striking ''$19,726,027 for the period beginning on October 1, 2023, and ending on November 17, 2023'' and inserting ''$19,726,027 for the period beginning on October 1, 2023, and ending on November 17, 2023, and $25,890,411 for the period beginning on November 18, 2023, and ending on January 19, 2024''.

SEC. 203. NATIONAL HEALTH SECURITY EXTENSIONS.

(a) Section 319(e)(8) of the Public Health Service Act (42 U.S.C. 247d(e)(8)) is amended by striking ''November 17, 2023'' and inserting ''January 19, 2024''.

(b) Section 319L(e)(1)(D) of the Public Health Service Act (42 U.S.C. 247d–7e(e)(1)(D)) is amended by striking ''on the date that is 17 years after the date of enactment of the Pandemic and All-Hazards Preparedness Act'' and inserting ''after January 19, 2024''.

(c) Section 319L–1(b) of the Public Health Service Act (42 U.S.C. 247d–7f(b)) is amended by striking ''at the end of the 17-year period that begins on the date of enactment of this Act'' and inserting ''after January 19, 2024''.

(d)(1) Section 2811A(g) of the Public Health Service Act (42 U.S.C. 300hh–10b(g)) is amended by striking ''November 17, 2023'' and inserting ''January 19, 2024''.

(2) Section 2811B(g)(1) of the Public Health Service Act (42 U.S.C. 300hh–10c(g)(1)) is amended by striking ''November 17, 2023'' and inserting ''January 19, 2024''.

(3) Section 2811C(g)(1) of the Public Health Service Act (42 U.S.C. 300hh–10d(g)(1)) is amended by striking ''November 17, 2023'' and inserting ''January 19, 2024''.

(e) Section 2812(c)(4)(B) of the Public Health Service Act (42 U.S.C. 300hh–11(c)(4)(B)) is amended by striking ''November 17, 2023'' and inserting ''January 19, 2024''.

Subtitle B—Medicaid

SEC. 301. DELAYING CERTAIN DISPROPORTIONATE SHARE PAYMENT CUTS.

Section 1923(f)(7)(A) of the Social Security Act (42 U.S.C. 1396r–4(f)(7)(A)) is amended—

(1) in clause (i), by striking ''November 18, 2023'' and inserting ''January 20, 2024''; and

(2) in clause (ii), by striking ''November 18, 2023'' and inserting ''January 20, 2024''.

SEC. 302. MEDICAID IMPROVEMENT FUND REDUCTION.

Section 1941(b)(3)(A) of the Social Security Act (42 U.S.C. 1396w–1(b)(3)(A)), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended by striking ''$6,357,117,810'' and inserting ''5,796,117,810''.

Subtitle C—Human Services

SEC. 401. EXTENSION OF CHILD AND FAMILY SERVICES PROGRAMS.

Activities authorized by part B of title IV of the Social Security Act shall continue through January 19, 2024, in the manner authorized for fiscal year 2023, and out of any money in the Treasury of the United States not otherwise appropriated, there are hereby appropriated such sums as may be necessary for such purpose.

SEC. 402. SEXUAL RISK AVOIDANCE EDUCATION EXTENSION.

Section 510 of the Social Security Act (42 U.S.C. 710), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) by striking ''and for the period beginning on October 1, 2023, and ending on November 17, 2023'' and inserting '', for the period beginning on October 1, 2023, and ending on November 17, 2023, and for the period beginning on November 18, 2023, and ending on January 19, 2024''; and

(ii) by striking ''with respect to such period'' and inserting ''with respect to the applicable period'';

(B) in paragraphs (2)(A), by striking ''for the period'' and inserting ''for the applicable period''; and

(C) in paragraphs (2)(B), by striking ''for the period'' and inserting ''for the applicable period''; and

(2) in subsection (f)—

(A) in paragraph (1), by striking ''and for the period beginning on October 1, 2023, and ending on November 17, 2023, an amount equal to the pro rata portion of the amount appropriated for the corresponding period for fiscal year 2023'' and inserting ''for the period beginning on October 1, 2023, and ending on November 17, 2023, an amount equal to the pro rata portion of the amount appropriated for the corresponding period for fiscal year 2023, and for the period beginning on November 18, 2023, and ending on January 19, 2024, an amount equal to the pro rata portion of the amount appropriated for the corresponding period for fiscal year 2023''; and

(B) in paragraph (2), by striking ''for the period'' and inserting ''for the applicable period''.

SEC. 403. PERSONAL RESPONSIBILITY EDUCATION EXTENSION.

Section 513 of the Social Security Act (42 U.S.C. 713), as amended by the Continuing Appropriations Act, 2024 and Other Extensions Act, is further amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) in subparagraph (A), by striking ''and for the period beginning on October 1, 2023, and ending on November 17, 2023,'' and inserting '', for the period beginning on October 1, 2023, and ending on November 17, 2023, and for the period beginning on November 18, 2023, and ending on January 19, 2024,''; and

(ii) in subparagraph (B)(i), by inserting after ''November 17, 2023'' the following: '', and for the period beginning on November 18, 2023, and ending on January 19, 2024'';

(iii) in subparagraph (C)(i), by striking ''for a fiscal year or the period'' and inserting ''for a fiscal year or period''; and

(B) in paragraph (3), by striking ''for a fiscal year or the period'' and inserting ''for a fiscal year or period''; and

(C) in paragraph (4)(A)—

(i) by striking ''for the period'' each place it appears and inserting ''for each period''; and

(ii) by striking ''for a fiscal year or the period'' and inserting ''for a fiscal year or period'';

(D) in paragraph (4)(B)(i), by striking ''the period described in paragraph (1)(A)'' and inserting ''each period described in paragraph (1)(A)'';

(2) in subsection (c), by striking ''for the period described in subsection (a)(1)(A)'' and inserting ''for a period described in subsection (a)(1)(A) for fiscal year 2024''; and

(3) in subsection (f)(1), by striking ''2023, and for the period beginning on October 1, 2023, and ending on November 17, 2023, an amount equal to the pro rata portion of the amount appropriated for the corresponding period for fiscal year 2023'' and inserting ''2023, for the period beginning on October 1, 2023, and ending on November 17, 2023, an amount equal to the pro rata portion of the amount appropriated for the corresponding period for fiscal year 2023, and for the period beginning on November 18, 2023, and ending on January 19, 2024, an amount equal to the pro rata portion of the amount appropriated for the corresponding period for fiscal year 2023''.

Subtitle D—Medicare

SEC. 501. EXTENDING FLOOR FOR WORK GEOGRAPHIC INDEX.

Section 1848(e)(1)(E) of the Social Security Act (42 U.S.C. 1395w–4(e)(1)(E)) is amended by striking ''January 1, 2024'' and inserting ''January 20, 2024''.

SEC. 502. REVISING PHASE-IN OF MEDICARE CLINICAL LABORATORY TEST PAYMENT CHANGES.

(a) REVISED PHASE-IN OF REDUCTIONS FROM PRIVATE PAYOR RATE IMPLEMENTATION.—Section 1834A(b)(3) of the Social Security Act (42 U.S.C. 1395m–1(b)(3)) is amended—

(1) in subparagraph (A), by striking ''2026'' and inserting ''2027''; and

(2) in subparagraph (B)—

(A) in clause (ii), by striking ''2023'' and inserting ''2024''; and

(B) in clause (iii), by striking ''2024 through 2026'' and inserting ''2025 through 2027''.

(b) REVISED REPORTING PERIOD FOR REPORTING OF PRIVATE SECTOR PAYMENT RATES FOR ESTABLISHMENT OF MEDICARE PAYMENT RATES.—Section 1834A(a)(1)(B) of the Social Security Act (42 U.S.C. 1395m–1(a)(1)(B)) is amended—

(1) in clause (i), by striking ''2023'' and inserting ''2024''; and

(2) in clause (ii), by striking ''2024'' each place it appears and inserting ''2025''.

SEC. 503. MEDICARE IMPROVEMENT FUND.

Section 1898(b)(1) of the Social Security Act (42 U.S.C. 1395iii(b)(1)) is amended by striking ''$180,000,000'' and inserting ''$466,795,056''.

TITLE III—MISCELLANEOUS EXTENSIONS

SEC. 601. COUNTER-UAS AUTHORITIES.

Section 210G(i) of the Homeland Security Act of 2002 (6 U.S.C. 124n(i)) is amended by striking ''November 18, 2023'' and inserting ''February 3, 2024''.

TITLE IV—BUDGETARY EFFECTS

SEC. 701. BUDGETARY EFFECTS.

(a) STATUTORY PAYGO SCORECARDS.—The budgetary effects of this division shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

(b) SENATE PAYGO SCORECARDS.—The budgetary effects of this division shall not be entered on any PAYGO scorecard maintained for purposes of section 4106 of H. Con. Res. 71 (115th Congress).

(c) CLASSIFICATION OF BUDGETARY EFFECTS.—Notwithstanding Rule 3 of the Budget Scorekeeping Guidelines set forth in the joint explanatory statement of the committee of conference accompanying Conference Report 105–217 and section 250(c)(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, the budgetary effects of this division shall not be estimated—

(1) for purposes of section 251 of such Act;

(2) for purposes of an allocation to the Committee on Appropriations pursuant to section 302(a) of the Congressional Budget Act of 1974; and

(3) for purposes of paragraph (4)(C) of section 3 of the Statutory Pay-As-You-Go Act of 2010 as being included in an appropriation Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Texas (Ms. GRANGER) and the gentlewoman from Connecticut (Ms. DELAURO) each will control 20 minutes.

The Chair recognizes the gentlewoman from Texas.

GENERAL LEAVE

Ms. GRANGER. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Texas?

There was no objection.

Ms. GRANGER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of the continuing resolution, H.R. 6363.

Before my discussion of the CR, I want to explain our process. At the beginning of Congress, House Republicans said they would change how Washington works. Today, we have sent seven appropriations bills totaling 75 percent of government funding. The Senate passed just three of its bills.

We still have a lot more work to do to get full-year bills enacted into law. That is why I support the Speaker's reasonable plan to continue government funding into early next year. It buys us time to agree on a top-line funding level and negotiate final bills with the Senate.

More importantly, this plan will allow us to avoid harmful government shutdowns during the holidays, prevent a last-minute omnibus, and allow us to discuss supplemental funding separately from full-year spending.

A continuing resolution is not ideal, but it is needed at this time. I thank the Speaker for choosing this very practical plan while we work out our political differences.

Mr. Speaker, I urge my colleagues to support this CR, and I reserve the balance of my time.

Ms. DELAURO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, once again, the Republican majority needs Democratic votes to govern. We are considering this bill under suspension of the rules because House Republicans could not agree to pass a rule on a bill to keep the government open and operating on behalf of the American people. They can't do it. It says something very poignant about the ability to govern and the willingness to govern.

This continuing resolution is flawed. Critically, it does nothing to help our allies. It does not include any emergency assistance for Israel, Ukraine, or our Indo-Pacific partners, for humanitarian aid, for childcare, or for disaster victims here at home.

At a time when the Departments of State and Defense need to be able to respond quickly to global crises, House Republicans would put our diplomats and warfighters under outdated funding levels into February, for more than one-third of the fiscal year.

Not only is it irresponsible to kick the can down the road for several months, but it is really a waste of taxpayer dollars, and these are folks who pride themselves on wanting to save taxpayer dollars.

This proposal also shortchanges the WIC program, the women, infants, and children program. As a result of increased participation rates, the administration requested an additional $405 million to ensure that we can meet the demand for nutrition programs. The House Republican proposal includes no additional funds and will require States to halt enrollment or scale back benefits.

A continuing resolution is a bridge to a final agreement. It should be judged on how it helps facilitate our goal, which is to update spending levels for full-year bills and the full-year bill of 2024. A so-called laddered bill makes it harder to reach a final agreement. Why? Because it doubles the likelihood of future shutdowns. In a time of global crisis, we should promote stability and not chaos.

Ultimately, we are here because House Republicans broke the June budget agreement they overwhelmingly supported that was signed into law by the President. It established a top line, the amount of money that could be translated into the dollar amount to each one of the appropriations subcommittees.

To make it simple, Mr. Speaker, it is a number that we agreed to, then you take that number, and it gets broken up into pieces. That is the majority's responsibility. I took that responsibility last December in the prior year in dealing with the allocation to each one of the 12 appropriations subcommittees. They then proceeded to waste the entire 6 weeks of the current stopgap bill overthrowing their own Speaker and pushing partisan spending measures that take us further from a final agreement.

Congress must avoid a shutdown.

I have just one point, Mr. Speaker. I think it is so interesting that we are discussing this continuing resolution at the same time—and I happen to be managing both bills—that the Labor-HHS-Education bill is on the floor and when we are going through a marathon of 146 amendments. It is the same path we were on for the last several weeks, where two bills had to be pulled from the floor because there weren't enough votes to pass them.

I don't know if there are the votes to pass the Labor-HHS bill this afternoon or this evening or tomorrow morning. I just don't know. Nevertheless, it is the same path that we are on.

Nothing is changed in looking at a continuing resolution that makes an additional proposal.

Again, Congress must avoid a shutdown. That is our responsibility. I am very aware of that. Nonetheless, we must find a path forward to finish full-year bills.

The worth of this agreement will be proven by what comes next, and the only successful path forward requires the following.

First, the majority must recognize reality and abide by the bipartisan budget agreement that accompanied the debt-limit law.

I think I am one of the few in this institution who voted against the budget agreement. I was fearful of where we would be today, and it is where we are today. Nevertheless, I understand the law of the land: It passes in the House. It passes in the Senate. The President signs it. It becomes the law of the land.

We must abide by the bipartisan budget agreement that accompanied

the debt-limit law. That means a modest increase for defense programs and maintaining nondefense investment levels. It also means adhering to the same policy framework that we have adopted on a bipartisan—that is Democrats and Republicans—bicameral—House and Senate—basis.

We have this done over and over again. That means no new poison pill riders. We have done this over and over again. We did it just last December and the prior December.

Second, the Appropriations Committee must be let loose to effectuate the agreement, and that means a good-faith negotiation to set the allocations for all 12 bills. Chair GRANGER and I have done this before, and she knows that I am ready to get to work to do it again.

In the Senate, Chair MURRAY and Ranking Member COLLINS are already on a path to dealing with following the budget agreement so that we hold down the four corners of appropriations. I am so proud that we are all women. We get it. We are on track. We know how to do this.

Lastly, we have to address the crises across the globe that threaten our allies, endangering our own national security. That means a promise—a promise—to work in good faith to bring forward an emergency supplemental bill that deals with Ukraine, Israel, humanitarian needs, our influence in the Indo-Pacific, and border security.

Why are we holding up the resources and investments to the American people? Why are we abdicating our leadership in the world community by not moving forward? Why is it when the world is clamoring for humanitarian assistance that the only people holding back humanitarian assistance in this entire Congress on the House side and on the Senate side were the Republican majority?

Mr. Speaker, let us move forward. That is the only way that we avoid finding ourselves right back here in January and February, considering another extension.

Mr. Speaker, I reserve the balance of my time.

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Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from California (Mr. CALVERT), who is the chairman of the Defense Subcommittee.

Mr. CALVERT. Mr. Speaker, I rise today in strong support of H.R. 6363, which will prevent a government shutdown.

Over the past several months, House Republicans have been hard at work passing appropriations bills to cover over 75 percent of Federal discretionary spending. We also passed the supplemental appropriations bill to support our ally, Israel.

As a chairman of the Defense Subcommittee, I am proud of our Members' work to pass a bipartisan fiscal year '24 Defense spending bill with a high level of Member input.

However, the Senate has been unable to pass all their appropriations bills in a timely manner and, unfortunately, this means we need more time to complete the FY24 appropriations process.

H.R. 6363 extends current spending to January and February of next year. This split approach incentivizes the Senate to negotiate with us on all 12 bills.

For our military, this bill ensures our troops continue their mission without fear of missing a paycheck. It also includes anomalies to keep the Columbia-class submarine, which is the top modernization priority of the Department of Defense, United States Navy, on schedule.

For those of us who have been in Congress for a shutdown, we have seen firsthand the damage it does to our military readiness. A shutdown would prevent any contract changes or new contracts for the entire Department of Defense. It would require Active-Duty servicemembers to report to work without pay. It would close essential base services for military families. It would reduce training, and it would create a long list of other hardships for the United States military.

As threats like China and Russia continue their provocation, we must avoid these failures at all costs. As an appropriator, I know how imperative it is that Congress carries out its constitutional responsibility and passes the 12 appropriations bills as soon as possible.

Mr. Speaker, I strongly urge support of this bill.

Ms. DELAURO. Mr. Speaker, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the distinguished gentlewoman from Connecticut for her leadership as former chair and ranking member. I thank my good friend from Texas, as well.

I think they are completely accurate that left to their own devices, we could have an appropriations process that would work, but I thank Chairwoman DELAURO for laying the groundwork of the crisis that we are now in.

Let us be very clear: It is the Democrats who have come to save America and to stop this dastardly shutdown. As I have listened to the debate on the Labor-HHS, all I could see was the crushing of the American spirit, the eliminating of GEAR UP and TRIO, the very programs that give a lifeline to young people across America; a stamping down of the greatest of our aspirations.

Weeks ago, the President gave to us a supplemental for Ukraine and Israel and the border, ensuring that we would be able to provide funding and engage the way we should for Defense. And now we are hearing that in a crisis, we don't even have humanitarian aid that is needed in Gaza.

All we are doing here is kicking the can, but thank goodness Democrats are able to say that we refuse to shut down the government and it is because of the cities that are so desperately in need. How dare we put our cities in this catastrophe of having a government shutdown?

In the State of Texas—I am here today to vote for this CR—172,877 Active-Duty and Reserve personnel and their families would not be paid.

What would impact the city of Houston is: $2,742,702,800 in funding to small businesses in Texas would not get that funding for creating jobs. They are the job engine of America and Houston will be devastatingly impacted;

176,276 persons traveling through Bush Intercontinental Airport and our airports in Texas would face slowdowns because TSA would not be working;

786,686 people in Texas would lose access to their nutrition programs—women, infant, and children denied food;

168,413 Federal workers in our city alone laid off, and;

3,291,584 beneficiaries would not have the SNAP program to feed their families.

This is shameful. But we are here today to ensure the government does not shut down and to make sure that, even though it is not perfect, even though the bills that we are watching that Republicans say they are doing, are literally taking the lifeline out of the hands of our fellow Americans, not doing border security, not providing humanitarian assistance that is needed, but yet Democrats stood tall. We are going to fund this at FY23. We are not going to have the draconian taking away of reproductive rights.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. DELAURO. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Texas.

Ms. JACKSON LEE. Mr. Speaker, we would not have the denying of reproductive rights, discriminating against people because of their LGBTQ+, or discriminating against them because of race or immigrant status. We won't have any of those draconian provisions in there. Thank God we will not have the cuts that we have seen that would hurt the American people, hurt Texans, hurt Houstonians.

The CR is the right way right now because we have no other door, and it will be Democrats that will save America, save our 50 States, save Texas, save our cities, save Houston. I am here today to ensure that we move forward so that we can do what is right by the American people.

Mr. Speaker, when Congress fails to do its job, the consequences are real.

Families suffer, the economy takes a hit, and government costs rise—all unnecessarily.

H.R. 6363, Further Continuing Appropriations, and other Extensions Act of 2024 proves one thing, this weak Republican majority is unable to govern without help from the Democratic Caucus.

Instead of working to finish the FY 2024 funding process between now and when the first CR was enacted, House Republicans wasted time by ousting their own leader, further propelling the House into chaos and

bringing partisan bills to the floor that not only have zero chance of becoming law but include massive cuts and poison pill riders that move us further apart, not closer to resolution.

H.R. 6363 would avoid a government shutdown today, but kicks the can down the road and adds unnecessary complexities that will increase the likelihood of future shutdowns by creating two separate CR dates.

January 19, 2024: Agriculture, Energy and Water, Military Construction and Veterans Affairs and Transportation, Housing and Urban Development.

February 2, 2024: The remaining eight.

This legislation also lacks emergency funds requested by the Biden Administration to accommodate increased participation in WIC.

An estimated $405 million is needed in the second quarter is needed to administer the program.

This legislation also lacks emergency supplemental funding for Ukraine, Israel, humanitarian assistance, childcare, disaster victims, broadband, Indo-Pacific allies, and a number of other pressing priorities.

Although this legislation is flawed in many significant ways, a government shut down would be devastating for Americans across the country.

A government shutdown would hurt hard working families in Texas:

172,877 active duty and reserve personnel serving our nation's armed forces in Texas would be forced to go without the pay they earn during a shutdown.

The Small Business Administration would stop processing small business loans, halting a program that provides $2,742,702,800 in funding to small businesses in Texas every year.

176,276 people flying through Texas airports every day would face potential delays and safety concerns due to staffing impacts on TSA agents and air traffic controllers.

786,686 people in Texas would soon lose access to Special Supplemental Nutrition Program for Women, Infants, and Children (WIC) benefits.

168,413 federal workers in Texas would be furloughed or forced to work without pay, in addition to the many employees of businesses with government contracts who could be laid off, furloughed, or see their hours cut.

Workers at the Food and Drug Administration (FDA) would be sidelined, risking interruptions and delays to the 892 food safety, pharmaceutical manufacturing, and other inspections conducted in Texas last year.

The Department of Agriculture would be forced to stop processing housing loans, which provide $456,125,359 in funding to help 2,742 families in rural Texas communities buy homes every year.

The Department of Agriculture would be forced to stop processing farm loans which provide $209,391,000 in funding for farmers in Texas every year.

3,291,584 Supplemental Nutrition Assistance Program (SNAP) beneficiaries in Texas would lose access to benefits in a prolonged shutdown.

5,413,161 people who visit national parks in Texas every year would be turned away or unable to fully access parks, monuments, and museums.

State governments would be forced to pay for federal services like the Temporary Assistance for Needy Families (TANF) program, potentially risking benefits for the 20,846 TANF beneficiaries in Texas.

A government shutdown would hurt working families, damage our economy, interrupt vital services, endanger our national security, and force millions of our troops and government employees to work without pay.

It is time to get serious, it is time to do the work we are required to do as Members of Congress regardless of our political stripes.

Congress has a responsibility to keep our government open, and I hope we can work with House Republicans and the Senate to facilitate the timely completion of full-year spending bills and a supplemental package.

Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from Kentucky (Mr. ROGERS), the chairman of Commerce, Justice, Science, and Related Agencies Subcommittee.

Mr. ROGERS of Kentucky. Mr. Speaker, I thank the gentlewoman for yielding me this time.

I rise today in strong support of the continuing resolution. With government funding set to expire on Friday, this legislation is necessary to ensure we avoid a harmful government shutdown. There is no other option.

The bill before us extends government funding until either January 19 or February 2 depending on the agency. It also includes temporary extensions for critical expiring programs, such as Community Health Centers, the National Flood Insurance Program, and others that are important to rural regions like Kentucky's Fifth District.

Plus, on the heels of Veterans Day, it ensures that we continue providing critical resources to our military, defending America around the world, and takes care of our country's heroic veterans.

While a CR is not my preferred method of conducting business, a government shutdown right before the holidays, does our Nation no good. We need more time to complete our fiscal year '24 to give the House a better negotiating position with the Senate so we can eventually pass full-year appropriations bills.

Mr. Speaker, I strongly urge Members to vote for this CR.

Ms. DELAURO. Mr. Speaker, I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Tennessee (Mr. FLEISCHMANN), the chairman of the Energy and Water Subcommittee.

Mr. FLEISCHMANN. Mr. Speaker, I thank the chairwoman for yielding.

Mr. Speaker, I rise in support of H.R. 6363, the Further Continuing Appropriations Act. I applaud Speaker JOHNSON for his leadership in avoiding a harmful government shutdown, especially near the holidays. I also thank Chairwoman GRANGER for her work in putting together this clean continuing resolution.

No one dislikes CRs more than the Appropriations Committee. As chairman of the Energy and Water Appropriations Subcommittee, I know the importance of enacting full-year bills to address issues like the nuclear weapons modernization programs at the Department of Energy and the navigation, flood and storm-damage reduction projects of the Army Corps of Engineers.

House Republicans all agree we need to get the Federal Government on a more fiscally responsible path, but lengthy government shutdowns don't save money. They actually cost more money. The CR will give us time to reach an agreement on a top-line spending level and to negotiate final bills with the United States Senate.

The two-step deadlines will also prevent a massive omnibus right before the holidays. A vote in favor of this continuing resolution is the only fiscally responsible vote.

Mr. Speaker, I urge my colleagues to support the bill.

Ms. DELAURO. Mr. Speaker, I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from Ohio (Mr. JOYCE), the chairman of the Homeland Security Subcommittee.

Mr. JOYCE of Ohio. Mr. Speaker, I rise today in support of the continuing resolution.

Every Member of this body has a duty to ensure that the core, constitutional responsibilities of our government are funded. That work is not easy. Our Democratic colleagues will, of course, have different views on the top-line spending levels and we will have to work through those sharp differences in spending and policy preferences.

Republicans already passed seven fiscal year 2024 bills through the House outlining our priorities. Each of those bills was considered individually and allowed Members of both parties to offer amendments considered on the merits.

Passing bills through regular order is not as clean or as easy as we would like it to be, but it is a better alternative than one huge omnibus bill passed right before Christmas. There is no question about it: More work will be required to enact all 12 appropriations bills into law. The bill before us gives us the time necessary to agree on a top-line spending amount and negotiate difficult policy choices in the final fiscal year 2024 appropriations bills.

Mr. Speaker, I thank the chairwoman of the full committee, Ms. GRANGER, for her knowledge, her leadership, and tireless efforts to bring these appropriations bills to the floor, and I look forward to working alongside her as we finish the fiscal year 2024 spending bills.

Ms. DELAURO. Mr. Speaker, I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Maryland (Mr. HARRIS), the chairman of Agriculture Subcommittee.

Mr. HARRIS. Mr. Speaker, I rise today to support H.R. 6363, a bill that would keep the government operating

while putting Congress on a path toward fiscal responsibility. We simply can't continue to pass large, bloated omnibus appropriations bills just before Christmas, and this bill is a new approach to break the cycle.

Moody's changed the outlook of the Nation's debt on Friday to negative. Rising interest rates from Bidenomics, the sharp increase in public debt, and a lack of agreement on measures to reduce the public deficit led to that downgrade.

This should be a wake-up call for all of us. This bill gives us time to complete our work in a fiscally responsible manner while working toward a more normal appropriations process.

Additionally, I would specifically address concerns for funding of the WIC program. I have heard our colleagues on the other side of the aisle use scare tactics and a straw man that this bill does not provide enough funding for WIC and the States will have to have a wait list for participants. Nothing could be further from the absolute truth.

Let me remind everyone that provisions in the first CR continue in this bill, so the Department of Agriculture has the authority to maintain WIC participation, period.

If States need more money, they should ask USDA for funding, not start wait lists. USDA and OMB have the authority to work together to fully fund the program, and if they don't, it is 100 percent the fault of the Biden administration.

It is shameful that advocacy groups and the Biden administration's team use such scare tactics when they know full well they have the ability to fully fund WIC for the duration of this continuing resolution.

I thank Speaker JOHNSON for his leadership in restoring fiscal restraint and supporting a new approach to control spending.

I also thank Chairwoman GRANGER for her leadership and dedication in moving the FY24 House appropriations bills forward. The world has taken notice of the unsustainable spending and debt which undermines our credibility as a world leader.

Mr. Speaker, I strongly urge my colleagues to support H.R. 6363 to put us on the path to fiscal responsibility.

□ 1630

Ms. DELAURO. Mr. Speaker, I yield myself the balance of my time to close.

As you know, Mr. CALVERT is the chair of the Defense Appropriations Subcommittee and a very respected member. I don't see him on the floor now. He is someone who cares deeply about our national security here at home and our international obligations and responsibilities.

I mention a couple of things in this context. As of this bill, $28 billion for the Department of Defense is held up until next February, and that depends whether or not we can come to agreement. Next February, $28 billion to the Department of Defense.

The other piece of this is that the State Foreign Operations, and Related Agencies Subcommittee and the Defense Subcommittee have shared responsibilities. As you know from reading this laddered approach, those two bills will not get to a continuing resolution until February 2.

What do they do that has relevance in this period of time? The State, Foreign Operations and Related Agencies Subcommittee has a very small amount of money in which they can move humanitarian assistance in this global crisis that we have and the world clamoring for humanitarian assistance.

Now, the State, Foreign Operations and Related Agencies Subcommittee and the Defense Subcommittee share some other pieces which have to do with funding for Ukraine and funding for Israel. The $3.3 billion to Israel is held up until next February, and money for Ukraine, which is depleted, is nowhere to be found; so we are walking off the international stage. We have abdicated a moral responsibility to Israel and Ukraine—not unlike what happened in 1938 with appeasement—and to humanitarian assistance. Think about who was responsible for that.

There is another piece of this which I think is very, very interesting. We have seen the delay. It has been 5 months since we had the budget agreement in June, so 5 months of delay there. Then another 45 days of delay.

I said a few moments ago, given what we have seen on the floor with regard to Labor-HHS today, I don't understand what is going to change in this next go-round. There is every opportunity for further delays. Further delays.

What happens then is we move toward something called sequestration. Let me translate it into real terms. Those are across-the-board cuts in every single area, both domestic and international. That is what the law has done here.

There appears to be no understanding or no consideration for the movement of where we need to go. We have a history now of delay after delay after delay, and I don't see anything that portends a change in that activity or behavior.

With regard to those across-the-board cuts, if all 12 appropriations bills are not passed—not 8, not 4—and there is one hanging out there, that across-the-board cut comes crashing down on our heads. I think people just need to know this information and fully understand.

I don't want a government shutdown—I don't—but I want to fully understand what the stakes are. I have to believe that every Member of this body wants to know what the stakes are and what is actually in these bills.

Finally, I am going back to something I said earlier: Who is holding up the resources that the American people are clamoring for, whether it is their health, their education, or their ability for a job? Every bill that we have seen on this floor curtails and cuts back in a remarkable way.

In the Labor-HHS bill, they are taking us back to 2008 numbers. The resources that the American public needs to thrive are being cut back. People in this country are living paycheck to paycheck, and we are doing nothing to help them deal with their cost of living. I believe that they know that. On the domestic front, we are short-changing the American people.

Let's get to the international scene. Who is holding up aid to Israel? Who is holding up funding the support for Ukraine? When did we believe that Vladimir Putin has noble intentions? He would gobble it up in a nanosecond. Who would believe who was holding up humanitarian assistance?

We have a moral responsibility. We are watching children in Ukraine, Israel, and Gaza dying, but we don't have the strength to blow past this and say let's do what we have been charged to do by this Constitution and carry out our duty.

House Republicans are holding up all of these critical security funding needs. Think about it and think about how we should break the logjam with people who know better in this institution. Get us those top-line numbers. Get us the allocations. Get the appropriations process on track. Fund the bills for 2024.

Mr. Speaker, I yield back the balance of my time.

Ms. GRANGER. Mr. Speaker, I urge my colleagues to support this bill, and I yield back the balance of my time.

The SPEAKER pro tempore (Mr. CRAWFORD). The question is on the motion offered by the gentlewoman from Texas (Ms. GRANGER) that the House suspend the rules and pass the bill, H.R. 6363, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Ms. GRANGER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2024

The SPEAKER pro tempore. Pursuant to House Resolution 864 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 5894.

Will the gentleman from New Jersey (Mr. VAN DREW) kindly resume the chair.

□ 1638

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole

House on the state of the Union for the further consideration of the bill (H.R. 5894) making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024, and for other purposes, with Mr. VAN DREW (Acting Chair) in the chair.

The Clerk read the title of the bill.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. When the Committee of the Whole rose earlier today, a request for a recorded vote on amendment No. 76 printed in part B of House Report 118–272 offered by the gentleman from Arizona (Mr. BIGGS) had been postponed.

Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in part B of House Report 118–272 on which further proceedings were postponed, in the following order:

Amendment No. 1 by Mrs. MILLER of Illinois.

Amendment No. 28 by Mr. GOOD of Virginia.

Amendment No. 32 by Mr. GOOD of Virginia.

Amendment No. 33 by Mr. ROSENDALE of Montana.

Amendment No. 35 by Mr. MILLS of Florida.

Amendment No. 55 by Mr. GOOD of Virginia.

Amendment No. 69 by Mr. BIGGS of Arizona.

Amendment No. 70 by Mr. BIGGS of Arizona.

Amendment No. 71 by Mr. BIGGS of Arizona.

Amendment No. 76 by Mr. BIGGS of Arizona.

The Chair will reduce to 2 minutes the minimum time for any electronic vote after the first vote in this series.

AMENDMENT NO. 1 OFFERED BY MRS. MILLER OF ILLINOIS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 1, printed in part B of House Report 118–272 offered by the gentlewoman from Illinois (Mrs. MILLER), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 131, noes 300, not voting 8, as follows:

[Roll No. 648]

AYES—131

Alford
Allen
Babin
Banks
Bean (FL)
Bentz
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Burchett
Burgess
Burlison
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Cline
Cloud
Clyde
Collins
Comer
Crane
Curtis
Davidson
DesJarlais
Donalds
Duncan
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fulcher
Gaetz
Gallagher
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Grothman
Guest
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Houchin
Hudson
Hunt
Jackson (TX)
Jordan
Joyce (PA)
Kelly (MS)
Kustoff
LaHood
LaMalfa
Lamborn
Latta
LaTurner
Lee (FL)
Lesko
Letlow
Loudermilk
Luna
Luttrell
Mace
Mann
Massie
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Miller (IL)
Miller-Meeks
Mills
Mooney
Moore (AL)
Moylan
Nehls
Norman
Ogles
Owens
Palmer
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rose
Rosendale
Rouzer
Roy
Santos
Scalise
Schweikert
Self
Smith (MO)
Spartz
Stauber
Stefanik
Steube
Strong
Tenney
Tiffany
Timmons
Van Duyne
Van Orden
Walberg
Waltz
Weber (TX)
Webster (FL)
Westerman
Williams (TX)
Wilson (SC)
Wittman
Yakym

NOES—300

Adams
Aderholt
Aguilar
Allred
Amo
Amodei
Armstrong
Arrington
Auchincloss
Bacon
Baird
Balderson
Balint
Barr
Barragán
Beatty
Bera
Bergman
Beyer
Bice
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Escobar
Eshoo
Espaillat
Evans
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Frost
Fry
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
González-Colón
Gottheimer
Granger
Green, Al (TX)
Griffith
Grijalva
Guthrie
Harder (CA)
Hayes
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Huizenga
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
LaLota
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Lawler
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lucas
Luetkemeyer
Lynch
Magaziner
Malliotakis
Manning
Matsui
McBath
McCarthy
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Meuser
Mfume
Miller (OH)
Miller (WV)
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Pence
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (KY)
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Steel
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Vargas
Vasquez
Veasey
Velázquez
Wagner
Wasserman Schultz
Waters
Watson Coleman
Wenstrup
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Womack
Zinke

NOT VOTING—8

Buck
Ezell
Kaptur
Moran
Mullin
Norcross
Pelosi
Radewagen

□ 1705

Mses. PRESSLEY, KELLY of Illinois, Messrs. MIKE GARCIA of California, MEUSER, and Ms. JACKSON LEE changed their vote from ''aye'' to ''no.''

Messrs. CARTER of Texas and TONY GONZALES of Texas changed their vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 28 OFFERED BY MR. GOOD OF VIRGINIA

The Acting CHAIR (Mr. MEUSER). The unfinished business is the demand for a recorded vote on amendment No. 28, printed in part B of House Report 118–272 offered by the gentleman from Virginia (Mr. GOOD), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 190, noes 241, not voting 8, as follows:

[Roll No. 649]

AYES—190

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis

Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Cline
Cloud
Clyde
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Donalds
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fleischmann
Flood
Foxx
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hinson
Houchin
Hudson
Hunt
Issa
Jackson (TX)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (PA)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moylan
Murphy
Nehls
Nunn (IA)
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rogers (AL)
Rose
Rosendale
Rouzer
Roy
Salazar
Santos
Scalise
Scott, Austin
Self
Sessions
Smith (MO)
Smith (NE)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Strong
Tenney
Tiffany
Timmons
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOES—241

Adams
Aguilar
Allred
Amo
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Bucshon
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Escobar
Eshoo
Espaillat
Evans
Fitzpatrick
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
González-Colón
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Hill
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Huizenga
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lawler
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Molinaro
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norcross
Norton
Obernolte
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (KY)
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NJ)
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)

NOT VOTING—8

Carter (TX)
Ezell
Moran
Mullin
Norman
Pelosi
Radewagen
Rodgers (WA)

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1710

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 32 OFFERED BY MR. GOOD OF VIRGINIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 32, printed in part B of House Report 118–272 offered by the gentleman from Virginia (Mr. GOOD), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 140, noes 294, not voting 5, as follows:

[Roll No. 650]

AYES—140

Alford
Allen
Arrington
Babin
Balderson
Banks
Bean (FL)
Bentz
Bergman
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Burchett
Burgess
Burlison
Cammack
Carey
Carl
Carter (TX)
Cline
Cloud
Clyde
Collins
Comer
Crane
Crawford
Crenshaw
Davidson
DesJarlais
Donalds
Duncan
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Flood
Foxx
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (MO)
Green (TN)
Greene (GA)
Grothman
Guest
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Houchin
Hunt
Issa
Jackson (TX)
Jordan
Joyce (PA)
Kelly (MS)
Kustoff
LaHood
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lesko
Loudermilk
Luetkemeyer
Luna
Luttrell
Mann
Massie
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Miller (IL)
Miller (WV)
Mills
Mooney
Moore (AL)
Moore (UT)
Moran
Ogles
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rose
Rosendale
Rouzer
Roy
Santos
Scalise
Scott, Austin
Self
Sessions
Smith (MO)
Smith (NE)
Smucker
Spartz
Stefanik
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Van Duyne
Walberg
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (TX)
Wilson (SC)
Wittman
Yakym
Zinke

NOES—294

Adams
Aderholt
Aguilar
Allred
Amo
Amodei
Armstrong
Auchincloss
Bacon
Baird
Balint
Barr
Barragán
Beatty
Bera
Beyer
Bice
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Bucshon
Budzinski
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carson
Carter (GA)
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Escobar
Eshoo
Espaillat
Evans
Fitzpatrick
Fleischmann
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
González-Colón
Gottheimer
Graves (LA)
Green, Al (TX)
Griffith
Grijalva
Guthrie
Harder (CA)
Hayes
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
LaLota
Landsman
Larsen (WA)
Larson (CT)
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Lieu
Lofgren
Lucas
Lynch
Mace
Magaziner
Malliotakis
Manning
Matsui
McBath

McCarthy
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Meuser
Mfume
Miller (OH)
Miller-Meeks
Molinaro
Moolenaar
Moore (WI)
Morelle
Moskowitz
Moulton
Moylan
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Owens
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (AL)
Rogers (KY)
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NJ)
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Waltz
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Womack

NOT VOTING—5

Ezell
Mullin
Norman
Pelsoi
Radewagen

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1714

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 33 OFFERED BY MR. ROSENDALE

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 33, printed in part B of House Report 118–272 offered by the gentleman from Montana (Mr. ROSENDALE), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 183, noes 251, not voting 5, as follows:

[Roll No. 651]

AYES—183

Alford
Allen
Armstrong
Arrington
Babin
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burgess
Burlison
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Ciscomani
Cline
Cloud
Clyde
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
D'Esposito
Davidson
DesJarlais
Donalds
Duncan
Dunn (FL)
Edwards
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Flood
Foxx
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (OH)
Johnson (SD)
Jordan
Joyce (PA)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
Lesko
Loudermilk
Lucas
Luetkemeyer
Luna
Mace
Malliotakis
Mann
Massie
Mast
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Moylan
Murphy
Nehls
Norman
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Smith (MO)
Smith (NE)
Smucker
Spartz
Stauber
Steel
Stefanik
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym

NOES—251

Adams
Aderholt
Aguilar
Allred
Amo
Amodei
Auchincloss
Bacon
Baird
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Ellzey
Escobar
Eshoo
Espaillat
Evans
Fitzpatrick
Fleischmann
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
González-Colón
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Khanna
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Lieu
Lofgren
Luttrell
Lynch
Magaziner
Manning
Matsui
McBath
McCarthy
McCaul
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norcross
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NJ)
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wagner
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)
Zinke

NOT VOTING—5

Carson
Ezell
Mullin
Pelosi
Radewagen

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1718

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 35 OFFERED BY MR. MILLS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 35, printed in part B of House Report 118–272 offered by the gentleman from Florida (Mr. MILLS), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 186, noes 247, not voting 6, as follows:

[Roll No. 652]

AYES—186

Alford
Allen
Amodei
Armstrong
Arrington
Babin
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Burchett
Burgess
Burlison
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Cline
Cloud
Clyde
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
Davidson

De La Cruz
DesJarlais
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Flood
Foxx
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (PA)
Kelly (MS)
Kelly (PA)
Kustoff
LaHood
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lee (FL)
Lesko
Loudermilk
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Moylan
Newhouse
Norman
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Smith (MO)
Smith (NE)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Strong
Tenney
Tiffany
Timmons
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Yakym
Zinke

NOES—247

Adams
Aderholt
Aguilar
Allred
Amo
Auchincloss
Bacon
Baird
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Bucshon
Budzinski
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fitzpatrick
Fleischmann
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
González-Colón
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
LaLota
Landsman
Larsen (WA)
Larson (CT)
Lawler
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Lieu
Lofgren
Lucas
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Molinaro
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Norton
Nunn (IA)
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (KY)
Ross
Ruiz
Ruppersberger
Ryan
Sablan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NJ)
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Turner
Underwood
Valadao
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)
Womack

NOT VOTING—6

Ezell
Mullin
Nehls
Pelosi
Radewagen
Trone

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1721

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 55 OFFERED BY MR. GOOD OF VIRGINIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 55, printed in part B of House Report 118–272 offered by the gentleman from Virginia (Mr. GOOD), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 109, noes 324, not voting 6, as follows:

[Roll No. 653]

AYES—109

Alford
Allen
Arrington
Babin
Balderson
Banks
Bean (FL)
Bergman
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burlison
Carl
Carter (GA)
Carter (TX)
Cline
Cloud
Clyde
Collins
Comer
Crane
Crenshaw
Davidson
DesJarlais
Duncan
Ellzey
Estes
Fallon
Ferguson
Finstad
Fischbach
Fitzgerald
Foxx
Franklin, Scott
Gaetz
Gallagher
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (MO)
Greene (GA)
Griffith
Grothman
Guest
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Houchin
Jackson (TX)
Jordan
Joyce (PA)
Kelly (MS)
LaHood
LaMalfa
Lamborn
LaTurner
Lesko
Loudermilk
Luna
Massie
McClain
McClintock
McCormick
McHenry
Miller (IL)
Mooney
Moore (AL)
Moylan
Norman
Ogles
Palmer
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rose
Rosendale
Roy
Scalise
Self
Sessions
Smith (MO)
Smucker
Spartz
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Van Duyne
Weber (TX)
Webster (FL)
Westerman
Williams (TX)
Wilson (SC)
Wittman
Yakym
Zinke

NOES—324

Adams
Aderholt
Aguilar
Allred
Amo
Amodei
Armstrong
Auchincloss
Bacon
Baird
Balint
Barr
Barragán
Beatty
Bentz
Bera
Beyer
Bice
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Burgess
Bush
Calvert
Cammack
Caraveo
Carbajal
Cárdenas
Carey
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Donalds
Duarte
Dunn (FL)
Edwards
Emmer
Escobar
Eshoo
Espaillat
Evans
Feenstra
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Frankel, Lois
Frost
Fry
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
González-Colón
Gottheimer
Graves (LA)
Green (TN)
Green, Al (TX)
Grijalva
Guthrie
Harder (CA)
Hayes
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaLota
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Lieu
Lofgren
Lucas
Luetkemeyer
Luttrell
Lynch
Mace
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McBath
McCarthy
McCaul
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Meuser
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norton

Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Owens
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Pence
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (KY)
Ross
Rouzer
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NE)
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Wenstrup
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Womack

NOT VOTING—6

Ezell
Fulcher
Mullin
Pelosi
Radewagen
Smith (NJ)

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1724

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 69 OFFERED BY MR. BIGGS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 69, printed in part B of House Report 118–272 offered by the gentleman from Arizona (Mr. BIGGS), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 85, noes 350, not voting 4, as follows:

[Roll No. 654]

AYES—85

Alford
Arrington
Babin
Banks
Bean (FL)
Biggs
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burlison
Cammack
Carl
Carter (GA)
Cline
Cloud
Clyde
Collins
Comer
Crane
Crenshaw
DesJarlais
Donalds
Duncan
Emmer
Estes
Fallon
Ferguson
Fulcher
Gaetz
Gallagher
Good (VA)
Gooden (TX)
Gosar
Green (TN)
Greene (GA)
Grothman
Harris
Harshbarger
Hern
Higgins (LA)
Hunt
Jackson (TX)
Jordan
Joyce (PA)
Kelly (MS)
LaMalfa
Lamborn
Loudermilk
Luttrell
Massie
McClintock
McCormick
McHenry
Miller (IL)
Mills
Mooney
Moore (AL)
Norman
Ogles
Palmer
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rose
Rosendale
Rouzer
Roy
Schweikert
Self
Spartz
Steube
Strong
Tiffany
Timmons
Van Duyne
Weber (TX)
Webster (FL)
Williams (TX)
Wilson (SC)
Wittman

NOES—350

Adams
Aderholt
Aguilar
Allen
Allred
Amo
Amodei
Armstrong
Auchincloss
Bacon
Baird
Balderson
Balint
Barr
Barragán
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Burgess
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carey
Carson
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Ellzey
Escobar
Eshoo
Espaillat
Evans
Feenstra
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Frost
Fry
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
González-Colón
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green, Al (TX)
Griffith
Grijalva
Guest
Guthrie
Hageman
Harder (CA)
Hayes
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Lucas
Luetkemeyer
Luna
Lynch
Mace
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Meuser
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Moylan
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Owens
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Pence
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (AL)
Rogers (KY)
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Womack
Yakym
Zinke

NOT VOTING—4

Ezell
Mullin
Pelosi
Radewagen

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1728

Mrs. MILLER of Illinois changed her vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 70 OFFERED BY MR. BIGGS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 70, printed in part B of House Report 118–272 offered by the gentleman from Arizona (Mr. BIGGS), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 81, noes 353, not voting 5, as follows:

[Roll No. 655]

AYES—81

Alford
Arrington
Babin
Banks
Bean (FL)
Biggs
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burlison
Cammack
Carl
Carter (GA)
Cline
Cloud
Clyde
Collins
Comer
Crane
DesJarlais
Donalds
Duncan
Emmer
Estes
Fallon
Ferguson
Fulcher
Gaetz
Gallagher
Good (VA)
Gooden (TX)
Gosar
Green (TN)
Greene (GA)
Grothman
Hageman
Harshbarger
Higgins (LA)
Hunt
Jackson (TX)
Jordan
Joyce (PA)
Kelly (MS)
LaMalfa
Lamborn
Loudermilk
Luttrell
Massie
McClintock
McCormick
McHenry

Miller (IL)
Mills
Mooney
Moore (AL)
Norman
Ogles
Palmer
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rose
Rosendale
Rouzer
Roy
Schweikert
Self
Spartz
Steube
Strong
Tiffany
Timmons
Van Duyne
Weber (TX)
Williams (TX)
Wilson (SC)

NOES—353

Adams
Aderholt
Aguilar
Allen
Allred
Amo
Amodei
Armstrong
Auchincloss
Bacon
Baird
Balderson
Balint
Barr
Barragán
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Burgess
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carey
Carson
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Ellzey
Escobar
Eshoo
Espaillat
Evans
Feenstra
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Frost
Fry
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
González-Colón
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green, Al (TX)
Griffith
Grijalva
Guest
Guthrie
Harder (CA)
Harris
Hayes
Hern
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Lucas
Luetkemeyer
Luna
Lynch
Mace
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Meuser
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Moylan
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Owens
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Pence
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (AL)
Rogers (KY)
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Turner
Underwood
Valadao
Van Drew
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Wittman
Womack
Yakym
Zinke

NOT VOTING—5

Ezell
Mullin
Pelosi
Radewagen
Trone

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1731

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 71 OFFERED BY MR. BIGGS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 71, printed in part B of House Report 118–272 offered by the gentleman from Arizona (Mr. BIGGS), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 81, noes 354, not voting 4, as follows:

[Roll No. 656]

AYES—81

Alford
Arrington
Babin
Banks
Bean (FL)
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burlison
Cammack
Carl
Carter (GA)
Cline
Cloud
Clyde
Collins
Crane
Davidson
DesJarlais
Donalds
Duncan
Emmer
Estes
Fallon
Ferguson
Fulcher
Gaetz
Gallagher
Good (VA)
Gooden (TX)
Gosar
Green (TN)
Greene (GA)
Grothman
Hageman
Harshbarger
Higgins (LA)
Jackson (TX)
Jordan
Joyce (PA)
Kelly (MS)
Lamborn
Loudermilk
Luna
Luttrell
Massie
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Mooney
Moore (AL)
Nehls
Norman
Ogles
Perry
Posey
Reschenthaler
Rodgers (WA)
Rose
Rosendale
Rouzer
Roy
Schweikert
Self
Spartz
Stauber
Steube
Strong
Tiffany
Timmons
Van Duyne
Weber (TX)
Williams (TX)
Wilson (SC)

NOES—354

Adams
Aderholt
Aguilar
Allen
Allred
Amo
Amodei
Armstrong
Auchincloss
Bacon
Baird
Balderson
Balint
Barr
Barragán
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Burgess
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carey
Carson
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Comer
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Ellzey
Escobar
Eshoo
Espaillat
Evans
Feenstra
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Frost
Fry
Gallego
Garamendi
Garbarino
Garcia (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
González-Colón
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green, Al (TX)
Griffith
Grijalva
Guest
Guthrie
Harder (CA)
Harris
Hayes
Hern
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Lucas
Luetkemeyer
Lynch
Mace
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Moylan
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norcross
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Peltola
Pence
Perez
Peters
Pettersen
Pfluger
Phillips
Pingree
Plaskett
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (AL)
Rogers (KY)
Ross
Ruiz

Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Steel
Stefanik
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Wittman
Womack
Yakym
Zinke

NOT VOTING—4

Ezell
Mullin
Pelosi
Radewagen

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1735

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 76 OFFERED BY MR. BIGGS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 76, printed in part B of House Report 118–272 offered by the gentleman from Arizona (Mr. BIGGS), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 118, noes 316, not voting 5, as follows:

[Roll No. 657]

AYES—118

Alford
Arrington
Babin
Banks
Barr
Bean (FL)
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burgess
Burlison
Cammack
Carl
Carter (GA)
Cline
Cloud
Clyde
Collins
Comer
Crane
Davidson
DesJarlais
Donalds
Duncan
Emmer
Estes
Fallon
Ferguson
Finstad
Fischbach
Fitzgerald
Flood
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Gimenez
Good (VA)
Gooden (TX)
Gosar
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Houchin
Hunt
Jackson (TX)
Johnson (SD)
Jordan
Joyce (PA)
Kelly (MS)
LaMalfa
Lamborn
Lesko
Loudermilk
Luetkemeyer
Luna
Luttrell
Massie
Mast
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Mills
Mooney
Moore (AL)
Norman
Ogles
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rose
Rosendale
Rouzer
Roy
Scalise
Schweikert
Self
Smith (MO)
Smith (NE)
Spartz
Stauber
Steube
Strong
Tiffany
Timmons
Van Drew
Van Duyne
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Williams (TX)
Wilson (SC)
Wittman
Yakym

NOES—316

Adams
Aderholt
Aguilar
Allen
Allred
Amo
Amodei
Armstrong
Auchincloss
Bacon
Baird
Balderson
Balint
Barragán
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carey
Carson
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Ellzey
Escobar
Eshoo
Espaillat
Evans
Feenstra
Fitzpatrick
Fleischmann
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
Garbarino
García (IL)
García (TX)
Garcia, Mike
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
González-Colón
Gottheimer
Granger
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Lieu
Lofgren
Lucas
Lynch
Mace
Magaziner
Malliotakis
Mann
Manning
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Miller-Meeks
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Moylan
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norton
Nunn (IA)
Obernolte
Ocasio-Cortez
Omar
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rogers (AL)
Rogers (KY)
Ross
Ruiz
Ruppersberger
Rutherford
Ryan
Sablan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Steel
Stefanik
Steil
Stevens
Strickland
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Womack
Zinke

NOT VOTING—5

Ezell
Foxx
Mullin
Pelosi
Radewagen

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1738

So the amendment was rejected.

The result of the vote was announced as above recorded.

Mr. NEWHOUSE. Mr. Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. WOMACK) having assumed the chair, Mr. MEUSER, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 5894) making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024, and for other purposes, had come to no resolution thereon.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

The motion to suspend the rules and pass H.R. 6363; and

Agreeing to the Speaker's approval of the Journal, if ordered.

Electronic votes will be conducted as 5-minute votes, pursuant to clause 9 of rule XX.

FURTHER CONTINUING APPROPRIATIONS AND OTHER EXTENSIONS ACT, 2024

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 6363) making further continuing appropriations for fiscal year 2024, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Texas (Ms. GRANGER) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 336, nays 95, not voting 3, as follows:

[Roll No. 658]

YEAS—336

Adams
Aderholt
Aguilar
Allen
Allred
Amo
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Balint
Barr
Barragán
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Bucshon
Budzinski
Burgess
Bush
Calvert
Caraveo
Carbajal
Cárdenas
Carey
Carson
Carter (GA)
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Comer
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Diaz-Balart
Dingell
Doggett
Duarte
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Evans
Feenstra
Ferguson
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Frost
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Granger
Graves (MO)
Green, Al (TX)
Grijalva
Grothman
Guthrie
Harder (CA)
Harris
Hayes
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luetkemeyer
Lynch
Magaziner
Malliotakis
Manning
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McCollum
McGarvey
McGovern
McHenry
Meeks
Menendez
Meng
Meuser
Mfume
Miller (WV)
Miller-Meeks
Molinaro
Moolenaar
Moore (UT)
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Nunn (IA)
Ocasio-Cortez
Omar
Owens
Pallone
Panetta
Pappas
Pascrell
Payne
Peltola
Pence
Perez
Peters
Pettersen
Pfluger
Phillips
Pingree
Pocan
Porter
Pressley
Ramirez
Raskin
Reschenthaler
Rodgers (WA)
Rogers (KY)
Ross
Rouzer
Ruiz
Ruppersberger
Rutherford
Ryan
Salazar
Salinas
Sánchez
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Wilson (FL)
Wilson (SC)
Womack

NAYS—95

Alford
Auchincloss
Banks
Bean (FL)
Biggs
Bishop (NC)
Boebert
Bost
Brecheen
Buck
Burchett
Burlison
Cammack
Carl
Carter (TX)
Cline
Cloud
Clyde
Collins
Crane
Davidson
DesJarlais
Donalds
Duncan
Estes
Fallon
Finstad
Fischbach
Franklin, Scott
Fry
Fulcher
Gaetz
Gallagher
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Graves (LA)
Green (TN)
Greene (GA)
Griffith
Guest
Hageman
Harshbarger
Hern
Higgins (LA)
Houchin
Hunt
Jordan
Joyce (PA)
Kelly (MS)
LaHood
Lesko
Luna
Luttrell
Mace
Mann
Massie
Mast
McClintock
McCormick
Miller (IL)
Miller (OH)
Mills
Mooney
Moore (AL)
Moran
Murphy
Norman
Obernolte
Ogles
Palmer
Perry
Posey
Quigley
Rogers (AL)
Rose
Rosendale
Roy
Santos
Schweikert
Self
Spartz
Steube
Tiffany
Timmons
Van Drew
Van Duyne
Waltz
Weber (TX)
Webster (FL)
Williams (TX)
Wittman
Yakym
Zinke

NOT VOTING—3

Ezell
Mullin
Pelosi

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1746

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

THE JOURNAL

The SPEAKER pro tempore (Mr. ELLZEY). Pursuant to clause 8 of rule XX, the unfinished business is the question on agreeing to the Speaker's approval of the Journal, which the Chair will put de novo.

The question is on the Speaker's approval of the Journal.

Pursuant to clause 1, rule I, the Journal stands approved.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Ms. Deidre Kelly, one of his secretaries.

NOTICE

Incomplete record of House proceedings.

Today's House proceedings will be continued in the next issue of the Record.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 118th CONGRESS, FIRST SESSION

Vol. 169 WASHINGTON, TUESDAY, NOVEMBER 14, 2023 *No. 188*

Senate

(Legislative day of Monday, November 13, 2023)

The Senate met at 10 a.m. and was called to order by the Honorable LAPHONZA R. BUTLER, a Senator from the State of California.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal Lord God, sometimes we feel that You hide from us. We cry aloud. It seems that we only hear the echoes of our despair. We sometimes believe that the wicked are winning. We sometimes believe that they rarely experience trouble and grief.

Today, guide our lawmakers with Your truth. Show them the path You desire for them to take. Remind them that You are King forever, and, though the wrong seems strong, Your omnipotence will prevail.

Hear our prayers, O Lord. Incline Your ears to us and give us Your shalom, Your peace.

We pray in Your matchless Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mrs. MURRAY).

The senior assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, November 14, 2023.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable LAPHONZA R. BUTLER, a Senator from the State of California, to perform the duties of the Chair.

PATTY MURRAY,
President pro tempore.

Ms. BUTLER thereupon assumed the Chair as Acting President pro tempore.

MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

CHINA

Mr. SCHUMER. Madam President, tomorrow, for the second time since taking office, President Biden will meet with Chinese President Xi Jinping during the APEC summit in San Francisco.

Above all, I look forward to President Biden pushing President Xi on something I raised during the bipartisan codel I led to China: cracking down on the sale of precursor chemicals used to manufacture fentanyl.

When my Senate colleagues and I met with President Xi, we explained in stark detail how destructive the fentanyl crisis was here in America and that China had a responsibility to do its part to stop its trafficking. One step we strongly urged President Xi to take is for Chinese law enforcement to coordinate with the United States to enforce laws already on the books on the sale of precursor chemicals. I believe we have made progress on this issue, and I am very optimistic that good news will come from tomorrow's meeting regarding fentanyl when President Biden meets with President Xi.

If China stopped the sale of chemicals used to make fentanyl, it would not only save countless American lives but even benefit China, as it would go a long way to improving China's image in the minds of Americans.

So, just as we pushed President Xi on cracking down on fentanyl last month, I expect President Biden will urge him to do so tomorrow, and I think we may see real results. When we met with President Xi in person, we were pointed and specific with our questions and issues and found him to be responsive, and I hope President Biden will have the same sort of frank conversation tomorrow with President Xi.

GOVERNMENT FUNDING

Mr. SCHUMER. Madam President, we have until Friday to avert another costly, unnecessary, and avoidable government shutdown. Time is a luxury that neither side has. If we are going to keep the lights on beyond this Friday, our Republican colleagues will have to work with Democrats in a bipartisan way to pass a clean extension without hard-right cuts and without poison pills.

So far, I am heartened—cautiously so—that Speaker JOHNSON is moving forward with a CR that omits precisely the sort of hard-right cuts that would have been nonstarters for Democrats. I certainly don't agree with everything the Speaker is proposing, and I can't imagine too many Senators would have taken the Speaker's approach in drafting this bill. But the proposal before

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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the House does two things Democrats have pushed for: It will avert a shutdown, and it will do so without making any terrible, hard-right cuts that the MAGA rightwing demands. It also eliminates the poison pills that so many MAGA Congress Members put in the bills.

We will see over the course of today how the House moves forward. Over the past few days, a significant portion of the Speaker's hard-right flank has torched his proposal precisely because it doesn't make cuts. I hope the Speaker does not yield to the demands of the hard right as we try to keep the government open. Instead, I hope the Speaker continues to recognize he will need Democratic votes in order to avoid a shutdown.

MILITARY PROMOTIONS

Mr. SCHUMER. Madam President, on Senator TUBERVILLE, today, the Senate Rules Committee will mark up a resolution allowing the Senate to quickly confirm the military promotions currently being blocked by Senator TUBERVILLE. I will join the Rules Committee later today—I am a member of the committee; it is the only committee on which I serve—and vote in favor of this resolution. I will vote in favor of the Rules Committee's resolution.

For 9 months, Senator TUBERVILLE has thumbed his nose at longstanding Senate custom and prevented the swift, bipartisan confirmations of hundreds of generals and flag officers. Each time Members from both sides have tried to reason with Senator TUBERVILLE, he has only dug in further.

As a result of Senator TUBERVILLE's holds, America's national security is now paying the price. Our military readiness is paying the price, and our military spouses and kids, who can't plan the next chapters in their lives even though they have served us for many, many years—they pay the price too.

Patience is wearing thin with Senator TUBERVILLE on both sides of the aisle. I strongly support this resolution to overcome these military holds, and if it is reported out of committee today and if our Republican colleagues cannot soon convince Senator TUBERVILLE to drop his holds, I will bring it to the floor for a vote.

I thank Chair KLOBUCHAR and Chairman REED for their good work on moving this important resolution.

STUDENT LOANS

Mr. SCHUMER. Madam President, on the student debt CRA, as soon as today, Senate Republicans will force a vote on a cruel measure to eliminate President Biden's historic Student Loan Repayment Program and strip away a critical lifeline for millions and millions of borrowers. I strongly oppose this terrible Republican measure to deny American families a critical lifeline just 1 month after the pause on student loan payments ended.

My Republican colleagues talk a big game about helping working families, but with this student debt congressional resolution, they are actively trying to block relief that would immediately improve the lives of so many working Americans. The hypocrisy is glaring. Republicans are willing to give huge tax breaks to ultrawealthy billionaires and large corporations, but when it comes to helping working families, Republicans refuse to give them a break. They say that it costs too much money. But billionaire tax cuts don't? Give me a break.

Right now, there are over 5.5 million borrowers involved in President Biden's SAVE Plan, including nearly 300,000 in my home State of New York alone. So the worst thing we could do for these borrowers and these families right now is let this Republican CRA pass and strip away this critical lifeline.

I will strongly oppose this Republican CRA to overturn student debt relief, and Democrats will keep working to make sure relief reaches every borrower in need.

U.S. SUPREME COURT

Mr. SCHUMER. Madam President, on the Supreme Court, yesterday, for the first time, the U.S. Supreme Court announced the adoption of an ethical code of conduct for Justices. At a time when Americans' trust in the High Court is deeply, deeply shaken, the Supreme Court has taken an important step to lay down basic rules of the road for our Justices. Frankly, this should have happened a long time ago. Lower courts have long been required to embrace an ethical code of conduct, and there is no reason that the Supreme Court should not have done the same.

Now, while the Supreme Court's announcement was important, its lack of enforceability is a glaring omission. Justices, it seems, are left to their own devices in applying this code to themselves. Frankly, Americans could be excused if they are skeptical after everything they have read in the paper about Justices accepting lavish gifts and vacationing with ultrarich ideologues, some of whom bring cases before the Court.

SHELDON WHITEHOUSE said it well. He said: It is as if they are agreeing to the rules of baseball but no umpires.

So, while the Justices' code of conduct is a necessary and important step, it cannot be the final word. The public's trust in our courts is a key feature of our democratic society, and there is a lot of work left to do before that trust is fully restored. Congress must—must—continue its efforts to hold the judiciary accountable.

HIGH-SPEED INTERNET

Mr. SCHUMER. Madam President, now on an FCC letter, last month, my colleagues and I wrote the FCC, urging them to adopt a number of key principles from our infrastructure law that fight against digital discrimination and ensure equal access to high-speed internet. Well, I have good news. The FCC heard us loud and clear and will vote tomorrow to implement the provisions I pushed with my colleagues to ensure everyone can access high-speed internet no matter what ZIP Code they live in.

The digital divide has caused our country so much damage. It has shut out rural, urban, and low-income Americans, including far too many women and people of color, for whom basic internet access remains unavailable or unaffordable.

I am proud of the great work we did to address the digital divide in our bipartisan infrastructure law.

Now I encourage all of the FCC Commissioners to take advantage of the provisions in our infrastructure law so that underserved communities can access high-speed internet just like everybody else.

JUDICIAL CONFIRMATIONS

Mr. SCHUMER. Madam President, on a circuit court judge, last night, the Senate confirmed the 37th circuit court judge under President Biden: Ana de Alba to serve as circuit court judge for the Ninth Circuit.

Judge de Alba's confirmation is significant. She is the 30th Hispanic judge confirmed by this Democratic majority under President Biden. With the confirmation of this 30th Hispanic judge, that is the most Hispanic judges confirmed by any President in one term—something we can all be proud of. That is the most Hispanic judges ever confirmed by any President in his first term—30—30 new Hispanic judges.

We are making the bench look more like America. One judge at a time, Democrats are making our courts look more like America—greater diversity, more women, a broader range of professional and personal experiences. We will keep going.

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The Republican leader is recognized.

U.S. SUPREME COURT

Mr. MCCONNELL. Madam President, yesterday, the Supreme Court announced its adoption of a code of ethics. The Court produced the code internally and adopted it unanimously. In

other words, as I expected, a coequal branch of government conducted its business independently, which sounds an awful lot like the separation of powers envisioned in the Constitution.

Certainly, that hasn't deterred Senate Democrats from their obsessive effort to bend the Court to their will. In fact, their monthslong smear campaign—disguised as an effort to make the senior-most jurists in the country, duly confirmed by the Senate, more ''accountable'' to the American people—unfortunately, continues apace. We know what our colleagues really mean by ''accountability.'' It is code for ''intimidation.''

I am sure that this sort of accountability is exactly what the Justices and their families felt as the Biden administration declined to enforce Federal law and protect them in their homes from angry mobs or when Senate Democrats threatened to slash the Court security budget in the face of death threats or on any number of occasions when our colleagues have issued ominous, veiled warnings about ''restructuring'' or outright threats that Justices would ''pay the price.''

This week, Democrats on the Judiciary Committee are at it again. Our colleagues planned last week to threaten legal action against private citizens who decline to indulge their sham trial of the Justices. The only problem? Republicans on the committee submitted too many commonsense amendments, and the majority worried that some of them might pass with bipartisan support.

But regardless of how Senate Democrats choose to spend their time, I will repeat what I have said before: I have the utmost confidence in each one of the Justices of our Nation's highest Court, and they should continue to pay this intimidation campaign no mind.

INFLATION

Mr. MCCONNELL. Madam President, now on another matter, this morning's October inflation report tells a story that has become familiar on President Biden's watch. Prices remain stubbornly high and well above the Federal Reserve's 2-percent target. Prices are up 3.2 per year over year, and cumulative inflation since the President took office now clocks in at 17.6 percent.

Even as the rate prices are growing ebbs, working Americans are growing more frustrated with an expensive new normal. The price of a gallon of milk has risen 15.8 percent since January of 2021. Meanwhile, a gallon of gas is going for 54.8 percent more. As one small business owner in Texas put it to reporters recently, he said:

I'm trying to think of one area where prices have eased, and I can't think of anything.

Earlier this month, President Biden told a gathering in rural Minnesota that ''Bidenomics is just another way of saying 'the American Dream.''' The American people are just simply not buying that.

According to one recent survey, only 14 percent of U.S. voters have said President Biden has made them better off, and 65 percent of voters said they had cut back on nonessential spending.

So, if the President thinks that Bidenomics is the American dream, he might want to pay closer attention to how many Americans are desperate to wake up.

MARCH FOR ISRAEL

Mr. MCCONNELL. Madam President, on one final matter, today, our Nation's Capital will welcome a rally of Jewish Americans and friends of Israel. The participants in today's events are gathering in mourning, in worry, in fear, and in shared resolve.

In the dark days since the terrorist massacre of October 7, their message has been crystal clear: There is no moral equivalence between terrorism and self-defense. Israel has a right to exist, and Jews everywhere have a right to live without fear.

These basic truths should be obvious and unimpeachable. But if anyone failed to see the creeping advance of anti-Semitism across the West in recent years, if any corner of our society let itself believe that this unique hatred of Jews has been confined to history, that naive fiction was shattered on October 7 and swept away by the hate that has poured across college campuses and city streets throughout America and the West over the past month.

In just the first week after Hamas and the Palestinian Islamic Jihad murdered 1,200 Israelis, harassment, vandalism, and assault against American Jews rose nearly 400 percent.

But the peaceful people gathering in Washington today aren't here to ask for pity for themselves. They are here on behalf of the more than 240 hostages, including a 3-year-old American boy and at least 8 other Americans who cannot speak for themselves. They are here with a clear message for our leaders: Stand with Israel.

Since October 7, I have spoken repeatedly about the challenges Israel faces as it works to protect its people, bring the hostages home, and destroy Hamas's capability to wage war. I have talked about the terrorists' reprehensible record of systematically violating the customary laws of war; their expropriation of humanitarian aid; the cold-blooded practice of putting command centers and weapons caches in hospitals, schools, and even mosques; their grotesque penchant for using innocent Gazans as human shields; and, of course, the threat of further violence from the Iran-backed terrorists on the second front.

This is why I have urged the Biden administration to give Israel the time, space, and support it needs to bring these savages to justice.

How quickly some in the West have become confused about the crystal-clear distinction between terrorism and self-defense. It is not the same thing.

Hamas sought the conflict. Hamas perpetuates it by holding hostages and continuing its terrorism. And those of us who live out of range of terrorist rockets should pause before second-guessing Israel's response.

This is the time that demands moral clarity on campuses, in newsrooms, in Congress, and at the sharp end of American military strength. It is also time to restore credible deterrence against Iran, the chief underwriter and architect of violence against Israel and against American forces in the Middle East.

In less than 1 month, Iran-backed terrorists have targeted U.S. servicemembers in Iraq and Syria 52 times. From the abandonment of Afghanistan to the delisting of the Houthis, to our failure to respond to proxy attacks on our friends in the region, the Biden administration has made Iran's job actually easier.

And now, as America dithers over support for their friends in Ukraine, Tehran has thrown itself firmly behind Putin's Russia. It will take more than demolishing a couple of warehouses to show our adversaries we are credible. Iran and its terrorist networks must know that violence against America or our allies will be met swiftly and overwhelmingly with lethal force.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

ENERGY

Mr. THUNE. Madam President, recent events—notably, Putin's war of aggression in Ukraine and Hamas's deadly October 7 attack on Israel—have thrown the importance of national security into sharp relief. At its most basic level, of course, national security means having a strong military, a fighting force that can meet and defeat any threat it is called upon to face. But there are other key components of national security as well. There is border security, there is economic security, and there is energy security.

Now, what do I mean by energy security? I mean a strong and stable energy supply that does not depend upon imports from hostile countries or unstable regions of the world. You only have to look at the soaring costs and supply challenges countries like Germany have faced in the wake of Russia's attack on Ukraine to realize that relying on energy from other countries, particularly hostile countries, can leave a country in a deeply vulnerable position.

The United States has been doing a good job of maintaining our energy security. We developed domestic resources, both renewable and conventional, which meant that we were able to minimize our reliance on other countries. But President Biden upended that trajectory with his singular focus on Green New Deal policies, and now we are at an inflexion point, honestly.

President Biden's energy policies have put us on a dangerous trajectory, one that could easily result in significant disruptions to our domestic supply. For starters, there is the President's notable hostility to conventional energy production. Since the day he took office, President Biden has pursued an agenda that is hostile to conventional sources of energy—namely, oil and natural gas.

He set the tone on his first day in office when he canceled the Keystone XL Pipeline—a pipeline project, by the way, that was already underway and was to be paired with $1.7 billion in private investment in renewable energy to fully offset its operating emissions. He also almost immediately froze new oil and gas leases on Federal lands, sending a clear signal to oil and gas producers that his administration would be reluctant to work with them to increase American energy production. And he has continued along the same lines ever since, with a recent notable example being his cancelation of seven oil and gas leases in the small portion of the ANWR, the Arctic National Wildlife Refuge, that is available for energy exploration and development.

The problem with the President's actions, of course, is that our Nation is nowhere near being able to end our reliance on conventional energy. And let me just say, I am a big and longtime supporter of renewable energy, but we are simply not in a position yet where we can rely predominantly on alternative energy technologies. The President himself admitted as much in his most recent State of the Union Address, but that hasn't stopped him from pursuing policies that seem designed to eventually force our Nation to rely on other countries for oil and gas, with all the attendant security and economic risk that brings.

And the President's energy agenda isn't limited to canceling oil and gas leases or discouraging investment in conventional energy production. Also of deep concern is the President's apparent determination to force Americans to adopt electric vehicles on a broad scale within the next decade. And why is this so concerning? Because our electric grid is nowhere near capable of supporting that kind of a widespread transition to electric vehicles. Rising electricity demand is already stretching our grid, which has been weakened by the move away from conventional energy sources.

In February, the PJM Interconnection, which manages a substantial part of eastern America's electric grid, warned that fossil fuel plants are being forced to retire at a faster rate than new renewables can be brought online—at a rate of roughly 2 to 1. In other words, we are rapidly approaching a situation in which we simply don't have the ability to keep up with our current electricity demand. Add charging for tens of thousands or hundreds of thousands of electric vehicles on top of that, and we would be looking at a future of widespread blackouts and brownouts, to say nothing of soaring electricity prices.

So it goes without saying that a nation that can't reliably keep its lights on or its homes heated is a nation that is less than secure. To make matters worse, the Biden administration has proposed a rule that would severely constrain supply chain for distribution transformers, which is a critical component of America's electric grid.

Stakeholders are already facing significant backlogs for these critical components, whether they are trying to recover from a storm, improve the grid, or tie in new development. The Biden administration's proposed rule would guarantee that these problems would get worse.

Recent events remind us that we can't take our Nation's security for granted. We have to work constantly to maintain our Nation's strength, both to ensure that we are always prepared to meet any threat and because being strong is the best way to discourage any threat; and energy security is an essential part of maintaining that strength. If we want to maintain our energy security and if we want to maintain the kind of energy supply that can not only deal with all domestic energy demands but will leave us free from overreliance on other countries, we can't keep heading down the path the Biden administration has set us on.

I hope the President and his allies will realize this important point before it is too late.

Madam President, I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MARSHALL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. PADILLA). Without objection, it is so ordered.

Mr. MARSHALL. Mr. President, I seek recognition.

The PRESIDING OFFICER. The Senator is recognized.

UNANIMOUS CONSENT REQUEST—H.R. 6126

Mr. MARSHALL. Mr. President, time is of the essence. Yes, time is of the essence, and that is why I rise today, once again, in calling for the immediate passage of the House-led and passed bipartisan, standalone aid package for Israel that will provide our ally with $14 billion in military assistance for their ongoing war with the savage Hamas terrorists. This standalone bill does not use Israel as a lever to fund Ukraine funding or to make our border more porous to terrorists and criminals.

I want to start by sharing two stories—the stories of two gentlemen I met last week. I am going to start with Doran. Doran's brother was the mayor of a kibbutz located within a stone's throw from Gaza. As the mayor, he often welcomed Palestinians from Gaza. He shared meals with them and conversed with them. It was a peace-loving family. But on the morning of October 7, Doran's brother, the mayor, was brutally murdered by Hamas.

But that wasn't enough. Next, his brother's mother-in-law was murdered. Then, his son was murdered and, finally, a nephew. In a matter of a few hours, a woman lost her husband, her mother, her son, and her nephew.

The other story I want to share is of two brothers, Gal and Guy. Gal was the older brother. Guy was the younger brother. They went to the peace and love music festival, just about 3 miles away from the Gaza Strip. And, on the morning of October 7, Gal was watching over his brother Guy, and they heard gunshots, and they heard rockets going off, and they both decided to run for their cars. They were split up, and, while Gal made it home, Guy never did.

Later that same day, his family saw horrifying videos of his brother lying on the ground, handcuffed, and who remains a hostage to this day. And, of course, we have no idea if Guy is alive or not.

So I ask: Why is this important? Why is time of the essence?

Listen, Israel is a powder keg, and it is about ready to explode. For starters, since we were here last, Hamas leadership has declared its desire for a permanent state of war with Israel on all borders. There continues to be a barrage of missiles, rockets, and drone attacks on Israel that has worsened since the war broke out, with Hamas firing at Israel nearly 10,000 times.

Since October 7, 50 attacks have occurred on U.S. military installations. Some 52 American soldiers have been injured, not to mention that we lost 30-some Americans, killed on October 7 by these monsters called Hamas.

So why is time of the essence? Right now, there are still hundreds of innocent people, like Gal's brother Guy, being held captive, and, most likely, being tortured and raped by Hamas terrorists, including 10 Americans.

So I stand here today, again, calling on my Democratic colleagues to do the right thing, and today—yes, today—pass this aid for Israel in their time of need. It has been over 5 weeks since the Hamas army of terror launched its savage and brutal assault on our greatest ally in the Middle East. The House and its bipartisan solution have only been met with obstruction by my friends across the aisle in this Chamber, and

the American public wants to know why the White House and my friends here across the aisle insist upon leveraging this funding in order to fund their other priorities.

Is there really anybody across the aisle who objects to Israel receiving funding and to help stop this war against humanity?

This delay in providing this aid is not lost on Israel, raising questions about our commitment as an ally, and perhaps equally concerning is the message it sends to Hamas terrorists, emboldening them in their murderous endeavors. And our slow response reinforces the White House message that America has no redline, and they can continue to attack our military without significant recourse.

America is not a fair-weather friend. We must stand unequivocally with Israel, a country that has stood beside us as a staunch ally through thick and thin. We must pass this aid today.

Now, when I met with Doran—who lost, as you recall, four members of his family on October 7—he pledged with me to help get one clear message to the American people: Hamas does not use logic. We are not dealing with a civilized nation here. Their evil defies any type of logic. They don't make sense. These people are evil monsters who rape, torture, and kill their enemies.

And, by the way, every person in this room is one of their enemies. Anyone in America who does not believe in their religious ideas is their enemy, whom they have pledged to kill.

Hamas, Iran, and its proxies have all taken an oath to kill every American. Yet some of my colleagues across the aisle have attempted to delay the delivery of this critical military assistance, as they call for negotiations with these terrorists in a ceasefire.

I would ask each one of my friends across the aisle who is holding up this bipartisan funding to sit down with a victim of Hamas's savage attacks. Please invite any one of the 170 family members who are here on Capitol Hill today, who have family members currently being held as hostages—their friends and family members being used as a human shield by this evil terrorist group. I am asking you to sit down with them and listen to their stories of how Hamas terrorists tortured, maimed, and massacred the most Jewish people in a single day since the horror of horrors, the Nazi Holocaust.

I want to make sure it is clear today: Hamas evil defies any logic. There is no negotiating with them. There are no terms that they would seriously consider. All they understand are death, horror, and destruction.

Let's make this point perfectly clear. Our hesitation to provide bipartisan funding to our staunch ally Israel empowers Hamas and gives Iran and its proxies a green light to kill Americans.

I would like to urge everyone to take this measure and adopt it immediately. And, for now, I would like to yield to the gentleman from Ohio, my friend Senator VANCE.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. VANCE. Mr. President, thanks to my colleague from Kansas here. Look, this is pretty simple, and it is pretty obvious. The U.S. Senate would pass aid—much-needed aid—to Israel today, at this very moment, aid the House has already passed. It could go to the President's signature this afternoon if my Democratic colleagues would stand down. But they won't. Many of them here are gathered to push back against our very commonsense proposal to offer support to one of our most important allies as they face an existential threat. And it is important for us to be honest about that fact, to acknowledge that Israel would be getting support from this government tomorrow if our Democratic friends didn't stop it today.

Now, why are they doing this? You will hear over the next hour or so—we will hear—a lot of slogans but very little real discussion about our policy in Ukraine or our policy in Israel. The Democrats have decided that this must be combined into a massive hodgepodge package for it to pass the U.S. Senate. They are doing this because they know that America is united behind Israel, and they want to use our Israeli allies as a political cover in their time of crisis. That is all this is about. You will hear a whole lot, but that is, ultimately, what this is about.

They know they cannot defend President Biden's disastrous, pointless, and, ultimately, directionless Ukraine policy, so they would like to use Israel as a cover.

Now, we have before us a hodgepodge of a supplemental from the President of the United States. It combines a few billion dollars for Ukraine with a few billion dollars to Gazan support—because that makes a ton of sense, right? Let's give money to the Israelis to fight back against Hamas, and then let's give some money to Hamas too. I am sure they won't use it to kill Israelis. It will just be food and medicine, we are assured, even though we know that because Hamas is the functional government in Gaza, we know if we give them support, that support will all the way flow into the war effort. At least, some of it will. Let's be honest about it. Maybe some of it will flow to the Palestinian people. Call me skeptical, but we know that, at least, some of it will flow to the Hamas war effort. Let's be honest about that fact.

It is not just that, though. It is not just a few billion for Hamas, a few billion for Israel; it is a few billion to resettle migrants in the United States of America—because, God knows, we haven't had enough resettlement of migrants in the United States of America over the last couple of years. The fentanyl deaths and the chaos and crime in our country prove it.

And then on top of that, let's add $60 billion to Ukraine, because, of course, we know that Israel and Ukraine are very closely connected. They are so closely connected, in fact, that this Chamber can't have a separate debate on one aid package or the other. And then let's add some money to East Asia on top of that.

We will combine all of this into a $106 billion dollar supplemental aid package that has very, very little—the gross majority of the money has nothing to do with Israel—and we will do it so that we can cover for the fact that the President of the United States has thrown the world into chaos.

What I would like to do is have a separate debate. Divide these questions into separate conversations and debate them separately. And, oh, by the way, use the political will of this Chamber to support our Israeli allies yesterday because they have needed it for much longer than that.

Now, let me close with just a couple of final observations here, and then I will kick it over to my friend, the Senator from Missouri.

I am getting sick, in this Ukraine policy debate, of hearing the same exact slogans repeated. This country has been governed for 30 years on bipartisan foreign policy slogans. Why don't we have a real debate? We are told again and again and again that Vladimir Putin is just like Hitler in the 1930s; if we don't stop him in Ukraine, he is going to march all the way through Europe.

What happened to our education system that the only historical analogy we can use in this Chamber is World War II? What about World War I where competing major powers threw the entire world into conflict because we didn't make smart decisions, we didn't deescalate conflict when we had the opportunity.

Why is it that we think Vladimir Putin, who has struggled to fight against the Ukrainians, is somehow going to be able to march all the way to Berlin when he can't conquer a country immediately to his east?

Why do we think that everything that happens in the United States and in the world in 2023 is Munich almost a century ago?

I am sick of us not having a real debate on this conversation. Vladimir Putin is a bad guy. He should not have invaded Ukraine. But our policy in 2023 has to be different than our policy in the 1940s because the circumstances are different.

As Lincoln said:

> As our case is new, so we must think anew, and act anew.

You will also hear that China will be emboldened. China will be terribly emboldened if we don't stop the Russians in Ukraine. Well, call me crazy, but I think the Chinese would be emboldened if we use limited American weapons and give it all to the Ukrainians instead of giving it to the Taiwanese.

Now, maybe you disagree, but let's have the debate, and let's have the real debate on the President's Ukraine policy instead of holding Israel hostage.

There is nothing more shameful than taking an existential crisis—thousands of dead Israeli civilians—and using them as a fig leaf for a Ukraine policy.

If you want to defend the Ukraine policy, defend it. Let the Israel aid flow through, and let's let it flow through today.

I yield to my good friend from Missouri.

The PRESIDING OFFICER. The Senator from Missouri.

Mr. SCHMITT. Mr. President, I stand in solidarity with my colleagues on separating these issues. I think the American people think that is what we do here. I think the American people think we actually have an appropriations process where we have individual bills come forward and we are offering amendments and Senators can have their say and Republicans and Democrats can have different ideas, offer different amendments and we vote on those things.

That is actually not what happens here at all. And this is now compounding this with a supplemental aid package of putting on a bunch of unrelated issues to try to bootstrap Ukraine aid when the most pressing need we have right now, the most bipartisan support we have right now, is the Israeli aid. And, by the way, it is paid for.

Now, I know listening to the hallways buzz in this town about actually paying for something is, like, unbelievable. You know, it is going to be catastrophic if we actually have that discussion. But I think it is healthy. I think it is healthy. But I think we need to separate these issues.

This is supposed to be the most deliberative body in the history of the world, and what we are told is: We can't do that.

And to my friend from Ohio's point, history doesn't begin and end with Neville Chamberlain. There are a lot of lessons from history about how you confront these things.

And, by the way, each theater is very different. What Israel needs is different; what Ukraine might need is different; what Taiwan might need is different. Oh, and by the way, what the United States of America might need is different as we face our chief rival in the world. We have never had one like this in the history of this country with China. We have never had an economic rival, a nuclear power, a militarized rival like we have with China.

Maybe we should be talking, as we talk about this military industrial base—and I think there is broad support for this—for long-range capability.

Our military industrial base is strapped right now. We are at capacity. We ought to be growing that. I support that. But I think we ought to have a discussion about: What does the United States need too? But as it relates to Israel, they have a clear objective, a likelihood of success, broad support. I have yet to hear any of that as it relates to Ukraine.

All we get are, again, slogans and fearmongering. I think, by the way, if you brought up that for an individual vote, it might pass. I don't know. We ought to try it. But I know this would. It should today. But we are going to hear objections now from the Democrats. They are going to object to this and forestall this important aid that our allies in Israel, who are facing a real existential threat right now, need.

Again—and, by the way, we have thrown in, you know, border here, and call me skeptical as it relates to Joe Biden and his administration on his seriousness when it comes to the border. When I was attorney general of Missouri, we fought some of these fights in court, including keeping ''Remain in Mexico'' in place. We had to get court orders and contempt orders against this administration to actually follow the judge's order to enforce the law.

Now, I am going to support the strongest border package possible, but it is really hard when you have an executive branch that isn't interested in executing the law. And now we have 8-plus million people in this country who have come here illegally. They have admitted that, quite possibly, we have terrorists in this country because we have an open border. Let's have that debate also. But here we are with an opportunity to separate the Israeli funding, again, that has broad support.

Each one of these issues, each one of these funding requests have separate realities on the ground, political support, strategies, likelihood of success. Let's respect that, and let's respect the will of the American people that we can actually come up here and do the important work we were sent here to do, which is to have real debate in what is supposed to be the most deliberative body in the history of the world.

I yield back to the Senator from Kansas.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. MARSHALL. Mr. President, let me start by thanking my colleagues from the great State of Ohio and Missouri for standing beside the people of Israel unequivocally.

But before we turn the floor back to those who protest too much, those who protest against this stand-alone Israel funding, let's address some of the objections made by the Senate Democrats last week.

It is important that we focus on the urgency of aiding Israel without tying it to other complex, timekilling, unrelated conflicts.

In last week's debate here on the Senate floor on Israel's safety and security, Senate Democrats mentioned Ukraine 77 times, more than twice of what they mentioned Israel.

I ask Americans to listen to this debate and count for themselves how many times my friends across the aisle mention Ukraine but turn their back, almost like they are allergic, to using the word ''Israel.''

They took 45 minutes of their hour-long speeches to make their case for Ukraine funding. Look, I get it. I get it: You want to fund Ukraine. But let's have that debate another day.

What Americans understand about Ukraine is that Joe Biden has thrown $113 billion at the problem with minimal accountability. And in return, 200,000 people have died. Americans understand that the war in Ukraine is at a stalemate, and it is going to turn into a 7-, probably 10-year war. It is going to turn into a war of attrition. What is the plan, Americans want to know? How much more of their blood and treasure do we have to send overseas? Let's debate Ukraine funding another day.

Now, next, my friends across the aisle are going to use the pay-fors as an excuse. If that is the reason you won't support stand-alone funding for Israel, then give us a different pay-for. But, meanwhile, time is of the essence. Your caucus and our caucus are divided on funding for Ukraine. Your caucus and our caucus are divided on how to solve the open-border crisis.

And I don't hear any solutions offered from the Republican-controlled House, the people's House, that the first thing we don't hear from the White House and the Senate leadership is that it is dead on arrival, and vice versa. Anything that we are offering they say is dead on arrival.

Folks, we are no closer today on figuring out Ukraine funding or how to solve the open-border crisis than we were a month ago, two months ago, six months ago. We are months apart, I think we are infinitely apart, from solving these problems.

Meanwhile, Hamas and Iran grow more emboldened and World War III inches closer. I don't hear anyone saying, from either side of the aisle, don't fund Israel. So why don't we fund Israel today? Don't tell me why we should fund Ukraine. Don't tell me you don't like the pay-for. Stand up today and tell me why we shouldn't fund Israel today. Tell me why we shouldn't use Israel as a leverage for your other priorities.

Tell me why we shouldn't send a message to Hamas and Iran. And the message that we are going to send them is that we will not tolerate this barbarism, these atrocities, these crimes against humanity.

Time is of the essence. The House has passed a stand-alone bill to fund Israel. The Senate should do the same.

Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H.R. 6126, which is received from the House. I further ask the bill be considered read a third time and passed, and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there an objection?

The Senator from Washington.

Mrs. MURRAY. Mr. President, reserving the right to object, we cannot

send the message to our allies or to the world that America only stands by some of its allies, that our word is only good some of the time. We also cannot send our adversaries the message that they can simply wait us out, allow us to become distracted, allow our resolve to waiver, and that the United States will eventually fail to respond to all of the pressing challenges we face.

Our adversaries are watching carefully to see if we will let Putin win, and the answer must emphatically be, absolutely not. I have said it before; I will say it many times again. We cannot just do half our job here. That is not just wrong, it is dangerous, and it is naive.

There are fundamental flaws in the arguments I have heard from my colleagues for splitting up this aid. Let's start with this one: the argument that somehow we haven't debated Ukraine aid, even though we have been debating this even longer than aid for Israel and even though we have already been forced to punt this aid to an ally in need before.

Ukraine can no more afford a delay than our allies in Israel. Ukraine is at a critical point in a brutal war to defend its sovereignty against Putin's bloody invasion. Abandoning Ukraine is the same as surrendering to Putin and sends a message that he can invade any democracy he would like with impunity. Fortunately, Members on both sides of the aisle do understand this, and clear, overwhelming bipartisan majorities in both the House and Senate have shown they support aid for Ukraine.

We absolutely cannot allow Ukraine aid to get left behind yet again when they are at a critical moment in their heroic fight to protect their homeland and their future as a sovereign democracy.

If my colleagues really wanted more debate on this, we had a robust debate last week, and there was a very strong showing from Senators who discussed at length why it is so important that we keep this aid together in one package. Here is the key point that was raised time and again in that debate: The global challenges we face are all connected, and they are all urgent. We have to be strategic enough to understand that.

Do you know who met with Putin last month? The leader of Hamas. Do you know who is watching how committed we are to our allies in Ukraine? The Government of China.

When it comes to the serious humanitarian crisis in Gaza, let's get something straight: Making sure people have food and water and medical care is not just the right and moral thing to do, it is also very clearly in our national interest, as it promotes long-term stability and security.

Hamas is hoping we ignore the humanitarian needs in Gaza. It is hoping it can drive more people to despair and then anger and then, ultimately, extremism.

In this critical moment, if we only respond to some of the challenges before us, not only will the other challenges continue to fester, but we will be sending a dangerous message about the limits of American leadership in the world.

For our commitments to mean something in the world, they have to be ironclad. For our adversaries to take American leadership seriously, they have to know that we will stand by our allies, that we will stand up for democracy, and that we will stand up to dictators. The way we do that is by passing a strong, unified security package with support for Ukraine and Israel, humanitarian assistance, and smart investment in the Indo-Pacific to support our partners and strengthen deterrence.

I am continuing to work on this package to get it done, and that work cannot be more important, nor could it be more urgent. If my colleagues are serious about making sure we act quickly, I urge them to support us in that effort.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. REED. Mr. President, reserving my right to object, I believe we must move forward with emergency funding for our allies—all of our allies, not just the State of Israel but also Ukraine. We are in a situation where both of these countries are under tremendous stress. But it is very clear that the proposal before us, this unanimous consent request to pass the bill including only funding for Israel, is just ironically an attempt to deny funding for Ukraine. It is not really about helping Israel; it is about making sure we don't continue our support and commitment to Ukraine. That commitment is just as vitally important to us as our solemn commitment to Israel.

If we fail to support Ukraine, we will send a very unfortunate message to our adversaries: You can succeed in overrunning America's allies if you simply wait us out.

My colleagues on the other side of the debate have been spinning a false narrative that says: By providing support for Ukraine, we will deny support for Israel. The truth is that the only obstacle to providing help to both nations is them. The truth is also that the United States is already supporting the State of Israel. The United States has provided Israel with over $12.4 billion in military assistance and missile defense funding over the last 3 years. In response to the attacks of October 7, President Biden has moved two aircraft carrier strike groups into the region. He ordered marines into the region. U.S. forces have already engaged and shot down missiles from adversaries in the region. We have also suffered more than 56 injuries of American military personnel because of actions against the U.S. position in the Middle East.

We need to support Israel. We are supporting Israel. We will continue to support Israel. But we cannot abandon Ukraine. They have lost hundreds of thousands of civilians and military personnel.

The horrors of October 7 were grotesque. I was in Israel last month. I saw the images—some that have not yet been released—of the slaughter. It was traumatic for the entire State of Israel—in fact, the Jewish community worldwide. But go to Ukraine. Go to Bucha. Dig up the graves of people shot in the back of the head while their hands were tied. You want to talk about atrocities? Those were atrocities perpetrated by the Russians.

So we are fighting forces that are dark and evil in two fronts, and we have to support all of those democratic nations—Israel and Ukraine. They are struggling against the darkness.

This is not my opinion alone. Two weeks ago, Mike Pompeo, the former Secretary of State for Donald Trump and a former Congressman from Senator MARSHALL's home State of Kansas, wrote this about Ukraine:

> Make no mistake: The outcome of this war will have a direct impact on U.S. national security. Should Putin prevail—whether on the battlefield or through a war of attrition that leads to ill-conceived diplomacy—

And I would suggest that denying this aid is ill-conceived diplomacy—

> the war would be felt well beyond Ukraine's borders.

Indeed, I would add that if we fail to support Ukraine with funding and equipment, then it is more likely that young American servicemembers will be called upon to fight and perhaps die and suffer in Eastern Europe because, as so many of my colleagues have suggested and as Secretary Pompeo suggested, Putin will not be satisfied with simply taking Ukraine, and we could see ourselves engaged in defending one of our NATO allies.

I have a very simple sort of notion about American military policy, having had the privilege to serve in our military. I would rather send resources to a country fighting than send American soldiers to do the fighting. And if we don't support Ukraine, that will happen.

Let me conclude by simply saying that it is time to get serious. We have 3 days before our government runs out of funding. Israel needs our support. Ukraine needs our support. American families and communities are counting on us to deliver critical disaster assistance. They need support for affordable, high-quality childcare. There are many needs we must address. We have to move now but not by isolating our Ukrainian allies. We are in the fight with them, and we will finish the fight with them.

At this point, I would yield to Senator DURBIN of Illinois.

The PRESIDING OFFICER. The majority whip.

Mr. DURBIN. Mr. President, reserving the right to object, I understand the concerns raised by my colleague from Kansas. I share many of them. We have all seen the horrifying videos and

images, the scenes of death and destruction perpetrated by Hamas terrorists from October 7—the deadliest single day for the Jewish people since the Holocaust. We all know that return to the status quo is unacceptable. So I support the Senator's sense of urgency that we must get security aid to Israel as it seeks to defend itself.

As a former chair of the Defense Appropriations Subcommittee, it was my privilege and honor to appropriate literally millions of dollars for Iron Dome, the air defense which today protects Israel. I believe in supporting our allies in France. In fact, I joined a quarter of my colleagues in the Senate in a letter to President Biden just last week with this very same message.

But I want to be clear. Many of my colleagues harken back in history to the days of Munich and say we are stuck in that thinking. I would say: Forget Munich for a moment. Think of the days of Moscow. Think of this impromptu visit by the Hamas terrorists to Moscow to sit down with Vladimir Putin. Coincidence? Just happened to be part of the travel plan? No. Hamas had already attacked Israel. They were branded as a terrorist group. Where did they go to find solace? Where did they go to find a friend? They went to Moscow and Vladimir Putin. Why would we get soft on Putin at this moment?

What is happening in Israel is a mirror of what is happening in Ukraine—a tyrant, atrocious conduct, an unprovoked invasion of a country, innocent people killed. That is the story in both places. Yet the Republicans come to the floor today and say to us: We are only concerned about one. We don't care about the NATO alliance and supporting it further. We don't care about supporting Ukraine further. We just want to help one of our allies.

I want to be clear. Just 2,000 miles north of Israel, there is another country fighting for its survival in the face of a brutal assault, also in need of sustained U.S. security assistance. That country is Ukraine.

Two months ago, I imagine, my colleagues all joined me and others, meeting in the Old Senate Chamber in a private, secret, confidential meeting with the President of Ukraine. President Zelenskyy told us without equivocation: Without the continued financial support of the United States and NATO, we will lose this war. He didn't say that once; he said it twice to make it abundantly clear. And now for the Republicans to say that we will step aside and let the aid to Ukraine—if it is ever going to come—come much later is to jeopardize their future and to really make a mockery of the amazing display of courage we have seen in Ukraine resisting the Russian aggression.

Just as Secretaries Austin and Blinken argued for emergency aid for Israel before the Senate Appropriations Committee recently, they also stressed the need for aid to Ukraine. Ukrainians have fought bravely, stood up against Russian tyranny, with the United States, the European Union, and countless other countries around the world standing with them. We are the frontline of democracy in Ukraine, and to walk away from Ukraine, as the Republicans are suggesting today, is a travesty. To pull back now would be unconscionable, a reflection of an America no longer being the world leader it purports to be, and a boon for countries like Russia, China, and Iran, eager to fill the ensuing void.

Secretary Blinken said it plainly:

In both Israel and Ukraine, democracies are fighting ruthless foes who are out to annihilate them.

Secretary Austin went further:

Today's battles against aggression and terrorism will define global security for years to come.

The Republican suggestion today to walk away from assistance to Ukraine would unfortunately lead us to that conclusion.

And only firm American leadership can ensure that the tyrants, thugs and terrorists worldwide are not emboldened to commit more aggression and more atrocities.

In addition to Israel and Ukraine, we must also remain steadfast in addressing Chinese aggressions in the Indo-Pacific, including Taiwan.

Let me say a word about humanitarian aid. One cannot look at the scenes coming out of Gaza without realizing there are many thousands of innocent victims, people who are not part of the terrorism of the Hamas leadership, people simply trying to survive. The scenes coming from hospitals on a daily basis are a reminder to us that there is a desperate need for humanitarian aid.

Al-Shifa Hospital this morning displayed photographs of a dozen infants who have been separated from their ventilators because the electricity is off, and there is no water in the hospital.

To provide humanitarian aid to the helpless, guiltless victims in this part of the world is consistent with the values of the United States, and I support it without reservation. Humanitarian assistance is not only the right thing to do, it will save lives. It will help prevent the next conflict. It will serve as a downpayment on our own security in the future.

I urge my colleagues to resist this effort by the Republicans to walk away from Ukraine and to ignore the obvious consequences. The people of Ukraine have shown extraordinary courage. I hope a majority in the Senate will as well.

I yield to Senator VAN HOLLEN.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. VAN HOLLEN. Mr. President, reserving the right to object, at this moment of danger and peril around the world, we, the United States of America, must support our friends and democracies that are under attack from brutal adversaries. That means supporting Israel's right to defend itself in the aftermath of the brutal Hamas attacks of October 7.

It also means ensuring that the people of Ukraine can defend themselves against Putin's rank aggression. Make no mistake about it, this proposal on the floor today is tantamount to saying the Ukrainian people should surrender to Vladimir Putin. It is waving the white flag. If we don't support Ukraine, not only will the Ukrainians lose, democracy will lose around the world. And I have to say that Ronald Reagan would be rolling in his grave today to see the Republican Party abandoning Ukraine in the fight for democracy and freedom.

You know, most of us gathered recently in the Old Senate Chamber with President Zelenskyy, and he was very clear that the Ukrainians will fight on to defend their democracy and their sovereignty, but if the United States doesn't stand by the people of Ukraine, Putin will have the upper hand.

So for goodness' sake, our Ukrainian friends are spilling blood; they are giving lives. The very least we can do is step up and continue to provide military assistance so that they can defend themselves.

And this is not only about Ukraine; it is about making sure that our allies—our NATO allies—understand that the United States will continue to stand up against aggression. If the United States walks away, the NATO alliance will begin to collapse.

It also sends a terrible signal to others around the world—other autocrats—who are watching very carefully what the United States and our allies do with respect to Ukraine. I have heard my colleagues say it is only speculation as to what our allies in the Indo-Pacific would think if we walked away.

Well, let me tell you. They have told us very clearly. Leaders in Japan and South Korea, friends in Taiwan are watching closely what the United States does with respect to Ukraine, just as President Xi is keeping one eye on Taiwan as he keeps the other eye on what is happening in Ukraine.

Now, President Biden is scheduled to meet with President Xi tomorrow in San Francisco at the APEC conference. And I can tell my colleagues don't pretend on the Senate floor or otherwise that you are going to be really tough on China; that you are going to support Taiwan if you cut loose and run when it comes to Ukraine because they are intricately connected. Just ask the people in Taiwan, ask the people in the Indo-Pacific region.

Finally, I keep hearing my Republican colleagues talk about their so-called pay-for, as if the $14 billion dollar cut to the IRS pays for the $14 billion in support for Israel. This debate has been going on for a couple of weeks so it can't be that our colleagues aren't paying attention to what both the IRS and the Congressional Budget Office have said. They have said, far from paying for it, it will actually increase

the deficit. That was the testimony of all the witnesses, Democrats and Republicans, in the Budget Committee last week. Why would it increase the deficit? Because you are taking away funds that the IRS is using to go after very wealthy tax deadbeats, people who are not paying the taxes that are already due and owing.

You are saying to the IRS: We are going to deny you the funds to go after those very wealthy deadbeats. And because you can't collect the revenue from those tax deadbeats, the United States deficit is going to go up, not down. So that doesn't pay for it. Don't call it a pay-for. That is simply a fraud. It is not true.

And what is really astounding—I have heard my colleagues use the word ''leverage'' a couple of times. It is a new cynicism to use our efforts to support Israel to provide what amounts to a don't-have-to-pay-your-taxes message to very wealthy Americans. It is like nobody ever seems to miss an opportunity to give another tax break to very wealthy folks on the Republican side. In this case, it is not a tax break; it is actually just requiring that people pay the taxes already due and owing. So stop calling it a pay-for.

Let's stand up for Ukraine and democracy in Ukraine; yes, let's continue to support Israel's right to defend itself; and let's stand up as the United States of America to ensure that we send a message to our allies around the world that are with them and our adversaries around the world that we will stand by our friends.

With that, I yield to the Senator from Colorado, Senator BENNET.

The PRESIDING OFFICER. The Senator from Colorado.

Mr. BENNET. Mr. President, reserving the right to be object, I am glad to be here today. I think it is important for us to have this debate. This is a debate. People on the other side of the aisle say it is not one.

I heard my colleague from Ohio talking earlier about slogans, slogans, slogans. This is all about slogans.

I cannot believe the degree to which the accomplishments by the Ukrainian people are being diminished on this floor or being diminished in this debate. It is absolutely disgraceful.

They are this close to winning this war. There is a freeze today on the battlefield, on the frontline, in part, because Putin knows exactly what is going on here. He knows about the debate that is going on here. He knows, my colleagues, that he is losing on the battlefield. He understands that. NATO understands that. Xi Jinping understands that. He knows that.

He is losing on the battlefield. He is counting on winning on Capitol Hill. He is counting on winning on this battlefield. Let me tell you something. This isn't about slogans.

Let's talk about what Ukraine has done over the last 2 years. I haven't heard anybody talk about that in this discussion or this debate. I hope my colleagues on the other side are listening because you will not hear, in your lifetime, a list of greater courage or sacrifice than what you will hear from Ukrainians, and it is not slogans.

They defeated and reversed the Russian attack on Kyiv—which, by the way, Kyiv was supposed to fall in 72 hours. They reversed that. They forced Russia to retreat from Chernihiv and Sumy. They won the battle of Kharkiv. They took back Kherson. They took back Snake Island.

Ukraine has taken back more than half—more than half—of the land that Russia took from them in this invasion, colleagues, more than half. Nobody 2 years ago would have predicted that. Everybody would have said Putin would never relinquish that land.

They almost singlehandedly restarted commercial grain trade with Asia and Africa. Why does that matter? That matters so that the whole rest of the world can be fed, so they will stay in the fight that we have led that no other country can lead but the United States of America, even though my colleagues on the other side have gotten tired.

Last month—read it. Look it up. I will put it in the RECORD. There was an amazing article over the weekend about this in the New York Times, and I ask unanimous consent that it be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the New York Times, Nov. 12, 2023]

HOW UKRAINE, WITH NO WARSHIPS, IS THWARTING RUSSIA'S NAVY

In a small, hidden office in the port city of Odesa, the commander of the Ukrainian Navy keeps two trophies representing successes in the Black Sea.

One is the lid from the missile tube used in April 2022 to sink the flagship of the Russian Black Sea Fleet, the Moskva, a devastating blow that helped chase Russian warships from the Ukrainian coast. On the lid is a painting of a Ukrainian soldier raising his middle finger to the ship as it bursts into flames.

The other is a key used to arm a British-made Storm Shadow missile that slammed into the headquarters of the Russian fleet in Sevastopol on the Crimean Peninsula.

We dreamed of making a beautiful recreation park for children in this place, to take away the center of evil that is there now,'' said Vice Adm. Oleksiy Neizhpapa, the Ukrainian naval commander.

He held the key in his hand, and although his eyes were tired, he said there was nothing to do but fight.

''Sevastopol is my hometown,'' he said. ''For me, it is my small homeland, where I was born, where my children were born. So, of course, I dream that the time will come, hopefully soon, that we will return to our naval base in Sevastopol.''

Despite having no warships of its own, Ukraine has over the course of the war shifted the balance of power in the naval conflict. Its use of unmanned maritime drones and growing arsenal of long-range anti-ship missiles—along with critical surveillance provided by Western allies and targeted assaults by Ukraine's Air Force and special operations forces—have allowed Ukraine to blunt the advantages of the vastly more powerful Russian Navy.

''At this point, the Russian Black Sea Fleet is primarily what naval strategists term 'a fleet in being': It represents a potential threat that needs to be vigilantly guarded against, but one that remains in check for now,'' said Scott Savitz, a senior engineer at the RAND Corporation, a federally financed center that conducts research for the United States military. ''Remarkably, Ukraine has achieved all this without a substantial fleet of its own.''

Admiral Neizhpapa cautioned that Ukraine remains vastly outgunned on the Black Sea. It lacks the battlecruisers, destroyers, frigates and submarines that populate the Russian fleet. Russian planes still dominate the skies above the sea, and Russia still uses its fleet to launch long-range missiles at Ukrainian towns and cities, threatening armed forces and civilians alike.

On Wednesday, a missile struck a commercial ship pulling into the port of Odesa, killing the pilot and wounding three crew members. It was the first civilian vessel hit since shipping to Odesa resumed in late August.

The Russia Navy also dominates the Sea of Azov, a body of water connected to the Black Sea by the narrow Strait of Kerch, and is increasingly using Azov ports in the occupied cities of Mariupol and Berdiansk to help alleviate logistical challenges on land.

Ukraine has nevertheless managed to negate some of those advantages and lately has gone on the offensive. Over the last two months, it has launched both stealthy nighttime operations by small units on jet skis and powerful missile strikes. Those strikes have hit not just the Sevastopol headquarters but also a Kilo-class submarine and a shipbuilding plant in eastern Crimea, an attack that damaged a new missile-carrying Russian warship.

The latter strike ''will likely cause Russia to consider relocating farther from the front line,'' the British military intelligence agency reported on Wednesday.

Ukrainian officials also said that the Russian strike on a civilian ship as it pulled into port in Odesa would not stop the shipping. About 100 cargo vessels carrying more than 3.3 million tons of agricultural and metal products have made the journey in a little over two months, according to Western and Ukrainian officials.

Even as forward movement on the ground has largely shuddered to a halt, with neither Russian nor Ukrainian forces able to break through heavily fortified lines, Ukraine has effectively turned around 10,000 square miles in the western Black Sea off its southern coast into what the military calls a ''gray zone'' where neither side can sail without the threat of attack.

And Admiral Neizhpapa stressed that Ukraine's combined armed forces and its security services were all playing integral roles in the battle of the Black Sea.

James Heappey, Britain's armed forces minister, told a recent security conference in Warsaw that Russia's Black Sea fleet had suffered a ''functional defeat'' and contended that the liberation of Ukraine's coastal waters in the Black Sea was ''every bit as important'' as the successful counteroffensives on land in Kherson and Kharkiv last year.

The war at sea has also demonstrated the impact of emerging technologies, transforming long-held theories about naval warfare in ways that are being studied around the world, perhaps nowhere more closely than in China and Taiwan.

The classical approach that we studied at military maritime academies does not work now,'' Admiral Neizhpapa said. Therefore, we have to be as flexible as possible and change approaches to planning and implementing work as much as possible.''

For example, he said, it takes years to develop and build warships and more time to update them to meet new challenges. Yet maritime drones are evolving every month.

Admiral Neizhpapa acknowledged that Russian air superiority over the Black Sea is a problem and has stressed the value that F–16 fighter jets would bring to Ukraine's naval war. The United States has pledged F–16s, but Ukrainian officials have said they are unlikely to be seen in Ukrainian skies before next summer.

Russia's main response to setbacks at sea has been a relentless bombing campaign aimed at crippling Ukrainian port infrastructure and punishing the people of Odesa. In recent weeks, its naval aircraft have been dropping ''mine-like objects'' in the shipping lanes from Odesa, the admiral said, but shipping has not stopped.

''Of course, they want to stop our initiative by all means,'' he said. ''But we believe that they will not succeed.''

While much attention over the past 20 months has focused on the land war, Europe's largest since World War II, a desire to control the Black Sea was a key factor in President Vladimir V Putin's decision to invade Ukraine. In 2014, when Russia illegally annexed Crimea, Ukraine lost nearly all of its ships; about 5,000 of its sailors defected, cutting the size of its navy by two-thirds.

Despite Ukraine's recent intensified assaults, Crimea still functions like a huge aircraft carrier parked off Ukraine's southern coast. It is a critical logistics hub for Russian occupation forces in the south, a base for Russian fighter jets and attack helicopters, and a platform to launch missile and drone strikes across Ukraine.

Admiral Neizhpapa is fond of citing an adage of Alfred Thayer Mahan, the famed American naval officer and historian: ''A nation must defend its own coast starting from the coast of the enemy.''

For the admiral, who left the peninsula in 2014 with other sailors who remained loyal to Ukraine that means taking the war to Crimea.

Russia, however, is also adapting and bolstering its defenses.

What we did a year ago is no longer working or is not working as effectively,'' Admiral Neizhpapa said. ''We have to be flexible and change our tactics.''

Ukraine must not only innovate, he said, but also deploy new weapons quickly. Ukraine has unveiled several iterations of uncrewed surface vessels, and officials recently offered a glimpse of what they said was Ukraine's first unmanned underwater vehicle.

Christened Marichka and measuring about 20 feet from bow to stern, the vessel can travel beneath the surface of the waves for more than 600 miles, although the size of its payload has not been made public and there is no evidence that it has been used in combat.

About two dozen Russian ships and one submarine have been damaged or destroyed since Russia launched its full-scale invasion, Admiral Neizhpapa said. Oryx, a military analysis site that counts only losses that it has visually confirmed, has documented at least 16 damaged or destroyed ships.

Standing in front of a classified chart that lists damage done to Russian vessels, Admiral Neizhpapa said he had no time for what he called ''wishful sinking''—any exaggeration of what Ukraine has achieved.

There are still scores of powerful Russian warships that Ukraine wants to take off the board. On Friday, Ukraine's intelligence agency released a video of a naval drone attack on two ships that it said played an important role in the layered air defenses that protect Russia's fleet. The extent of the damage was not clear.

''The enemy also learns very quickly, and he also makes his own conclusions, counteracting our actions,'' Admiral Neizhpapa said. ''The war at sea can only be won with new solutions that must be implemented as quickly as possible.''

Mr. BENNET. Mr. President, they largely neutralized the Black Sea Fleet. They don't even have a real navy. They don't have a navy. Through their dedication and through their imagination and their willingness to sacrifice, they have managed to neutralize the Black Sea Fleet.

There is nobody who thought they could do this. This is all while Russians outnumber Ukrainians 3 to 1 on the battlefield.

I heard from my colleagues, how much more American lives, how much more American treasure? There is not an American losing their life. The Ukrainians are losing their lives in the name of democracy.

In total, Ukrainians have killed 300,000 Russian fighters. Thank you, Ukraine, for doing the work that NATO has not been asked to do, that the United States has not been asked to do.

Putin knows he is losing this war in Ukraine. The only question that he has is, is he going to win the war here in the U.S. Congress? Who is going to lose Ukraine?

And the people who are here today saying this is not a lesson from World War II; this is a lesson from World War I, these are the people who are going to lose Ukraine.

Do we have any right to be fatigued, colleagues, when we haven't lost 100,000 people, when all we are being asked to do is manufacture the weapons that Ukraine is using on this battlefield, putting American people to work to support Ukraine and democracy? That is what we are being asked to do. Can we possibly be fatigued at this moment?

I suppose we could be having a very different debate if Ukraine hadn't been as successful as they have been, but they have been successful. What we know is, if we roll over now for Vladimir Putin, if we stop providing Ukraine with their weapons—and they are out of bullets. They are out of bullets as we stand here today. They have $1 billion left. If we stop providing them with resources, if we stop providing them with the intelligence that we provided them, they are going to lose this war. President Zelenskyy came here and told you that we will win this war if you stick with us; we will lose this war if you abandon us.

We cannot abandon Ukraine at this moment.

I know I have other colleagues on the floor who need to speak today. I am glad this has been recorded for history. I am glad today's debate has been recorded for history because when they ask who lost this war to Vladimir Putin, it is not going to be a question of rhetoric or debate points; it is going to be a question of a war that we were actually on the verge of winning and a war that we walked away from and lost with repercussions to every single corner of this world, including where Xi Jinping is sitting right now in Beijing. And don't forget about it. Don't forget about it.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. MURPHY. Thank you very much, Mr. President. I want to thank Senator MURRAY and Senator REED for leading us in this time.

I want to make two relatively brief points to add to the discussion, and I will turn it over to others of my colleagues.

First, I understand that my Republican colleagues want to avoid the question of Republican priorities. The fact of the matter is, an Israel-only funding bill passed through the House of Representatives, and attached to it was a massive giveaway for the richest Americans: millionaires and billionaires who don't pay their taxes. So as we chart the path forward for a bill that only funds Israel, we know, in the House of Representatives, it has to be matched with a massive—massive—giveaway for millionaires and billionaires.

I don't think you can ignore that fact that a large swath of the Republican Party is using this crisis in Israel in order to deliver yet another gift to the very small slice of Americans who don't need any more gifts. There are 700 billionaires in this country who have more net worth than 50 percent of all Americans. The rules are already rigged in favor of the superwealthy. So the idea that we would facilitate a plan in the House of Representatives to use Israel aid as a means to continue to rig the rules in favor of those ultrarich Americans, it is just incredibly distasteful, and it is a signal about where the Republican Party priorities are today.

Second, I do want to talk about what Senator VANCE and others talked about, about the lazy precedent, referencing the sloganeering that they accuse Democrats of engaging in.

So it is correct that what is happening today in Ukraine does not have a modern precedent because never before in our lifetime, in the post-World War II order, has a large nuclear nation like Russia invaded another large neighboring nation with the purpose of annexation.

What Russia is trying to do is to fundamentally change the rules; to fundamentally shift international norms that have been in place since World War II. At the foundation of it is that big countries don't change their borders through force, through aggression. It is important to understand that these are the rules that have undergirded the last 70 years of U.S. growth and U.S. national security.

So we don't believe that we should support Ukraine because we just believe that Vladimir Putin is Adolf Hitler. We don't believe we should support

Ukraine to perpetuate some slogan about American greatness. No. We believe that we have an interest—as the most powerful nation in the world, as the nation that has benefited most from the post-World War II order—to defend those rules because, if we don't, no one else will.

And it just strikes me that my Republican colleagues who have this fatalistic view of what is going to happen in Ukraine just really view America as weak, as impotent, and as powerless in the face of this unprecedented aggression from Vladimir Putin. America's greatness is connected to our willingness to stand up and lead at moments of crisis, and this is a unique moment of crisis without precedent, which is why it requires the United States to stand against Russia's aggression.

Listen, for thousands of years—and we know this because you read about it in your history books while growing up—for thousands of years, prior to the establishment of the post-World War II order, this world was defined by state-on-state, civilization-on-civilization violence and conflict. People labored under the constant threat that their entire world would be ended by another one of these civilization-on-civilization conflicts. But this was back at the time when weapons were crude—they were swords; they were bows and arrows; then they were simple firearms. Millions died, but millions also survived.

We live in a very different era today where we, frankly, have to be more worried—not less worried, not permissive and fatalistic—about the consequences of reentering a world and a paradigm in which states enter into conflict against other states. Why? Because we now live in a world filled with weapons of mass destruction, not just nuclear weapons but other highly sophisticated weapons.

So now this kind of conflict that Russia and Ukraine are engaged in is the kind of conflict that can wipe out millions in a day. That is why the United States of America has stood up for the post-World War II order. That is why we have fought and sometimes died to maintain it. And this is the most significant affront to that order—an order that has protected this country; an order that has protected our economy; an order that has saved millions of lives in our lifetimes.

It is hard. Ukraine's mission is difficult. In a short-term ''satisfy me now'' culture, I understand that many of my Republicans get phone calls from their constituents saying: If Ukraine hasn't won this war tomorrow, I am not interested any longer. But this conflict matters, and it matters that we stick with Ukraine, because if we lose—if we lose—we are living in an entirely new world: The cap is off state-on-state violence. Pretty soon, America will be in one of those conflicts with another nuclear nation, and we won't be talking about thousands of Ukrainians dying; we will be talking about millions of Americans dying.

So I appreciate my colleagues for being here today. I think this is as important as it gets. I think we really are deciding the future of this world and the rules that govern it, and I join my colleagues in objecting to this motion.

I yield the floor to Senator SCHATZ.

The PRESIDING OFFICER. The Senator from Hawaii.

Mr. SCHATZ. Mr. President, in reserving the right to object—and I will be pretty quick here—I have rarely seen such a cynical piece of legislation on the Senate floor. I have rarely seen it.

The point that CHRIS VAN HOLLEN and CHRIS MURPHY made, I think, is the first point, which is, when all you have is a hammer, everything looks like a nail. So whenever there is an opportunity to legislate—even in the foreign policy space, even when we are in a global fight against fascism—the first thing that comes to the mind of many people on the other side of the aisle is, How can we make life easier for the wealthiest among us? Like it has literally got nothing to do with Israel aid or Ukraine aid or Indo Asia-Pacific security matters. Just, whenever you get a chance, throw in an opportunity to enrich the wealthiest among us who are already not paying their fair share of taxes.

So that is the frame, right?

This is where we start, which is, I have got an idea: We should cut taxes again. I have got an idea: Let's gut the IRS so that they don't have the ability to audit these billionaires, many of whom don't pay taxes in the first place.

So that is how you should understand this from the jump.

The second thing you should understand is, we really are in a global fight against fascism and authoritarianism. And if there is one thing that I think the last 2 or 3 years—frankly, the last 7 years—has taught us is: Believe what the authoritarians say they want to do. Believe Hamas when they say they want to wipe Israel off the map and that they are not done. Believe Putin when he says that the biggest mistake that the Soviet Union ever made was perestroika and glasnost and all of that. Believe him when he says that after he takes Ukraine, he will turn his eye to the Baltics. Believe all of these people. They do exactly what they have been saying they would do. And here we are hoping—hoping against hope—that maybe they don't mean it; that maybe their ambitions aren't so murderous. They do it every time.

And the idea that we would separate these two fights even though these people are aligned—these Fascists are aligned, this authoritarian movement is increasingly aligning itself perhaps because of the internet, perhaps because of globalization—but, whatever it is, there is an actual global Fascist, authoritarian movement, and they are on the march. And the idea that we would fund Israel's security needs and leave Ukraine behind because—what?—Ukraine is in Europe? because Donald Trump doesn't like Ukraine aid? because it is getting hard? because it is getting tiring? because it is getting expensive? Listen to those arguments. My God. This man wants to take Europe and has a plan to do so.

As Senator BENNET said—and this is a key point—God bless these Ukrainian fighters. They are the ones fighting and dying. They are the ones spilling blood to keep Europe peaceful, to establish that nobody can change the boundaries of a country using violence only. God bless them for doing this. God bless them for their sacrifice, for their ingenuity, for, frankly, exceeding everybody's reasonable expectations. God bless them for their sacrifice.

All they need from us are resources. We are the wealthiest country in the history of humankind, and we are saying: It is a little too long. We haven't won yet. Trump doesn't like it. This is kind of getting expensive.

What a bunch of terrible arguments in the scheme of things. What a bunch of terrible arguments. When we look back 20, 30, 50 years from now at this debate, no one is going to ask whether this was emergency spending or in a supplemental or in the regular appropriations process or in a CR or in a CR and omnibus. They are just going to ask: Did we stand with the free world like Americans always do?

So this has gotten me a little angry. This has gotten me a little frustrated because I just thought—I really did think—and I am not naive—but I really did think that on an issue like this, we could put our partisanship aside; we could put our fealty to either our current President or to the former President aside and just say: Look, this is good for the free world; we are just going to do it together.

I now, with the Presiding Officer's permission, through the Chair, defer to the President pro tempore.

The PRESIDING OFFICER (Mr. HICKENLOOPER). The Senator from Kansas.

Mr. MARSHALL. Mr. President, I call for regular order.

The PRESIDING OFFICER. Is there objection to the request?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Kansas still has the floor.

Mr. MARSHALL. Mr. President, thank you to my colleagues for their comments today and for their arguments. Many were good arguments. Some of the facts, the American people disagree with. Some of the conclusions, the American people disagree with.

What I heard today was once again from my colleagues spending 80 percent of their time focusing on Ukraine funding; but I didn't hear one person say why we shouldn't go ahead and fund Israel today, why we shouldn't send a bill to the President's desk today.

Look, we have debated Ukraine at lengths. Put a bill on the floor. Let's

vote on Ukraine funding. My friends across the aisle have said that Ukraine is winning this war, and many of the same reasons they give us to continue to support Ukraine are the same words I heard in grade school as to why we should support the cause in Vietnam. They are the same arguments.

If Ukraine is winning, then why have Poland, Slovakia, and Hungary abandoned Ukraine? Why is the frontline not moving?

Some of my friends brought up aid. Look, if you want aid to the hospitals in Gaza, if you want aid to Gaza itself, then tell Iran to stand down. Tell Hamas to release the hostages. I don't hear anyone talking about that. Tell Hamas to surrender. Let's send a message from the Senate that we unequivocally stand beside Israel.

And I will close with this: One of my friends across the aisle talked about President Reagan. What I will remember about President Reagan and, before him, Eisenhower is that they stressed peace through strength. But this White House is giving us war through weakness.

Time is of the essence. We need to get Israel the funding. Thank you.

The PRESIDING OFFICER. The Senator from Delaware.

Mr. COONS. Mr. President, my colleagues from Kansas, Ohio, and Missouri have raised a raft of questions to which I will offer a few timely and simple answers: Look up. Look back. Look ahead.

To my colleague from Kansas, his predecessor Bob Dole, a Senator who was a great leader in this Chamber, was a champion for the power of humanitarian aid around the world. And I will not yield without speaking to a piece of this supplemental that has been largely ignored: the critical role of humanitarian aid in sustaining our partners and allies, in averting humanitarian catastrophe, and, yes, in sustaining both Ukraine and Israeli national security.

But, first, if I might, let's look back for a moment to history. My colleague from Ohio complained that we somehow had not thoroughly debated Ukraine. I believe we have, but I am happy to have us engage for hours more because there are critical lessons from the past that inform the strong, broad, and bipartisan support for aid to Ukraine.

The last time I went to Kyiv, I traveled with his predecessor, Senator Rob Portman—a cochair of the Ukraine Caucus in this body and a determined and committed supporter of Ukraine's. Why? Let's look back for a moment.

In the runup to the Second World War, a famous American aviator, Charles Lindbergh—a man who was decorated for his exploits and his exploration—joined a nationwide movement whose slogan was ''America First.'' ''America First'' seemed to say that we should stay out of the roiling conflicts in the Pacific and in Europe; that we should step back and allow the armies of the Nazis to advance across Western Europe and allow the armies of imperial Japan to advance across Asia because those were not our concerns. In fact, he gave a publicized speech in favor of neutrality just on the eve of the attack on Pearl Harbor.

History proved that ''America First'' almost risked ''America Alone'' in a world overcome by authoritarians.

I will tell you, that mistake is a mistake my colleagues risk making now. If they want to make America weak again, they can go back to the arguments of the isolationist Republicans on the verge of the Second World War.

But to my colleague from Kansas, I will say you don't really have a debate with us. You have a debate with your own leadership. I have heard on this floor clear, forceful, focused speeches in defense of Ukraine—the critical role of our support for Ukraine—not from Democrats alone but from some of the most seasoned and capable and leading Members of the Republican caucus, including my colleagues from Texas and from Kentucky.

There is broad support for Ukraine. I, frankly, think, to answer the question of my colleague from Ohio: How are these possibly connected, the attack of Hamas on Israeli civilians, the attack of Russia on Ukrainian civilians?

I say, you would need only look up. What is that sound? It is Iranian drones and missiles raining death on innocent civilians in Israel and Ukraine. These conflicts are profoundly connected.

My colleague from Ohio suggested that President Biden has thrown the world into chaos. I do not have the time to fully rebut this ill-informed point, but I will suggest that Vladimir Putin's aggression in Ukraine and, in particular, the terrorism of Hamas in Israel is not the cause—of that, President Biden is not the cause but, in fact, has been a forceful, timely, and responsive leader. His response to the attack on Israel, I hope, has earned broad bipartisan support because it was personal, forceful, and timely.

All of us here are standing, calling for the release of hostages by Hamas, standing in strong support of Israel, and insisting that we advance at the same time the aid that is desperately needed by our close allies.

My colleague from Kansas asked a critical question: Will we show the United States is a fair-weather friend? To my colleague I will say: Sir, that is exactly why I join my colleagues in objecting to this narrow, Israel-only aid package, because we cannot show that we will fail to aid Ukraine.

Last, it was asked by several of my colleagues: Why would we send humanitarian aid into Gaza? It will inevitably all fall into the hands of Hamas, who support this.

I ask unanimous consent to have printed in the RECORD, if I might, a letter from the Israeli Embassy to the Congress of the United States.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

EMERGENCY SUPPLEMENTAL FUNDING—HUMANITARIAN ASSISTANCE COMPONENT

Please find below an overview of Israel's position, regarding the humanitarian assistance component of the Presidential request for emergency supplemental funding.

It is in Israel's view that humanitarian assistance to Gaza could and should play a significant role in helping Israel achieve its long-term strategic goals to remove the Hamas threat in Gaza, and enabling a post-Hamas Gaza that is demilitarized and does not pose a threat to Israel.

Israel's position is that this assistance should be designed in a way that ensures that it does not fall into the wrong hands, Palestinian or international.

In light of this, we support appropriating significant funding as part of the supplemental, for the following purposes and under the following terms:

a) Funding for short-term emergency humanitarian assistance, so long as it will be allocated and delivered in coordination with Israel, inspected and monitored by Israel and which is consistent with Israel's objectives in Gaza.

b) Designated funding for a post-Hamas Gaza. Significant humanitarian assistance under the supplemental is required in order to rebuild a demilitarized and profoundly changed Gaza following the uprooting of Hamas.

c) Egypt-Gaza border: As part of the supplemental, we seek funding for the Egypt-Gaza border, including the upgrading of the Rafah crossing—all designed to ensure that Gaza will not be able to remilitarize. As such, this part of the supplemental will be vital for Israel's security. We stand ready to share our thinking on how to achieve the above mentioned goal.

The bottom line is that the supplemental, properly allocated, would contribute to humanitarian solutions on the ground, while bolstering Israel's national security. We believe that US funding in this matter will draw contributions from additional actors and stakeholders from the region and from the international community. We are more than willing to answer any questions you may have and look forward to continuing our dialogue on this and other matters.

Mr. COONS. Who supports humanitarian aid into Gaza with appropriate measures of inspection? The Israeli Government. They say it is critical to bolstering their national security.

Look up. Look back. Look forward. Look up; you will see the missiles and drones of Iran raining down on innocent civilians. Look back; you will see the mistakes of isolationism. Look forward, and you will see there is a bipartisan path to supporting humanitarian relief globally, to supporting aid to Israel against Hamas, to investing in border security, and to taking up and passing a robust supplemental, as we can and as we should.

For that reason, I join my colleagues in opposing the motion made by my colleague from Kansas.

I yield the floor to my colleague from Minnesota.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, I rise today, alongside my colleagues, including Senator COONS and Senator MURRAY, to implore my colleagues to hold firm in their support of Ukraine.

I have sat here for the last hour and listened to these speeches and listened

to some of our colleagues on the other side of the aisle—which, I know, does not reflect all of them—and this is what I came away with: the focus on ''Oh, you just want to go backward,'' the analogies to talking about past decisions in Munich and Vietnam. We all are students of history. I am focused on now. I am focused on what is happening now.

Like my colleagues here, I have strongly condemned the massacre, the terrorist attack by Hamas—and the democracy of Israel. We stand with Israel and the right to defend, but we also stand with the idea that we should continue to provide humanitarian relief in Gaza and around the world.

I think one of the ironies of the statement of our colleague from Ohio—and some of our other colleagues—was that he failed to mention that, actually, Israel has come out this week also supporting the humanitarian aid. So that is one thing that I think needs to get corrected.

The second, as we look at where we are now, he mentioned Vladimir Putin, called him ''a bad guy.'' Those were his words, ''a bad guy.'' I think it is a lot more than that. This is a tyrant. This is a ruler who has committed war crimes, who has downed passenger planes, who has invaded a democracy. Let's get the facts straight about Vladimir Putin.

The other thing is that, now, to not see this as connected is just plain wrong. What kind of drones was Russia using? Iranian drones. Who took the meeting with some of their senior officials from Russia? Who went there? Hamas. Hamas went to Russia after this terrorist attack.

When we stand for democracies in one place, we stand for democracies in other places.

Our colleague from Ohio referred to some of the President's requests as a ''hodgepodge''—a ''hodgepodge.'' I was thinking of that word and what is in this request and this budget: protection of a nuclear plant, the largest nuclear plant not just in Ukraine but in Europe. When his predecessor, Senator Portman, and I were in Ukraine, when we met with President Zelenskyy—where we actually talked about the strong support and the strong Ukrainian community in Ohio and in Minnesota—when we met with him, a major focus of ours was the nuclear plant because we didn't know how long the Ukrainians were able to hold the line to protect that plant from not just contamination in Ukraine but contamination all over Europe. That is what is in what our colleague has called a ''hodgepodge'' of a budget.

What else? Supporting NATO. I was just with the leader of Estonia—a small country, yes, but they have given over 1 percent of their military budget—of the budget of their country—to Ukraine.

Are we just going to turn away on NATO because we think it is a ''hodgepodge'' to support our allies in countries like Great Britain, our allies in countries like France and Germany and Estonia and Latvia and Lithuania and Georgia and, yes, Ukraine? We are just going to say it is a ''hodgepodge''?

What else is in that ''hodgepodge''? Well, what else is in the ''hodgepodge'' are things like air defense, things like munitions, things like small arms. That is what we are talking about here when we talk about the help that we give to Ukraine.

Then I looked at some of the percentages, as I sat here, of other small nations that have given much more than the United States, where it is something like 0.3 percent—right? These countries are at over 1 percent in the help that they have given Ukraine. They have taken in 4 million—count that, 4 million—refugees in Europe. So when we help Ukraine, we are not doing it alone, colleagues. We are standing with our allies. We are standing with our best trading partners. We are standing with the world for democracy.

This is not in a vacuum. This is, as the President once said, a big effing deal.

What about Vladimir Putin? Senator BENNET got at this. He is failing. He tried to capture Kyiv, but he failed. He tried to wipe Ukraine off the map, but he failed. He tried to break the Ukrainian spirit, but he has made it stronger. He tried to break NATO, but NATO has grown.

Ukraine has persevered against all odds. To abandon our partners now would be a dereliction of our duty to defend a democracy and an embarrassment to this Nation, and, yes, it would create a much bigger national security risk not just for our allies but for our country.

I have had the privilege of visiting Ukraine not just with Senator Portman but on another visit, as well, with a number of our Republican colleagues. Each time, I was struck by the strength of the people who put their lives on the line: the ballerina who has to don camo and go to the frontline, the cafe owner donating food to people in need, the deejay at the national call center using her platform to find missing loved ones.

We must not forget President Zelenskyy's words in September:

> There is not a soul in Ukraine that does not feel gratitude to you, America.

That is what we have to remember. They are watching in Ukraine. The democracies are watching. And, as Leader MCCONNELL has said, ''think of it as an axis of evil: China, Russia, and Iran.''

This is not just a test for Ukraine. It is a test for the United States and for the free world, and the path toward greater security for all of us is simple: Help Ukraine win the war.

I yield the floor.

The Senator from Oregon is with us today to speak.

Mrs. SHAHEEN. Mr. President, I once again join my colleagues in coming to the floor in opposition to this short-sighted proposal and in support of a comprehensive supplemental funding bill that responds to the full range of immediate global challenges facing our country. This includes arming and equipping Ukraine and Israel, aiding our partners in the Indo-Pacific, and providing the necessary assistance to adequately address dire humanitarian needs around the world.

To only provide urgently needed support to Israel, as my colleague's proposal would do, would miss the bigger picture. And that is precisely what Putin and Hamas are hoping for. This proposal ignores the reality that these conflicts are part of a shared fight to preserve democracy, confront autocracy and defend the values of the free world.

Over the past 75 years, these shared values and the advancement of democracy across the world have benefited the American people by making the world more predictable, increasing our national security, lowering the cost of goods, and providing opportunities for American businesses. Europe is a critical trading partner for the U.S., and in my home state of New Hampshire, we export about $3 billion worth of goods and services to Europe annually.

So it is in our collective interest to continue supporting our partners to further the democratic advancement in countries across the world, provide an alternative to China and Russia, and increase America's security and prosperity.

We know that our allies need weapons now, but bullets and bombs alone will not solve these challenges in their entirety. Humanitarian assistance, which provides for the basic needs of those who find themselves in the crosshairs of the world's conflicts and crises, supports our security objectives in Israel, Ukraine, and across the globe. In Gaza, the United States has long worked with our Israeli and Egyptian allies to ensure that humanitarian aid is properly and efficiently vetted and delivered. The U.S. has a rigorous system in place to screen and certify implementers on the ground who make sure that food, water, and fuel go to the places and people that need them -- not to Hamas. And in Ukraine, the United States has stood by men, women, and children as they fight off a brutal invading force. A failure to continue to support assistance for Ukraine could mean that 12 million fewer people will get the humanitarian assistance they need right now—aid that has gone to emergency food and shelter, basic healthcare, access to safe drinking water, and basic hygiene kits. This funding is simple. It will save lives. We must deliver.

Now, make no mistake; our adversaries are watching what the United States does. It is no coincidence that Iran backs Hamas's campaign in Israel while also supplying Russia with lethal drones to use in Ukraine. China's coercive behavior toward Taiwan and the

broader Indo-Pacific region may very well depend on if the U.S. is willing to stand on the side of democracy in Europe and the Middle East. Dictators like to stick together. And while they stick together, they seek to divide us from our allies and divert our attention and our resources. We cannot pick and choose when to stand up to autocrats—or there will be no free world left to defend.

I will keep coming back here and keep objecting as long as there are short-sighted and partisan proposals that do not adequately address the breadth of our national security challenges.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the following Senators be permitted to speak prior to the scheduled recess: Senator MERKLEY, Senator LEE, and Senator CORNYN.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Oregon.

Mr. MERKLEY. Mr. President, reserving the right to object, our colleague from Kansas has come to the floor and asked for unanimous consent for a bill of some major significance.

We have heard a lot of my colleagues explain why this Israel-only bill would be a disaster, because it throws Ukraine overboard.

And then I heard his rebuttal. His rebuttal was, ''Well, why not do Israel alone?'' as if we hadn't had this conversation for the last hour and a half. We know the answer: because the House has said it will pass an Israel-alone bill, leaving Ukraine abandoned.

So this UC is about abandoning Ukraine. That has powerful international consequences. Allow Ukraine to be torn apart by Putin's brutal invasion—that is what this UC does. It makes a group of American Senators Putin's best friends. This bill—this UC, this unanimous consent for this bill—will shatter the Atlantic alliance, deeply, deeply damaging the power of democracies working together. This bill will fracture NATO because if we don't stand with Ukraine, how many doubts creep in about any enduring effort to defend a smaller country assaulted by a dictator next door?

This bill will destroy American leadership in defending democracies. This bill will empower dictators around the world. They will conclude that they can outlast the attention span of a coalition of democratic republics as long as they stay the course.

Some of my colleagues in support of this bill say it is costing a lot of money. The budget that Russia is dedicating to this battle is, some estimate, 30 percent—30 percent—of their defense expenditures. Our GDP here is 1½ percent—1½ percent versus 30 percent. If we can't stay the course when the question is $1.50 out of every $100, when would we ever stay the course?

The last time this globe saw such complicity blockading a vicious conqueror was when Chamberlain went to Munich.

In Munich, Chamberlain told Hitler: You can take that massive slice of Czechoslovakia, and England will look the other way. We will simply declare peace in our time.

But that appeasement by Chamberlain didn't produce peace in our time. Instead, that appeasement of Hitler stoked Hitler's appetite for conquering adjacent lands. That appeasement of Hitler set the stage for the Second World War, with massive loss of life and treasure for the United States of America and nations around the world.

Appeasing Putin today is as wrong as appeasing Hitler 85 years ago. We must instead stand with the freedom-loving, fierce-fighting, democracy-defending people of the Republic of Ukraine.

If you come to this Chamber and you have followed former President Trump's lead in loving Putin, then say yes to this unanimous consent request and throw Ukraine under the bus. If you love China, love their authoritarian conquests, love their desire to invade Taiwan, then come to this floor and support this unanimous consent request for this bill and throw Ukraine under the bus. But if you care about freedom; if you are a champion of democracy; if you believe that democracies must stand together against tyranny, against autocracy, against imperialist invaders; if you respect the courage and fortitude of the people of Ukraine, then absolutely say that you object to this UC request, that you object to this bill.

We here in the U.S. Senate must not countenance Putin appeasement. We must not countenance complicity and another Munich moment. So I join my colleagues today in preparing to object to this bill.

I yield to my colleague from Washington State.

The PRESIDING OFFICER. The Senator from Utah is to be recognized next.

Mr. LEE. Mr. President, this is a moment in history where we have the chance to stand up and provide assistance to an ally, an important ally, in a tough part of the world that has a lot of enemies in common with the United States.

Israel was savagely attacked without provocation on the morning of October 7 of this year, just over a month ago. The most unspeakably savage human attacks were carried out on men and women of Israel whose offense was simple: living in Israel. The people of Hamas wanted them dead because of the fact that they are Jewish and they live in Israel. Their humanity, their religion, their ancestry, and their geography all qualified them to be deemed unworthy of living by the savages of Hamas. These savages will continue in their butchery and, in so doing, degrade humanity for as long as they can get away with it.

Longstanding relationships between the United States and Israel have set us on a course in which we can reasonably be expected to provide reasonable assistance to Israel.

Now, to be clear, what Israel is asking of us is not grand. They are not asking us to go there and fight their war for them, nor are they asking us to provide hundreds of billions of dollars over many years in order to help them achieve that effort—no. It is a relatively modest request that they are making of us. Compared to other requests that we are considering from other parts of the world, including and especially from Ukraine, this is a modest one.

This is, moreover, an effort that they believe they can carry out successfully in a matter of weeks or months, not something spanning out over the better part of a decade.

Finally, there is overwhelming bipartisan, bicameral support for aid to Israel. It has already passed the House of Representatives. It is done. We could bring it up right now, we could pass it today, and it could be on the desk of the President of the United States at the Oval Office, just a few blocks from here, by tonight.

To my knowledge, there is not a single Member of this body who would object to collapsing, consolidating the otherwise burdensome and time-consuming process that it takes to bring a bill to the floor at the U.S. Senate. We could have this done today, and I predict that the vote would be overwhelming—if not unanimous, then very nearly so—with the number of dissenting votes probably in the single digits, probably in the low single digits, if, in fact, there were any ''no'' votes at all.

So the point here is that you have two proposals, two ideas to offer support in two different conflicts. One is overwhelmingly popular and bipartisan and could easily pass both Houses. The other is troubling and fraught with questions and also happens to be the proposal—the one for Ukraine—that is a lot more expensive and that involves a conflict that is now, we are being told, a conflict that is likely to stretch out for the better part of a decade with no end in sight. And that is a conflict wherein—since the beginning of last year, we have spent $113 billion on the conflict in Ukraine. They are, moreover, analytically distinct, just as they are geographically distinct. They involve different considerations. We opt to consider them together.

This is one of the real maladies of Washington today, is the fact that, in many instances, Congress can't seem to resist the impulse to consolidate support for one thing and use that as leverage to bring about support for something else for which there is no comparably large, bipartisan, broad-based support. That is unfortunate.

The people of Israel need this aid now. Let's get this done now. We will consider Ukraine on its own merits. There is no reason to delay. We should bring this up today, get it passed

today, and get it signed into law this very evening.

The PRESIDING OFFICER. The Senator from Texas.

CHINA

Mr. CORNYN. Mr. President, tomorrow, President Biden is scheduled to meet with Chinese President Xi Jinping, and it is safe to say their meeting comes at an especially fraught time. There is a war in the Middle East, a war in Europe, and growing tensions in the Indo-Pacific.

In each case, the United States and China have aligned with opposing powers. China is financing the Russian war while America is supporting Ukraine. China is propping up the Iranian regime and terrorist proxies while the United States is backing Israel's righteous defense. China is threatening its own invasion of Taiwan while the United States stands firmly in support of Taiwan's defense.

In addition to these conflicts on the world stage, the United States is facing more direct threats from the People's Republic of China and the Chinese Communist Party. Economic relations have deteriorated due to China's subversive trade practices.

The Chinese Communist Party is holding three American hostages, including Houston native Mark Swidan, who has been imprisoned and tortured for more than a decade.

More than 70,000 Americans a year are being killed by a synthetic opioid, fentanyl, which is manufactured using precursor chemicals that come from—you guessed it—China.

Earlier this year, a Chinese surveillance balloon traveled across the United States, marking a new level of bravado for the Chinese Communist Party.

So suffice it to say this is an especially fraught time for U.S.-China relations, but President Biden should not give the Chinese Communist Party or President Xi a free pass. I hope the President will deliver a clear message to President Xi that China's aggressive and hostile actions will not be met with kid gloves. We have a responsibility to the American people and to our allies to deal with threats from China straightforwardly and head-on.

Strong leadership from the President is important, but Congress has an important role to play too. For example, we have a major piece of unfinished business that is a key to our efforts to counter threats from China, and that is the National Defense Authorization Act. This year's National Defense Authorization Act—or NDAA, as we call it—includes a range of provisions related to long-term strategic competition with China, and it is time to finish that bill and send it to the President's desk for his signature.

The Senate passed the NDAA at the end of July, and here we are in November. I hope this week, after more than 3½ months of waiting, we can finally begin to vote on the formal conference process. This will be key to ironing out the differences between the House and the Senate so we can deliver a bill to the President's desk that is truly tough on China and deals with the threat in a realistic and clear-eyed fashion.

The Biden administration has moved away from the idea of decoupling from China and now focuses on derisking. Frankly, that makes a lot of sense to me because it is hard to ignore a population of 1.4 billion people on the other side of the planet. But we do need to derisk, and that requires some very specific tasks.

We want to reduce America's reliance on China for key national security interests, but we don't necessarily want to completely decouple. I couldn't care less how many businesses want to invest in Starbucks or Burger Kings in China, but I care a lot about American investment in artificial intelligence, quantum computing, and advanced semiconductors.

We know that derisking is harder than it sounds because China does not play by the rules, as we know. The Chinese Communist Party has become increasingly aggressive in its efforts to gain power and influence, embracing illicit tactics like intellectual property theft, for which it is infamous, forced technology transfers, and predatory lending.

It is important to understand that this strategy by the Chinese Communist Party doesn't just benefit China's economy but also its military. In China, there is no bright line separating the military and civilian sectors. This is part of a very intentional strategy known as military-civil fusion, which promotes development of dual-use technologies. In short, the Chinese Communist Party is focused on shoring up technologies that bolster its military strength and its economic power at the same time.

Unfortunately, American investors are fueling the success of Chinese military-civil fusion, possibly unwittingly, without even knowing exactly what is happening. I am not talking about covert theft of intellectual property; I am talking about direct investments in Chinese companies. American investors are funneling money into companies that are developing artificial intelligence, quantum computing, and next-generation semiconductors, all of which benefit the People's Liberation Army. Intentionally or not, these American investors are fueling China's military strength and funding capabilities that could eventually be used against the United States and our allies.

Joseph Stalin reportedly said:

> We will hang the capitalists with the rope they sell us.

Metaphorically, the United States has provided the Chinese Communist Party with a lot of metaphorical rope.

At the end of 2020, U.S. investments in Chinese companies totaled $2.3 trillion in market value. That includes $21 billion in semiconductors, $54 billion in military companies, and a whopping $221 billion in artificial intelligence. That is American investors in China, in those sectors.

We now know China as the single largest national security threat of our time, and it is clear that the United States entities are helping bankroll its rise. While we have some information—anecdotal really—that illustrates the scope of the problem, we need more information. We need more visibility. We need a better understanding of how certain U.S. investments benefit the Chinese Communist Party and its military buildup and its belligerent and aggressive actions.

Thankfully, this is a bipartisan priority, and I am glad the Senate took action over the summer. The Senator from Pennsylvania, Senator CASEY, and I introduced an outbound transparency provision that was adopted as an amendment to the National Defense Authorization Act, and it passed by a vote of 91 to 6. You don't get that kind of bipartisan vote around here very often. So I think it sends a very strong message.

This measure simply requires companies to notify Treasury of investments in specific sectors, including advanced semiconductors, artificial intelligence, and hypersonics. This is not a broad bill that prohibits investments in the People's Republic of China. This is designed to provide information to Congress's policymakers about where that money is going in particular sectors where we are in the greatest level of competition with China.

This is all about visibility, about transparency. It will help us understand where the money is going and allow us to take appropriate action, if required.

Our colleagues in the House are overwhelmingly supportive of outbound investment transparency, though there isn't the same level of consensus that there is here in the Senate. Members of the House have suggested everything from notification requirements to sanctions, to outright prohibitions on some investments.

We work very diligently with stakeholders here in the Senate to try to build consensus. And I think we have achieved that on our outbound transparency provision. But I do expect our colleagues in the House will have a thorough debate about various options. And I have to say, we are fortunate that we have two experts on this topic in the conference committee of the House.

Chairman MICHAEL MCCAUL leads the House Foreign Affairs Committee and is a powerful and trusted voice on matters related to China. He recently introduced his own outbound investment legislation and is committed to including a strong outbound provision in the NDAA.

The conference committee for the Defense authorization bill also includes Chairman MIKE GALLAGHER, who leads

the House Select Committee on the Chinese Communist Party. His committee has been investigating problematic investments in Chinese companies, and he has been clear, based upon those investigations, that Congress needs to enact strong guardrails around investments in China.

But before you do that, you need good information, which is what our outbound investment transparency provision provides. I am glad Chairman GALLAGHER and Chairman MCCAUL will bring their expertise to the Defense authorization bill conference committee. And I am optimistic they can work out with our Senate colleagues a provision that will earn strong bipartisan support.

After 3½ months of waiting, I hope the Senate will finally vote to begin the NDAA conference committee process this week. Once that happens, the two Chambers can work together in earnest to reach an agreement on a final version of the bill.

Here in the Senate, I appreciate Chairman REED and Ranking Member WICKER for their leadership throughout this process and their support of this amendment with Senator CASEY.

I also want to express my gratitude to Senator SULLIVAN of Alaska for his support and his commitment to putting a strong outbound investment provision in this year's NDAA.

There is a lot of work that remains to be done, but there is clearly—clearly—an overwhelming bipartisan desire to counter threats from China through an outbound investment measure. As I noted, this amendment passed the Senate by 91 to 6.

In the House, Members on both sides have endorsed varying proposals that address the same problem from different angles. I don't understand why anyone would be opposed to outbound investment transparency. All we are asking for is information that may or may not require us to take further action.

This information is key to our national security and will help the United States manage risks related to China. And I hope we can get the job done soon.

I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:51 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. LUJAN).

MORNING BUSINESS—Continued

The PRESIDING OFFICER. The Senator from Missouri.

HONORING THE DISTINGUISHED SERVICE OF CAPTAIN SAMUEL FARMER OF THE UNITED STATES MARINE CORPS AND THE MARINES AND SAILORS OF 1ST PLATOON, COMPANY G, 2ND BATTALION, 1ST MARINE REGIMENT

Mr. HAWLEY. Mr. President, last week, the Senate offered a resolution that I was proud to offer, ''Honoring the Distinguished Service of Captain Samuel Farmer of the United States Marine Corps and the Marines and Sailors of 1st Platoon, Company G, 2nd Battalion, 1st Marine Regiment,'' and I would like, if I might, to say a word or two about that resolution here this afternoon.

Why the resolution and who exactly are the marines and sailors of 1st Platoon? Well, I will tell you who they are. They were the individuals stationed at Abbey Gate on that fateful day in August of 2021 when the United States was in the midst of a major evacuation operation, and a terrorist from the Islamic State came to Abbey Gate in Kabul, Afghanistan, and detonated a suicide vest that killed 13 soldiers and hundreds of civilians, including 9 members of this platoon. Nine of the thirteen who were killed were from 1st Platoon, Company G, 2nd Battalion, 1st Marine Regiment.

Who is Sam Farmer? Well, he was their commander. Sam is from the great State of Missouri. He is a graduate of Northwest Missouri State University. Upon his graduation, he was commissioned into the Marine Corps and became an infantry officer. Upon completing his training, he took command of a rifle platoon there in Company G, known as Ghost Company. His platoon was Ghost 1.

Then, in August of 2021, Sam and his platoon found themselves in Kabul, Afghanistan. Sam's platoon was charged with security there at Abbey Gate, and there are—I think even now, 2 years removed from the disaster there, we don't fully appreciate the heroism of all of the soldiers, sailors, marines, and others who were there that day but particularly, if I might, of this platoon, of the men Sam commanded.

Something that most people don't know is that Sam's platoon went for almost 2 days without food and water. Now, why was that? Is it because there wasn't any available for them? No, that is not it. It is because this platoon, in the midst of this evacuation, this incredibly tense scene, gave up their own food and water for 2 days to the Afghan women and children who were waiting in the crowds, hoping to be evacuated. That is the kind of men who were standing there on guard that day. That is the kind of man Sam Farmer is.

Of those 9 servicemembers killed—8 marines, 1 Navy corpsman—another Missourian was among their ranks, someone whom I have had occasion to talk about on this floor several times before—LCpl Jared Schmitz, also from Missouri.

Nine were killed from that platoon. Many others were wounded, and that includes Sam Farmer himself, the platoon commander. But even with his wounds, even in the midst of this disaster as it unfolded, Sam continued to serve, his fellow platoon members continued to serve and to complete their mission.

I just want to make sure that we honor them for what they did, that we honor them for securing the airport and facilitating the evacuation of American citizens, permanent residents, Embassy workers, and special immigrant visa holders. Whatever you think of our withdrawal from Afghanistan, we should be able to honor the men and women who served so bravely, including Sam Farmer and the members of his platoon.

You know, I have had the privilege to get to know Sam just a little bit. He grew up not too far from where I did in central Missouri. His parents, Chris and Anne, are schoolteachers at Fort Osage School District, which is in the Buckner area, for those who know Missouri, just to the west of my hometown of Lexington, MO. Sam has a younger brother, Jack.

If you meet Sam, what you will find is that he is self-effacing, doesn't like to talk about his own achievements, doesn't like really to talk about himself at all. What he likes to talk about is his service and the men and women he served with. What he likes to talk about is his honor in being a U.S. marine.

To be honest with you, I don't know that he would particularly like me saying too much about him on the floor today, but I thought it was important to honor him because Sam, just last month, completed his service with the U.S. Marine Corps. On the occasion of his separation, I offered this resolution, which details his service and the service of the members of his platoon.

You know, I have to say I think about those who have served whom I know, and I think about particularly my own uncle, Gene Hammer, who served in the 101st Airborne Division in Vietnam. I observed over the years that my Uncle Gene—he served before I was born, but, you know, he served, he came home. He won a number of medals, but when he came home, he put those medals away in a drawer and never talked about it ever after. He didn't want to talk about it. He didn't want to talk about himself, didn't want to talk about what he did, didn't want to talk about those medals, didn't want to talk about any of it. I can certainly understand, and I certainly respect that.

But I will just say that whether Sam feels that way or not, I bet one of these days, Sam's children are going to want to know what he did for his country, and I bet his family is going to want to honor his service to his country. Frankly, his family and his future children deserve to know what he and the members of his platoon did for this country.

So I hope this resolution that the Senate has passed and adopted honoring Sam and his platoon—I hope that maybe one day, he will be able to show that to his kids and say ''Well, here, you can read about what we did all those years ago'' and that his parents, Chris and Anne, will be able to hang that up and say ''This is what my son did for our country, proudly serving, this young man from Missouri who represents, frankly, the best of who we are and who we can be.''

So it is a privilege to get to honor Sam, to congratulate him on his service to our country, to the Marine Corps, to congratulate him on his service, his leadership of that platoon not just on that fateful day but for all of the days he was commander, and the leadership, the courage, and the bravery he has shown ever since.

I will just end with this. Let's take the opportunity to honor the sacrifice of those marines and sailors. They truly embody the motto ''Semper Fidelis,'' always faithful.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arkansas.

IRAN

Mr. COTTON. Mr. President, since Joe Biden took office, Iran and its proxies have attacked American troops in the Middle East at least 135 times. Let me say that again: 135 attacks on American troops since January 2021. What is worse is that 52 of those attacks have happened in the last month since Hamas conducted its murderous rampage in its ongoing war against Israel. These rocket and drone attacks against American bases in Iraq and Syria have caused at least 56 servicemember injuries, 25 traumatic brain injuries, and 2 Americans have died because of these attacks.

Just like they have been for years, these attacks are financed by Iran, Israel's greatest enemy. These attacks—let's be clear—are meant to kill Americans and to increase the conflict and the violence in the Middle East.

So what has President Biden done in response to these attacks? Has he punished Iran and its proxies for killing Americans? Has he made it clear that the United States will not tolerate these attacks in the future? No, not even close.

Consider the Biden administration has also failed to enforce oil sanctions on Iran, giving them over $90 billion, and now President Biden is, reportedly, once again, considering the release of the remaining $10 billion Iran is owed as part of its hostage exchange. What kind of message does it send to the people attacking our troops to give them another $10 billion more to fund their activities against the United States and Israel?

In fact, since the terrible atrocity of October 7, Joe Biden has not changed his Iran policy in a single way. Of the 135 attacks on Americans, the Biden administration has hit back fewer than 10 times. Think about that; 135 times they hit us, fewer than 10 times did we hit them back. When the attacks against Americans increased in October, President Biden didn't even authorize a response for 9 days. It took at least 13 attacks on Americans for President Biden to finally react. And what did he do? The bare minimum, striking empty weapons storage facilities in eastern Syria.

After these strikes, Secretary Blinken said:

> My warning to the Ayatollah was that if they continue to move against those troops, we will respond, and he should be prepared.

Well, it is not surprising that shooting a bunch of empty warehouses doesn't scare Iran. In fact, it emboldened them in the form of 22 more attacks. That is right. Proxies attacked American troops' positions 22 more times after that initial pathetic response.

When Secretary Austin announced those strikes, he said:

> The United States does not seek conflict and has no intention nor desire to engage in further hostilities.

Well, Lloyd Austin and Joe Biden may not seek conflict, but Iran does. And it will continue to try to kill our troops until they face real consequences, until they are scared straight.

On Sunday, we finally did hit back again, but, again, we didn't even try to hold the real bad guys accountable; instead, the administration, once again, shot only at expendable proxies. Iran obviously was not deterred by this latest pathetic response. How do we know that? Once again, these proxies have committed four more attacks against Americans since Sunday.

Iran has had a proxy strategy for decades. It uses groups like Hamas and Hezbollah and militias in Iraq and Syria to deny responsibility for its campaign of terror against Israel and the United States. When we kill their proxies, all we do is validate their proxy strategy.

Iran will fight to the last Arab, but Iran will not fight if we hold the things at risk that they hold most dear: their shock troops in the Iranian Revolutionary Guard Corps, their Quds Force or, if necessary, sites and facilities in Iran itself.

The United States needs Iran to know that we will not tolerate these attacks. We need to make sure Iran knows that we will not tolerate these attacks and that any attacks by Iran's proxies will be treated as an attack by Iran on the United States and be met with devastating consequences.

That is one reason I will be introducing legislation later this week that would strengthen sanctions against the Iranian transfer of missiles and drone technologies to terrorists and even other nations like Russia, which uses them in its war against Ukraine.

It will also stop Iran from developing the kind of long-range missiles that can threaten the U.S. homeland because, again, if we let Iran continue to shoot at American troops in the Middle East without shooting back at the Iranians who are directing those attacks, what will they do if they get their hands on missiles that can target America? What will they do if they get their hands on a nuclear weapon?

It is time, today, to make Iran, once again, fear the United States before more Americans die.

I yield the floor.

(Mr. REED assumed the Chair.)

(Ms. SMITH assumed the Chair.)

The PRESIDING OFFICER (Mr. WELCH). The Senator from Nebraska.

GOVERNMENT FUNDING

Mr. RICKETTS. Mr. President, well, here we are again. I am looking at a floor where there is nobody on it. In fact, we haven't even taken a vote today. It has been 7 weeks since our last government shutdown face-off, and nobody is here.

Folks, we have very serious problems facing our country. We have an open border. It is a humanitarian and security crisis. We have $34 trillion in debt. Let me put that in perspective. That is about $256,000 for everybody in this country. And that is roughly the cost of a second mortgage for people in Nebraska. So it is like you own your own home, and now you have another home on top of that—only it is not a home; it is your Federal debt. And, of course, we are facing another government shutdown because we have not passed a budget.

When I was Governor of Nebraska, one of the things I told my team is that passing a budget is our most important thing we do: We fund the government. We would get involved 6 months before. We would give our budget to the legislature to start working on that budget.

Now, let me tell you how it is supposed to work here in the U.S. Senate. We are supposed to pass 12 appropriations bills. For the first time in 5 years, the Senate Appropriations Committee indeed passed 12 appropriations bills before the August recess—first time in 5 years before the August recess. Two came out June 22. The other 10 came out in July.

And yet, for months, our leader sat on those appropriations bills. We did not vote on them. We did nothing. We should have been amending, debating, and voting on those bills, and we did nothing. And here we are again, facing a government shutdown.

Now, it is a little different this time around because we have actually voted on 3 of those 12 appropriations bills. They were crammed together in what is called a minibus. And since that minibus has been voted on and passed, we have done nothing again, which means we have done 25 percent of our work—25 percent.

Now, to most people, 25 percent is a failing grade. Leading up to the September 30 deadline to pass the budget,

our majority leader had kept us in recess 5 of 7 weeks. We, typically, come in on Tuesday and leave on Thursday—or come in on Monday and leave on Thursday.

Do you know what most people in my State do? They work Monday through Friday. And when they have to get the job done, guess what they will also do? They will work weekends.

The House, in October, canceled their State home period. We didn't. The House has passed 7 of those 12 appropriations bills. Now, that is only 58 percent, but that is still more than twice as many as we have passed.

Why aren't we working? Why aren't we working on the people's business here?

We should be in session every day to get our work done. So far this year, we have voted 307 times—307. That is less than one a day. Only 35 percent of those votes have been on legislation. The other 65 percent have been on judicial candidates and nominations and so forth.

We can work harder. Our constituents work hard every day. Nebraskans work hard every day. We need to be here working on the people's business. I am ready to work each and every day until we pass these appropriations bills. We should get all 12 of them passed. We should work with the House to pass theirs, send them to the President, and it all should be done before September 30. And yet here we are, approaching November 17, and yet another deadline, another threatened government shutdown, another continuing resolution. I am ready to work. I know my colleagues are ready to work.

Mr. Leader, let us work. Call us together. Let us vote. Let's get the people's business done. Let's pass a budget. We should have an open government and a closed border. We need to control our spending and our debt. These are serious issues. Please, let us work.

I yield back.

The PRESIDING OFFICER. The Senator from Georgia.

WORLD DIABETES DAY

Mr. WARNOCK. Mr. President, there are several important domestic and international matters before us that require our urgent attention, not least of which is the need to find a bipartisan path to keep the Federal Government open and fund it within the next 3 days to prevent a national economic calamity.

We have a lot of work to do. A lot of priorities vie for our attention. But today, on World Diabetes Day, I rise to address another pressing issue that I believe also requires our timely action.

I want to uplift the findings of my new bipartisan white paper, released today on this World Diabetes Day. It shines a light on the urgent need for Congress to finally address the high costs of insulin and pass Federal legislation to cap the costs of insulin for every American who needs it.

This report is issued jointly today from my office in collaboration with my partner in this work, my friend the Republican Senator from Louisiana, JOHN KENNEDY. Senator KENNEDY and I have been working to address the high costs of insulin because this is a problem that is particularly acute in our States.

Over 12 percent of adults in my home State of Georgia—12 percent—are diabetic, but in Louisiana, that number climbs to over 14 percent, and many of these are people who cannot afford access to this lifesaving drug.

This is what we hear from the people in our States, but this new report, for the first time, takes a comprehensive look to learn more about who and where these people are. And what we found in our original analysis is that there are more than 800 counties across the country where you see the tragic convergence of high rates of diabetics coupled with high rates of uninsured people—high levels of diabetes, high levels of uninsured people. And we call these insulin deserts. These insulin deserts—some 813 counties across our country—are in the top half of counties across the country for both their percentage of individuals who are uninsured and who have diabetes—over 800 counties. And over 100 of these insulin desert counties are in my home State of Georgia.

Over 75 million nonelderly people live in insulin deserts. That includes more than 12 million Americans who are uninsured. In fact, among nonelderly individuals, insulin deserts have nearly double the percentage of uninsured residents as those who live in nondeserts.

So our analysis shows these insulin deserts are concentrated in the South and the Southeast. But it also shows that there are insulin deserts all over the country, concentrated in the South and in the Southeast, but you see them from Washington State to Texas, to North Dakota, to Florida, to New Jersey. In other words, this is a national problem.

And who are the people in these insulin deserts? Well, as compared to uninsured folks in other parts of the country, uninsured Americans who live in these places are, one, more likely to fall under the Federal poverty line than their counterparts. They are less likely to be college graduates than uninsured Americans in nondeserts. They are more likely to be people of color than uninsured Americans in nondeserts. In fact, in 2019, Black Americans were twice as likely as non-Hispanic White Americans to die from diabetes.

And uninsured Americans in insulin deserts are less likely to have access to sufficient internet service than uninsured Americans. And why does this matter? One of the reasons it matters is because it means that they have less access to patient assistance programs offered online by insulin manufacturers, and we know the challenges that uninsured people experience when it comes to accessing healthcare.

This report deals with the uninsured people who are diabetics and the convergence of those two things.

So what does all of this mean? What this report illustrates is that even with the steps private industry has taken to lower insulin costs—steps that are good, that many of us in Congress pressed them to do. But it is still voluntary, and, by the way, they could be rescinded at any time.

And even with the steps more than 20 States have taken to institute State-level insulin copay caps and even with our success in lowering out-of-pocket insulin costs for Medicaid beneficiaries, there are still millions of Americans and communities across our country that are being left behind. They live in these insulin deserts concentrated in the South and the Southeast, but you see them all over the country. They are being left behind.

According to the Department of Health and Human Services, in 2019, uninsured people with diabetes spent close to $1,000 on insulin alone. If you are poor and you are uninsured, that number is unaffordable. We know that number includes the 246,000 insured Americans who use insulin every year, and we know that number rises to more than 540,000 Americans when we include those who experience a lapse in coverage.

But even when we look past the uninsured, we know that when we include those Americans with private insurance, the total number of Americans who are left vulnerable to potential spikes in insulin prices jumps to some 2.75 million Americans.

Here is the thing: Insulin should not be expensive. It is a 100-year-old drug. When it was invented, the patent was sold for $1. It certainly shouldn't be unaffordable.

For the first time, this analysis, which my office releases today, paints a clear picture of who is needlessly suffering and whom we will leave behind if we do not pass my $35 cap for the insured and the uninsured.

We already know what happens when people can't afford their insulin. We know that one in four diabetics—listen—ration their insulin. In the United States of America, people are rationing insulin, getting insulin from friends who have relatives who have passed away. I spent time with a young woman in my State named Lacey, who is a graduate student, was meeting people on Facebook meetup groups and then meeting them in dimly lit parking lots at the local Chick-fil-A to get insulin in the United States of America, a drug, invented 100 years ago, sold for $1.

That is not right. But not only is it not right, it is not smart. It is bad fiscal policy. We know that every year Federal and State government spending on hospitalizations related to complications from diabetes totals more than $11 billion. That is more money

than it would cost to cap the cost of insulin for everybody who needs it.

And, so, yes, I am a pastor; I am going to make the moral argument, but I am saying to you that it is not right, and it is not smart.

And perhaps that is why there are many of my colleagues on both sides of the aisle who care about this issue and have long been working to make insulin more affordable for diabetics.

I want to commend my colleagues, Senator JEAN SHAHEEN and SUSAN COLLINS, for their leadership over the years that has helped keep this issue on Washington's front burner. I look forward to our continued partnership in the coming months on this issue.

I was proud that last year this Chamber passed a provision from my legislation, the Affordable Insulin Now Act, that was signed into law as part of the Inflation Reduction Act. Since January 1, that provision has been saving our seniors money by capping out-of-pocket insulin costs at no more than $35 a month for Medicare patients. And my original Affordable Insulin Now Act included a 35-dollar-a-month insulin copay cap for patients on private insurance as well, and it almost passed this Chamber.

We got close. Now it is time to get it done. We weren't successful in getting that provision over the finish line. But I was proud that earlier this year, I got together with my friend JOHN KENNEDY, and we introduced a new bipartisan version of the Affordable Insulin Now Act that would finish the work we started by capping insulin costs at $35 a month for insured Americans and uninsured Americans.

Since then, Senator KENNEDY and I have been working to build support for our legislation, which we have committed will be—listen—completely paid for. And I am proud that support for our plan has continued to grow. I am proud our bipartisan bill has the support now of a broad coalition of Senators from both sides of the aisle, from Senators FETTERMAN to PETERS, to HAWLEY, to VANCE, to WARREN, to CASEY, to BRITT, to TUBERVILLE, to BRAUN, to ROSEN—Senators who don't agree on a whole range of things, but we all know this makes sense.

Our bipartisan plan to lower insulin costs for the insured and uninsured also has the support of organizations like the American Diabetes Association, the American College of Physicians, Protect Our Care, and First Focus Campaign for Children.

So on World Diabetes Day, I encourage all of my colleagues to read this report, which we released today, because it drives home the work we should be focused on for the more than 7 million Americans with diabetes who use insulin, and it reminds us of whom we leave behind when we fail to act.

Dr. King said: Of all the injustices, inequality in healthcare is the most shocking and the most inhumane.

Shame on us if we can't get this done.

And so in closing—and nobody believes a Baptist preacher when he says ''in closing''—I think that this report is summed up by the story of a woman in the State of Georgia.

She said:

I have suffered with [diabetes] since the age of 11. [The] type of insulin that costs me hundreds of dollars every month at the pharmacy was released to market the year before I was diagnosed. I bought a vial in 1997 without insurance and it cost me $18.

In 1997.

This insulin has not changed since then—

The drug hasn't changed—

but now costs hundreds of dollars. Something needs to be done to ensure we who depend on this life sustaining medicine can continue to afford it. We will literally die in a matter of days without it. It is not a matter of choice.

I agree with her, something must be done. And so let me just thank folks in my office, dedicated public servants who have been working on this issue, especially Gabi Vesey, Annie Wang, and Harper Melnick, for their work on this report. Thank you. People who need insulin really need it. It is not a matter of choice, and Congress can make a difference by passing this bipartisan legislation.

I urge my colleagues, with all that we have to do, to prioritize this work as we handle the host of other vital issues that require this body's attention.

I yield the floor.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. KENNEDY. Mr. President, I don't intend to try to match the eloquence of Senator WARNOCK, and I am certainly not going to repeat what he just said.

Senator WARNOCK and I have introduced—as he said—the Affordable Insulin Now Act of 2023. It would cap the price of insulin for people with private insurance and people who don't have any insurance at all at $35 for a 30-day supply.

I have noticed that nobody in Washington ever stands up and says: I have got a lousy idea, and I need money for it.

It is always: I have got an extraordinary idea and an important idea and an effective idea, and we need to do this. We need to spend money.

And in almost all the cases, the people making that assertion are in good faith. They really believe that. And in many cases, it is true. They have a great idea. And a lot of what we do, as you know, is we make decisions, but we really—that means we balance interests. We have got a finite amount of money. We can't keep borrowing at the rate we have been borrowing. We have got a finite amount of money, and we have got to make hard decisions on what to spend that money on.

And the traditional dichotomy is, well, guns versus butter, domestic needs versus defense needs. But it is more complicated than that. Sometimes it is butter versus butter. And those are hard decisions to make, and I realize that.

The second point, I guess, I would make is that we deal with so many problems in the U.S. Congress that, frankly, we don't know how to solve. We are doing the best that we can, but we are really nibbling at around the edges. I don't know how to make a parent love their child.

We all know that if a parent doesn't show the parent's love for a child, the child is not going to stop loving the parent; the child is going to stop loving himself. And we know what that leads to.

And I don't know how. I don't know anybody who really knows how to make a parent love a child and support their children. That is one of those problems we deal with all the time. It is hard to solve. We don't really completely understand how to successfully help an addict stop being an addict. I wish we did. And there are things we can do to help the addict, but we don't really have the answer.

Sometimes we pretend we do, but we don't. We don't have the answer. I don't have the answer to stop people from hurting other people, from taking their stuff and doing it repeatedly.

And I could continue. All the easy problems are solved. And I make these two points that we have a lot of competing interests for the way we spend money and the point that there are some problems we really don't know how to solve. To assert—and you can believe me or not believe me, but if you will read the report that Senator WARNOCK talked about, you will see that he and I, I believe, are correct. This is a problem we can solve.

If I had to pick one health problem that affects the quality of life and costs our country and our system the most money, it would be diabetes. I don't know if you have ever known somebody with diabetes. It is a horrible disease, and it can't be cured. But we know how to treat it.

It is very pervasive. In my State, 44 percent of my people are affected by diabetes directly. Fourteen percent are diabetic. Another 30 percent are prediabetic. And Louisiana is not the only State with those kind of numbers.

Diabetics account for $1 of every $4 spent, $1 out of every $4 spent on healthcare in the United States of America. Think about that. The average cost of hospitalization for a diabetic—which if they can't pay for it, ultimately we all pay. The average cost of hospitalization for diabetic patients is from $8,400 to $23,000 a year.

And medical costs, if you look beyond the quality-of-life issue and the moral issue of just helping people who are sick, if you look at it in terms of dollars and cents, diabetes costs America $327 billion a year. That is in medical costs and lost work and wages and lost productivity.

So we know the problem, and we know the costs. And we have a solution: Insulin. It works. It works. So why don't we make insulin available to everybody who needs it, whether they

can afford it or not? And that is what our bill does. It is not going to be free. Insulin doesn't cost that much to make, and I don't begrudge the companies who sell insulin. I don't begrudge them making a profit.

But it is bone-deep, down-to-the-marrow stupid for us to allow someone whose diabetes can be managed by taking insulin not to take that insulin because they can't afford it. That is immoral, and that makes no sense in terms of dollars-and-cents cost to the rest of the American people. And Senator WARNOCK and I's bill would address that. It would say: If you have private insurance, great. But if you don't have any insurance at all, if you are uninsured—and a lot of Americans become uninsured every year; maybe they don't stay uninsured, but they become uninsured—and you are diabetic, we are going to cap your out-of-pocket cost at $35 for a 30-day supply. So you have no excuse not to take your insulin to address your diabetes.

It is the right thing to do. It is the smart thing to do. And Senator WARNOCK and I's bill is paid for. We are not suggesting we go out and just borrow more money. This bill, our bill, is paid for. It is going to be paid for by finding other moneys in the budget.

Now, Senator WARNOCK has worked extremely hard. He is the lead author on this bill, and I thank him for his big mind and his good heart and soul on this issue.

Others have worked hard too; Senator COLLINS and Senator SHAHEEN have a bill, and we are working to try to marry our two bills, the four of us. But, ultimately, what it is going to come down to, in my opinion, is that, Senators being Senators, Senator SCHUMER is the floor leader. He is going to have to force a shotgun marriage here. He is going to have to take the good work of Senator SHAHEEN and Senator COLLINS, Senator WARNOCK and my work—whether you want to call it good or not—and say: I am going to take their efforts and put them in one bill. And Senator SCHUMER's bill will be paid for; otherwise, I am not going to vote for it, but it will be paid for.

And his bill—I will wrap it up real fast—and his bill will be paid for, and it will lower the cost of insulin for insured and uninsured.

I yield to the Senator from Kansas.

The PRESIDING OFFICER. The Senator from Kansas.

LEGISLATIVE SESSION

ISRAEL SECURITY SUPPLEMENTAL APPROPRIATIONS ACT, 2024—Motion to Proceed

Mr. MARSHALL. Mr. President, I move to proceed to Calendar No. 241, making emergency supplemental appropriations to respond to the attacks in Israel.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

A bill (H.R. 6126) making emergency supplemental appropriations to respond to the attacks in Israel for the fiscal year ending September 30, 2024, and for other purposes.

The PRESIDING OFFICER. The clerk will report.

Mr. WARNOCK. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk is reporting.

The Senator from Georgia.

Mr. WARNOCK. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. MARSHALL. Mr. President, I ask unanimous consent for the quorum call to be vitiated.

The PRESIDING OFFICER. Is there objection?

Mr. WARNOCK. I object.

The PRESIDING OFFICER. Objection is heard.

The bill clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. MARSHALL. Mr. President, I ask unanimous consent that the quorum call be vitiated.

Mr. WARNOCK. I object.

The PRESIDING OFFICER. The objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. MARSHALL. Mr. President, I ask unanimous consent that the quorum call be vitiated.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, I ask unanimous consent that the quorum call be vitiated.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CRUZ. Mr. President, I ask unanimous consent that the quorum call be vitiated.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Wisconsin.

Mr. JOHNSON. Mr. President, I ask the quorum call be vitiated and ask consent to do so.

The PRESIDING OFFICER. Is there an objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Tennessee.

Mrs. BLACKBURN. Mr. President, I ask that we vitiate the quorum call.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Missouri.

Mr. SCHMITT. Mr. President, I ask unanimous consent that the quorum call be vitiated.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, I ask unanimous consent that the quorum call be vitiated.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CRUZ. Mr. President, I ask unanimous consent that the quorum call be vitiated.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Tennessee.

Mrs. BLACKBURN. Mr. President, I ask unanimous consent that we vitiate the quorum call so we can move to the funding of—the Israel funding bill from the House.

Mrs. MURRAY. I object.

The PRESIDING OFFICER. The Senate is not in order.

Objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CRUZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Is there objection?

The objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Wisconsin.

Mr. JOHNSON. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. The objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. MARSHALL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CRUZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

Mr. COTTON. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. VANCE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. CRUZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

Mrs. BLACKBURN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

The PRESIDING OFFICER (Mr. MARKEY). The Senator from Utah.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Mrs. MURRAY. I object.

The PRESIDING OFFICER. The objection is heard.

The senior assistant legislative clerk continued with the call of the roll.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

CLOTURE MOTION

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the motion to proceed to Calendar No. 241, H.R. 6126, a bill making emergency supplemental appropriations to respond to the attacks in Israel for the fiscal year ending September 30, 2024, and for other purposes.

Roger Marshall, Mike Braun, J.D. Vance, Rand Paul, Rick Scott, Tommy Tuberville, Marsha Blackburn, Ted Cruz, Mike Lee, Ron Johnson, Eric Schmitt, Cynthia M. Lummis, Mike Crapo, Pete Ricketts, Ted Budd, Marco Rubio.

MOTION TO TABLE

Mrs. MURRAY. Mr. President, I move to table the motion to proceed to H.R. 6126.

I ask for the yeas and nays.

The PRESIDING OFFICER. The question is on agreeing to the motion.

Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senator is necessarily absent: the Senator from South Carolina (Mr. SCOTT).

The result was announced—yeas 51, nays 48, as follows:

[Rollcall Vote No. 309 Leg.]

YEAS—51

Baldwin	Heinrich	Reed
Bennet	Hickenlooper	Rosen
Blumenthal	Hirono	Sanders
Booker	Kaine	Schatz
Brown	Kelly	Schumer
Butler	King	Shaheen
Cantwell	Klobuchar	Sinema
Cardin	Luján	Smith
Carper	Manchin	Stabenow
Casey	Markey	Tester
Coons	Menendez	Van Hollen
Cortez Masto	Merkley	Warner
Duckworth	Murphy	Warnock
Durbin	Murray	Warren
Fetterman	Ossoff	Welch
Gillibrand	Padilla	Whitehouse
Hassan	Peters	Wyden

NAYS—48

Barrasso	Fischer	Murkowski
Blackburn	Graham	Paul
Boozman	Grassley	Ricketts
Braun	Hagerty	Risch
Britt	Hawley	Romney
Budd	Hoeven	Rounds
Capito	Hyde-Smith	Rubio
Cassidy	Johnson	Schmitt
Collins	Kennedy	Scott (FL)
Cornyn	Lankford	Sullivan
Cotton	Lee	Thune
Cramer	Lummis	Tillis
Crapo	Marshall	Tuberville
Cruz	McConnell	Vance
Daines	Moran	Wicker
Ernst	Mullin	Young

NOT VOTING—1

Scott (SC)

The motion was agreed to.

(Mr. WARNOCK assumed the Chair.)

The PRESIDING OFFICER (Mr. KELLY). The majority leader.

MEASURE READ THE FIRST TIME—H.R. 6363

MR. SCHUMER. Mr. President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The senior assistant legislative clerk read as follows:

A bill (H.R. 6363) making further continuing appropriations for fiscal year 2024, and for other purposes.

MR. SCHUMER. I now ask for a second reading, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard. The bill will be read for the second time on the next legislative day.

ADDITIONAL STATEMENTS

TRIBUTE TO BUTCH SPYRIDON

● Mrs. BLACKBURN. Mr. President, on behalf of Senator HAGERTY and myself, I want to congratulate our friend Butch Spyridon on his induction into the JA Nashville Business Hall of Fame.

Before he retired this summer, Butch served for 32 years as the top executive of the Nashville Convention and Visitors Corp, NCVC. Under his leadership, the NCVC transformed Music City into the commerce, tourism, and entertainment hub it is today. Before Butch, the country music lovers who crowd the famous honky-tonks of lower Broadway and the classical music lovers who fill the Schermerhorn made their pilgrimages to other destinations. Before Butch, corporations and nonprofits chose other conference destinations; now, they compete for space at the Music City Center. Today, music historians drawn to the city by the Bluebird Cafe, RCA Studio B, and the Ryman Auditorium can also explore the National Museum of African American Music, the Gospel Music Hall of Fame, and the Country Music Hall of Fame and Museum because Butch understood the cultural importance of these interconnected genres. He was a vital part of recruiting the city's professional sports teams and pushed the effort to build massive sports complexes where they could play. He turned Independence Day and New Year's Eve celebrations into major tourism spectacles and, in 2019, welcomed the NFL Draft to lower Broadway, the most successful draft event in League history.

In 2023, Butch received the 100th star on the Music City Walk of Fame for his unparalleled contributions to the economic and cultural success of Nashville, TN. It is our privilege to congratulate him once more on this latest, greatest honor: Hall of Fame Laureate.●

TRIBUTE TO NOAH McNAUGHTON

• Mr. ROUNDS. Mr. President, today I recognize Noah McNaughton, an intern in my Washington, DC, office, for all the hard work he has done on behalf of my office and the State of South Dakota. Mr. McNaughton is a graduate of Lyman High School in Presho, SD. Currently, he is attending Dakota State University, where he studies cyber leadership and intelligence. Mr. McNaughton is a dedicated and diligent individual who has been devoted to getting the most out of his internship experience. Mr. McNaughton has been a true asset to my office. I extend my sincere thanks and appreciation to Mr. McNaughton for all of the work he has done and wish him continued success in the years to come.•

TRIBUTE TO AMELIA MULLIN

• Mr. ROUNDS. Mr. President, today I recognize Amelia Mullin, an intern in my Washington, DC, office, for all the hard work she has done on behalf of my office and the State of South Dakota. Ms. Mullin is a graduate of Forest Charter School in Truckee, CA. Currently, she is attending American University, where she is majoring in international studies. Ms. Mullin is a dedicated and diligent individual who has been devoted to getting the most out of her internship experience. Ms. Mullin has been a true asset to my office. I extend my sincere thanks and appreciation to Ms. Mullin for all of the work she has done and wish her continued success in the years to come.•

TRIBUTE TO SHAWN ANDREWS

• Mr. RUBIO. Mr. President, I recognize Shawn Andrews, the Union County Teacher of the Year from Union County High School in Lake Butler, FL.

Shawn engages with his students through lesson plans that teaches them how to have fun while solving various types of math problems. He strives for each school day to be meaningful for his students as they set out to achieve academic success. Shawn seeks to develop a learning culture that makes his students dedicated to excelling, not only in his class, but in others they are taking during the school year. He knows some days may be more challenging than others for his students, and he often works longer hours to help them.

Shawn is a mathematics teacher at Union County High School. His wife Cindy is also a teacher in the county.

I extend my deepest gratitude and best wishes to Shawn for his commitment to his students. I look forward to hearing about his continued good work in the years to come.•

TRIBUTE TO NICOLETTE BARONE

• Mr. RUBIO. Mr. President, I recognize Nicolette Barone, the Hillsborough County Teacher of the Year from Oak Park Elementary School in Tampa, FL.

Nicolette works with her students to build their self-confidence, telling them anything is possible and by turning their extrinsic motivation into intrinsic determination. Oftentimes, she interviews her students about their favorite school memories or helps them with math assignments.

Nicolette credits her success as a teacher to those who taught her in school, her mentors, supervisors in the school district, and her parents. She believes this award represents not only her achievements but those of every student she taught.

Nicolette has been a fourth and fifth grade math teacher at Oak Park Elementary School for 7 years. She also serves as an adjunct professor at the University of Tampa.

I extend my deepest gratitude and best wishes to Nicolette for her commitment to her students. I look forward to hearing about her continued good work in the years to come.•

TRIBUTE TO DON CLERVEAUX

• Mr. RUBIO. Mr. President, I recognize Don Clerveaux, the Miami-Dade County Teacher of the Year from Phyllis Ruth Miller Elementary School in Miami, FL.

Don spends each school day providing inspiration and dedication to his students. He helps them to conquer academic and personal challenges in an effort for them to have a successful future. Don seeks to strengthen his students' core values in their community schools and back home. He views those values as a ''cord of three'' challenging to break. He also helped his fellow teachers become certified to take their students to the Everglades to learn about this important ecological region of our State.

Don is Phyllis Ruth Miller Elementary School's fifth grade Science and Social Studies teacher. He also coaches football, track and field, and strength conditioning at Hialeah Gardens High School.

I extend my deepest gratitude and best wishes to Don for his commitment to his students. I look forward to hearing about his continued good work in the years to come.•

TRIBUTE TO KAREN CODY

• Mr. RUBIO. Mr. President, I recognize Karen Cody, the Santa Rosa County Teacher of the Year from Navarre High School in Navarre, FL.

Whether you are taking Karen's class or just stopping by, she welcomes everyone to her classroom with open arms. Her students describe her as caring and considerate of their needs. Karen knows students can find math to be unenjoyable, so she tries to find interesting ways to teach the subject.

Students continue to visit Karen's classroom long after they leave. Karen's dedication to her students is most evident through her efforts to reach out to them individually. She wants to ensure they are successful in their academic endeavors.

Karen teaches algebra 1 at Navarre High School. She worked her way up in experience as a paraprofessional for 15 years at the school and earned her bachelor's degree and master's degrees before becoming a teacher 7 years ago.

I extend my deepest gratitude and best wishes to Karen for her commitment to her students. I look forward to hearing about her continued good work in the years to come.•

TRIBUTE TO TIMOTHY FERGUSON

• Mr. RUBIO. Mr. President, I recognize Timothy Ferguson, the Sarasota County Teacher of the Year from Garden Elementary School in Venice, FL.

When Timothy moved to Florida, he was out of his comfort zone. He needed to develop a new lesson plan for students younger than he was accustomed to teaching. Since then, he has decided to lead by example to his students. When he sings during class, he tells his students that, while he was never instructed on how to sing, it shows them his willingness to try his best and to learn from his mistakes. This is what they should be doing in his and other classes in school.

Timothy wants his students to grow as musicians and is dedicated to his craft. He sees every student at the school, more than 500, once a week. This gives him the opportunity to be a positive role model in their lives.

Timothy has taught for more than 20 years. Beginning his career in New York as an instrumental music teacher and band director, Timothy moved to Florida where he now teaches music classes at Garden Elementary School for kindergarten through fifth grade students.

I extend my deepest gratitude and best wishes to Timothy for his commitment to his students. I look forward to hearing about his continued good work in the years to come.•

TRIBUTE TO JENNIE GOFFE

• Mr. RUBIO. Mr. President, I recognize Jennie Goffe, the Hendry County Teacher of the Year from Clewiston High School in Clewiston, FL.

Jennie is a champion for career and technical education programs because they prepare her students with industry skills and gives them workforce experience. Her students can earn an average of 150 workforce certificates through the program annually.

Jennie's agricultural program allows her students to manage a 480-acre farm and care for more than 60 animals. The program allows students to harvest crops, maintain a greenhouse, grow sugarcane, and care for pastures. These skills translate to real-world farming experience.

Jennie has been an agricultural teacher at Clewiston High School for

the past 10 years. Last year, after Hurricane Ian impacted Florida, Jennie started an effort between her school's students and community members to help clean up hard hit areas throughout Fort Myers Beach. She earned her master's and bachelor's degrees in agricultural education and communications from the University of Florida.

I extend my deepest gratitude and best wishes to Jennie for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO SHELLY HINOJOSA

● Mr. RUBIO. Mr. President, I recognize Shelly Hinojosa, the Walton County Teacher of the Year from South Walton High School in Santa Rosa Beach, FL.

Shelly's ability to help her students become civically engaged is a testament to her work as a teacher. She focuses on teaching civic responsibility and critical thinking skills to ensure they are prepared to further their education.

Shelly works with seniors on college scholarship programs to ensure they qualify and helps them fill out the application paperwork. She organizes career fairs, as well as hosts business and college visits to talk with students so they can learn about options after they graduate.

Shelly is the media specialist at South Walton High School. She develops the school's yearbook and teaches journalism to students. Shelly also won the Liz Moya Life Skills and Citizenship Award.

I extend my deepest gratitude and best wishes to Shelly for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO SARAH IDSARDI

● Mr. RUBIO. Mr. President, I recognize Sarah Idsardi, the Hardee County Teacher of the Year from North Wauchula Elementary School in Wauchula, FL.

Sarah integrates creative learning activities designed to engage her students and hosts virtual interactive cultural experiences joined by students from across the world. This innovative approach helps students interact with others outside their classroom. Her favorite part of teaching is reading to her students and sharing stories with them.

Sarah considers herself to be a servant at heart. Not only does she teach, she is also a licensed foster parent and organizes tutoring services for children in vulnerable neighborhoods.

Sarah is a fourth grade teacher at North Wauchula Elementary School. She volunteers for North Wauchula's afterschool activity programs, plans accelerated reader parties, manages the Cool Cat TV morning show, and coaches the Battle of the Books Team. She graduated from the University of Florida with bachelor's and master's degrees in elementary education.

I extend my deepest gratitude and best wishes to Sarah for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO KAYLA JACKSON

● Mr. RUBIO. Mr. President, I recognize Kayla Jackson, the Highlands County Teacher of the Year from Memorial Elementary School in Avon Park, FL.

Kayla is a mentor to new teachers. She works with them on connecting with students to ensure their success. Kayla has developed into the ''go to'' person for teaching at her school.

Kayla supports her school's Student of the Month program and leads professional learning events for her colleagues outside of the classroom. She also serves on the school's curriculum leadership team and develops lesson plans to best accommodate students.

Kayla is a fifth grade math and science teacher who has taught at Memorial Elementary School since its opening in 2008. For many consecutive years, she has been recognized as a high impact teacher, and her students have achieved significant gains on state assessments. She earned her bachelor's degree from the University of South Florida.

I extend my deepest gratitude and best wishes to Kayla for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO NEDA JACKSON

● Mr. RUBIO. Mr. President, I recognize Neda Jackson, the Monroe County Teacher of the Year from Key West High School in Key West, FL.

Math was the first subject Neda wanted to teach as she excelled in the subject as a student. She uses her understanding of mathematical concepts to teach her students various ways to learn and develop real-life situational applications. Neda puts her most significant emphasis on students who are at risk of not graduating. Often, she will devote her time and talents to focus on these students, working personally with them to help them succeed. Her peers credit Neda's high expectations of herself for receiving this award and her students' achievements.

For the past 21 years, Neda has taught at Key West High School, where she is the lead math teacher. Her classes range from algebra II honors to liberal arts math. She has served as a math coach, as a club sponsor, social media contact, and activities co-director.

I extend my deepest gratitude and best wishes to Neda for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO ANGELA MCFARLAND

● Mr. RUBIO. Mr. President, I recognize Angela McFarland, the Escambia County Teacher of the Year at the Escambia Virtual Academy and West Florida High School in Pensacola, FL.

Angela designs interactive lesson plans to prepare her students for business careers. She assists students with their projects, which consist of using PowerPoint and other software programs, to ensure they grasp the lesson material. Often, her students are among the school district's most prolific earners of industry certifications in the business field.

Angela's colleagues view her as a valuable asset, not only to their students, but also as a mentor to new business class instructors at the school. She coaches these teachers and presents them at various career and technical education teacher training sessions to ensure they are prepared to guide students to success.

Angela teaches business and multimedia classes at West Florida High School and has worked in the Escambia County School District since 1996. She previously taught at Pine Forest High School and Booker T. Washington High School. Since 2009, Angela also has taught at Escambia Virtual Academy.

I extend my deepest gratitude and best wishes to Angela for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO STEVEN MCGINLEY

● Mr. RUBIO. Mr. President, I recognize Steven McGinley, the Lee County Teacher of the Year from Harns Marsh Middle School in Lehigh Acres, FL.

Steven believes students deserve great teachers and considers it his duty to provide his students with the same quality of education he received in Lee County. He attended the county's Allen Park Elementary School, Fort Myers Middle School, and Fort Myers High School and credits his teachers for his successful career.

Steven's ties to the county's schools drive his ambition to mentor and help raise quality educators. He holds that his school's success is only possible through its teachers, students, and the community's involvement. Steven also considers himself a lifelong learner and one where he learns from his students.

Steven is a peer collaborative teacher at Harns Marsh Middle School, teaching in the school district of Lee County for 8 years. He spends half of the school day teaching civics and the other half coaching and mentoring other teachers at his school.

I extend my deepest gratitude and best wishes to Steven for his commitment to his students. I look forward to hearing about his continued good work in the years to come.●

TRIBUTE TO NATALIE MCSWAIN

● Mr. RUBIO. Mr. President, I recognize Natalie McSwain, the Polk County

Teacher of the Year from Lake Gibson High School in Lakeland, FL.

Natalie adopted a family management style for teaching by ensuring every student she encounters feels appreciated. She devotes herself to helping students understand her lesson plans and often stays late to ensure they are learning. Natalie is willing to fill any need for her students. Her colleagues see her dedication and emulate her techniques to mimic in their classes.

For the past 8 years, Natalie has taught Spanish classes at Lake Gibson High School. She translates information for students with Spanish-speaking parents to keep them informed of their progress in her class. Natalie also volunteers to sponsor her school's girls' lacrosse team, the Spanish Club, and the Foreign Language Club. She serves as a new teacher mentor for educators who have yet to teach in a classroom previously.

I extend my deepest gratitude and best wishes to Natalie for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO BONNIE POWELL

● Mr. RUBIO. Mr. President, I recognize Bonnie Powell, the Charlotte County Teacher of the Year from Lemon Bay High School in Englewood, FL.

Bonnie believes she holds the best job on her school's campus. Working with students gives her the honor of coaching them in reading, writing, and speaking. She knows these lifelong skills will apply to any subject they work on later throughout their lives.

In Bonnie's classes, she develops lesson plans that allow her students to explore perspectives, conduct research, and develop solutions to investigations they choose to study. Throughout the school year, she ensures they read, write, and discuss literature together in an atmosphere that offers the ability to learn from one another and be successful.

Bonnie is a graduate of Loyola University of New Orleans. She teaches Advanced Placement literature, freshman Advanced International Certificate of Education—AICE—English General Paper, and an Advanced Placement Seminar course at Lemon Bay High School, where she has taught since 1997. She also is the Creative Writing Club sponsor, an assistant for the Shout Out at the Bay poetry slam, and tutors students after school.

I extend my deepest gratitude and best wishes to Bonnie for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO ROYAL PRESTON

● Mr. RUBIO. Mr. President, I recognize Royal Preston, the Okaloosa County Teacher of the Year from Okaloosa Technical College in Fort Walton Beach, FL.

Royal believes this award celebrates more than just his work but all of the teachers at his school who spend their days going above and beyond to educate their students. He often joins colleagues in arriving early and staying late to tutor students, sponsor their clubs, and coach sports teams.

Throughout his career, Royal has led his colleagues, both locally and around the State, in training students to enter the building trades industry. Together, they ensure that when students leave their classes, they are prepared for real world work experience and success as they pursue their own American dreams.

Royal has taught career and technical education classes at Okaloosa Technical College for 30 years. He is a product of the Okaloosa County school system, graduating from Bay Area Vo-Tech School, the previous name of Okaloosa Technical College.

I extend my deepest gratitude and best wishes to Royal for his commitment to his students. I look forward to hearing about his continued good work in the years to come.●

TRIBUTE TO HALEY SHURACK

● Mr. RUBIO. Mr. President, I recognize Haley Shurack, the Broward County Teacher of the Year from Tropical Elementary School in Plantation, FL.

Haley loves the impact she can impart on her students' everyday lives. Students come to her not speaking much, unable to tell her if they are hurt, how they feel, or if they are hungry. By the end of the school year, Haley says she has trouble getting them to stop talking. She credits her ability to get students to open up by building trusting and positive relationships with students and their families.

Haley's students inspire her each day and being a teacher is one of the greatest joys in her life. Her ability to boost her student's self-esteem and help them to grow is a testament to Haley's commitment.

Haley teaches deaf and hard of hearing preschoolers at Tropical Elementary School, where she has taught for 3 of her 5 years in education.

I extend my deepest gratitude and best wishes to Haley for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO SHERRI SKIPPER

● Mr. RUBIO. Mr. President, I recognize Sherri Skipper, the Washington County Teacher of the Year from Florida Panhandle Technical College in Santa Rosa Beach, FL.

Sherri works with students to develop their knowledge of computer concepts, how to change out hardware, and web development. She teaches these skills to familiarize her students with concepts that they will use in today's workforce.

Sherri also develops lesson plans for more advanced computer software usage, such as firewalls, networking, and ethical hacking. This consists of hacking computers, not for nefarious reasons, but to find weaknesses that can protect computer users through antivirus programming.

Sherri teaches applied information technology and applied cybersecurity programs at Florida Panhandle Technical College, where she has taught since 2012. She previously taught at Graceville High School and graduated from the University of West Florida with a bachelor's degree in business teacher education.

I extend my deepest gratitude and best wishes to Sherri for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO KELLY SMITH-WILLIAMS

● Mr. RUBIO. Mr. President, I recognize Kelly Smith-Williams, the Manatee County Teacher of the Year from Lakewood Ranch High School in Bradenton, FL.

Kelly wanted to be a teacher from a young age. Her passion for teaching carried her through grade school, college, and her first job. Throughout her career, she has impacted countless students, with many staying in contact after leaving her classroom and crediting her for their success.

Kelly is a teacher in every sense of the word. She designs lesson plans that introduce her students to innovative online learning tools. She also devotes time to serving as their adviser on various academic boards, and during the Summer months, she works with students to keep them on track for their graduation.

Kelly teaches anatomy and physiology honors classes at Lakewood Ranch High School. She has been with the Manatee County School District for 7 years.

I extend my deepest gratitude and best wishes to Kelly for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO LITAMARIE STANTON

● Mr. RUBIO. Mr. President, I recognize Litamarie Stanton, the Citrus County Teacher of the Year from Citrus High School in Inverness, FL.

From an early age, Lita wanted to help children and be a teacher. Lita designs her lesson plans to ensure her students have a successful and enjoyable high school experience. Teaching is not a job she takes for granted; she knows she can change lives. She also enjoys working with other teachers whose classroom she once sat in, finding it to be an incredible experience.

For the past 7 years, Lita has taught algebra I inclusion and honors to 9th and 10th grade students at Citrus High

School. Prior to that, she taught math at Inverness Middle School for 6 years. Lita is also involved in school activities, serving as homecoming and prom coordinator, leading the student government, varsity cheer coach, girls' tennis coach, and graduation coordinator.

I extend my deepest gratitude and best wishes to Lita for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO DAVID SWARTZFAGER

● Mr. RUBIO. Mr. President, I recognize David Swartzfager, the Sumter County Teacher of the Year from South Sumter High School in Bushnell, FL.

David credits his mother for earning this recognition, noting she taught him just about everything there is to know about Future Farmers of America teaching. He considers himself honored to represent his school and the Sumter County community.

Prior to his teaching career, David served in the U.S. Army from 2009 through 2021, where he taught classes to soldiers and deployed to Afghanistan. Whether teaching students or members of our Armed Forces, David has always worked to ensure others are prepared for a successful future.

David has taught agriculture at South Sumter High School since 2020 and previously taught at East River High School, Crystal River High School, and University High School. He graduated from the University of Florida, earning his bachelor's degree in agricultural education and communication and master's degree in educational leadership. David is also a Future Farmers of America student adviser and the department chair.

I extend my deepest gratitude and best wishes to David for his commitment to his students and his Nation. I look forward to hearing about his continued good work in the years to come.●

TRIBUTE TO KIMBERLY THEURER

● Mr. RUBIO. Mr. President, I recognize Kimberly Theurer, the Pasco County Teacher of the Year from Gulf High School in New Port Richey, FL.

Kim designs her lesson plans to be relevant and understandable for her students and ensures they clearly understand the day's subject material. Students not in Kim's class talk to her when passing through hallways. They find her to be supportive and understanding. Kim devotes her time to any student and tells them she believes a sense of humor, respect, and approaching every day as a new day are vital for finding success.

Kim teaches government, law, and sociology classes at Gulf High School, her alma mater. She has taught for 34 years, and although she had planned to retire this year, her students asked that she put off her retirement plans for at least another year.

I extend my deepest gratitude and best wishes to Kim for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO AUBURN KENDALL WALTON

● Mr. RUBIO. Mr. President, I recognize Auburn Kendall Walton, the Holmes County Teacher of the Year from Ponce de Leon High School in Ponce de Leon, FL.

Kendall's colleagues describe her as the queen of algebra because of her tireless efforts in teaching the subject to her students. She works with each student, ensuring they can fully grasp math making her assignments enjoyable and easy to learn.

Kindall finds the most rewarding aspect of teaching to be when her students finally realize they understand the subject material and have confidence in their work. Through their work together during the school year, she believes they can achieve the goals they set for themselves by putting in the time and effort to learn.

For the past 8 years, Kendall has taught math at Ponce de Leon High School. Altogether, she has been a teacher for a decade.

I extend my deepest gratitude and best wishes to Kendall for her commitment to her students. I look forward to hearing about her continued good work in the years to come.●

TRIBUTE TO ADAM ZELE

● Mr. RUBIO. Mr. President, I recognize Adam Zele, the Pinellas County Teacher of the Year from Azalea Middle School in St. Petersburg, FL.

Adam devotes his time to educating his students by creating engaging, memorable class lessons. Due to his commitment, he is often the last to leave the school at the end of the day. Adam enjoys being a middle school teacher as he finds himself making a difference in the lives of his students.

Adam's greatest sense of satisfaction is when a student discovers something new. The excitement he sees when his students conquer a lesson confirms his passion for teaching. Many of his former students still visit him at school, sharing their academic experiences with him and seeking his guidance as they continue their education.

Adam teaches pre-algebra, algebra, and geometry classes at Azalea Middle School. He also is the school math department chairman, sponsors students for the Take Stock in Children Program, and invites new teachers to lunch before they begin working so they have a familiar face on campus. Adam graduated with a bachelor's degree in economics from the University of Pennsylvania Wharton School, a master's degree in divinity, and a doctor of philosophy degree in history and religion from Duke University.

I extend my deepest gratitude and best wishes to Adam for his commitment to his students. I look forward to hearing about his continued good work in the years to come.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mrs. Stringer, one of his secretaries.

PRESIDENTIAL MESSAGE

CERTIFICATION THAT IT IS IN THE NATIONAL SECURITY INTERESTS OF THE UNITED STATES TO EXTEND THE PARTIAL TERMINATION DATE SPECIFIED IN SUBSECTION (i)(1) OF SECTION 130(i) OF TITLE 10, UNITED STATES CODE, BY 180 DAYS—PM 31

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States which was referred to the Committee on Armed Services:

To the Congress of the United States:

Pursuant to subsection (i)(2) of section 130i of title 10, United States Code, I certify that it is in the national security interests of the United States to extend the partial termination date specified in subsection (i)(1) of section 130i of title 10, United States Code, by 180 days.

JOSEPH R. BIDEN, Jr.
THE WHITE HOUSE, *November 14, 2023.*

MESSAGES FROM THE HOUSE

At 3:59 p.m., a message from the House of Representatives, delivered by Mrs. Alli, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 593. An act to rename the Department of Veterans Affairs community-based outpatient clinic in Hinesville, Georgia, as the ''John Gibson, Dan James, William Sapp, and Frankie Smiley VA Clinic''.

H.R. 786. An act to amend title 28, United States Code, to provide an additional place for holding court for the Pecos Division of the Western District of Texas, and for other purposes.

H.R. 1105. An act to amend the DNA Analysis Backlog Elimination Act of 2000 to reauthorize the Debbie Smith DNA Backlog Grant Program, and for other purposes.

H.R. 1505. An act to modify the prohibition on recognition by United States courts of certain rights relating to certain marks, trade names, or commercial names.

H.R. 3506. An act to make technical amendments to update statutory references to certain provisions classified to title 7, title 20, and title 43, United States Code, and to correct related technical errors.

H.R. 3571. An act to make technical amendments to update statutory references to certain provisions classified to title 2, United States Code, title 50, United States Code, and

title 52, United States Code, and to correct related technical errors.

H.R. 3578. An act to make technical amendments to update statutory references to provisions reclassified to title 34, United States Code, and to correct related technical errors.

At 6:12 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 3496. An act to make technical amendments to update statutory references to certain provisions which were formerly classified to chapters 14 and 19 of title 25, United States Code, and to correct related technical errors.

H.R. 6363. An act making further continuing appropriations for fiscal year 2024, and for other purposes.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 593. An act to rename the Department of Veterans Affairs community-based outpatient clinic in Hinesville, Georgia, as the ''John Gibson, Dan James, William Sapp, and Frankie Smiley VA Clinic''; to the Committee on Veterans' Affairs.

H.R. 1505. An act to modify the prohibition on recognition by United States courts of certain rights relating to certain marks, trade names, or commercial names; to the Committee on the Judiciary.

H.R. 3496. An act to make technical amendments to update statutory references to certain provisions which were formerly classified to chapters 14 and 19 of title 25, United States Code, and to correct related technical errors; to the Committee on the Judiciary.

H.R. 3506. An act to make technical amendments to update statutory references to certain provisions classified to title 7, title 20, and title 43, United States Code, and to correct related technical errors; to the Committee on the Judiciary.

H.R. 3571. An act to make technical amendments to update statutory references to certain provisions classified to title 2, United States Code, title 50, United States Code, and title 52, United States Code, and to correct related technical errors; to the Committee on the Judiciary.

H.R. 3578. An act to make technical amendments to update statutory references to provisions reclassified to title 34, United States Code, and to correct related technical errors; to the Committee on the Judiciary.

MEASURES DISCHARGED PETITION

We, the undersigned Senators, in accordance with chapter 8 of title 5, United States Code, hereby direct that the Senate Committee on Health, Education, Labor and Pensions be discharged from further consideration of S.J. Res. 43, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Education relating to ''Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program'' and, further, that the joint resolution be immediately placed upon the Legislative Calendar under General Orders.

Bill Cassidy, John Thune, John Cornyn, Jerry Moran, Marsha Blackburn, Mike Crapo, Thom Tillis, Tim Scott, Chuck Grassley, James Lankford, Ron Johnson, Marco Rubio, Joni Ernst, Cindy Hyde-Smith, Ted Budd, Mike Braun, Steve Daines, Mike Lee, Roger F. Wicker, James E. Risch, Eric Schmitt, Todd Young, Tom Cotton, Roger Marshall, Pete Ricketts, Markwayne Mullin, Deb Fischer, Tommy Tuberville, Mitt Romney, Mitch McConnell.

MEASURES DISCHARGED

The following joint resolution was discharged from the Committee on Health, Education, Labor, and Pensions, by petition, pursuant to 5 U.S.C. 802(c), and placed on the calendar:

S.J. Res. 43. Joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Education relating to ''Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program''.

MEASURES PLACED ON THE CALENDAR (LEGISLATIVE DAY NOVEMBER 13, 2023)

The following bills was read the first and second times by unanimous consent, and placed on the calendar:

H.R. 786. An act to amend title 28, United States Code, to provide an additional place for holding court for the Pecos Division of the Western District of Texas, and for other purposes.

H.R. 1105. An act to amend the DNA Analysis Backlog Elimination Act of 2000 to reauthorize the Debbie Smith DNA Backlog Grant Program, and for other purposes.

MEASURES READ THE FIRST TIME (LEGISLATIVE DAY NOVEMBER 13, 2023)

The following bill was read the first time:

H.R. 6363. An act making further continuing appropriations for fiscal year 2024, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–2796. A communication from the Associate General Counsel for Legislation and Regulations, Office of Housing, Department of Housing and Urban Development, transmitting, pursuant to law, the report of a rule entitled ''Section 202 Direct Loan Technical Amendments'' (RIN2502–AJ71) received in the Office of the President of the Senate on November 9, 2023; to the Committee on Banking, Housing, and Urban Affairs.

EC–2797. A communication from the Senior Counsel, Bureau of the Fiscal Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Indorsement and payment of checks drawn on the United States Treasury'' (RIN1530–AA22) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Banking, Housing, and Urban Affairs.

EC–2798. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 13818 with respect to serious human rights abuse and corruption; to the Committee on Banking, Housing, and Urban Affairs.

EC–2799. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 14059 with respect to global illicit drug trafficking; to the Committee on Banking, Housing, and Urban Affairs.

EC–2800. A communication from the Regulatory Specialist, Forest Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Prohibitions in Region 8, Southern Region'' (RIN0596–AD52) received in the Office of the President of the Senate on November 9, 2023; to the Committee on Energy and Natural Resources.

EC–2801. A communication from the General Counsel, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Electric Reliability Organization Proposal to Retire Requirements in Reliability Standards Under the NERC Standards Efficiency Review'' ((RIN1902–AF69) (Docket No. RM19–17–001)) received in the Office of the President of the Senate on November 9, 2023; to the Committee on Energy and Natural Resources.

EC–2802. A communication from the Administrative Assistant, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Removal of 21 Species From the List of Endangered and Threatened Wildlife'' (RIN1018–BC98) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Environment and Public Works.

EC–2803. A communication from the Administrative Assistant, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Reinstatement of Endangered Species Act Protections for the Gray Wolf (Canis Lupus) in Compliance With Court Order'' (RIN1018–BD60) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Environment and Public Works.

EC–2804. A communication from the Biologist of the Branch of Recovery and Conservation Planning, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Establishment of a Nonessential Experimental Population of the Gray Wolf in Colorado'' (RIN1018–BG79) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Environment and Public Works.

EC–2805. A communication from the Director of Congressional Affairs, Nuclear Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Final Safety Evaluation for EPRI Report 3002018337, 'Use of Data Validation and Reconciliation Methods for Measurement Uncertainty: Topical Report'' received in the Office of the President of the Senate on November 13, 2023; to the Committee on Environment and Public Works.

EC–2806. A communication from the President of the United States to the President pro tempore of the United States Senate, transmitting, consistent with the War Powers Resolution, a report relative to United States forces conducted targeted strikes against facilities in eastern Syria used by Iran's Islamic Revolutionary Guard Corps (IRGC) and IRGC-affiliated groups, received

during adjournment of the Senate on November 10, 2023; to the Committee on Foreign Relations.

EC–2807. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a notification that the Department of State is waiving the 15-day congressional notification period to respond to the situation in Egypt, Israel, and Gaza by directly and immediately strengthening land and maritime border security and surveillance to address related nonproliferation and counterproliferation threats stemming from the Israel-Hamas Conflict; to the Committee on Foreign Relations.

EC–2808. A communication from the Assistant General Counsel for Regulatory Affairs, Pension Benefit Guaranty Corporation, transmitting, pursuant to law, the report of a rule entitled ''Technical Amendments: Special Financial Assistance Withdrawal Liability Condition; SECURE 2.0 Act; and Other Updates'' (RIN1212–AB56) received in the Office of the President of the Senate on November 9, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2809. A communication from the Regulatory Policy Counsel, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Listing of Color Additives Exempt From Certification; Jagua (Genipin-Glycine) Blue'' (Docket No. FDA–2020–C–2131) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2810. A communication from the Management Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Removal of the Prohibition Against Certain Flights in Specified Areas of the Dnipro Flight Information Region (FIR) (UKDV)'' ((RIN2120–AL95) (Docket No. FAA–2014–0225)) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Commerce, Science, and Transportation.

EC–2811. A communication from the Chief for Regulatory Development, Federal Motor Carrier Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Incorporation by Reference; North American Standard Out-of-Service Criteria; Hazardous Materials Safety Permits'' (RIN2126–AC61) received during in the Office of the President of the Senate on November 13, 2023; to the Committee on Commerce, Science, and Transportation.

EC–2812. A communication from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Television Broadcasting Services; Des Moines, Iowa'' (MB Docket No. 23–296) received in the Office of the President of the Senate on November 9, 2023; to the Committee on Commerce, Science, and Transportation.

EC–2813. A communication from the Program Analyst, Wireless Telecommunications Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Radiotelephone Requirements for Vessels on the Great Lakes'' ((FCC23–90) (WT Docket No. 23–357)) received in the Office of the President of the Senate on November 9, 2023; to the Committee on Commerce, Science, and Transportation.

EC–2814. A communication from the Chief, Office of Engineering and Technology, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Unlicensed Use of the 6 GHz Band; Expanding Flexible Use in Mid-Band Spectrum Between 3.7 and 24 GHz'' ((FCC 23–86) (ET Docket No. 18–295) (GN Docket No. 17–183)) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Commerce, Science, and Transportation.

EC–2815. A communication from the Bureau Chief, Wireline Competition Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Federal Communications Commission released a Report and Order entitled Connect America Fund; Alaska Connect Fund; ETC Annual Reports and Certifications; Telecommunications Carriers Eligible to Receive Universal Service Support; Universal Service Reform - Mobility Fund'' ((RIN3060–AK57) (FCC 23–87) (WC Docket Nos. 10–90, 23–328, 14–58, 09–197) (WT Docket No. 10–208)) received in the Office of the President of the Senate on November 13, 2023; to the Committee on Commerce, Science, and Transportation.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Ms. KLOBUCHAR, from the Committee on Rules and Administration, without amendment:

S. Res. 444. A resolution providing for the en bloc consideration of military nominations.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. WHITEHOUSE (for himself and Ms. COLLINS):

S. 3292. A bill to encourage the research and use of innovative materials and associated techniques in the construction and preservation of the domestic transportation and water infrastructure system, and for other purposes; to the Committee on Environment and Public Works.

By Mrs. SHAHEEN (for herself, Mr. TILLIS, Mr. BLUMENTHAL, Mr. GRASSLEY, Mr. CASEY, and Mr. ROUNDS):

S. 3293. A bill to provide for the creation of a Congressional time capsule in commemoration of the semiquincentennial of the United States, and for other purposes; to the Committee on Rules and Administration.

By Mr. CASEY (for himself, Ms. BALDWIN, Mr. BLUMENTHAL, Mr. BROWN, Mr. FETTERMAN, Mrs. GILLIBRAND, Ms. HIRONO, Mr. MARKEY, Mr. REED, Mr. SANDERS, Mrs. SHAHEEN, Ms. SMITH, Ms. WARREN, and Mr. WELCH):

S. 3294. A bill to amend the Richard B. Russell National School Lunch Act with respect to reimbursements under the child and adult care food program, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. LANKFORD (for himself and Ms. HASSAN):

S. 3295. A bill to require the Secretary of Veterans Affairs to establish a portal for maintaining digital records of former members of the Armed Forces and to establish an advisory committee regarding the maintenance of those records, and for other purposes; to the Committee on Veterans' Affairs.

By Ms. HASSAN (for herself, Mr. YOUNG, Ms. CORTEZ MASTO, and Mr. SCOTT of South Carolina):

S. 3296. A bill to amend the Internal Revenue Code of 1986 to expand and modify employer educational assistance programs, and for other purposes; to the Committee on Finance.

By Ms. COLLINS (for herself and Mr. PETERS):

S. 3297. A bill to amend title XVIII of the Social Security Act to expand the availability of medical nutrition therapy services under the Medicare program; to the Committee on Finance.

By Mr. MURPHY (for himself, Ms. SINEMA, and Mr. TILLIS):

S. 3298. A bill to require the Securities and Exchange Commission to revise the rules of the Commission relating to general solicitation or general advertising, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mrs. BLACKBURN (for herself and Ms. ROSEN):

S. 3299. A bill to provide that United States citizens evacuating Israel shall not be required to reimburse the United States Government, and for other purposes; to the Committee on Foreign Relations.

By Mr. WYDEN (for himself, Mr. CRAPO, Mr. KING, Mr. RISCH, Ms. CANTWELL, and Ms. COLLINS):

S. 3300. A bill to require a report on the competitiveness of United States exports of specialty crops; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. LUJÁN (for himself and Mr. HOEVEN):

S. 3301. A bill to provide for Department of Energy and Department of Agriculture joint research and development activities, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. SHAHEEN:

S. 3302. A bill to waive the guarantee fee for certain business loans made to veterans and spouses of veterans; to the Committee on Small Business and Entrepreneurship.

By Mr. BLUMENTHAL (for himself, Mr. WYDEN, Mr. CASEY, Mr. MERKLEY, Mrs. SHAHEEN, Mrs. MURRAY, Mr. WHITEHOUSE, Ms. HIRONO, Mr. DURBIN, Mr. FETTERMAN, Mr. SANDERS, Ms. BALDWIN, Mr. KAINE, Mr. COONS, Ms. BUTLER, Ms. DUCKWORTH, Ms. WARREN, Mr. VAN HOLLEN, and Ms. KLOBUCHAR):

S. 3303. A bill to amend title 18, United States Code, to protect more victims of domestic violence by preventing their abusers from possessing or receiving firearms, and for other purposes; to the Committee on the Judiciary.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. GRAHAM (for himself, Mr. BLUMENTHAL, Mr. SULLIVAN, Mrs. BRITT, Mr. THUNE, Ms. COLLINS, Ms. ROSEN, Mr. MANCHIN, and Mrs. GILLIBRAND):

S. Res. 462. A resolution emphasizing the urgency of responding to attacks in Israel and the greater region from the Islamic Republic of Iran and its proxies, and for other purposes; to the Committee on Foreign Relations.

By Mr. BENNET (for himself, Mr. CORNYN, Mr. BOOKER, Ms. ROSEN, and Mrs. SHAHEEN):

S. Res. 463. A resolution recognizing Operation Green Light for Veterans for supporting veterans and raising awareness about important county resources available to help veterans transition to civilian life; to the Committee on Veterans' Affairs.

ADDITIONAL COSPONSORS

S. 133

At the request of Ms. COLLINS, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 133, a bill to extend the National Alzheimer's Project.

S. 134

At the request of Ms. COLLINS, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 134, a bill to require an annual budget estimate for the initiatives of the National Institutes of Health pursuant to reports and recommendations made under the National Alzheimer's Project Act.

S. 234

At the request of Mr. CARDIN, the name of the Senator from Nebraska (Mrs. FISCHER) was added as a cosponsor of S. 234, a bill to amend the Internal Revenue Code of 1986 to permanently extend the new markets tax credit, and for other purposes.

S. 476

At the request of Mr. MENENDEZ, the name of the Senator from North Carolina (Mr. BUDD) was added as a cosponsor of S. 476, a bill to amend title XI of the Social Security Act to protect access to genetically targeted technologies.

S. 711

At the request of Mr. BUDD, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 711, a bill to require the Secretary of the Treasury to mint coins in commemoration of the invaluable service that working dogs provide to society.

S. 930

At the request of Ms. KLOBUCHAR, the names of the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Florida (Mr. RUBIO) were added as cosponsors of S. 930, a bill to amend the Omnibus Crime Control and Safe Streets Act of 1968 to provide public safety officer benefits for exposure-related cancers, and for other purposes.

S. 971

At the request of Mr. CASSIDY, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 971, a bill to amend title XIX of the Social Security Act to remove the Medicaid coverage exclusion for inmates in custody pending disposition of charges, and for other purposes.

S. 1351

At the request of Mr. MERKLEY, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 1351, a bill to study and prevent child abuse in youth residential programs, and for other purposes.

S. 1467

At the request of Mr. CARDIN, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 1467, a bill to amend the Internal Revenue Code of 1986 to allow a refundable tax credit against income tax for the purchase of qualified access technology for the blind.

S. 1538

At the request of Mr. HEINRICH, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 1538, a bill to authorize the Secretary of Education to award grants for outdoor learning spaces and to develop living schoolyards.

S. 1797

At the request of Mr. CASEY, the name of the Senator from Connecticut (Mr. MURPHY) was added as a cosponsor of S. 1797, a bill to establish a demonstration program to allow States to test payment models for maternity care provided under Medicaid and the Children's Health Insurance Program.

S. 1829

At the request of Mr. RUBIO, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1829, a bill to impose sanctions with respect to persons engaged in the import of petroleum from the Islamic Republic of Iran, and for other purposes.

S. 1886

At the request of Ms. HASSAN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of S. 1886, a bill to establish a Federal Clearinghouse on Safety and Best Practices for Nonprofit Organizations, Faith-based Organizations, and Houses of Worship within the Department of Homeland Security, and for other purposes.

S. 1906

At the request of Mr. BRAUN, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 1906, a bill to amend the Federal Food, Drug, and Cosmetic Act to establish a time-limited provisional approval pathway, subject to specific obligations, for certain drugs and biological products, and for other purposes.

S. 2372

At the request of Mr. GRASSLEY, the name of the Senator from Rhode Island (Mr. REED) was added as a cosponsor of S. 2372, a bill to amend title XIX of the Social Security Act to streamline enrollment under the Medicaid program of certain providers across State lines, and for other purposes.

S. 2555

At the request of Mr. BLUMENTHAL, the names of the Senator from Maine (Ms. COLLINS) and the Senator from Rhode Island (Mr. REED) were added as cosponsors of S. 2555, a bill to amend the Animal Welfare Act to expand and improve the enforcement capabilities of the Attorney General, and for other purposes.

S. 2557

At the request of Mr. WELCH, the name of the Senator from Pennsylvania (Mr. FETTERMAN) was added as a cosponsor of S. 2557, a bill to amend the Higher Education Act of 1965 to eliminate interest on student loans, establish the Education Affordability Trust Fund, increase annual and aggregate loan limits, and for other purposes.

S. 2569

At the request of Mr. CORNYN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 2569, a bill to amend the Controlled Substances Act to clarify that the possession, sale, purchase, importation, exportation, or transportation of drug testing equipment that tests for the presence of fentanyl or xylazine is not unlawful.

S. 2638

At the request of Mr. BOOKER, the name of the Senator from Alaska (Mr. SULLIVAN) was withdrawn as a cosponsor of S. 2638, a bill to authorize the Secretary of Health and Human Services to build safer, thriving communities, and save lives, by investing in effective community-based violence reduction initiatives, and for other purposes.

S. 2662

At the request of Mr. WYDEN, the name of the Senator from Mississippi (Mrs. HYDE-SMITH) was added as a cosponsor of S. 2662, a bill to require the Secretary of Agriculture to carry out certain activities relating to research for wood products, and for other purposes.

S. 2825

At the request of Mr. CORNYN, the name of the Senator from California (Mr. PADILLA) was added as a cosponsor of S. 2825, a bill to award a Congressional Gold Medal to the United States Army Dustoff crews of the Vietnam War, collectively, in recognition of their extraordinary heroism and life-saving actions in Vietnam.

S. 2835

At the request of Mr. SULLIVAN, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 2835, a bill making continuing appropriations for military pay in the event of a Government shutdown.

S. 2970

At the request of Mr. HEINRICH, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 2970, a bill to amend title 5, United States Code, to designate Indigenous Peoples' Day as a legal public holiday, to replace the term ''Columbus Day'' with the term ''Indigenous Peoples' Day'', and for other purposes.

S. 3000

At the request of Mr. PETERS, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 3000, a bill to repeal Freedom Support Act section 907 waiver authority with respect to assistance to Azerbaijan.

S. 3028

At the request of Ms. ERNST, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 3028, a bill to continue in effect certain Executive orders imposing sanctions with respect to Iran, to prevent the waiver of certain sanctions imposed by the United States with respect to Iran until the Government of

Iran ceases to attempt to assassinate United States officials, other United States citizens, and Iranian nationals residing in the United States, and for other purposes.

S. 3063

At the request of Mr. KING, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 3063, a bill to require the Secretary of Agriculture to establish a grant program to address forestry workforce development needs, and for other purposes.

S. 3152

At the request of Ms. HIRONO, the name of the Senator from California (Mr. PADILLA) was added as a cosponsor of S. 3152, a bill to amend the Elementary and Secondary Education Act of 1965 to require that annual State report cards reflect the same race groups as the decennial census of population.

S. 3193

At the request of Mr. WHITEHOUSE, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of S. 3193, a bill to amend the Controlled Substances Act to allow for the use of telehealth in substance use disorder treatment, and for other purposes.

S. 3214

At the request of Mr. MURPHY, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 3214, a bill to divert Federal funding away from supporting the presence of police in schools and toward evidence-based and trauma informed services that address the needs of marginalized students and improve academic outcomes, and for other purposes.

S.J. RES. 47

At the request of Mrs. BLACKBURN, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S.J. Res. 47, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Justice relating to ''Office of the Attorney General; Home Confinement Under the Coronavirus Aid, Relief, and Economic Security (CARES) Act''.

S.J. RES. 49

At the request of Mr. CASSIDY, the names of the Senator from North Carolina (Mr. BUDD), the Senator from Nebraska (Mr. RICKETTS), the Senator from Wyoming (Mr. BARRASSO), the Senator from Iowa (Mr. GRASSLEY) and the Senator from South Carolina (Mr. SCOTT) were added as cosponsors of S.J. Res. 49, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the National Labor Relations Board relating to a ''Standard for Determining Joint Employer Status''.

S. RES. 333

At the request of Mr. DURBIN, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. Res. 333, a resolution designating 2024 as the Year of Democracy as a time to reflect on the contributions of the system of Government of the United States to a more free and stable world.

S. RES. 454

At the request of Ms. ROSEN, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. Res. 454, a resolution designating November 8, 2023, as ''National Science, Technology, Engineering, and Mathematics (STEM) Day'' and celebrating the importance of science, technology, engineering, and mathematics in education and the workforce in the United States.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Ms. COLLINS (for herself and Mr. PETERS):

S. 3297. A bill to amend title XVIII of the Social Security Act to expand the availability of medical nutrition therapy services under the Medicare program; to the Committee on Finance.

Ms. COLLINS. Madam President, I rise today to introduce the Medical Nutrition Therapy Act of 2023, along with my colleague from Michigan, Senator PETERS. Our bill would expand Medicare beneficiaries' access to medical nutrition therapy, or MNT, which is a cost-effective component of treatment for obesity, diabetes, hypertension, dyslipidemia, and other chronic conditions.

At a time when the increased prevalence of diet-related chronic conditions is contributing to poor health outcomes and growing healthcare expenditures, increasing access to MNT should be part of the strategy to improve disease management and prevention for America's seniors. The Medical Nutrition Therapy Act would make two important changes to support patients, improve health outcomes, and reduce unnecessary healthcare costs.

First, it would expand Medicare Part B coverage of outpatient medical nutrition therapy services to a number of currently uncovered diseases or conditions—including prediabetes, obesity, high blood pressure, high cholesterol, malnutrition, eating disorders, cancer, HIV/AIDS, gastrointestinal diseases including celiac disease, and cardiovascular disease. Currently, Medicare Part B only covers outpatient MNT for diabetes, renal disease, and post-kidney transplant.

Second, the bill would allow more types of providers—including nurse practitioners, physician assistants, clinical nurse specialists, and psychologists—to refer patients to MNT. This is especially critical for a rural State like Maine, where a NP or PA may be one's trusted primary care provider.

MNT counseling is provided by registered dietician nutritionists, RDNs, as part of a collaborative healthcare team. It is evidenced-based and proven to positively affect weight, blood pressure, blood lipids, and blood sugar control. Nutritional counseling by RDNs is recommended by the National Lipid Association to promote long-term adherence to an individualized, heart-healthy diet. Through MNT, individuals benefit from in-depth, individualized nutrition assessments. Follow up visits help reinforce important behavior and lifestyle changes and increase compliance.

Older Americans deserve improved access to this cost-effective medical treatment, but many older adults are missing out under the current Medicare policy. Marcy Kyle, a RDN from Rockport, ME, has seen many patients denied access to medically necessary MNT. One of her patients with prediabetes was referred by his primary care physician for MNT at age 64. At that time, his private insurance covered the service, and he booked the first available appointment the following week. That same week, this patient turned 65 and transitioned onto Medicare. You can imagine his surprise upon arriving for his appointment and learning that MNT would not be covered.

Another unfortunate example from Maine was a patient with a new celiac disease diagnosis complicated by severe weight loss. His private insurance covered MNT as celiac disease is a controllable disease with proper nutrition. But when transitioning from private insurance to Medicare, this patient, too, lost his access to MNT. The saddest situation this RDN has confronted is when an older cancer patient experiences such side effects from cancer treatment as severe weight loss or nausea, which could be prevented with MNT. As with prediabetes and celiac disease, however, Medicare does not cover MNT for cancer patients. This truly is a lost opportunity since we know early treatment with MNT can prevent future and more serious health complications and chronic conditions in older adults. These conditions should be covered.

In addition to leading to confusion and potential delays in care for patients seeking needed healthcare services, we must also consider the staggering economic impact of chronic diseases. According to the U.S. Centers for Disease Control and Prevention, 90 percent of the $3.8 trillion that the United States spends annually on healthcare goes to the treatment of people with chronic diseases and mental health conditions. Preventing chronic diseases or managing symptoms when prevention is not possible is one way to reduce these costs. This is particularly important for the Medicare Program, as more than two-thirds of seniors on Medicare live with multiple chronic conditions. As one registered dietitian nutritionist in Maine told me, ''We all know a dollar spent on prevention saves many health care dollars in the long run and is the right thing to do for our seniors at a time when they have limited budgets.''

MNT can help prevent chronic disease, such as type 2 diabetes. It can better control celiac and other gastrointestinal ailments. It can improve outcomes and the quality of life for those with cancer and other devastating diagnoses. The current Medicare restrictions on medical nutrtition therapy coverage can be detrimental for older adults at a critical juncture in their journey to better health and should be changed.

The Medical Nutrition Therapy Act of 2023 is supported by more than 40 expert national organizations, including the Academy of Nutrition and Dietetics, the American Diabetes Association, the Endocrine Society, and UsAgainstAlzheimer's.

I urge my colleagues to support this important legislation to improve access to cost-effective medical treatment for Medicare patients with chronic diseases.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 462—EMPHASIZING THE URGENCY OF RESPONDING TO ATTACKS IN ISRAEL AND THE GREATER REGION FROM THE ISLAMIC REPUBLIC OF IRAN AND ITS PROXIES, AND FOR OTHER PURPOSES

Mr. GRAHAM (for himself, Mr. BLUMENTHAL, Mr. SULLIVAN, Mrs. BRITT, Mr. THUNE, Ms. COLLINS, Ms. ROSEN, Mr. MANCHIN, and Mrs. GILLIBRAND) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 462

Whereas the Islamic Republic of Iran, including the Islamic Revolutionary Guard Corps (IRGC), has provided financing, training, and other forms of support to Hamas, Hezbollah, Ansar Allah, Palestinian Islamic Jihad (PIJ), and other proxies;

Whereas the current leader of Hamas, Ismail Haniyeh, has publicly confirmed and lauded the support the group receives from the Islamic Republic of Iran, stating ''I give thanks to those who provided funds and weaponry to the courageous resistance, the Islamic Republic of Iran, [which] has not skimped in extending funds, weaponry, and technology to the resistance'';

Whereas, on October 8, 1997, the Secretary of State designated Hamas and Hezbollah foreign terrorist organizations in accordance with section 219 of the Immigration and Nationality Act (8 U.S.C. 1189);

Whereas, on September 20, 2023, Israeli Prime Minister Benjamin Netanyahu stated that ''we can forge a historic peace between Israel and Saudi Arabia'' and Prime Minister and Crown Prince of Saudi Arabia Mohammed bin Salman stated that ''[e]very day we get closer'' to normalizing relations with Israel;

Whereas, on October 7, 2023, in part to derail the normalization process, Hamas launched an unprovoked attack against the State of Israel, brutally murdering over 1,200 innocent men, women, and children, while injuring thousands more;

Whereas, on October 7, 2023, Hamas committed war crimes by taking hundreds of innocent civilians hostage, including babies, children, women, elderly, and Holocaust survivors, and has proceeded to place innocent civilians around key locations as human shields;

Whereas, on October 8, 2023, Israel officially declared war on Hamas;

Whereas, on October 10, 2023, the USS Gerald R. Ford Carrier Strike Group arrived in the Eastern Mediterranean Sea to deter additional actors, including the Islamic Republic of Iran, Hezbollah, Ansar Allah, PIJ, the IRGC, and other proxies of the Islamic Republic of Iran from escalating tensions in the region;

Whereas, on October 14, 2023, the Department of Defense announced the USS Dwight D. Eisenhower Carrier Strike Group would be repositioned to join the USS Gerald R. Ford Carrier Strike Group in the Eastern Mediterranean Sea;

Whereas, on October 19, 2023, the USS Carney intercepted missiles and drones that were launched by Iranian-backed Houthi militias towards Israel;

Whereas, on October 25, 2023, it was reported that in the weeks leading up to Hamas' attack on Israel, roughly 500 Hamas and PIJ militants received specialized combat training in the Islamic Republic of Iran from officers of the Quds Force, the foreign-operations arm of the IRGC;

Whereas United States troops and personnel stationed in Iraq and Syria have come under rocket and drone attack numerous times since October 7, 2023, resulting in the injury of over 50 servicemembers;

Whereas, on October 26, 2023, in response to attacks against United States troops and personnel in Iraq and Syria, the President of the United States authorized precision strikes on two facilities in eastern Syria used by the IRGC and affiliated groups;

Whereas, on November 9, 2023, the President of the United States authorized a precision strike on an IRGC weapons storage site in Syria to clearly communicate that there should be no escalation of hostilities in the region and that the President has no higher priority than the safety of United States troops and personnel;

Whereas, on November 12, 2023, the United States conducted precision strikes against a training facility and a safe house in eastern Syria used by the IRGC and affiliated groups;

Whereas Hezbollah reportedly has at least 150,000 missiles, some of which are precision-guided, that could be launched at Israel without warning, overwhelm the Iron Dome air defense system, and greatly expand the conflict;

Whereas Hamas, through its actions, has proven its goal is to destroy Israel, eradicate the Jewish population, undermine peace and normalization efforts in the region, cause severe economic decline and political unrest in the region, and curtail future investments that would allow Israel and other Middle Eastern states to grow and prosper; and

Whereas the Biden Administration must continue to clearly communicate to the Islamic Republic of Iran, including the IRGC, that further attacks on Israel, the United States, or partners and allies by the Islamic Republic of Iran, Hamas, Hezbollah, Ansar Allah, PIJ, or other proxies of the Islamic Republic of Iran are unacceptable: Now, therefore, be it

Resolved, That the Senate—

(1) supports the President's efforts to deter the Islamic Republic of Iran, the IRGC, Hamas, Hezbollah, Ansar Allah, PIJ, and other proxies from expanding the ongoing conflict, and recognizes deterrence is most credible when the President keeps all options on the table, including the use of military force in accordance with constitutional processes;

(2) recognizes Israel's right to self-defense and its operations to ensure Hamas can never again terrorize innocent Israelis and Palestinians;

(3) encourages the President to work to secure the safe release and return of all hostages held by Hamas;

(4) commends the President's decision to position military and diplomatic assets in the region to deter escalation of the conflict by the Islamic Republic of Iran, the IRGC, Hamas, Hezbollah, Ansar Allah, PIJ, and other proxies of the Islamic Republic of Iran in Iraq or Syria;

(5) recognizes that all responsible nations agree that Hamas is a terrorist organization that must be fought, dismantled and prevented from having the capacity to further terrorize Israel and the region; and

(6) urges the Kingdom of Saudi Arabia and Israel, with the support of the United States, to continue diplomatic negotiations to normalize relations and establish lasting peace, prosperity, and stability in the Middle East.

SENATE RESOLUTION 463—RECOGNIZING OPERATION GREEN LIGHT FOR VETERANS FOR SUPPORTING VETERANS AND RAISING AWARENESS ABOUT IMPORTANT COUNTY RESOURCES AVAILABLE TO HELP VETERANS TRANSITION TO CIVILIAN LIFE

Mr. BENNET (for himself, Mr. CORNYN, Mr. BOOKER, Ms. ROSEN, and Mrs. SHAHEEN) submitted the following resolution; which was referred to the Committee on Veterans' Affairs:

S. RES. 463

Whereas the United States owes an immeasurable debt of gratitude to the brave veterans who have served in the Armed Forces for safeguarding our liberties and upholding the principles upon which the United States was founded;

Whereas veterans often lack the resources needed to transition to civilian life;

Whereas the National Association of Counties, in collaboration with the National Association of County Veterans Service Officers, established the Operation Green Light for Veterans campaign in November of 2022;

Whereas Operation Green Light for Veterans encourages counties to illuminate their buildings with green lights from November 6 to November 12, 2023, to symbolize unwavering support, appreciation, and recognition of veterans;

Whereas this vibrant and symbolic gesture serves as a visible reminder to veterans that their service is seen, valued, and honored by their local communities;

Whereas Operation Green Light for Veterans encourages counties to use press releases, community events, and social media to raise awareness about important county resources available to help veterans transition to civilian life, including mental health resources, employment and training programs, housing assistance, voter registration, peer-to-peer support services, and assistance from county veteran service officers on how to access earned Federal benefits;

Whereas the National Association of Counties encourages counties to adopt resolutions declaring their commitment to Operation Green Light for Veterans to reinforce the collective dedication of counties to the well-being of veterans;

Whereas Operation Green Light for Veterans encourages counties to amplify the effect of their participation and encourage other counties to participate by collaborating with Members of Congress, local news media, and social media platforms;

Whereas Operation Green Light for Veterans exemplifies the importance of collaboration between Federal, State, and local entities in ensuring that veterans successfully transition to civilian life;

Whereas Operation Green Light for Veterans highlights the historical role of counties in serving veterans and providing important resources to help veterans transition to civilian life, including mental health resources, employment and training programs, housing assistance, voter registration, peer-to-peer support services, and assistance from county veteran service officers on how to access earned Federal benefits; and

Whereas Operation Green Light for Veterans aligns with the core principles of unity, gratitude, and respect that define the character of the United States: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes Operation Green Light for Veterans and commends the National Association of Counties and the National Association of County Veterans Service Officers for their unwavering support to veterans and their crucial role in raising awareness about important county resources available to help veterans transition to civilian life, including mental health resources, employment and training programs, housing assistance, voter registration, peer-to-peer support services, and assistance from county veteran service officers on how to access earned Federal benefits;

(2) encourages all counties to participate in Operation Green Light for Veterans by illuminating their buildings with green lights as a powerful symbol of appreciation and using press releases, community events, and social media to raise awareness about such resources; and

(3) urges its members to engage with their local communities to raise awareness about Operation Green Light for Veterans and to support its goals of honoring veterans and improving access to such resources.

AUTHORITY FOR COMMITTEES TO MEET

Mr. SCHUMER. Madam President, I have eight requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority Leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON AGRICULTURE, NUTRITION, AND FORESTRY

The Committee on Agriculture, Nutrition, and Forestry is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 10 a.m., to conduct a hearing.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 10 a.m., to conduct a hearing.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

The Committee on Health, Education, Labor, and Pensions is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 10 a.m., to conduct a hearing.

COMMITTEE ON RULES AND ADMINISTRATION

The Committee on Rules and Administration is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 3 p.m., to conduct a business meeting.

SELECT COMMITTEE ON INTELLIGENCE

The Select Committee on Intelligence is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 2:30 p.m., to conduct a closed briefing.

SUBCOMMITTEE ON EMERGING THREATS AND SPENDING OVERSIGHT

The Subcommittee on Emerging Threats and Spending Oversight of the Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 2:45 p.m., to conduct a hearing.

SUBCOMMITTEE ON FISHERIES, WATER, AND WILDLIFE

The Subcommittee on Fisheries, Water, and Wildlife of the Committee on Environment and Public Works is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 2:30 p.m., to conduct a hearing.

SUBCOMMITTEE ON HEALTH CARE

The Subcommittee on Health Care of the Committee on Finance is authorized to meet during the session of the Senate on Tuesday, November 14, 2023, at 2:30 p.m., to conduct a hearing.

PRIVILEGES OF THE FLOOR

Mr. RICKETTS. Madam President, I ask unanimous consent that the following intern from my office be granted floor privileges until November 15, 2023: Kayla Fink.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 7:03 P.M. TODAY

Mr. SCHUMER. Mr. President, I move to adjourn until 7:03 p.m. today.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

Thereupon, the Senate, at 7:02 p.m., adjourned until Tuesday, November 14, 2023, at 7:03 p.m.

EXTENSIONS OF REMARKS

CONGRESSIONAL VETERAN COMMENDATION FOR CORPORAL CHRISTOPHER MOTE

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Corporal Christopher "Chris" Mote of Rockwall. Texas, and award him a Congressional Veteran Commendation. Corporal Mote honorably served in the United States Marine Corps during the Gulf War.

Since his childhood, Corporal Mote knew he wanted to serve in our Armed Forces. as his family had done before him. His passion for military history and love of country led him to join the Marine Corps. Corporal Mote served as a Radar Operator on the USS *Tripoli* (LPH–10) amphibious assault ship. He served in both Okinawa, Japan, and Kuwait during the Gulf War. In February 1991, while sailing through an Iraqi minefield in the Persian Gulf, *Tripoli* was severely damaged by a naval mine. Fortunately, no one was killed in this incident. *Tripoli* went on to successfully conduct combat operations in the region and deploy Marines to help stop Iraqi aggression against Kuwait. For his distinguished service, Corporal Mote was awarded the Marine Corps Combat Action Ribbon.

After his time in the Marine Corps, Corporal Mote made it his mission to make a meaningful impact on our community. During Memorial Day, he regularly leads his family in planting flags at the gravesites of soldiers who perished in prior conflicts. Furthermore, Corporal Mote helps fundraise for Carry the Load. a veterans' charity that raises awareness of veteran issues and uplifts servicemembers, veterans, and first responders. For the past five years, he has also flown an American flag over the Highway 66 bridge connecting Rocl<wall and Rowlett to recognize those who served. Every morning, Corporal Mote checks the flag to ensure that it is proudly flying high. I commend his efforts to ensure that the sacrifices of our veterans will never be forgotten.

I am honored to represent Corporal Mote in Texas' 4th Congressional District. It is a pleasure to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

HONORING MS. SHARON HODGE

HON. MARK TAKANO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. TAKANO. Mr. Speaker, I rise today to honor an extraordinary advocate for our Nation's veterans and congratulate her on her retirement.

For 28 years, Sharon Hodge has left an indelible mark on the landscape of veterans' advocacy through her work with Vietnam Veterans of America.

As Deputy Director for Policy and Government Affairs, Sharon's expertise has guided critical legislative and regulatory strategies at the national level. Her counsel to myself and my staff on the House Committee on Veterans' Affairs has been invaluable, shaping policies that touched the lives of countless veterans.

Through her tireless efforts, she established a robust online advocacy network. enlisting over 2000 legislative coordinators and spearheaded numerous grassroots campaigns. Sharon's work facilitating this activism was instrumental in the enactment of the Homeless Veterans Comprehensive Assistance Act, the Toxic Exposure Research Act, and the PACT Act.

Beyond her role at VVA, Sharon served as Commissioner for the Montgomery County Commission on Veterans Affairs, where her work led to the establishment of a crucial VA Community-Based Outpatient Clinic.

Sharon Hodge's accolades are numerous, each one a testament to her compassion and tireless advocacy. From the VVA Commendation Medal to the Congressional Black Caucus Veterans Brain Trust Award, her contributions have been recognized at the highest levels.

I thank Sharon for her decades of dedicated service to Vietnam Veterans of America and to our Nation. May her legacy inspire us all to champion the causes that matter most, to stand by our veterans, and to leave no one behind.

HONORING THE LIFE AND LEGACY OF MRS. LINDA K. MITROVICH

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. GARAMENDI. Mr. Speaker, I rise today to honor the life and lasting contributions of Mrs. Linda K. Mitrovich. A critical member of the environmental community, Mrs. Mitrovich leaves behind an indelible legacy of service and dedication to environmental conservation, both within her community and around the world.

For over 30 years, Mrs. Mitrovich fought to protect our environment and ensure our beautiful natural landscapes are preserved for future generations. For 25 years, she served as President and Co-Founder of Solution Strategies, a firm that helps public- and private-sector clients create solutions and resolve conflicts for businesses, governments, communities, and the environment. Through her leadership in Solution Strategies, Mrs. Mitrovich was renowned for her unique ability to unite stakeholders with conflicting interests to achieve a common goal. Her unparalleled skills in policy negotiation. strategy development, and coalition building allowed her to accomplish critical milestones for the environmental community.

In 2013, Mrs. Mitrovich co-founded Preservation Ranch, LLC, an organization focused on supporting and furthering the goals of conservation programs that support local economies. Preservation Ranch later established a partnership with the Bureau of Land Management and the U.S. Fish and Wildlife Service, forming a groundbreaking pilot project that unites private and public lands under a conservation management program to directly benefit local communities.

In addition to Mrs. Mitrovich's work in the private sector, she was instrumental in the environmental regulation space at both the state and federal levels. Her experience in the environmental regulatory arena included work with some of our country's most essential environmental laws, including the Endangered Species Act, Clean Water Act and Clean Air Act.

While exhibiting critical leadership in the environmental field, Mrs. Mitrovich also played a pivotal role in her local community. She served as City Councilwoman and Deputy Mayor of Poway, California, and served on numerous governmental boards and committees overseeing water in San Diego County and the state of California. She was also a Trustee of Whittier College, where she received her Bachelor of Arts, and her service to her community was recognized by the California State Government when she was honored as Woman of the Year by the State Senate and State Assembly.

Mrs. Mitrovich's enduring spirit will live on in her family and the legacy of her work to preserve our environment. I would like to extend my deepest sympathies to Mrs. Mitrovich's loved ones. I know that they, along with the people of California's 8th Congressional District, join me in celebrating her life and legacy.

CONGRESSIONAL VETERAN COMMENDATION FOR PETTY OFFICER JOHN OESTE

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Petty Officer Third Class John Oeste of Prosper, Texas, and award him a Congressional Veteran Commendation. His selfless service in the United States Navy is a remarkable testament of his desire to protect the country he loves.

PO3 Oeste hails from a military household and heeded the call to defend his nation after being inspired by multiple generations of service. His family served in the First World War, Second World War, and the Korean War. As such, he understood that the many freedoms we enjoy today come through sacrifices of the highest order. During his time in the Navy. PO3 Oeste served as a Master Helmsman and Flight Deck Landing Signalman on the USS *Fife*, a *Spruance*-class destroyer.

From sailing the Latin American seas to patrolling the dangerous Persian Gulf during the

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

Iran-Iraq War, PO3 Oeste helped assert the strength and dominance of the United States around the world. Moreover, he helped provide extensive humanitarian assistance and disaster relief for the people of Agalega Island, which suffered immensely during the 1983–84 cyclone season in the Indian Ocean. After his Naval service, PO3 Oeste completed his college education and met his wife, Patricia. Together, they raised two very successful children.

In his free time, PO3 Oeste teaches in his local church's pre-school classes during Sunday services. He and Patricia also help fundraise for underprivileged families and victims of domestic violence. These efforts will help to ensure that those facing difficult circumstances will not be overlooked. As a veteran, PO3 Oeste proudly goes the extra mile to show his appreciation for those who served. One of his longtime personal projects is to conduct research and present awards, medals, and pictures of fallen veterans to their family members. His ultimate goal is to share the untold story of these veterans to ensure that they will never be forgotten.

I am honored to represent PO3 Oeste in Texas' 4th Congressional District. I am privileged to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

HONORING DR. W.N. REED'S 50TH ANNIVERSARY AS PASTOR OF NEW MOUNT MORIAH MISSIONARY BAPTIST CHURCH

HON. FRANK J. MRVAN

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. MRVAN. Mr. Speaker, it is with great pleasure that I take this time to congratulate Reverend Dr. W.N. Reed on his 50th Anniversary as Pastor of New Mount Moriah Missionary Baptist Church in Gary, Indiana. For his fifty years of service and dedication to his congregation and to the community of Gary, Reverend Reed will be honored at a Pastoral Anniversary Celebration that will take place at New Mount Moriah Missionary Baptist Church on Sunday, November 19, 2023.

Reverend Reed grew up in Brownsville, Tennessee, where he attended Carver High School. He went on to graduate from Lane College in Jackson, Tennessee, and served in the United States Army before accepting the call to the ministry. Reverend Reed was ordained in 1963 at Woodlawn Baptist Church in Brownsville. While in Tennessee, he served as Pastor of Saint John Baptist Church in Dancyville, as well as Macedonia Baptist Church and First Baptist Church in Brownsville. In 1973, Reverend Reed became Pastor of New Mount Moriah Missionary Baptist Church in Gary, Indiana. Throughout his fifty years of leadership, the church has become a beacon of light and hope for the community of Gary and beyond. In 1998, the church added an administrative/education wing and a fellowship hall. Reverend Reed and the parishioners are proud of the church's thriving and active Sunday school programs, numerous ministries, and growing congregation.

During his tenure, Reverend Reed has given of his time and efforts to various organizations and endeavors including the Baptist Minsters Conference of Gary and Vicinity, Progressive National Baptist Convention Inc., Martin Luther King Jr. Memorial Baptist Convention of Indiana, New Era District Association, One Church One School Initiative, and the NAACP, to name a few. For his unwavering devotion to providing spiritual guidance and support to so many in need, Reverend Dr. W.N. Reed is worthy of the highest praise.

Reverend Reed's remarkable commitment to the church and to his community is exceeded only by his admiration for his amazing family. He and his wonderful wife, Rosetta, have raised two beloved sons.

Mr. Speaker, I ask you and my other distinguished colleagues to join me in honoring and congratulating Reverend Dr. W.N. Reed on his 50th Anniversary as Pastor of New Mount Moriah Missionary Baptist Church. For his lifetime of leadership and selfless service to others, he is truly an inspiration to us all.

RECOGNIZING THE SERVICE OF ELLSWORTH ''TONY'' WILLIAMS

HON. SCOTT FRANKLIN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. SCOTT FRANKLIN of Florida. Mr. Speaker, I rise to recognize veteran and hero, Major Tony Williams, who today will be inducted into the Florida Veteran's Hall of Fame. Tony's exemplary service has made an unmistakable impact in the lives of countless Florida veterans.

Ellsworth 'Tony' Williams was born in Fort Hood, Texas as a dependent of a career Vietnam Army combat veteran before making the decision to join the U.S. Army himself, serving 24 years on active duty, eight as an enlisted soldier and sixteen as a commissioned officer.

Tony's service in the U.S. Army was marked by distinction. He was awarded a Bronze Star and three Meritorious Service Medals for his actions in Desert Storm, Operation Iraqi Freedom and Operation Enduring Freedom.

Perhaps most remarkable, Mr. Speaker, is the care Tony displays to his community and fellow vets. After retiring in 2007, he returned to school to pursue graduate training in Clinical Mental Health Counseling from Troy University.

After receiving his counseling degree, Tony made it his mission to help veterans struggling with their mental health, becoming a leading voice for veteran suicide prevention in his community. Tony established his nonprofit, Veterans Counseling Veterans, Inc., to provide counseling and emotional support to active duty, National Guardsmen, reservists, veterans and their families. Veterans Counseling Veterans also provides professional and career development support for those seeking a career in behavioral health.

Tony received several mental health counseling awards to include a 2014 National Award for Social Service from the American Mental Health Counseling Association. He sits on the Hillsborough Veterans Council, Florida Mental Health Counselor Association's Military Interest Committee, Crisis Center of Tampa Bay's Regional Veterans Advisory Council and is the American Legion Post 5 Veteran Affairs and Rehabilitation Committee Chair.

Major Tony Williams says it's in his bones to help veterans and their families, and he believes his latest recognition from the Florida Veteran's Hall of Fame is simply another 'assignment from God,' calling him to continue his good work.

I commend Major Williams for his sacrifices both in the U.S. Army and in his tireless efforts to help fellow Florida veterans. I urge my colleagues to join me in congratulating him.

CONGRESSIONAL VETERAN COMMENDATION FOR MAJOR JOHN MCDERMOTT

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Major John McDermott of Rockwall, Texas, and award him a Congressional Veteran Commendation. Major McDermott honorably served in the United States Marine Corps during the Cold War and the Global War on Terrorism.

Major McDermott was born in a military household, and his family's history of service dates back to the First World War. From a young age, he had a strong passion for aviation and military history. In 1986, Major McDermott enlisted in the Marine Corps and commissioned as an officer four years later. He served as an Aircraft Maintenance Officer and Plane Captain of an F/A–18 Hornet fighter aircraft. Major McDermott was responsible for flight safety protocols, aircraft readiness, and maintenance of numerous other aircraft such as the Harrier jump jet and KC–130 Hercules. His duties not only took him around the continental U.S., but also to Australia, Japan, and South Korea. During the Cold War, relations with the Soviet Union were highly contentious. Skilled officers like Major McDermott were tasked with supplying Hornets so they may patrol the skies over the Sea of Japan to counter Soviet and North Korean aggression in the region. For his service, he was awarded the Meritorious Service Medal, the Navy and Marine Corps Commendation Medal among many others.

After his retirement from the Marine Corps in 2009, Major McDermott continued to make an impact on the community by working with the Civil Air Patrol. Additionally, he is a lifetime member of the CW02 Randolph Marine Corps League Detachment, whose members volunteer in community service programs throughout Rockwall County. Major McDermott's lifelong knowledge of aerospace and defense issues has allowed him to continue his career with L3Harris in Greenville, Texas. Even in civilian service, he is steadfast in his commitment to safeguard our Nation. Major McDermott is married to his wife Karen, and they have three sons, two of whom are current cadets at the United States Military Academy in West Point, New York.

I am honored to represent Major McDermott in Texas' 4th Congressional District. It is a privilege to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

DIABETES AWARENESS MONTH

HON. EMANUEL CLEAVER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. CLEAVER. Mr. Speaker, each November, Americans commemorate Diabetes Awareness Month. This distinction comes after hundreds of medical advancements, thousands of tears, and millions of lives lost. Diabetes spares no one in its mission to disrupt lives. It feeds off our children as Type 1 diabetes and preys on adults and seniors as Type 2 diabetes, leaving one in ten Americans to contend with this condition.

Black Americans are 60 percent more likely to suffer this illness and its devastating complications, including heart, kidney, liver, eye, and neurological diseases. Healthcare accessibility, genetics, and food insecurity are strong determinants of health outcomes, and diabetes is no different. A community unable to access healthy food or preventative health care is severely disadvantaged.

All Americans with diabetes know the financial strain this disease brings. One dollar out of every $4 in US healthcare costs goes towards diabetes care, leaving the average American with diabetes incurring $12,022 in annual medical expenditures. Thankfully, Congressional Democrats recognize this crisis and passed the Inflation Reduction Act last year. The IRA took unprecedented steps to lower prescription drug costs and capped insulin prices at $35 for seniors on Medicare. Now, millions of Americans can rest easy knowing they have reliable access to their lifesaving medication.

We all live within one degree of separation from this illness. My grandmother had it, a member of my staff has it, and this year 38,000 Missourians will receive a diabetes diagnosis. While Diabetes Awareness Month educates millions across the globe, we must take further action and cure this disease. I'm proud of the work President Biden and House Democrats continue taking to bring this reality closer.

PERSONAL EXPLANATION

HON. ROGER WILLIAMS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. WILLIAMS of Texas. Mr. Speaker, due to a personal family matter, I was unable to be in D.C. and vote on November 13, 2023. Had I been present, I would have voted YEA on Roll Call No. 643 and NAY on Roll Call No. 645.

CONGRESSIONAL VETERAN COMMENDATION FOR SERGEANT JAMES LARAMORE

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Sergeant James ''Jim'' Laramore of Rockwall, Texas, and award him a Congressional Veteran Commendation. Sergeant Laramore served in the United States Army Security Agency (ASA), in which he diligently worked day and night to defend our Nation.

Ever since he was a young man, Sergeant Laramore had a desire to serve his country and contribute to a greater cause. In 1966, he was one of two candidates in a large group that qualified for the ASA. It was up to individuals like Sergeant Laramore to secure intelligence and help our military agencies maintain an informational advantage over the Soviet Union. During that time, ASA personnel operated under strict, covert circumstances, and I am sure that Sergeant Laramore's contributions have made a real impact on our country.

Following his time in the Army, Sergeant Laramore returned home and served as a detective in several police departments. The investigative skills that he refined while serving abroad allowed him to work his way up the ladder until he was appointed Chief of Police for the Pampa Police Department in 1989. Afterwards, he became a criminal investigator for the Texas Railroad Commission and Parker Police Department, where he continues to serve today. When he can, Sergeant Laramore takes the opportunity to mentor junior officers and share a wealth of knowledge.

I am honored to represent Sergeant Laramore in Texas' 4th Congressional District. It is a pleasure to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

IN MEMORY OF JUDY TAYLOR

HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. BARR. Mr. Speaker, I rise today to honor a very special woman, Judy Taylor, of Lexington, Kentucky. Ms. Taylor passed away on October 12, 2023.

Judy Taylor was born in Louisville, Kentucky and grew up in New Mexico. She began a lobbying career in 1976 as a volunteer for the Kentucky Association of Older Persons. She also worked as a substitute teacher. As her career grew, she became Kentucky's first female contract lobbyist. She blazed a trail for other women in her profession and mentored many young women as well as men over the years. Judy was quite well known and well respected in Frankfort. The renown for Judy was so great that her Celebration of Life services were held in the House Chambers of the Kentucky Capitol.

Judy served as the Director of Government Affairs for Keeneland for over 30 years. She represented Keeneland and the equine industry, one of Kentucky's signature industries, quite well in Frankfort. She was well-loved by everyone at Keeneland, and she was known to many as simply ''Judy from Keeneland''. Judy had a great respect for law enforcement and served for many years as a board member for the Kentucky State Police Foundation. An excellent baker, she baked and shared thousands of cookies with those she encountered.

Judy Taylor was highly respected throughout the Commonwealth of Kentucky. She was a spirited woman of faith, kindness, and generosity. She enriched the lives of many Kentuckians, and she will be greatly missed. I am honored to call her my friend and to lift up her memory before the United States Congress.

HONORING THE 100TH BIRTHDAY OF WWII VETERAN CHARLES ''CHUCK'' SHUMATE

HON. AMI BERA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. BERA. Mr. Speaker, I rise today to recognize World War II veteran Charles Shumate who celebrated his 100th birthday this past weekend on November 11th and commend his outstanding service to our community and country. Mr, Shumate achieved the rank of Staff Sergeant during his time in the U.S. Army from 1943 to 1946 and is also a very proud father, grandfather, and great grandfather.

Charles enjoyed a long and illustrious career, working numerous jobs across the country. After his time in the Army, he spent time in the Air Force Reserves during which he also began working as a heavy equipment driver in Ohio and then as a factory worker. Charles later worked in data processing where he worked for both the government and in the private sector which took him to Sacramento County, where he eventually retired in 1982. He has resided there ever since.

Charles' life of service and dedication is commendable and worthy of recognition. I want to extend both my gratitude and my best wishes to Mr. Shumate for his lifelong commitment to our communities and our country. His commitment to the safety and betterment of our nation is remarkable. I ask that my colleagues join me in celebrating Mr. Shumate for his outstanding work and wishing him a very happy 100th birthday.

CONGRESSIONAL VETERAN COMMENDATION FOR SERGEANT JAMES CLINE

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Sergeant James ''Jim'' Cline of Plano, Texas, and award him a Congressional Veteran Commendation. Sergeant Cline honorably served in the United States Marine Corps during the Korean War.

At the onset of the Korean War, Sergeant Cline joined the Marines and was tasked with construction projects and refueling aircraft at Marine Corps Base Quantico. When he was assigned to Japan, he served as a truck driver and a rifle coach to ensure that Marines under his command were proficient in marksmanship. Eventually, Sergeant Cline was deployed to South Korea and specialized in Motor Transport. Here, he oversaw the maintenance and operation of military vehicles to ensure they were combat-ready at all times. For his service, Sergeant Cline was bestowed the Korean Ambassador for Peace Medal.

When he returned to civilian life, Sergeant Cline experienced difficulties due to hearing loss from his time in the service. Nevertheless, he overcame these hardships using a good sense of humor and positivity, and he later raised a marvelous family with four children. Sergeant Cline worked in various labor and sales jobs before starting a business installing material handling equipment in the Dallas-Fort Worth metroplex. He is also a member of the Korean War Veterans Association and enjoys interacting with fellow veterans. I am proud of the work that Sergeant Cline has accomplished, and I commend him for his perseverance and humble dedication to defending our great Nation.

I am honored to represent Sergeant Cline in Texas' 4th Congressional District. It is a pleasure to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

HONORING THE LIFE OF STEVE RODVOLD

HON. DEAN PHILLIPS

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. PHILLIPS. Mr. Speaker, I would like to extend my condolences to the family of Steven J. Rodvold, a lover of family, community, and photography, who passed away on October 27, 2023.

Steve was born on June 14, 1953, in Crosby, North Dakota. He spent his childhood in Fortuna and Crosby, during which he met lifelong friends, including his wife, Jeanine.

Steve valued education: after high school, he attended the North Dakota State College of Science, earned his journeymen's license, and completed a B.A. in Business Administration-Management from Minot State University, graduating summa cum laude.

In all aspects of his life, Steve was a people person. He found his career in human resources and generously gave his time as a mentor with Big Brothers Big Sisters, a Boy Scout cub den leader, and a volunteer at the Grean Plain Food Bank, among other community organizations.

Steve loved his family dearly. He is survived by his wife of 50 years, Jeanine, their sons Zach (Emily) and Alex (Sara), and their grandchildren, as well as siblings, cousins, nieces, and nephews. Zach carried on Steve's legacy of giving back, serving as my District Chief of Staff for four years.

Steve's love of his family was apparent in his actions, as well as his words: on his LinkedIn profile, he proudly designated for himself the job title of ''Grandpa'' for the years following his retirement. As part of this important position, Steve declared himself to be an expert at ''relaxing, reading, walking/hiking, biking, kayaking, putzing around the garage, traveling, watching movies, and whatever the hell else I feel like doing.''

Steve liked to see the good in the world, especially the beauty around him. He supported and was involved in local arts institutions. As a photographer, he captured natural beauty, from sunsets over the Badlands to the changing of the seasons. As with his other pursuits, Steve did not keep his passion to himself, actively participating in the Fargo Moorhead Camera Club.

Steve lived a fulfilled life, and the lessons of it—to give something to community, take pleasure in loved ones, and remain in awe of the beauty in the people and places around us—will certainly continue to serve as a model for those whose lives he touched. May his memory be a blessing and live on through all who knew and loved him.

TRIBUTE TO LAURIE GOLDMAN

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. SCHIFF. Mr. Speaker, I rise today in honor of Laurie Goldman, who passed away on September 11 of this year.

Laurie's dedication to the City of Los Angeles was formed at an early age as she came to appreciate its many landmark institutions. She watched the Beatles perform at the Hollywood Bowl, enjoyed ice cream at CC Brown's, and, at the tender age of six months, dined at Musso & Frank.

As a young girl, Laurie explored the City of Los Angeles; she absorbed its secrets, learned its rhythms, and took it upon herself to make it better. For more than four decades, Laurie volunteered her time and considerable energy to improve the lives of those in her community. She founded her first nonprofit, Youth for Cystic Fibrosis, while a student at Fairfax High School. Her commitment to helping those on the margins led to the creation of multiple nonprofit organizations over her lifetime.

Laurie's success in organizing her community around a common cause, in achieving consensus, and raising money, led to leadership roles in several of the City's most distinguished organizations. In addition to founding her own company, Go!, she served on the Board of Directors of the Hollywood Chamber of Commerce, the Central Hollywood Neighborhood Council, the Hollywood Chamber Community Foundation, and the Hollywood Arts Council. Ms. Goldman's long list of achievements include serving on the 1984 Olympics Governmental Relations Committee, the Los Angeles Area Chamber of Commerce, and the Getty House Foundation. In 2016, she was elected President of the Hollywood Media Business Improvement District where she was instrumental in furthering its mission of public safety and economic growth.

Her devotion to Hollywood's rich history fostered an appreciation for what is possible in the world. Laurie was an effective advocate, a tireless activist, and a much-revered urban visionary. It is, perhaps, in this last role that she will be best remembered. As President of Friends of the Hollywood Central Park, Laurie was committed to building a sustainable, green space on top of the congested 101 freeway. Completion of this ambitious project promises to deliver a more equitable future for stakeholders in community and commerce.

I would like to convey my deepest sympathy to Laurie's family, friends, and colleagues. We owe Laurie a debt of gratitude for her decades of contributions to the Los Angeles community. I ask all Members to join me in recognizing the remarkable life of Laurie L. Goldman.

CONGRESSIONAL VETERAN COMMENDATION FOR SERGEANT GEORGE WOOD

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Sergeant George Wood of Blossom, Texas, and award him a Congressional Veteran Commendation. Sergeant Wood honorably served in the United States Army's 11th Armored Cavalry Regiment during the Cold War.

Sergeant Wood heeded the call to defend his nation and joined the Army in 1973 shortly after the all-volunteer force military recruitment model was announced. At first, he trained as a loader on the M60A1 main battle tank, but quickly grew passionate about operating air defense systems. Eventually, Sergeant Wood was sent to West Germany in 1974 to provide a watchful eye over the skies of the East German border in the event of an attack by the Soviet Union. His efforts upheld democratic values and freedom in Western nations and safeguarded our NATO allies against Soviet aggression.

After his discharge from the Army in 1977, Sergeant Wood worked as a welder's apprentice at the Lone Star Steel Company and as a Maintenance Planner at the Kimberly-Clark Corporation. Since 2012, he has served as the Chairman of the Red River Valley Veterans Memorial Museum board. Under his leadership, the Museum raised over a million dollars to build a beautiful memorial to commemorate local veterans for their service. Sergeant Wood also serves as the President and a firefighter for the East Post Oak Volunteer Fire Department and the President of the Lamar Electric Cooperative. He is a life member of the Blackhorse Association, a nonprofit that unites servicemembers and veterans of the 11th Armored Cavalry Regiment. In this role, he helps fundraise to provide scholarships for children of Blackhorse Troopers who were killed or wounded in defense of our nation. Sergeant Wood is a devoted man of faith, and he regularly attends the Novice Baptist Church in Paris.

I am honored to represent Sergeant Wood in Texas' 4th Congressional District. It is a privilege to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

HONORING OHIO VETERANS HALL OF FAME INDUCTEE DAVID SCHEFFLER

HON. TROY BALDERSON

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. BALDERSON. Mr. Speaker, I rise today with great pride and admiration to celebrate David Scheffler, a member of the Ohio Veterans Hall of Fame Class of 2023. This distinct honor recognizes his outstanding contributions to his community in the years following his military service.

David's journey of public service began in the U.S. Army during the Vietnam Era. Afterwards, he returned home to Lancaster and

embarked on a career in finance. He passed the CPA examination and eventually retired as a highly respected partner at Plante Moran, a national certified public accounting and business advisory firm.

David has long been a pillar of his community. He has served as the Mayor of Lancaster since 2017, a position he continues to hold with honor. His dedication has extended to various state and local boards and committees, including the Ohio Chamber of Commerce, Destination Downtown Lancaster, the Ohio Mayor's Alliance, the Mid-Ohio Planning Commission, the Ohio Small Business Council, and the Fairfield County Airport Authority.

As Mayor, David has steered Lancaster through challenging times, including economic uncertainty arising from the COVID–19 pandemic. His decisive leadership was instrumental as he navigated his city through financial crises and fostered economic development.

At the age of 75, David Scheffler's continued dedication and contributions to his community inspire us all. I extend my heartfelt congratulations to David Scheffler as one of the newest members of the Ohio Veterans Hall of Fame, and I thank him for his service to this country.

HONORING YUBA WATER AGENCY UPON THE COMPLETION OF THE HALLWOOD SIDE CHANNEL AND FLOODPLAIN RESTORATION PROJECT

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. GARAMENDI. Mr. Speaker, I rise today to honor and commend Yuba Water Agency upon its completion of the Hallwood Side Channel and Floodplain Restoration Project. This outstanding achievement will safeguard local habitats and provide critical support to Yuba County's infrastructure.

Due to decades of hydraulic gold mining, the Yuba River has faced ecological challenges that harm native fish species, including the chinook salmon and steelhead trout. The innovative Hallwood Side Channel and Floodplain Restoration project will restore fish habitats and reduce flood risk, reversing some of the most severe ecological challenges in the region.

This project has successfully enhanced and restored 157 acres of floodplain habitat, including 1.7 miles of new side channels and more than 6 miles of seasonally inundated side channels, alcoves, and swales. These investments in the Yuba River will benefit its wildlife species, preserving this local habitat for future generations and taking a critical step towards protecting our community's environment and natural resources.

On behalf of the constituents of California's Eighth Congressional District, I would like to congratulate Yuba Water Agency upon the completion of this essential project which will benefit Yuba River wildlife, the surrounding habitat, and the local community.

CONGRESSIONAL VETERAN COMMENDATION FOR PETTY OFFICER DOUGLAS COMPTON

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Petty Officer Third Class Douglas Compton of Royse City, Texas, and award him a Congressional Veteran Commendation. PO3 Compton honorably served in the United States Navy during the Vietnam War.

When the United States conducted a draft, PO3 Compton was not one of those selected. However, he chose to serve his country and joined the Navy. PO3 Compton served on the USS *Chase County* (LST–491) tank landing ship as an engineman. His responsibilities included maintaining the ship's engine room and repairing broken parts to ensure that it is ready to go on combat missions at a moment's notice. For his service and contributions to the war effort, PO3 Compton was awarded the Republic of Vietnam Campaign Medal and several other awards.

After his military service, PO3 Compton worked for Texas Instruments as a numerical control machinist. In this role, he helped produce critical parts for the American defense industry, including components for night vision devices, missiles, and cameras. His important work at Texas Instruments helped the United States maintain a competitive advantage in advanced weaponry and technology. Later, PO3 Compton worked with Halliburton as a machinist and manufacturing production planner. He retired after 41 years with Halliburton, and now focuses on spending time with his children and grandchildren.

PO3 Compton is a member of the Veterans of Foreign Wars and helps raise awareness for veterans' issues. When called upon, he plays taps during memorial services for veterans at the Rest Haven Funeral Home in Rockwall. He also plays in community bands around North Texas. I commend PO3 Compton for his continued efforts to ensure that the sacrifices of our Nation's veterans will be remembered for generations to come.

I am honored to represent PO3 Compton in Texas' 4th Congressional District. It is a pleasure to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

PERSONAL EXPLANATION

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Ms. LOFGREN. Mr. Speaker, on Monday, November 13, 2023, I missed the votes due to a flight delay. Had I been present, I would have voted YEA on roll call No. 643, YEA on roll call No. 644, and YEA on roll call No. 645.

HONORING MARJORIE MACRIS

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. HUFFMAN. Mr. Speaker, I rise today to honor Marjorie Macris who passed away at the age of 88 on October 16, 2023. Ms. Macris was a beloved community leader in Marin County.

Born in Chicago and raised in the Midwest, Ms. Macris attended the University of Illinois at Champaign-Urbana in 1956, where she received a degree in journalism and graduated co-salutatorian. The following year, she completed her master's degree in journalism and urban planning as one of only a few women in her class. After school, Ms. Macris worked for Chicago's planning department until 1969 when she moved to Marin County with her family.

Joining Marin County's planning department, she became the primary author of the county-wide plan adopted in 1973. This plan significantly impacted the landscape of the county, restricting urban development to the Highway 101 corridor and maintaining Marin's central and western areas for smaller communities, agriculture, and recreation. From 1978 to 1984, Ms. Macris oversaw the execution of this plan as the county planning director, encouraging new collaboration among cities, towns and unincorporated communities.

Beyond emphasizing inter-jurisdictional planning, Ms. Macris advocated for and prioritized environmental conservation. Many Marin leaders credit her with protecting the environment during a critical period of growth. And as one of the few women employed in urban planning at the time, she became a role model and mentor for other women.

Ms. Macris's commitment to conservation extended throughout her adult life and well beyond her employment with the County. She was a valued contributor to the Marin Conservation League, Sierra Club Marin Group, Marin Environmental Housing Collaborative, and Marin Baylands Advocates.

Ms. Macris was known by her colleagues for her wit and innovative thinking, and to her family and friends as a great adventurer. She traveled from Algeria to Pakistan and Patagonia, traversing desert and trekking through mountains. Ms. Macris also took up running and completed the Boston Marathon three times. She is survived by her brothers Roger Wiegand and David Wiegand; her daughter Natalie Macris; her granddaughter Charlotte Keilman-Macris; and her former husband Dean Macris.

Mr. Speaker, Marjorie Macris was a dedicated public servant and active community leader who left an enduring legacy in Marin County. I respectfully ask that you join me in extending condolences to Ms. Macris's family and friends and in expressing my appreciation for her decades of good work.

CONGRESSIONAL VETERAN COMMENDATION FOR PETTY OFFICER CHARLES RUSSO

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Petty Officer First Class Charles Russo of Rockwall, Texas, and award him a Congressional Veteran Commendation. PO1 Russo honorably served in the United States Navy during the Gulf War and Global War on Terrorism.

PO1 Russo has always been drawn to a career in public service. He began his Navy career in 1990 onboard the USS *Wisconsin* battleship and the USS *Papago* ocean tug before advancing to the Naval Criminal Investigative Service (NCIS). Here, PO1 Russo worked as an Intelligence Specialist and Special Security Officer with a focus in counterterrorism. Eventually, he was selected to serve as an Anti-Terrorism Force Protection Officer. PO1 Russo's work helped to strengthen and expand our intelligence community's efforts to investigate terrorism. For his exceptional service, PO1 Russo was awarded multiple Navy and Marine Corps Achievement Medals, the Armed Forces Service Medal with ''M'' device, and many others.

After his discharge in 2000, PO1 Russo was compelled to return to public service after the September 11, 2001, terrorist attacks on our Nation. As a Navy Reservist, he was mobilized to assist in constructing secure rooms capable of handling sensitive information. He also had the opportunity to brief the Joint Chiefs of Staff on matters related to the Afghanistan War. For many years after being discharged, PO1 Russo has continued to serve our nation in various capacities. After some time in defense contracting, he became an FBI Intelligence Analyst. In this role, he investigates white-collar crime, researches terrorist explosive devices, and fills intelligence gaps where they are needed. I commend PO1 Russo's lifelong efforts to safeguard our national security and protect those who cannot defend themselves. His selfless service has been nothing short of outstanding.

I am honored to represent PO1 Russo in Texas' 4th Congressional District. It is a pleasure to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

HONORING MICHAEL D. COLE UPON HIS RETIREMENT FROM THE STATE DEPARTMENT

HON. MARK TAKANO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. TAKANO. Mr. Speaker, I rise today to honor Michael D. Cole upon his retirement from the United States Department of State after 22 years of service.

Mike embarked on his foreign service journey in 2001. Since then, his service has extended from Los Angeles and Washington, D.C. to U.S. Embassies and Consulates in Abuja, Bangkok, Budapest, Mumbai, San Salvador, and Vienna.

Mike assumed the role of Director of the Los Angeles Passport Agency in September 2020, facing head-on the arduous challenges and travel restrictions necessitated by the COVID–19 pandemic. As international travel has resumed in the years since, Mike's leadership in Los Angeles was critical in the agency's return to pre-pandemic productivity, processing passports for nearly three-quarters of a million U.S. citizens during his time as Director. In this position, Mike was a reliable, affable, and professional partner to my District Office as caseworkers processed passport casework brought to them by my constituents. Mike and his team provided prompt and satisfactory guidance in navigating these often tricky and changing requests.

Mike's dedication to public service is further exemplified by his service in the Consular Corps, where he has utilized his experience and expertise to mentor the next generation of Consular Officers. His work to assist U.S. citizens during crises, offer support in disaster relief, aid bereaved families, and protect vulnerable children stand as a testament to his commitment to the American people domestically and abroad.

I extend my heartfelt thanks to Mike for his service to our constituents of the 39th Congressional District and our country, and I wish him a well-deserved retirement.

PERSONAL EXPLANATION

HON. BILL FOSTER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FOSTER. Mr. Speaker, on November 6, I missed two recorded votes. Had I been present, on Roll Call No. 599, the motion to suspend the rules and pass H.R. 1607, I would have voted Yea. On Roll Call No. 600, the motion to suspend the rules and pass H.R. 359, I would have voted Yea. On November 9, I missed two recorded votes. Had I been present, on Roll Call No. 641, agreeing to Tenney Amendment No. 100, I would have voted No. On Roll Call No. 642, agreeing to Tenney Amendment No. 101, I would have voted No.

CONGRESSIONAL VETERAN COMMENDATION FOR SERGEANT BLAINE KLEIN

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Sergeant Blaine Klein of Josephine, Texas, and award him a Congressional Veteran Commendation. Sergeant Klein honorably served in the United States Army during the Iraq War.

At the age of 18, Sergeant Klein followed his father's footsteps and enlisted in the Army in defense of our nation. His duties took him across the continental U.S., and later to Iraq and Korea. In Iraq, Sergeant Klein served as a Human Intelligence Collector and managed teams of intelligence sources to strengthen the Army's informational capabilities throughout the region. In one instance, he saved the lives of his teammates who were involved in a rollover accident that put all of their lives at risk. Sergeant Klein prioritized others around him and helped bring them to safety at great personal risk. For his distinguished service, he was bestowed the Army Commendation Medal, the Meritorious Unit Commendation, and many more awards.

After returning to civilian life, Sergeant Klein has continued to positively influence his community while overcoming his service-related disabilities. He is no stranger to helping others. On a number of occasions, Sergeant Klein has stopped to assist those involved in vehicle accidents or medical emergencies. I commend him for continuing to be an upstanding role model for his community and family.

I am honored to represent Sergeant Klein in Texas' 4th Congressional District. It is a pleasure to award him the Congressional Veteran Commendation for his service to our Nation and to the people of North Texas.

PERSONAL EXPLANATION

HON. JUDY CHU

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Ms. CHU. Mr. Speaker, on November 10, 2023, I was unable to cast my vote on H.R. 1105—Debbie Smith Act; H.R. 593—To rename the Department of Veterans Affairs community-based outpatient clinic in Hinesville, Georgia, as the ''John Gibson, Dan James, William Sapp, and Frankie Smiley VA Clinic''; and the Motion to Refer the Resolution Impeaching Alejandro Nicholas Mayorkas, Secretary of Homeland Security, for high crimes and misdemeanors. Had I been present, I would have voted: YEA on Roll Call No. 643; YEA on Roll Call No. 644; and YEA on Roll Call No. 645.

RECOGNIZING RON SAPP'S 24 YEARS OF SERVICE TO THE CITY OF FERNANDINA BEACH

HON. AARON BEAN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. BEAN of Florida. Mr. Speaker, I rise today to honor Mayor Ron Sapp for his decades of dedication and service to Fernandina Beach. Mayor Sapp's 24 years of civic service as Mayor, Vice Mayor, and Commissioner spanned four decades and displayed an unwavering commitment to bettering our hometown of Fernandina Beach. I was proud to serve alongside him on the Commission, as did my father.

Fernandina is proud of Ron Sapp not only because of his dedication to his community, but also for his military service as an Air Force veteran. But no true biography of Ron would be complete without a chapter on Mr. Sapp—the teacher. Mr. Sapp didn't just teach students what to think, he taught them how to think, and that is something special. Generations of Pirates developed an in interest in—and love for—public service—and for that inspiration, we are grateful.

Mayor Ron Sapp sought to preserve the spirit of Fernandina Beach as a small island town and is a better place because of his accomplishments. Ron, of course, has done all these things with his wife Kasey by his side, and with the support of his daughters Sherri and Lori, and the love of his grandchildren.

On November 14, one of Mayor Sapp's greatest achievements is being named after him: The Ron Sapp Egans Creek Greenway. Mayor Sapp's introduction of the Open Space Bond issue secured the funding for this greenway, which will leave this land untouched by development to be enjoyed by all.

I ask my colleagues to join me today in recognizing Mayor Ron Sapp for his significant role in shaping Fernandina Beach into the beautiful town it is today.

CONGRESSIONAL VETERAN COMMENDATION FOR LIEUTENANT AMY BURTON

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. FALLON. Mr. Speaker, I rise today to recognize Lieutenant Amy Burton of Paris, Texas, and award her a Congressional Veteran Commendation. Lieutenant Burton honorably served in the United States Navy during the Afghanistan War.

Lieutenant Burton heeded the call of duty to serve her nation after narrowly avoiding a terrorist attack in Spain that claimed the lives of several American servicemembers. Shortly after this tragedy, she enlisted in the Navy. From 1988 to 2012, Lieutenant Burton provided dental services and training to troops. Her duties took her around the world, including Sheppard Air Force Base, Camp Stone, Afghanistan, and Yokosuka, Japan. In 2007, Lieutenant Burton served onboard the USS *Bonhomme Richard* assault ship as the Medical Administration Officer. Her efforts helped ensure the troops under her supervision received adequate dental and medical care. For her outstanding service, Lieutenant Burton was bestowed several Navy and Marine Corps Commendation Medals, multiple Navy and Marine Corps Achievement Medals, and many more awards.

Following her retirement in 2012, Lieutenant Burton has continued to make a tremendous impact in her community in numerous ways. She worked with her local Department of Veteran Affairs to aid homeless veterans, assist in benefits claims, and provide important workforce training. Lieutenant Burton also volunteers with Disabled American Veterans, American Legion, Veterans of Foreign Wars, and the Red River Valley Veterans Memorial to uplift and support those who made sacrifices in defense of our Nation.

Through her remarkable leadership and compassion for those in need, I am confident that Lieutenant Burton has improved the lives of many veterans. I commend her for going the extra mile so that our men and women in uniform will never be overlooked.

I am honored to represent Lieutenant Burton in Texas' 4th Congressional District. It is a pleasure to award her the Congressional Veteran Commendation for her service to our Nation and to the people of North Texas.

PERSONAL EXPLANATION

HON. SYLVIA R. GARCIA

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Ms. GARCIA of Texas. Mr. Speaker, due to circumstances beyond my control, caused by a fall in front of the Capitol steps which required emergency medical care, I missed several votes on October 26, 2023. Had I been able to vote, I would have voted: NAY on Roll Call No. 558; YEA on Roll Call No. 557; NAY on Roll Call No. 556; NAY on Roll Call No. 555; NAY on Roll Call No. 554; NAY on Roll Call No. 553; NAY on Roll Call No. 552; NAY on Roll Call No. 551; NAY on Roll Call No. 550; NAY on Roll Call No. 549; NAY on Roll Call No. 548; and NAY on Roll Call No. 547.

PERSONAL EXPLANATION

HON. ALEXANDER X. MOONEY

OF WEST VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. MOONEY. Mr. Speaker, had I been present, I would have voted YEA on Roll Call No. 643; YEA on Roll Call No. 644; and NAY on Roll Call No. 645.

OPPOSING AMENDMENT 109 TO H.R. 5894

HON. JERROLD NADLER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 14, 2023

Mr. NADLER. Mr. Speaker, I rise today in opposition to Amendment 109 which imposes a cap of 30 percent of the total grant on all facilities and administrative, or F&A, costs for research awards made by the National Institutes of Health.

F&A costs help keep the lights on at research facilities across the country. These costs are essential reimbursements for operational expenses incurred by universities and other research institutions for conducting research on behalf of the government. This amendment would greatly affect the ability of research institutions to operate cutting-edge laboratories and maintain utilities such as heating or hazardous waste disposal.

This amendment would reduce critical scientific research that directly contributes to our ability to save lives and reducing suffering for the communities we serve. Most medical breakthroughs were federally supported and took place at medical schools, teaching hospitals, and other research institutions across the country. Without the federal government's reimbursement of F&A costs, institutions would be forced to scale back research that may help develop the next vaccine or cure for cancer, Alzheimer's, and other health threats, or the next technological innovation that will create new businesses or medical devices.

As a result of these cuts, Americans will have to wait longer for cures and our country will cede scientific breakthroughs to foreign competitors such as China, which is heavily investing in this space. This would undermine our nation's economic competitiveness and erode the United States' longstanding commitment to medical research that has yielded countless benefits to society and our well-being.

In summary, cutting essential F&A costs for scientific research would result in slower scientific progress, longer waits for cures, fewer jobs, and a threat to our nation's economic competitiveness. I urge my colleagues to join me in opposing this amendment.

Daily Digest

Senate

Chamber Action

(Legislative Days of Monday, November 13, 2023, and Tuesday, November 14, 2023)

Routine Proceedings, pages S5481–S5513

Measures Introduced: Twelve bills and two resolutions were introduced, as follows: S. 3292–3303, and S. Res. 462–463. **Page S5507**

Measures Reported:

S. Res. 444, providing for the en bloc consideration of military nominations. **Page S5507**

Measures Considered:

Israel Security Supplemental Appropriations Act: Senate began consideration of the motion to proceed to consideration of H.R. 6126, making emergency supplemental appropriations to respond to the attacks in Israel for the fiscal year ending September 30, 2024. **Pages S5500–01**

A motion was entered to close further debate on the motion to proceed to consideration of the bill, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, November 16, 2023. **Page S5501**

During consideration of this measure today, Senate also took the following action:

By 51 yeas to 48 nays (Vote No. 309), Murray motion to table the motion to proceed to consideration of the bill, was agreed to. **Page S5501**

Subsequently, the cloture motion on the motion to proceed to consideration of the bill was rendered moot. **Page S5501**

Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program—Agreement: A unanimous-consent agreement was reached providing that if a motion to proceed to the consideration of S.J. Res. 43, providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Education relating to ''Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program,'' is made, the motion be agreed to and that at 2:30 p.m., on Wednesday, November 15, 2023, Senate vote on passage of the joint resolution. **Page S5506**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, a certification that it is in the national security interests of the United States to extend the partial termination date specified in subsection (i)(1) of section 130(i) of title 10, United States Code, by 180 days; which was referred to the Committee on Armed Services. (PM–31) **Page S5505**

Nomination Discharged: The following nomination was discharged from further committee consideration and placed on the Executive Calendar:

Paul K. Martin, of Maryland, to be Inspector General, United States Agency for International Development, which was sent to the Senate on July 26, 2023, from the Senate Committee on Homeland Security and Governmental Affairs. **Pages S5513**

Messages from the House: **Pages S5505–06**

Measures Referred: **Page S5506**

Measures Placed on the Calendar: **Page S5506**

Measures Read the First Time: **Page S5506**

Executive Communications: **Pages S5506–07**

Additional Cosponsors: **Pages S5508–09**

Statements on Introduced Bills/Resolutions: **Pages S5509–11**

Additional Statements: **Pages S5501–05**

Authorities for Committees to Meet: **Page S5511**

Privileges of the Floor: **Page S5511**

Record Votes: One record vote was taken today. (Total—309) **Page S5501**

Motion to Adjourn: Senate agreed to the motion to adjourn until 7:03 p.m., on Tuesday, November 14, 2023. **Page S5511**

Adjournment: Senate convened at 10:01 a.m. and adjourned at 7:02 p.m., and reconvened at 7:03 p.m., on the same day, and adjourned at 7:05 p.m.,

until 10 a.m. on Wednesday, November 15, 2023. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S5513.)

Committee Meetings

(Committees not listed did not meet)

AMERICAN AGRICULTURE INNOVATION

Committee on Agriculture, Nutrition, and Forestry: Committee concluded a hearing to examine innovation in American agriculture, focusing on leveraging technology and artificial intelligence, after receiving testimony from J. Mason Earles, University of California AI Institute for Next-Generation Food Systems, Davis; Sanjeev Krishnan, S2G Ventures, Chicago, Illinois; Jose-Marie Griffiths, Dakota State University, Madison, South Dakota; Jahmy Hindman, Deer and Company, Moline, Illinois; and Todd J. Janzen Janzen Schroeder Agricultural Law LLC, Indianapolis, Indiana.

PROTECTING MAIN STREET

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine oversight of financial regulators, focusing on protecting Main Street not Wall Street, after receiving testimony from Michael S. Barr, Vice Chair for Supervision, Board of Governors of the Federal Reserve System; Margaret J. Gruenberg, Chairman, Federal Deposit Insurance Corporation; Todd M. Harper, Chairman, National Credit Union Administration; and Michael J. Hsu, Acting Comptroller of the Currency, Department of the Treasury.

WILDLIFE MOVEMENT AND MIGRATION CORRIDORS

Committee on Environment and Public Works: Subcommittee on Fisheries, Water, and Wildlife, concluded a hearing to examine challenges and opportunities to facilitate wildlife movement and improve migration corridors, after receiving testimony from Charlton Bonham, California Department of Fish and Wildlife Director, Sacramento; Richard King, Wyoming Department of Fish and Game, Chief Game Warden, Cheyenne; and Madeleine West, Center for Public Lands, Washington, D.C.

MEDICARE BENEFICIARY ACCESS

Committee on Finance: Subcommittee on Health Care concluded a hearing to examine ensuring Medicare beneficiary access, focusing on a path to telehealth permanency, after receiving testimony from Nicki Perisho, Northwest Regional Telehealth Resource Center, Whitefish, Montana; Eric Wallace, University of Alabama at Birmingham Health System Telehealth Program; Chad Ellimoottil, University of Michigan Virtual Care, Ann Arbor; and Ateev Mehrotra, Harvard Medical School, Boston, Massachusetts.

FEDERAL COVID–ERA SPENDING

Committee on Homeland Security and Governmental Affairs: Subcommittee on Emerging Threats and Spending Oversight concluded a hearing to examine Federal COVID-era spending and preventing future fraud, after receiving testimony from Michael E. Horowitz, Chair, Pandemic Response Accountability Committee, Inspector General, Department of Justice; Hannibal Ware, Inspector General, Small Business Administration; Brian D. Miller, Special Inspector General for Pandemic Recovery, Department of the Treasury; and Rebecca Shea, Director, Forensic Audits and Investigative Service, Government Accountability Office.

UNIONS AND CORPORATE GREED

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine standing up against corporate greed, focusing on how unions are improving the lives of working families, after receiving testimony from Shawn Fain, UAW, Detroit, Michigan; Sean M. O'Brien, International Brotherhood of Teamsters, Sara Nelson, Association of Flight Attendants-CWA, AFL–CIO, and Diana Furchtgott-Roth, The Heritage Foundation, all of Washington, D.C.; and Sean Higgins, Competitive Enterprise Institute, Arlington, Virginia.

BUSINESS MEETING

Committee on Rules and Administration: Committee ordered favorably reported S. Res. 444, providing for the en bloc consideration of military nominations.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 48 public bills, H.R. 6368–6415; and 1 resolution, H. Res. 868, were introduced.

Additional Cosponsors:

Report Filed: A report was filed today as follows:

H. Res. 869, providing for consideration of the bill (H.R. 5893) making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2024, and for other purposes, and providing for consideration of the bill (H.R. 5961) to freeze certain Iranian funds involved in the 2023 hostage deal between the United States and Iran, and for other purposes (H. Rept. 118–273).

Speaker: Read a letter from the Speaker wherein he appointed Representative Cline to act as Speaker pro tempore for today. **Page H5733**

Journal: The House agreed to the Speaker's approval of the Journal by voice vote. **Page H5807**

Recess: The House recessed at 9:46 a.m. and reconvened at 10:30 a.m. **Page H5738**

Labor, Health and Human Services, Education, and Related Agencies Appropriations Act for Fiscal Year 2024: The House considered H.R. 5894, making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024. **Pages H5735–38, H5740–93, H5799–5806**

Pursuant to the Rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 118–13, modified by the amendment printed in part A of H. Rept. 118–272, shall be considered as adopted in the House and in the Committee of the Whole. **Pages H5746–67**

Agreed to:

Aderholt amendment en bloc No. 1 consisting of the following amendments printed in part B of H. Rept. 118–272: Sherrill (No. 3) that increases funding for the Department of Education's Office of Elementary and Secondary Education-Education for the Disadvantaged account by $5 million to allow K–12 schools to implement and administer high-impact tutoring programs that will help students recover from COVID-related academic challenges; Harris (No. 5) that decreases the Office of the Secretary of HHS by $10,000,000. Increases the HRSA Health Workforce topline by $9,500,000; Caraveo (No. 7) that increases and decreases the Maternal and Child Health Block Grant by $35 million for the purpose of providing support for maternal and child health care services; prenatal, delivery, and postnatal care; and screenings, diagnostic and treatment services to improve the health and well-being of mothers, children, and families; Boebert (No. 12) that transfers funds from HHS General Department Management to suicide prevention research and techniques to combat the mental health epidemic; Castor (FL) (No. 14) that increases and decreases funding for the Centers for Disease Control and Prevention in support of the President's request to prevent HPV-related cancers through the Cancer Moonshot Initiative; Miller (WV) (No. 15) that directs $5,000,000 of funding to the CDC's TGS program to promote early detection of emerging pathogens and infectious diseases through airport wastewater study; Pfluger (No. 16) that decreases and increases funds by $1,500,000 within the CDC's National Center for Emerging and Zoonotic Infectious Diseases for the purpose of funding grants for research and surveillance activities on the prevalence of Valley Fever and the health impacts on the population affected; Murphy (No. 17) that increases and decreases funding for the U.S. Department of Health and Human Services Office of Disease Prevention and Health Promotion to support the Presidential Physical Fitness Test; Sherrill (No. 18) that increases funding by $5 million for the CDC Chronic Disease Prevention and Health Promotion Account to award grants for the creation of programs to improve prevention, identification, and treatment of cardiovascular disease in women; Gallagher (No. 20) that increases funding for the Centers for Disease Control and Prevention ALS Registry by $5,000,000 to support research to prevent ALS among active military personnel and veterans, and reduces funding for the Office of the Secretary of General Departmental Management by $5,000,000; Gottheimer (No. 21) that increases and decreases funds by $1,000,000 in the Centers for Disease Control and Prevention's Environmental Health account to emphasize the importance of every child having access to drinking water at school that's free of lead and dangerous materials; Gottheimer (No. 23) that increases and decreases funding by $5 million for the National Cancer Institute to support improved access to lifesaving screening, diagnostic, and treatment services in an effort to reduce disparities and advance health equity in breast and cervical cancer; Jackson Lee (No. 24) that increases funding for the National Cancer Institute by $2,000,000 to research triple negative breast cancer; Murphy (No. 25) that transfers $1,000,000 from the Department of Health and

Human Services Office of the Secretary to the National Institute of Neurological Disorders and Stroke to fund a Pediatric-Onset Epilepsies Consortium to enable cooperative research studies, accelerate the development of knowledge about the epilepsies, and rapidly advance therapeutic options and their implementation to improve treatments and healthcare outcomes; Gluesenkamp Perez (No. 27) that increases and decreases funding for the National Institute of Allergy and Infectious Disease to recognize the economic burden of Hand, Foot, and Mouth Disease and highlight the importance of developing a vaccine for its prevention; Caraveo (No. 29) that increases and decreases the Eunice Kennedy Shriver National Institute of Child Health and Human Development by $10 million, for the purpose of continued research and training to understand human development across the lifespan to improve health outcomes and reduce costs associated with illness and disability; Gottheimer (No. 30) that increases funding by $10 million for the National Institute on Aging to strengthen the Alzheimer's Disease Education and Referral (ADEAR) Center's research on Alzheimer's disease including causes, diagnostic tools, treatments, and cures; Barragán (No. 31) that increases and decreases funds for the National Institute on Minority Health and Health Disparities (NIMHD) by $1,000,000 to express the intent that increased funding be included for the NIMHD Research Endowment Program to provide continued support to existing grantees, and to expand the number of statutorily eligible institutions receiving grants through a competitive process; Steil (No. 37) that increases the Substance Abuse Mental Health Budget by $18 million for the 9–8–8 National Suicide Prevention Lifeline; Balint (No. 40) that increases and decreases funding for the SAMHSA Disaster Response Program to highlight the importance of supporting disaster survivors' mental health; Molinaro (No. 41) that subtracts and adds $10,000,000 to highlight the importance of bolstering 988 infrastructure and care coordination; Murphy (No. 42) that transfers $2 million from the Office of the Secretary General Departmental Management to the Substance Abuse and Mental Health Administration to increase available grants to prevent prescription drug and illicit opioid overdoses; Caraveo (No. 43) that increases and decreases the National Child Traumatic Stress Initiative by $7 million for the purpose of raising awareness of the impact of traumatic stress on children and adolescents and to increase availability and accessibility of trauma-informed care, services, and treatments; Barr (No. 44) that increases funding for the Treatment, Recovery, and Workforce Support Program; Gottheimer (No. 45) that increases funding by $10 million for the Assistant Secretary for Mental Health and Substance Use to award grants, contracts, and cooperative agreements for planning, establishing, or administering programs to prevent and address the misuse of opioids, related drugs, and other drugs commonly used in pain management or injury recovery, as well as the co-use of one or more such drugs with other substances, by students and student athletes; Pettersen (No. 46) that transfers $2 million from the Office of Secretary General Departmental Management Account to the Substance Abuse and Mental Health Administration for the purpose of expanding mobile Medication Assisted Treatment (MAT) units in rural communities; Molinaro (No. 47) that subtracts and adds $2,000,000 to specify that SAMHSA should explore using its funds for crisis stabilization centers that provide walk-in care services for individuals with serious mental health conditions and/or substance use disorders as an effective approach to reducing emergency department visits, hospitalizations, or incarceration; Steube (No. 48) that increases and decreases funding to the Administration for Children and Families by $2,000,000 to highlight the need for innovative foster care programming that recognizes the adversities, challenges, and traumas that children and families involved in the foster care system often confront in such vulnerable periods; Ramirez (No. 49) that increases and decreases funding for the Services for Survivors of Torture Program; Ciscomani (No. 50) that increases and decreases funding for Head Start; Jackson Lee (No. 51) that increases funds by $2,000,000 for the Head Start Act, including Head Start partnerships; Molinaro (No. 52) that increases and decreases funding for the Administration of Community Living by $5,000,000 to build up telephone reassurance services to support the mental health and overall well-being of socially vulnerable older adults; Dunn (No. 53) that increases and decreases the funding by $400 million for the Administration for Strategic Preparedness and Response's (ASPR) Project Bioshield to highlight the importance of HHS funding oral antiviral therapeutics as part of Project NextGen; Hudson (No. 56) that transfers $2,000,000 from HHS office of the Secretary and transfer it to the Office of Inspector General to support investigation and oversight functions of HHS in disrupting counterfeit medicine; Kiggans (No. 57) that increases and decreases Medicare Hearings and Appeals funding by $196,000,000 to direct CMS to transmit information, either on the CMS website or on the claim denial notification, to those whose Medicare/Medicaid claims are denied about how to effectively appeal their denied claims; Houchin (No. 59) that increases

and decreases the ESEA account by $1 million dollars to highlight the importance of the Literacy Education for All, Results for the Nation program under ESEA; Houchin (No. 60) that increases and decreases the HEA account by $1 million dollars to highlight the importance of our future educators teaching the science of reading through a phonics-based curriculum; David Scott (GA) (No. 64) that increases and decreases funding for the Assistance for Arts Education to highlight the need for professional development for arts educators to better include and accommodate students with disabilities; Molinaro (No. 65) that increases and decreases IDEA funding to emphasize the importance of supporting students with intellectual and developmental disabilities; Molinaro (No. 66) that increases and decreases IDEA funding to highlight the importance for schools districts to inform parents of their right to have a third-party advocate in IEP meetings; Steil (No. 67) that transfers $5,000,000 from the Department of Education's Departmental Management Program Administration account to the Department of Education's Special Education account for the purpose of carrying out Part B of the Individuals with Disabilities Education Act (IDEA); McGarvey (No. 68) that increases and decreases funding by $2 million to highlight the importance of continued funding for the American Printing House for the Blind and their mission providing accessible and innovative reading materials to people who are blind or low vision; Molinaro (No. 72) that increases and decreases Department of Education funding to ensure that students are protected against anti Semitic activity and those students who are affected have access to adequate counseling services; Moore (WI) (No. 73) that demonstrates the importance of the TRIO program by increase/decrease by $1 million; Ramirez (No. 74) that increases and decreases funding for Augustus F. Hawkins Centers of Excellence grants; Ramirez (No. 75) that increases and decreases funding for Development Hispanic-Serving Institutions Program; Lawler (No. 77) that increases/decreases funding at the Department of Education's Office of Civil Rights to prioritize the investigation of antisemitic incidents on college campuses; Gottheimer (No. 79) that increases and decreases funds by $10 million to hire more Social Security Administration employees in the Office of Hearing Operations to reduce hearings backlog and processing times for disability claims; and Schweikert (No. 141) that increases and decreases funding of $5 million for the National Institute on Drug Abuse to support research on cures for synthetic opioids and fentanyl; **Pages H5767–70**

Higgins (LA) amendment (No. 2 printed in part B of H. Rept. 118–272) that reduces the Mine Safety and Health Administration's Salary and Expenses account by $1,000,000, attributed to the salary and benefits cuts of William O'Dell and Christopher Williamson and redirects these funds to the Department of Labor's Office of Inspector General's account; **Page H5771**

Cloud amendment (No. 4 printed in part B of H. Rept. 118–272) that strikes a reference to a job corps center on Treasure Island in Sec. 114 and replaces it with the job corps center located in San Marcos, Texas; **Pages H5771–72**

Meuser amendment (No. 6 printed in part B of H. Rept. 118–272) that provides the Health Workforce Account with an additional $10 million for the Nurse Corps programs which is offset with a $19 million deduction to the National Institute of Nursing Research; **Pages H5772–73**

Boebert amendment (No. 8 printed in part B of H. Rept. 118–272) that transfers funds from HHS General Department Management to the Small Rural Hospital Improvement Grant Program; **Page H5773**

Boebert amendment (No. 9 printed in part B of H. Rept. 118–272) that transfers funds from HHS General Department Management for the purchase and implementation of telehealth services to improve health care coordination for rural veterans between rural providers and the Department of Veterans Affairs; **Pages H5773–74**

Boebert amendment (No. 10 printed in part B of H. Rept. 118–272) that transfers funds from HHS General Department Management to the Rural Emergency Hospital Technical Assistance Program; **Page H5774**

Boebert amendment (No. 11 printed in part B of H. Rept. 118–272) that transfers funds from HHS General Department Management to the Rural Residency Planning and Development Program to support physician workforce expansion in rural areas; **Page H5774**

Boebert amendment (No. 13 printed in part B of H. Rept. 118–272) that transfers funds from HHS General Department Management to the Inspector General to combat waste, fraud, and abuse; **Pages H5774–75**

Mills amendment (No. 19 printed in part B of H. Rept. 118–272) that reduces the appropriated amount for the Public Health Scientific Services to the FY19 appropriated amount; **Pages H5775–76**

Grothman amendment (No. 22 printed in part B of H. Rept. 118–272) that increases and decreases funding in CDC Wide Activities and Program Support by $1,000,000 to express the intent for the CDC to conduct a study on the connection between vitamin D deficiencies and COVID–19 mortality rates in the United States; and the role of vitamin D in suppressing severe COVID–19 symptoms; and determine whether or not a recommendation should

be made on the supplemental intake of vitamin D to boost immune health and protect against complications associated with respiratory illness and infections; **Pages H5776–77**

Pfluger amendment (No. 34 printed in part B of H. Rept. 118–272) that decreases the amount appropriated to the NIH's Office of the Director by $3,748,715 to redress the amount of federal funds the NIH awarded EcoHealth Alliance, Inc. to conduct gain-of-function research at the Wuhan Institute of Virology; **Pages H5779–5780**

Boebert amendment (No. 36 printed in part B of H. Rept. 118–272) that reduces funds for the NIH; **Pages H5781–82**

Harris amendment (No. 38 printed in part B of H. Rept. 118–272) that decreases the appropriation for NIH buildings and facilities by $59,000,000 and increases the appropriation for Project BioShield by $50,000,000; **Pages H5782–83**

Harris amendment (No. 39 printed in part B of H. Rept. 118–272) that decreases the appropriation for NIH buildings and facilities by $119,000,000 and increases the appropriation for the Strategic National Stockpile by $100,000,000; **Pages H5783–84**

Carter (GA) amendment (No. 54 printed in part B of H. Rept. 118–272) that directs $15 million to carry out section 2409 of Public Law 117–328 to allow states to build or maintain their own medical stockpile for their specific and unique needs, while coordinating with the SNS and ensuring it is robust; **Pages H5784–85**

Boebert amendment (No. 61 printed in part B of H. Rept. 118–272) that transfers funds from the Department of Education bureaucracy to Charter School Grants; **Pages H5785–87**

Boebert amendment (No. 62 printed in part B of H. Rept. 118–272) that transfers funds from the Department of Education bureaucracy to Rural School Programs; and **Page H5787**

Boebert amendment (No. 63 printed in part B of H. Rept. 118–272) that transfers funds from the Department of Education bureaucracy to the Office of Indian Education. **Pages H5787–88**

Rejected:

Miller (IL) amendment (No. 1 printed in part B of H. Rept. 118–272) that sought to reduce the funds provided to the Occupational Safety and Health Administration to $0 (by a recorded vote of 131 ayes to 300 noes, Roll No. 648); **Pages H5770–71, H5800**

Good (VA) amendment (No. 28 printed in part B of H. Rept. 118–272) that sought to transfer $10 million allocated for the Office of Diversity in Biomedical Research to the Spending Reduction Account (by a recorded vote of 190 ayes to 241 noes, Roll No. 649); **Pages H5777–78, H5801**

Good (VA) amendment (No. 32 printed in part B of H. Rept. 118–272) that sought to transfer $524.4 million from the National Institute of Minority Health and Health Disparities to the Spending Reduction Account (by a recorded vote of 140 ayes to 294 noes, Roll No. 650); **Pages H5778, H5801–02**

Rosendale amendment (No. 33 printed in part B of H. Rept. 118–272) that sought to prohibits funding for the John E. Fogarty International Center saving approximately $95 million (by a recorded vote of 183 ayes to 251 noes, Roll No. 651); **Pages H5778–79, H5802**

Mills amendment (No. 35 printed in part B of H. Rept. 118–272) that sought to reduce the appropriated amount for the Office of the Director, NIH to the FY19 appropriated amount (by a recorded vote of 186 ayes to 257 noes, Roll No. 652); **Pages H5780–81, H5802–03**

Good (VA) amendment (No. 55 printed in part B of H. Rept. 118–272) that sought to transfer $28 million allocated for Minority AIDS prevention to the Spending Reduction Account (by a recorded vote of 109 ayes to 324 noes, Roll No. 653); **Pages H5785, H5803–04**

Biggs amendment (No. 69 printed in part B of H. Rept. 118–272) that sought to cut funding for the Student Financial Assistance Program (by a recorded vote of 85 ayes to 350 noes, Roll No. 654); **Pages H5788–89, H5804**

Biggs amendment (No. 70 printed in part B of H. Rept. 118–272) that sought to strike funding to the Student Aid Administration (by a recorded vote of 81 ayes to 353 noes, Roll No. 655); **Pages H5789–90, H5804–05**

Biggs amendment (No. 71 printed in part B of H. Rept. 118–272) that sought to strike funding to the Higher Education Program (by a recorded vote of 81 ayes to 354 noes, Roll No. 656); and **Pages H5790–91, H5805–06**

Biggs amendment (No. 76 printed in part B of H. Rept. 118–272) that sought to strike funding to the Institute of Education Science (by a recorded vote of 118 ayes to 316 noes, Roll No. 657). **Pages H5791–92, H5806**

H. Res. 864, the rule providing for consideration of the bill (H.R. 5894) was agreed to by a recorded vote of 217 ayes to 209 noes, Roll No. 647, after the previous question was ordered by a yea-and-nay vote of 217 yeas to 208 nays, Roll No. 646. **Pages H5735–40**

Suspensions: The House agreed to suspend the rules and pass the following measure:

Further Continuing Appropriations and Other Extensions Act, 2024: H.R. 6363, amended, making further continuing appropriations for fiscal year

2024, by a ⅔ yea-and-nay vote of 336 yeas to 95 nays, Roll No. 658. **Pages H5793–99, H5806–07**

Quorum Calls—Votes: Two yea-and-nay votes and eleven recorded votes developed during the proceedings of today and appear on pages H5739, H5739–40, H5800, H5801, H5801–02, H5802, H5802–03, H5803–04, H5804, H5804–05, H5805–06, H5806 and H5807.

Adjournment: The House met at 9 a.m. and adjourned at p.m.

Committee Meetings

CONFRONTING THE SCOURGE OF ANTISEMITISM ON CAMPUS

Committee on Education and Workforce: Subcommittee on Higher Education and Workforce Development held a hearing entitled "Confronting the Scourge of Antisemitism on Campus". Testimony was heard from public witnesses.

LEVERAGING AI TO ENHANCE AMERICAN COMMUNICATIONS

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled "Leveraging AI to Enhance American Communications". Testimony was heard from public witnesses.

CLEAN POWER PLAN 2.0: EPA'S EFFORT TO JEOPARDIZE RELIABLE AND AFFORDABLE ENERGY FOR STATES

Committee on Energy and Commerce: Subcommittee on Environment, Manufacturing, and Critical Materials held a hearing entitled "Clean Power Plan 2.0: EPA's Effort to Jeopardize Reliable and Affordable Energy for States". Testimony was heard from L. David Glatt, Director, Department of Environmental Quality, North Dakota; Chris Parker, Director, Division of Public Utilities, Utah; Michelle Walker Owenby, Director, Division of Air Pollution Control, Department of Environment and Conservation, Tennessee; and Serena McIlwain, Secretary of the Environment, Maryland.

MISCELLANEOUS MEASURES

Committee on Financial Services: Full Committee held a markup on H.R. 5921, the "No U.S. Financing for Iran Act of 2023"; H.R. 5923, the "Iran-China Energy Sanctions Act of 2023"; H.R. 6245, the "Holding Iranian Leaders Accountable Act"; H.R. 6323, the "Iran Counterterrorism Act of 2023"; H.R. 6322, the "End Financing to Hamas and State Sponsors of Terrorism Act"; H.R. 5945, the "Freezing-HAMAS Act"; H.R. 6000, the "Revoke Iranian Funding Act of 2023"; H.R. 6015, the "Iran Sanctions Accountability Act of 2023"; H.R. 6367, the "Armed Conflict Migration Act of 2023"; H.R. 6370, the "OFAC Licensure for Investigators Act"; and H.R. 6365, the "Stopping Illicit Oil Shipments Act of 2023". H.R. 5921, H.R. 5923, H.R. 6245, H.R. 6323, H.R. 6322, H.R. 5945, H.R. 6000, H.R. 6015, H.R. 6367, H.R. 6370, and H.R. 6365 were ordered reported, as amended.

EXAMINING THE BIDEN ADMINISTRATION'S AFGHANISTAN POLICY SINCE THE U.S. WITHDRAWAL

Committee on Foreign Affairs: Full Committee held a hearing entitled "Examining the Biden Administration's Afghanistan Policy Since the U.S. Withdrawal". Testimony was heard from John Sopko, Inspector General, Special Inspector General for Afghanistan Reconstruction.

GO-TO-ZERO: JOE BIDEN'S WITHDRAWAL ORDER AND THE TALIBAN TAKEOVER OF AFGHANISTAN

Committee on Foreign Affairs: Subcommittee on Oversight and Accountability held a hearing entitled "Go-to-Zero: Joe Biden's Withdrawal Order and the Taliban Takeover of Afghanistan". Testimony was heard from public witnesses.

THE BROKEN PATH: HOW TRANSNATIONAL CRIMINAL ORGANIZATIONS PROFIT FROM HUMAN TRAFFICKING AT THE SOUTHWEST BORDER

Committee on Homeland Security: Subcommittee on Border Security and Enforcement; and Subcommittee on Emergency Management and Technology held a joint hearing entitled "The Broken Path: How Transnational Criminal Organizations Profit from Human Trafficking at the Southwest Border". Testimony was heard from public witnesses.

OVERSIGHT OF THE DEPARTMENT OF JUSTICE ANTITRUST DIVISION

Committee on the Judiciary: Subcommittee on the Administrative State, Regulatory Reform, and Antitrust held a hearing entitled "Oversight of the Department of Justice Antitrust Division". Testimony was heard from Jonathan Kanter, Assistant Attorney General, Antitrust Division, Department of Justice.

EXAMINING THE BIDEN ADMINISTRATION'S ABANDONED MINE LANDS AND ACTIVE MINING PROGRAMS

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled "Examining the Biden Administration's Abandoned

Mine Lands and Active Mining Programs''. Testimony was heard from Glenda Owens, Deputy Director, Office of Surface Mining, Reclamation and Enforcement, Department of the Interior; Kyle Wendtland, Administrator, Land Quality Division, Wyoming Department of Environmental Quality; Dustin Morin, Director, Mining and Reclamation Division, Alabama Department of Labor; Benjamin McCament, Chief, Division of Mineral Resources Management, Ohio Department of Natural Resources; and a public witness.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Water, Wildlife and Fisheries held a hearing on H.R. 4219, the ''Southwestern Power Administration Fund Establishment Act''; H.R. 5770, the ''Water Data Improvement Act''; H.R. 6107, the ''Urban Canal Modernization Act''; and H.R. 6127, the ''MAPWaters Act''. Testimony was heard from Chairman Graves of Missouri, and Representatives Neguse, Simpson, and Moore of Utah; Mike Wech, Administrator, Southwestern Power Administration, Department of Energy; and public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Federal Lands held a hearing on H.R. 4235, the ''Wildfire Technology DEMO Act''; H.R. 4353, the ''Civilian Conservation Center Enhancement Act of 2023''; H.R. 4717, the ''Locally Led Restoration Act of 2023''; H.R. 5582, the ''White Oak Resilience Act''; H.R. 5665, the ''Promoting Accessibility on Federal Lands Act of 2023''; H.R. 6070, to amend the Military Lands Withdrawal Act of 1999 to clarify the authority of Department of Defense to conduct certain military activities at the Nevada test and training range, and for other purposes; and legislation on the BIOCHAR Act. Testimony was heard from Chairman Westerman, and Representatives Kim of California, Salinas, Lamborn, Stansbury, and Amodei; Dwayne McFall, Commissioner, District 3, Fremont County, Colorado; Jim Topoleski, Division Chief, Air and Wildland Division, San Bernardino County Fire Department, Redlands, California; Jeff Rupert, Director, Office of Wildland Fire, Department of the Interior; Jaelith Hall-Rivera, Deputy Chief, State, Private, and Tribal Forestry, U.S. Forest Service, Department of Agriculture; Edwin Oshiba, Principal Deputy Assistant Secretary of the Air Force for Energy, Installations, and Environment, Department of the Air Force; and public witnesses.

OPPORTUNITIES AND CHALLENGES FOR IMPROVING PUBLIC SAFETY IN TRIBAL COMMUNITIES

Committee on Natural Resources: Subcommittee on Indian and Insular Affairs held a hearing entitled ''Opportunities and Challenges for Improving Public Safety in Tribal Communities''. Testimony was heard from Bryan Newland, Assistant Secretary-Indian Affairs, Department of the Interior; and public witnesses.

OVERSIGHT OF THE U.S. GENERAL SERVICES ADMINISTRATION

Committee on Oversight and Accountability: Full Committee held a hearing entitled ''Oversight of the U.S. General Services Administration''. Testimony was heard from Robin Carnahan, Administrator, U.S. General Services Administration.

COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES APPROPRIATIONS ACT, 2024; NO FUNDS FOR IRANIAN TERRORISM ACT

Committee on Rules: Full Committee held a hearing on H.R. 5893, the ''Commerce, Justice, Science, and Related Agencies Appropriations Act, 2024''; and H.R. 5961, the ''No Funds for Iranian Terrorism Act''. The Committee granted, by a record vote of 8–3, a rule providing for consideration of H.R. 5893, the ''Commerce, Justice, Science, and Related Agencies Appropriations Act, 2024'', and H.R. 5961, the ''No Funds for Iranian Terrorism Act''. The rule provides for consideration of H.R. 5893, the ''Commerce, Justice, Science, and Related Agencies Appropriations Act, 2024'', under a structured rule. The rule waives all points of order against consideration of the bill. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees. The rule provides that an amendment in the nature of a substitute consisting of the text of Rules Committee Print 118–12 shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only those amendments printed in part A of the Rules Committee report, amendments en bloc described in section 3, and pro forma amendments described in section 4. Each amendment shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment

except as provided by section 4 of the rule, and shall not be subject to a demand for division of the question. All points of order against the amendments printed in part A of the Rules Committee report or amendments en bloc described in section 3 of the resolution are waived. The rule provides that the chair of the Committee on Appropriations or her designee may offer amendments en bloc consisting of amendments printed in part A of the Rules Committee report not earlier disposed of. Amendments en bloc shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment except as provided by section 4 of the rule, and shall not be subject to a demand for division of the question. The rule provides that the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate. The rule provides one motion to recommit. The rule further provides for consideration of H.R. 5961, the ''No Funds for Iranian Terrorism Act'', under a closed rule. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a substitute consisting of the text of Rules Committee Print 118–14, modified by the amendment printed in part B of the Rules Committee report, shall be considered as adopted, and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Foreign Affairs or their respective designees. Finally, the rule provides one motion to recommit. Testimony was heard from Representatives James, Kamlager-Dove, Rogers of Kentucky, Cartwright, Clyde, Kilmer, Cline, Raskin, Grothman, and Self.

OVERSIGHT OF THE SBA'S OFFICE OF ENTREPRENEURIAL DEVELOPMENT

Committee on Small Business: Full Committee held a hearing entitled ''Oversight of the SBA's Office of Entrepreneurial Development''. Testimony was heard from Mark Madrid, Associate Administrator, Office of Entrepreneurial Development, U.S. Small Business Administration.

GUARDIANS OF THE SEA: EXAMINING COAST GUARD EFFORTS IN DRUG ENFORCEMENT, ILLEGAL MIGRATION, AND IUU FISHING

Committee on Transportation and Infrastructure: Subcommittee on Coast Guard and Maritime Transportation held a hearing entitled ''Guardians of the Sea: Examining Coast Guard Efforts in Drug Enforcement, Illegal Migration, and IUU Fishing''. Testimony was heard from Rear Admiral Jo-Ann Burdian, Assistant Commandant for Response Policy (CG–5R), U.S. Coast Guard; Heather MacLeod, Director, Homeland Security and Justice, Government Accountability Office; Caitlin Keating-Bitonti, Natural Resources Policy Analyst, Congressional Research Service, Library of Congress; and a public witness.

EMERGING THERAPIES: BREAKTHROUGHS IN THE BATTLE AGAINST SUICIDE?

Committee on Veterans' Affairs: Subcommittee on Health held a hearing entitled ''Emerging Therapies: Breakthroughs in the Battle Against Suicide?''. Testimony was heard from Carolyn Clancy, M.D., Assistant Under Secretary for Health, Office of Discovery, Education and Affiliate Networks, Veterans Health Administration, Department of Veterans Affairs; Ilse Wiechers, M.D., Deputy Executive Director, Office of Mental Health and Suicide Prevention, Veterans Health Administration, Department of Veterans Affairs; Rachel Yehuda, Director, Patient Care Center, Bronx Veterans Affairs Medical Center, Veterans Health Administration, Department of Veterans Affairs; Sergeant Jonathan Lubecky, U.S. Army (Retired); and public witnesses.

COUNTERING TERRORISM IN A SHIFTING GEOPOLITICAL LANDSCAPE

Permanent Select Committee on Intelligence: Subcommittee on National Intelligence; and Subcommittee on Counterterrorism, Law Enforcement, and Intelligence of the House Committee on Homeland Security held a joint hearing entitled ''Countering Terrorism in a Shifting Geopolitical Landscape''. This hearing was closed.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, NOVEMBER 15, 2023

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Environment and Public Works: to hold hearings to examine opportunities in industrial decarbonization, focusing on delivering benefits for the economy and the climate, 10 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine United States leadership on artificial intelligence in an era of strategic competition, 10 a.m., SD–419.

Committee on Homeland Security and Governmental Affairs: business meeting to consider the nominations of Harry Coker, Jr., of Kansas, to be National Cyber Director, Jeff Rezmovic, of Maryland, to be Chief Financial Officer, Department of Homeland Security, and Suzanne Elizabeth Summerlin, of Florida, to be General Counsel of the Federal Labor Relations Authority, 11 a.m., SD–562.

Committee on Indian Affairs: business meeting to consider S. 1898, to amend the Northwestern New Mexico Rural Water Projects Act to make improvements to that Act, and S. 2088, to direct the Secretary of the Interior to complete all actions necessary for certain land to be held in restricted fee status by the Oglala Sioux Tribe and Cheyenne River Sioux Tribe, 2:30 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine the nominations of Sara E. Hill, and John David Russell, both to be a United States District Judge for the Northern District of Oklahoma, and Ramona Villagomez Manglona, to be Judge for the District Court for the Northern Mariana Islands, 10 a.m., SD–226.

Committee on Small Business and Entrepreneurship: to hold hearings to examine veteran entrepreneurship, focusing on from service to small business success, 2:30 p.m., SR–428A.

Committee on Veterans' Affairs: to hold hearings to examine VA's Fourth Mission, focusing on supporting our nation's emergency preparedness and response, 3:30 p.m., SR–418.

Select Committee on Intelligence: to receive a closed briefing on certain intelligence matters, 2:30 p.m., SVC–217.

House

Committee on Armed Services, Full Committee, hearing entitled ''Congressional Commission on the Strategic Posture of the United States'', 10 a.m., 2118 Rayburn.

Committee on Energy and Commerce, Subcommittee on Health, markup on H.R. 5372, the ''Expanding Seniors' Access to Lower Cost Medicines Act of 2023''; H.R. 2880, the ''Protecting Patients Against PBM Abuses Act''; H.R. 5393, to amend title XVIII of the Social Security Act to ensure fair assessment of pharmacy performance and quality under Medicare part D, and for other purposes; H.R. 5385, the ''Medicare PBM Accountability Act''; H.R. 5386, the ''Cutting Copays Act''; H.R. 4881, to amend title XVIII of the Social Security Act to limit cost sharing for drugs under the Medicare program; H.R. 5389, the ''National Coverage Determination Transparency Act''; H.R. 133, the ''Mandating Exclusive Review of Individual Treatments Act''; H.R. 5396, the ''Coverage Determination Clarity Act of 2023''; H.R. 5371, the ''Choices for Increased Mobility Act of 2023''; H.R. 5388, the ''Supporting Innovation for Seniors Act''; H.R. 5380, to amend title XVIII of the Social Security Act to increase data transparency for supplemental benefits under Medicare Advantage; H.R. 3842, the ''Expanding Access to Diabetes Self-Management Training Act of 2023''; H.R. 5397, the ''Joe Fiandra Access to Home Infusion Act of 2023''; H.R. 6366, to amend title XVIII of the Social Security Act with respect to the work geographic index for physician payments under the Medicare program, and to revise the phase-in of clinical laboratory test payment changes under such program; H.R. 6369, to amend title XVIII of the Social Security Act to extend incentive payments for participation in eligible alternative payment models; H.R. 5555, the ''DMEPOS Relief Act of 2023''; H.R. 6371, the ''Provider Reimbursement Stability Act of 2023''; H.R. 6364, the ''Medicare Telehealth Privacy Act of 2023''; H.R. 1352, the ''Increasing Access to Biosimilars Act of 2023''; and H.R. 1691, the ''Ensuring Patient Access to Critical Breakthrough Products Act of 2023'', 10 a.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled ''Oversight of the Prudential Regulators'', 9:30 a.m., 2128 Rayburn.

Subcommittee on Digital Assets, Financial Technology and Inclusion, hearing entitled ''Crypto Crime in Context: Breaking Down the Illicit Activity in Digital Assets'', 2 p.m., 2128 Rayburn.

Committee on Foreign Affairs, Subcommittee on Europe, hearing entitled ''The Future of Nagorno-Karabakh'', 9:30 a.m., HVC–210.

Committee on Homeland Security, Full Committee, hearing entitled ''Worldwide Threats to the Homeland'', 9 a.m., 310 Cannon.

Committee on Natural Resources, Full Committee, markup on H.R. 524, to amend the Coastal Barrier Resources Act to create an exemption for certain shoreline borrow sites; H.R. 1667, the ''Ouachita National Forest Overnight Camping Act''; H.R. 1727, the ''Chesapeake and Ohio Canal National Historical Park Commission Extension Act''; H.R. 2437, to revise the boundaries of a unit of the John H. Chafee Coastal Barrier Resources System in Topsail, North Carolina, and for other purposes; H.R. 2882, the ''Udall Foundation Reauthorization Act of 2023''; H.R. 409, the ''Great Salt Lake Stewardship Act''; H.R. 5509, the ''Electronic Permitting Modernization Act''; and H.R. 6070, to amend the Military Lands Withdrawal Act of 1999 to clarify the authority of Department of Defense to conduct certain military activities at the Nevada test and training range, and for other purposes, 10 a.m., 1324 Longworth.

Committee on Science, Space, and Technology, Full Committee, markup on H.R. 6213, the ''National Quantum Initiative Reauthorization Act''; and H.R. 6131, the ''Commercial Space Act of 2023'', 9:30 a.m., 2318 Rayburn.

Committee on Transportation and Infrastructure, Full Committee, markup on H.R. 3209, the ''I–27 Numbering Act of 2023''; H.R. 5903, to authorize the International Boundary and Water Commission to accept funds for activities relating to wastewater treatment and flood control works, and for other purposes; H.R. 1586, the ''Forest Protection and Wildland Firefighter Safety Act of 2023''; H.R. 5473, the ''Promoting Resilient Buildings Act of 2023''; H.R. 6277, the ''FASTA Reform Act of 2023''; H.R. 6278, the ''Maximizing Office Value and Efficiency Act of 2023''; H.R. 6260, the ''Federal Oversight of Construction Use and Safety Act''; H.R. 6276, the ''Utilizing Space Efficiently and Improving Technologies Act of 2023''; H.R. 6261, the ''Impact of Crime on Public Buildings Usage Act of 2023''; H.R. 6241, the ''Federal Use it or Lose it Leases Act''; H.R. 6249, the ''Think

Differently About Emergencies Act''; H.R. 6254, the ''Public Buildings Accountability Act of 2023''; H.R. 5754, to designate the United States courthouse located at 350 W. 1st Street, Los Angeles, California, as the ''Felicitas and Gonzalo Mendez United States Courthouse''; H.R. 6316, to amend title 40, United States Code, to establish an expiration date of certain committee resolutions with respect to leases or projects, and for other purposes; and H.R. 6317, to require the Administrator of the General Services Administration to submit a report describing a process for seeking public comment about proposed changes to mandatory design standards for public buildings, and for other purposes, 10 a.m., 2167 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity, markup on H.R. 522, the ''Deliver for Veterans Act''; H.R. 2830, the ''Veteran Improvement Commercial Driver License Act of 2023''; H.R. 3601, the ''Student Veteran Work Study Modernization Act''; H.R. 3722, the ''Daniel J. Harvey, Jr. and Adam Lambert Improving Servicemember Transition to Reduce Veteran Suicide Act''; H.R. 3738, to amend title 38, United States Code, to establish in the Department of Veterans Affairs the Veterans Economic Opportunity and Transition Administration, and for other purposes; H.R. 5785, to amend title 38, United States Code, to modify the requirements of the Edith Nourse Rogers STEM Scholarship; H.R. 5913, the ''Consolidating Veteran Employment Services for Improved Performance Act of 2023''; H.R. 5914, to amend title, United States Code, to improve the processes to approve programs of education for purposes of the educational assistance programs of the Department of Veterans Affairs, and for other purposes; H.R. 5956, the ''G.I. Bill Improvement Act of 2023''; and H.R. 6193, to amend title 38, United States Code, to waive the fee for a housing loan guaranteed by the Secretary of Veterans Affairs for a veteran with a service-connected disability who applied for such loan before receiving a disability rating from the Secretary, 10 a.m., 360 Cannon.

Subcommittee on Technology Modernization, hearing entitled ''Electronic Health Record Modernization Deep Dive: System Uptime'', 12 p.m., 360 Cannon.

Committee on Ways and Means, Full Committee, hearing entitled ''From Ivory Towers to Dark Corners: Investigating the Nexus Between Antisemitism, Tax-Exempt Universities, and Terror Financing'', 2 p.m., 1100 Longworth.

Joint Meeting

Joint Economic Committee: to hold hearings to examine aging Americans and a waning workforce, focusing on demographic drivers of our deficit, 2:30 p.m., 1334 Longworth Building.

Next Meeting of the **SENATE**

10 a.m., Wednesday, November 15

Senate Chamber

Program for Wednesday: Senate will be in a period of morning business. Senators should expects a motion to proceed to consideration of S.J. Res. 43, Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program, to be made, with a vote on passage of the joint resolution at approximately 2:30 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, November 15

House Chamber

Program for Wednesday: Continue consideration of H.R. 5894—Labor, Health and Human Services, Education, and Related Agencies Appropriations Act for Fiscal Year 2024.

Extensions of Remarks, as inserted in this issue

HOUSE

Balderson, Troy, Ohio, E1100
Barr, Andy, Ky., E1099
Bean, Aaron, Fla., E1102
Bera, Ami, Calif., E1099
Chu, Judy, Calif., E1102
Cleaver, Emanuel, Mo., E1099
Fallon, Pat, Tex., E1097, E1097, E1098, E1099, E1099, E1100, E1101, E1102, E1102, E1103
Franklin, Scott, Fla., E1098
Foster, Bill, Ill., E1102
Garamendi, John, Calif., E1097, E1101
Garcia, Sylvia R., Tex., E1103
Huffman, Jared, Calif., E1101
Lofgren, Zoe, Calif., E1101
Mooney, Alexander X., W.Va., E1103
Mrvan, Frank J., Ind., E1098
Nadler, Jerrold, N.Y., E1103
Phillips, Dean, Minn., E1100
Schiff, Adam B., Calif., E1100
Takano, Mark, Calif., E1097, E1102
Williams, Roger, Tex., E1099

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